

Copyright 2026 Andrew L. Smith

A Puzzle of Human Moral Identity

by

Andrew L. Smith

Dissertation

Submitted in partial fulfillment of the requirements
for the degree of Doctor of Philosophy in Philosophy
in the Graduate College of the
University of Illinois Urbana-Champaign, 2026

Urbana, Illinois

Doctoral Committee:

Associate Professor Jochen Bojanowski, Chair
Associate Professor Nir Ben-Moshe
Associate Professor Verena Erlenbusch-Anderson
Professor Kevin Scharp

Abstract

A prominent account of the authority of morality is found in Christine Korsgaard's *Kantian constitutivism*, according to which a necessary condition of being an agent is the recognition of the authority of morality. In this dissertation, I attempt to show that Kantian constitutivism generates two paradoxical results. I argue that this strategy can succeed only if a subject herself possesses a very rich set of historically contingent concepts, which allows her to appreciate, not only the terms which occur in any attempt to justify the authority of morality, but her very activity of recognition. At the same time, once the subject has recognized the authority of morality, she also gains reason to *reject*, on ethical grounds, the aforementioned set of historically contingent concepts she needs to recognize the authority of morality in the first place. I conclude that the self-conception of modern, liberal agents is paradoxical and unstable, and I argue in favor of dissolving the paradox through a rejection of the authority of morality, the first paradoxical result I generate. I then consider the political implications of the rejection of morality, and in particular, the implications for liberalism, by considering two ways in which we could ground liberalism according to Bernard Williams: *political moralism* and *political realism*. *Political moralism* is the view that the authority of morality is prior to that of politics, and *political realism* is that view that the authority of the political is prior to that of the moral. I argue political moralism cannot offer a justification of liberalism since I argue we should reject the authority of morality, and I argue political realism cannot justify liberalism either. As such, the rejection of morality entails a rejection of liberalism, the second paradoxical result.

Acknowledgments

I am indebted to many, many people. The largest debt I owe is to Jochen Bojanowski. He has been tremendously supportive of me since Day 1. Rather than going on about it, I will simply say: thank you, Jochen.

I am also very deeply indebted to my former advisor, David Sussman. I worked with David until he began a new position at Indiana University in 2022. Indiana got an amazing philosopher in David. He was very supportive of me in more ways than I can count, and I am deeply grateful.

I am grateful to the Department of Philosophy at the University of Illinois Urbana-Champaign for their unwavering support, even as I took rather long to finish the degree. The Department gave me an opportunity, and opportunities are not easy to come by. I am grateful for the Department's willingness to give me the space and support to allow me to conduct my research, teach, and, at present, to advise the Department's wonderful undergraduate majors and minors. Additionally, thank you to the Department's faculty who are serving on my dissertation committee: Jochen Bojanowski, mentioned above, as well as Nir Ben-Moshe, Verena Erlenbusch-Anderson, and Kevin Scharp.

Many thanks to the graduate students in the Department of Philosophy at the University of Illinois, as well as undergraduate students both within and outside the Department, with whom I have spoken over the years, without whom my development as a philosopher would not be possible. If I have spoken to you about philosophy, I probably got something out of it. I am grateful to you. Thank you as well to the faculty in the Department of Philosophy at the University of Illinois, as well as to the students and faculty at Texas Tech University, where I

received my M.A. in philosophy, and the students and faculty at the State University of New York at Geneseo, where I completed my B.A. in philosophy.

Additionally, I would be amiss if I did not thank the staff of all those coffee shops I have frequented over the years, where most of this project was written. Thank you to the workers at Caffè Paradiso, Caffè Bene, Espresso Royale, Flying Machine Avionics, Mad Goat Coffee, Café Kopi, and the Literary.

On a personal level (and in alphabetical order), thank you to Josh Ackerman, Ashli Anda, Jordan Berger, Justin Clark, Britt Currie, Adam Edwards, Stephen Edwards, Addison Ellis, Dave Gilbert, Eric Gonzalez, Amanda Hale, Kohei Kishida, Xinting Liu, Ana Lopez Romero, Cass McCleskey, Sasha Newton, Kirk Sanders, Helga Varden, and Shelley Weinberg.

Special thanks to Isabelle Gonzalez, my niece. We haven't exactly had many discussions about the topics in this dissertation, since she is, as of the time of this writing, 18 months old. (In the future, perhaps.) But getting a picture of her from my sister or brother-in-law always cheers me up.

Rather than listing my two biggest supporters above, I have dedicated this dissertation to them.

Lastly, I take full responsibility for this dissertation, and all errors are my own.

To Mom and Kris

Table of Contents

Chapter 1: Introductory Remarks	8
1.1: Closing a Gap	8
1.2: Sketching What Follows.....	11
Chapter 2: A Constitutivist Argument for Moral Identity	17
2.1: Introduction	17
2.2: Why Kantian Constitutivism?	17
2.3: A Kantian Constitutivist Argument for the Vindication of Moral Identity	22
2.4: Objection and Replies, Part I: Hussain, Shah, and the Non-Exclusion Objection	32
2.5: Objections and Replies, Part II: Enoch and the Shmagency Objection.....	51
2.6: Closing Remarks: Minimalism and History	99
Chapter 3: A Condemnatory Genealogy of Morality	105
3.1: Introduction	105
3.2: Genealogy and the Genetic Fallacy as a Global Objection	107
3.3: Forms of Genealogy: Critical, Vindictory, Epistemic, Functional	131
3.4: Forms of Genealogy Continued: Pragmatic and Empirical Non-Ideal.....	161
3.5: A Practical, Critical, Pragmatic Genealogy of Morality.....	173
Chapter 4: The Puzzle of Human Moral Identity	188
4.1: Introduction	188
4.2: Arguments in Ethics	191
4.3: Transcendental Arguments.....	196
4.4: Objections to Transcendental Arguments: Körner and Stroud.....	204
4.5: The Puzzle and Self-Consciousness	218
Chapter 5: Rejecting Morality While Saving Liberalism? On Political Realism	235
5.1: Introduction	235
5.2: Taking Stock.....	237
5.3: Political Realism and the Idea of a Distinctively Political Normativity.....	241
5.4: The Argument from Moral Disagreement	253
5.5: The Priority of the Political	325
5.6: The Sources of Distinctively Political Normativity.....	350
5.7: Cruelty: A Defense.....	393
5.8: Conclusion.....	415
Chapter 6: Concluding Remarks.....	417
6.1: Opening a Gap.....	417
Bibliography	419

Chapter 1: Introductory Remarks

1.1: Closing a Gap

1.1.1 This dissertation discusses human moral identity. What does this mean? By “moral identity” I mean something like our identity merely as *persons*. I do not want to say, however, that I am talking about personhood, since this is not a dissertation on personal identity. It is a dissertation, I have said, on moral identity. It is also on *human* moral identity. Perhaps other beings, such as God’s angels or the Vulcans, have or could have moral identity in the sense in which I will discuss it in what follows.

For now, I will take these forms of identity for granted. Hopefully, in time, it will become clear what I am interested in discussing. I will take for granted a variety of everyday ethical institutions, attitudes, practices, and so on. I am interested in discussing what enables this human social world to hang together as a single, unified world, rather than a heap. On one view which I will discuss and develop later, it is our identity as *moral beings* which enables this. Thinking through human moral identity can, hopefully, enable us to make further sense of the aforementioned human social world in which we find ourselves.

But if thinking through human moral identity can enable us to do so, it could also *fail* to enable us. Perhaps it could even *disable* us. I will return to this idea.

1.1.2 To situate what I want to do in this dissertation, we need a bit of brief set-up. Let me try to provide it.

In an essay in the Times Literary Supplement in 1990, “The Need to Be Sceptical,” Bernard Williams reviews the state of affairs in ethical philosophy circa 1990: philosophers attempt to construct moral theories, for instance, in which general principles are formulated and used to explain particular moral judgments you or I might make in some particular case, as well

as to provide guidance in new, previously unseen cases, while another style of ethical philosophy, allegedly taking a cue from Wittgenstein, focuses less on the project of systematic theorizing and more on making sense of what “we” do. There is metaethics, but there is also rich, substantive normative ethics, along with applied ethics. There is utilitarianism, but also Kantianism and virtue theory, and there is also social and political philosophy, with its own ongoing discussions, featuring philosophers such as Rawls.

“What is surprisingly lacking from all the philosophical undertakings I have mentioned,” Williams writes, “is the voice of a genuinely disturbing scepticism.”¹ There is, as you might put the point, what’s called a “gap in the literature.” He seems to think that, in part, this is due to the fact that, at the time he was writing, certain positions with skeptical implications had become passé, and perhaps never had any particularly *disturbing* skeptical implications anyway, since you could leave those positions in the seminar room when it was time to play backgammon. Skepticism about other minds is like this, to take one of his examples: it’s one thing to say “you don’t know anything about other minds,” but it’s something else to say “obviously you have knowledge of other minds, but a lot less than you realized.”²

1.1.3 Is the situation altogether different today? No. There is less metaethics, I think, and more *metanormative* studies, less utilitarianism and more *effective altruism*. Things are different, even if only in small ways. But, speaking for myself, I do not see any voice of a genuinely disturbing skepticism either.

My goal in this dissertation is to try to become this voice.

¹ Bernard Williams, “The Need to Be Sceptical,” in *Essays and Reviews, 1959-2002* (Princeton University Press, 2014), 317.

² This is a gloss on *ibid.*.

1.1.4 What might this voice try to say? It might take a cue from Hume, who ends the *Treatise of Human Nature* on what sounds like a very happy note. Unlike in Book I, where we need backgammon to clear our heads, in Books II and III we do not seem to find anything especially skeptical by Hume's lights. This is because the moral point of view not only *can* reflect upon itself, but it can *approve* of itself and its own principles upon reflection:

It requires but very little knowledge of human affairs to perceive, that a sense of morals is a principle inherent in the soul, and one of the most powerful that enters into the composition. But this sense must certainly acquire new force, when reflecting on itself, it approves of those principles, from whence it is deriv'd, and finds nothing but what is great and good in its rise and origin.³

It does not matter for my purposes whether this idea is representative of Hume's practical philosophy. What does matter, though, is the idea that the "moral sense" can not only reflect upon itself, but it can approve of itself, in what I assume is an irreducibly first-personal way.

This voice of a genuinely disturbing skepticism might, as I said, take a cue from Hume. (I am not saying that it has to.) It might say that, from the moral point of view, you and I can reflect upon the moral point of view itself. Unlike in the case of Hume, however, this voice would say that, when it does so, it finds itself, on its own terms, wanting. It might even say something stronger: it might say that not only does it find itself wanting, it finds itself worth rejecting, again on its own terms. Unlike in the case of Hume, where human moral thought's reflection upon itself is a cause for celebration, this voice would say that it actually inhibits such thought. And given the sort of thought under consideration, it might even do something that sounds a bit stronger: it might disable it.

That voice might also have, as it were, a certain *sound* to it. It would have, that is, a certain style and tone. It would probably sound snarky and sarcastic, and at other points,

³ David Hume, *A Treatise of Human Nature*, 2nd ed., ed. P. H. Nidditch and L. A. Selby-Bigge (Oxford University Press, 1978), 619.

downright hostile. It would sound cynical at points, bored at others. It might make jokes and make light of what others represent as serious. At some level, this should not be entirely surprising. There is a relationship between philosophical content and the form in which that content is delivered: after all, one had better not be writing in prose if they are arguing that all philosophy is poetry. Similarly, this voice of disturbing skepticism would need to *sound* like a skeptical voice as well.

As mentioned above, I want to try to become this voice.

1.2: Sketching What Follows

1.2.1 The argument I will construct ultimately takes the form of generating an antinomy. (In a rough sense, think Kant.) That antinomy will constitute what I call the *puzzle of human moral identity*. I will then discuss resolution of the antinomy, as well as some implications of the lines of thought for political philosophy. Let's briefly take each point in turn.

1.2.2 An antinomy involves offering arguments for conclusions which are, in some sense or another, inconsistent. They might be inconsistent because they are logically contradictory: in such a case, you will have argued for A and -A. But the inconsistencies might instead arise for other reasons: for instance, you would generate an antinomy if you argued for some proposition P, some proposition Q, and if the content of P and Q were such that no one could think (or believe, or know, or whatever) P&Q. Other inconsistencies are possible as well.

The sort of inconsistency I want to try to develop involves a paradox or a puzzle, what I am calling the *puzzle of human moral identity*.

I develop the first argument – the thesis, as it were – within the antinomy in chapter 2. There, I offer an argument which purports to justify, or as I sometimes put it, vindicate human moral identity by means of a prominent strategy in practical philosophy, *Kantian constitutivism*.

On this sort of account, human moral identity is justified because it is a condition of the possibility of our being agents, and acting for reasons, at all. I discuss in greater detail in the chapter, first, what this is, and second, why I opt for this strategy over another. The conclusion of this argument is that human moral identity is justified. I respond to two prominent lines of objection to this sort of strategy in the rest of the chapter. The first objection, what I call the *non-exclusion objection*, is developed by Nadeem Hussain and Nishi Shah, who argue that Kantian constitutivism does not stand in opposition to substantive metaethical realism. The second objection, the *shmagency objection*, is developed by David Enoch, who argues that Kantian constitutivism presupposes the normativity of the very practical reasons to which it was offered as a justification.

1.2.3 The second argument within the antinomy, the “antithesis” as it were, is developed in chapter 3. There, the account takes the form of a *genealogy*. Much of the chapter involves my trying to make more clear what genealogy even *is*, as well as how it functions, by the consideration of various discussions within the Anglo-American literature. (It is an interesting question, whether this approach is entirely wrong-headed. I will not settle that in what follows.) At the end of the day, I hold that the best account of genealogy will also be a pluralistic one. I then argue that we can offer a genealogy of human moral identity which, in brief, condemns human moral identity, on the terms of that form of identity itself. The idea will be that the content of morality can be endorsed only on the presupposition that one fails to know what one is endorsing, because morality bears a peculiar relationship to what it understands to be error, and in particular, that it is plausible to hold that morality, in some sense or another, is *born* out of what it regards as error.

1.2.4 If I am right, then the above arguments, which I have attempted to briefly sketch out, generate an antinomy. To show this, however, requires that I show the argument in chapter 2, a transcendental argument, and that of chapter 3, a genealogical argument, can somehow do the same sort of work. Transcendental arguments are typically anti-skeptical arguments to the effect that, since Y is a condition of the possibility of X, and since X is true, it follows that Y is true as well. I discuss the characteristics of transcendental arguments by reference to a few prominent examples, such as those of Kant and Putnam. I then review some prominent objections to these sorts of arguments. The first objection, from Stephan Körner, can be rather pithily put by saying that these arguments only betray a limited imagination with respect to conditions of the possibility of X. The second, from Barry Stroud, is that these arguments actually do not refute the skeptic at all: they rely on an “inference to reality” which can only be made legitimate on the basis of contentious metaphysics or semantics.

I argue that both genealogy and transcendental arguments can do the same work, and that the two are “two sides of the same coin,” as it were, in that both involve an *appeal to necessity*. This enables me to say that these two arguments are, indeed, talking about the same thing: human moral identity.

My suggested strategy for resolving the antinomy takes the form of *dissolving* it. The term “human moral identity” appears in both the thesis and antithesis, and without that term, the antinomy is not generated. In the present context, though, since the antinomy arises not due to a term in an argument, but due to human moral identity itself, the relevant dissolution involves the dissolution of that form of identity itself. And since this identity is expressed in the *body*, it is the *body* of those with human moral identity which needs to dissolve.

My hope is that here, we find a first instance of a disturbing skepticism.

1.2.5 In the fifth chapter, I discuss an implication of this sort of skepticism within political philosophy. The argument in the earlier chapters agrees, in a certain, limited sense with Bernard Williams in his rejection of morality in *Ethics and the Limits of Philosophy*. At the same time, though, Williams is a liberal. He cannot, then, hold that the normativity of liberalism derives from that of morality. And indeed, he does not hold this. Instead, he appears to hold that there is what the literature calls a *distinctively political normativity*, a core thesis held by *political realism*.

In this chapter, I first spend a lot of time attempting to get clear on political realism and the notion of a distinctively political normativity, in particular by consideration of some influential objections to political realist arguments by Jonathan Leader Maynard and Alex Worsnip. In the end, I argue that Williams's brand of liberal political realism will not succeed. I argue that a distinctively political normativity is occasioned by a human susceptibility to what I call, in reference to Rawls, *primary bads*, and that on this form of politics, the primary bads present us with political questions to which we need political answers. I discuss the nature of these bads. I then argue that the liberal realist cannot in fact oppose the intentional infliction of primary bads upon agents because this constitutes the essence of coercion, and liberals need coercion. As such, I do not think that Williams's own liberal political realism will enable him to salvage liberalism. This, I hope, constitutes the second piece of disturbing skepticism.

1.2.6 Before continuing with a few final remarks, it would be helpful to offer a further thought regarding the argument structure and its presentation.

The arguments of Chapters 2 and 3 should be read as *simultaneous*, as it were, or as *parallel arguments*, as opposed to reading the argument of Chapter 3 as *following* from or *succeeding* that of Chapter 2 in some way. Indeed, as you will see, the chapters in fact reference

one another. (This might be weird, but self-consciousness is weird.) In the Cambridge edition of the first *Critique*, Kant's antinomies are presented in a way that makes clear this is what he has in mind: he offers an argument for the thesis on the left page, and an argument for the antithesis on the right page. For a variety of reasons, I cannot format my arguments that way, but the arguments of Chapters 2 and 3 should be read with that sort of structure in view. In this dissertation, Chapters 2 and 3, as *chapters*, cannot be written down and presented in a different order, but their *arguments* could be. By contrast, Chapter 4 *does* succeed Chapters 2 and 3 by taking them into account, and Chapter 5 succeeds 2, 3, and 4.

1.2.7 A few final remarks, then. Each of these chapters touches on various topics in philosophy which, at first glance, may seem entirely unrelated, but which I hope have made the discussion more interesting. (Speaking for myself, at least, they made my thinking more interesting. Whether it made my thinking *truer* is, unfortunately, a separate issue.) For instance, in 2.4 I briefly discuss so-called Archimedeanism in metaethics, while in 2.5.8ff, I discuss the notion of *philosophical angst* and how it might figure into discussions of the shmagency objection. In chapter 3, I briefly discuss conceptual engineering to try to elucidate Amia Srinivasan's notion of *worldmaking*. And in chapter 5, I discuss Max Weber to try to clarify a remark Williams makes in the context of discussing political error. My hope is that these discussions all hang together and that the dissertation itself hangs together.

There are several, perhaps many, places where the discussion is perhaps incomplete or actually gesturing at ideas which are already in discussion in the literature. Some of these gaps exist because I discovered the relevant literature too late in the project to be able to incorporate it in a substantial sense: for instance, research in hinge epistemology would have helped me in chapter 3, and work on contrastivism about practical reasons would have proven helpful in

chapter 5. I hope to be able to engage with such literature, and in turn, to close such gaps, in future work.

Other apparent gaps are present in the sense that I do not attempt to offer comprehensive surveys of various discussions in the literature, I do not attempt to cite everything in the relevant sub(sub)disciplines, and so on. Unlike in the gaps I mention in the paragraph above, these “gaps” are gaps in name only and are very much intentional. My thoughts on the matter are not worked out in a clear way, but it does not seem to me that the sort of self-understanding philosophy seeks to cultivate is either aided or, for that matter, inhibited, by comprehensive surveys.

1.2.8 The dissertation is also sometimes written in a style which I could imagine is, shall we say, a bit frustrating. The style is not always straightforward, and not every conclusion is made explicit. This too is intentional, though I am tempted by the thought that it’s just a rule of the game and not really there for me to intend or not. It is not reasonable to expect that a piece of philosophy should or will simply wash over you. Rather, it requires you to *do* something. (“As it used to say on packets of cake mix, he will add his own egg.”⁴)

1.2.9 With that said, these remarks are complete. Or, better yet, to quote Aristotle in a way which is perhaps pretentious: “so much for these topics.”

⁴ Bernard Williams, “Reply to Simon Blackburn,” *Philosophical Books* 27, no. 4 (1986): 203.

Chapter 2: A Constitutivist Argument for Moral Identity

2.1: Introduction

The goal of this chapter is to argue that *moral identity is a vindicated identity*. (I discuss what this means below.) I'll argue for the thesis by means of a strategy developed by Korsgaard in the *Sources*, which is in turn, according to Korsgaard, based on Kant's argument for the Formula of Humanity in the *Groundwork*. Call this strategy for justifying moral identity *Kantian constitutivism*. The goal, in other words, will be to justify the normativity of moral obligation and so too moral identity by means of a Kantian constitutivist argument that gets around or otherwise defuses certain objections to which Korsgaard's own argument in the *Sources* is subject.

2.2: Why Kantian Constitutivism?

2.2.1 It is worth asking at the outset what the point of using this strategy is, rather than another one. Why not opt for, say, a version of realism and argue that moral identity is justified because there are objective values, reasons, or whatever which justify everything bundled up with such an identity? Or why not opt for a version of sentimentalism, à la Hume or Smith? Or, say, an Aristotelian or neo-Aristotelian approach? What is it about constitutivism in general, and Kantian constitutivism in particular, that singles it out for attention here? Further, why prefer Korsgaard's take on things here?

There is a prior, deeper question which presents itself at this point: why do we need to offer anything like a justification of moral identity in the first place? Strictly speaking, this question does not entirely make sense: morality offers, among other things, the possibility of a kind of ethical justification which settles all the relevant questions authoritatively, and so saying that we can *justify* morality may be thought to suggest that we take this system of reasons, considerations, norms, etc., and then license them by reference to some *further* standard, except

there is no such further standard. “Something beyond justification is required,”⁵ as Nagel puts the thought in *The Possibility of Altruism*, and for my purposes, I will call that something beyond justification which is needed by the name *vindication*, related to the use of the term by Bernard Williams in *Truth and Truthfulness*. With that said we can then rephrase the question and ask “why do we need to offer a vindication of moral identity in the first place?”

The answer to this latter question (I will return to the former) is, in a way, quite simple: we can no longer take it for granted that moral identity, whatever that ultimately amounts to, survives being challenged, because we have come to reflect, not only within that identity, but upon it. Perhaps at some point taking it for granted was once not only possible but actual, but this debate about what I take to be the history of reflection on moral identity is irrelevant, for the simple fact that what I have described is not the situation of anyone reading this dissertation. At this point in Western cultural development, moral identity is itself something that has been questioned, and it is a question that demands an answer because moral identity is deep. It is deeper than my identity as an American, and that itself is deep when you consider the way in which you cannot help, not only to hear, but to *listen* to the national anthem when it’s played (*mutatis mutandis* for people of other nationalities), even if you find that identity unjustified to the point that you’d like to wish it away.

Moral identity is deeper because it provides the normative standards for us simply as persons, full stop. This is recognized by Korsgaard, since her constitutivist argument is offered as an answer to what she calls the *normative question*, namely, the question “why is moral normativity justified?” Or, to emphasize the fact that this question is asked from the first-person point of view, and in turn, that any answer must be adequate as a response to such a question, as

⁵ Thomas Nagel, *The Possibility of Altruism* (Princeton University Press, 1970), 4.

well as to account for my use of the term *vindication*, we can rephrase it as the question “why am I to understand moral obligation to be vindicated?” (The question-answer back-and-forth is first-personal, rather than third-personal.) That is, why is moral normativity, and in turn the normativity of moral identity, something that is not just delusional, or the result of a kind of Stockholm syndrome following our metaphysical kidnapping and trafficking into the Kantian moral community, the so-called Kingdom of Ends, or whatever else, but is instead something that I can take seriously and not want to get rid of after coming to see it is justified, even if there’s no real possibility I could get rid of it anyway?

With that said, we can return to the earlier question, namely, that having to do with the use of a Kantian constitutivist strategy to ground or vindicate moral identity.

Korsgaard’s own (broadly) Kantian strategy for grounding the normativity of moral identity by justifying (or, as I’ve put it, vindicating) the normativity of moral obligation as such in the *Sources* has the merit of being, in a broad sense, naturalistic, while at the same time being non-reductive. We can contrast this sort of strategy with forms of reductive naturalism, on the one hand, and non-reductive non-naturalism on the other in order to see how the Kantian strategy deployed by Korsgaard navigates between them. The paradigm of strategies of the former sort is found in Humean (or more broadly sentimentalist) attempts to ground the normativity of moral identity in terms of human psychological capacities of desire, feeling, and emotional contagion (i.e., sympathy). Such strategies, then, appeal to psychological capacities that we were already prepared to accept anyway and do not require us to posit anything such as a capacity of rational intuition, which is the sort of capacity which would seem discontinuous with the way we understand—or at least *hope* to understand—the rest of the capacities of the human being, in violation of the commitment to naturalism. These strategies, however, may only be able to justify

the normativity of moral identity by forcing us to buy into an account of morality which is heavily relativized, something that would seem to conflict with morality's distinctive scope: that is, morality is the sort of thing that seems to apply to persons simply insofar as they are persons, not to persons with a distinctive psychology and a distinctive understanding of that very psychology as developed by history and culture in ways which seem contingent.⁶ (We will have to see whether we can offer an account which lives up to this ideal and, if not, if we can at least get something which is close enough.) Klingon and Vulcan psychology seem to differ from human psychology in various ways, for instance, but it would not be unreasonable to require of Klingons and Vulcans that they do not lie to us, especially when they seem to require it of themselves, and not for reasons of, say, prudence, or even those of honor (in the case of the Klingons), but because it is morally wrong to lie. Non-reductive non-naturalism, by contrast, can preserve morality's scope, overridingness, sense of impartiality, and so on by grounding the normativity of moral identity in the existence of objective (that is, response independent), really-existing reasons or values. In so doing, however, it may force us to not only violate the commitment to naturalism (at least if you think, à la Korsgaard, that realism requires us to additionally buy into the sort of intuitionist picture I mentioned above, a view that is not obviously true and requires further argumentation⁷), but to violate those commitments in a way which may seem metaphysically extravagant, and perhaps even inflationary, on reflection.⁸

⁶ According to one line of thought, we can get around some of these sorts of problems, and in turn keep a broadly Humean take on things, by use of an *impartial spectator* or *ideal observer*. We do not need to follow Roderick Firth (1951) and his understanding of such a spectator as being so ideal as to amount to something like God. We can instead offer a more realistically constructed account of the impartial spectator along the lines of Adam Smith, who understands the spectator as being something like a more knowledgeable and fair human person. For more, see Ben-Moshe 2020, 2021a, 2021b.

⁷ For Korsgaard's discussion of realism, see SN 1.4ff. I will discuss Korsgaard and realism in greater detail in 2.4.

⁸ Whether metanormative realism is inflationary or not is a contentious issue. For instance, see Tristram McPherson, "Against Quietist Normative Realism," *Philosophical Studies: An International Journal for Philosophy in the Analytic Tradition* 154, no. 2 (2011): 223–40.

2.2.2 We can now see the contrast more clearly by seeing the way in which the constitutivist strategy attempts to find a middle way between the Scylla of reductive naturalism and the Charybdis of non-reductive non-naturalism by trying to understand and vindicate moral identity in naturalistic terms, on the one hand, but in a non-reductive way on the other: naturalistic in the sense that it does not require us to appeal to anything we were not already prepared to accept anyway, and non-reductive in the sense that it does not force us to accept that moral identity is nothing over and above merely psychological facts (or facts about psychological capacities, or whatever), or that facts about moral identity just are, or can be “translated” via some process of reduction, whatever this amounts to, into facts about psychological capacities, or that the facts about psychological capacities have explanatory priority, or whatever else. The Kantian constitutivist account will appeal to things we were already prepared to accept anyway, such as the fact that there are human people, such as you and me, who act for reasons, while also holding that there is no need to reduce talk of “persons” to some supposedly simpler basis.

A difficulty in talking about naturalism and questions of reduction is that the term ‘naturalism’ is unclear. I agree with Williams that the term “naturalism” is, by itself, somewhat unhelpful, and that, while a lot of people seem to think that naturalism—whatever that means—is in some sense good, to the point that there’s some sort of consensus surrounding it, “the trouble with this happy and extensive consensus, however, and no doubt the condition of it, is that no-one knows what it involves.”⁹ But fortunately, we can leave the difficulty of defining ‘naturalism’ aside, and with it, questions about how to understand what ‘reduction’ really amounts to. The goal of the Kantian strategy is to offer a *practical* vindication of moral identity, and from the point of view of someone engaging, in moral terms, with themselves and others,

⁹ Williams, “Nietzsche’s Minimalist Moral Psychology,” in *Making Sense of Humanity and Other Philosophical Papers: 1982-1993*, 67.

questions about reduction or non-reduction are irrelevant in the way that certain questions about my capacity to act for reasons, such as whether I have such a capacity (or, in different terms, questions about whether I am free) are irrelevant. When I engage with myself or others in moral terms, I only do so on the basis that I can and do act for reasons. Practical justification and everything surrounding it—asking practical questions, listening to practical answers, taking seriously the whole back-and-forth just mentioned—only gets going from a point of view in which, among other things, I can act for reasons in some way or another. In turn, a relatively casual understanding of naturalism and reduction are acceptable.

What, then, should we make of this idea that the Kantian strategy is non-reductive? The strategy is non-reductive, not in the sense that I am going to argue that moral facts are somehow emergent, or that they supervene, or whatever else, but rather in the sense that it cuts off such questions from the start, as is proper. In this regard, the strategy is perhaps better understood as somewhat deflationary and non-theoretical. And this is appropriate because the initial question, namely, about the vindication of moral identity, was not a theoretical question, but a practical one.

2.3: A Kantian Constitutivist Argument for the Vindication of Moral Identity

2.3.1 Recall that initial question: “how can I understand moral identity to be vindicated?” We can now try to answer it in the way sketched out above. The answer will take the form of a transcendental argument.¹⁰

Think first about what you do, or, rather, that you do things. Much of what we do is pretty mundane stuff: clipping our nails, or making sandwiches for lunch, or whatever else. Other things seem more immediately ethically weighty, as it were, such as whether it would be

¹⁰ I discuss these arguments further in 4.3.

okay to break a particular promise, or to tell a white lie, or whatever else. This can mislead us into thinking that there is some sort of already existing, non-ethical grounding for a distinction between the ethical and the mundane or something like that, but that is incorrect, since it is precisely through ethical thought that we arrive at the conclusion that clipping our nails is a mundane action, since it is permissible and of low importance, and mundanity in turn looks like an ethical concept, in the way that positive law distinguishes between what it can take seriously and what it cannot by means of the principle of *de minimis*. We can run this line of thought in other ways and we'll get to similar conclusions, I think, namely, that many of the distinctions we draw between different forms of value have their home in ethical thought, indeed, in *moral* thought. Moral thought, then, sounds like it provides a condition of the possibility of these forms of value.

This insistence on the priority of moral thought over value can introduce some new considerations onto the scene that may strike us as perhaps odd or unsettling. Williams' one-thought-too-many objection to Kant is one such worry. The idea there is that the familiar authority of certain interpersonal relationships and attitudes which constitute them, such as those of love, is undermined by the insistence that morality, a particular domain of the ethical, get in the last word.¹¹ So, does it do so?

To think more clearly about this, we need to consider new examples, since thinking about clipping your nails will only take you so far. Think, then, not so much about individual actions, such as that of clipping your nails, and something more like *patterns* of action you regularly perform. Some patterns will only make sense to you if you take the pattern of action to be grounded in a *practical identity* – “a description under which you value yourself, a description

¹¹ See Bernard Williams, “Persons, Character and Morality,” in *Moral Luck: Philosophical Papers 1973–1980* (Cambridge University Press, 1981), 1-19.

under which you find your life to be worth living and your actions to be worth undertaking.”¹²

The pattern is made intelligible *as* a pattern or, better yet, as a *unity* by reference to the relevant practical identity.¹³ This is due to the fact that particular practical identities provide sets of reasons and obligations through our activity of valuing our lives in particular ways, and under a particular description. What is the relationship between the identity, on the one hand, and the relevant reasons for action and obligations on the other? The relationship is one in which you must regard the identity as justified if you are to hold the reasons for action and obligations to be justified as well, and insofar as you do not hold the identity to be justified, you will regard the corresponding reasons and obligations as unjustified.

We can ask a further question at this point. I have said that patterns of action require, in a large number of cases, a practical identity to unify those patterns in such a way that you can see what you’re doing as not only intelligible, but worthwhile. But why value those practical identities themselves? Why not attempt to wish them away?

One answer is found in the fact that I have a life to live, and a *human* life at that. Human life requires that I *do* things. So for me to live and get through the day, I *need things to do*, and I *need reasons* to do them. Since I need a practical identity to do anything, I need to value my identity as a human being, since this is a condition of the possibility of other, more particular practical identities. I must in turn, then, understand my identity as a human being itself to be a justified practical identity, one which provides the necessary condition through which these particular practical identities are possible. In recommending to someone that they visit the George Washington Bridge, for instance, I must understand my identity as an American to be justified, since only through my understanding it as justified can I take the corresponding reasons

¹² Christine M. Korsgaard, *The Sources of Normativity* (Cambridge University Press, 1996), 3.3.1. Hereafter, “SN.”

¹³ I am not saying all patterns are made sense of in this way.

and obligations seriously in the first place. And, in turn, I must then understand my practical identity as a human being as justified, since, again, it is only through such an understanding that a practical identity, such as being American, is possible in the first place. In other words, then, the necessary practical identity of human being provides the condition of the possibility of other, more particular, contingent practical identities.

2.3.2 It is now worth asking what it means to understand my practical identity as a human being as justified or, more specifically, as vindicated. Or, put differently, we can ask what it means when we understand our practical identity as merely human beings as important or practically worthwhile.

Notice where we are in the argument: we have moved from thinking about particular, contingent forms of practical identity, such as being American, or being a teacher, or being a parent, or whatever, on the one hand, to a necessary form of practical identity—that is, one that none of us can in any serious sense shed— on the other, but at the same time, one with less content, this form of identity requiring of us that we act for reasons (these reasons then being made possible under the condition that we adopt some practical identity or another, or presumably some set thereof) and value ourselves merely insofar as we can act for reasons. Valuing ourselves merely insofar as we can act for reasons—that is, understanding ourselves as practically important and worthwhile, simply because we can act for reasons—is plausibly a form of value that is distinctively moral, a form of value that we can attend to when we abstract away from particular features and properties of persons, as we have done here by abstracting away from particular forms of practical identity. (Perhaps as justice is blind, so too moral justice is blind.) Or, as Korsgaard puts it, valuing yourself merely as a person is to have moral identity as the Enlightenment understood it, since the form of ethical importance we find here is not, and

cannot be, conditional on various psychological facts about ourselves in virtue of which we find some identity rather than another worth inhabiting, or various cultural facts (for similar reasons), and so on, since it is only through this form of ethical importance that these other forms of importance are possible. Valuing ourselves merely insofar as we are human, that is, as having moral identity, is what provides a general self-conception that each of us shares.

2.3.3 At this point, you can reasonably ask whether we have anything like *morality* out here, though, for something like the following reason: all that the argument has so far shown is that I must value my humanity, that you must value yours, that so-and-so must value so-and-so's humanity, and so on. In turn, I have my reasons, you have yours, so-and-so has theirs, and so on. And this is a problem because I seem to be morally required to respect the reasons not merely of myself, and not merely those of others insofar as I have some reason of my own to respect theirs, but rather, because it is *their* reason. Reasons within morality are public, that is, and we have not yet shown how to justify the publicity of moral reasons. All we have shown is that I have my reasons and you have yours.

We can immediately rule out the possibility of a kind of logical egoism on the basis of familiar Wittgensteinian rule-following considerations: if reasons are to serve their role as self-given normative rules, it must be possible to govern my action by reference to those rules, and since action takes time, it must be possible for me to understand them not just at some one time, but over time as well, to allow for the sort of self-assessment at which I have just gestured, so that reasons cannot have a character of being, as it were, one-shot bits of normativity. Other people, then, can enter the fray if I can reason with myself over time: that is, if I can communicate to myself (for instance, by remembering, or by writing myself a note) the reason I had at t_1 for the purposes of self-assessment at t_2 , then I can communicate a reason I have to some

other person at t_1 . But it does not follow that a reason's not being radically private, in the way that a kind of logical egoism just described would have it, instead implies that such a reason is somehow maximally public, or even public in a less ambitious sense. In turn, the familiar Wittgensteinian rule-following moves, while they do rule out the possibility of a kind of logical egoism by ruling out the possibility of purely private reasons, do not rule out the possibility of other forms of egoism, and to that extent, they do not show that reasons are public in the sense required for morality.¹⁴ Korsgaard's private language argument in lecture 4 of the *Sources*, then, will not succeed. So, we need a different approach.

2.3.4 Perhaps we should think more about what it means to value my humanity. What does this involve?

Valuing my humanity does not, and cannot, look like my warmly loving and caring about my own individual capacity for rational choice, since that would make the normativity of moral obligation conditional on my not being an extraordinarily grumpy person with regard to my humanity, for instance. Valuing my humanity must not be understood, in other words, on the model of loving a person, nor, for similar reasons, on the model of hating a person, or having an attitude of contempt or spite for another, or anything to that effect.

Does it help to appeal to the value of dignity, as something that is different from the value of things to be bought and sold, that is, things with a price? It is true that Kant does write that human beings have dignity, rather than either market price or what he calls "fancy price",¹⁵ but

¹⁴ For instance, see Joshua Gert, "Korsgaard's Private-Reasons Argument*," *Philosophy and Phenomenological Research* 64, no. 2 (2002): 303–24 and Michael J. Cholbi, "Egoism and the Publicity of Reason: A Reply to Korsgaard," *Social Theory and Practice* 25, no. 3 (1999): 491–517.

¹⁵ Fancy price seems to be a sort of value possessed by things with sentimental value. The mug that I bought in Lubbock, TX when I was at Texas Tech does not have mere market price for me because I would never even consider selling it, because no other mug I could get would be *that* mug. If you broke my mug, I could reasonably accept compensation for it. But unlike in the case where you break something of mine without fancy price, in the case where you break my mug, acceptance of compensation does not entirely put the matter to rest. Rather, it is

this is offered in his discussion of the Kingdom of Ends. You might then have the worry that discussions we find in the context of the Kingdom of Ends cannot be used to ground or otherwise explicate issues which arise in the context of earlier discussions, such as those having to do with the Formula of Universal Law or (what is relevant here) the Formula of Humanity. This, however, would be a mistake, not so much because the different formulae are equivalent and so discussions of each has something like an exact analogue in the discussions of the others, nor because Kant's account of the moral law (and so to his account of the categorical imperative) in GMS II is developmental, as it were, with each formula and argument therefore adding something genuinely novel at each stage, but rather, because each formula and ensuing discussion can be thought to shed light differently on the same principles of practical reason. None by themselves get the whole picture, and to get the whole picture, there's a sense in which you need to get each of the parts, hence his thought that the FUL is akin to the form of the moral law, the FH is the matter, and the FKE is the "complete determination." So perhaps thinking about Kant's notion of dignity, while it will not tell us exactly what it means to value our humanity, can nevertheless at least tell us something.

As I mentioned, Kant contrasts dignity with price. The idea is that persons have a kind of value which is different in kind, not simply in degree, from the value of mere things, that is, that which is not a person.¹⁶ In *some* sense, then, we can say that persons are priceless, but we need to

possible that our relations will be disrupted in some way. In the case of hurting a person, those relations are straightforwardly disrupted since your hurting them constitutes the disruption.

¹⁶ Familiar problems with the Kantian picture enter at this point because it seems like animals are neither persons nor (mere) things. Korsgaard, unlike Kant, sees animals as passive citizens in the Kingdom of Ends, unlike persons, who are active citizens, a position she most clearly articulates in *Fellow Creatures*. Kant himself holds an "indirect duty" view of our obligations to the (other) animals:

So if a man has his dog shot, because it can no longer earn a living for him, he is by no means in breach of any duty to the dog, since the latter is incapable of judgment, but he thereby damages the kindly and humane qualities in himself, which he ought to exercise in virtue of his duties to mankind. Lest he extinguish such qualities, he must already practice a similar kindliness towards animals; for a person who already displays such cruelty to animals is also no less hardened towards men. (V-mo/Collins, 27:459.)

be careful here. The idea is not that persons are maximally pricey, as it were, making it impractical to buy and sell them, in the way we might think of a unique work of art as priceless because it could only be bought for a billion dollars. Nor is it the case that persons are priceless in the way that the oceans are priceless, these being unowned and unownable because of certain contingent international norms that they are unownable since they are in principle not the sovereign territory of any state due to international conventions. Instead, a person, that is, a human being with dignity, is not an item within the practice of purchase and sale from the start and attempts to understand them in terms of this value is a category mistake, since purchase and sale are actions and so presuppose the existence of persons prior to the “market activities,” as it were, which make those very market activities possible.

The value of persons, then, is different from the value of things, that is, whatever can be assigned a market or fancy price, and indeed it must be since persons serve as the condition

The idea is that we have duties *with respect to* the (other) animals, but not duties *to* them. By contrast, Korsgaard’s argument is an argument that we must understand the other, non-human animals as ends in themselves, and in turn as creatures *to which* we have duties. I see her argument for this briefly summed up in 8.5.5 of *Fellow Creatures*, where she writes that:

As rational beings, we need to justify our actions, to think there are reasons for them. That requires us to suppose that some ends are worth pursuing, are absolutely good. Without metaphysical insight into a realm of intrinsic values, all we have to go on is that some things are certainly good-for or bad-for us. That then is the starting point from which we build up our system of values—we take those things to be good or bad absolutely—and in doing that we are taking *ourselves* to be ends in ourselves. But we are not the only beings for whom things can be good or bad; the other animals are no different from us in that respect. So we are committed to regarding all animals as ends in themselves.

The other animals are ends in themselves, but since they cannot participate in the project of universal legislation, they are to be regarded as passive members of the moral community, unlike human persons, who are the active members: we can propose new policy, act on it, amend it, and so on, but since the animals are passive members, we can make policy (or better, law) that covers them as well. We can think about this in terms of the laws of a state: the citizens can make laws that reference not just the citizens, but persons in general. Similarly, the idea is that the Kingdom of Ends can make laws that reference not just persons, that is the lawmaking animals, but the ones who don’t make law either, the other animals, since both are ends in themselves.

I do not think Korsgaard’s argument above succeeds. In the human case we can provide answers to the questions of justification because we *take* things to be good or bad, *under those descriptions*, leading to the idea that we *take* ourselves to be ends in ourselves, but for the other animals, while things are good and bad for them, they cannot be conceptualized by them under those terms and so does not seem to offer the resources to do justificatory work. Being an end in itself for Korsgaard seems to be a matter of a subject’s maintaining a certain conceptualized self-understanding, that is, a conception of the good, and the other animals do not have that, and so they cannot be ends in themselves.

under which the activities of “purchase” and “sale,” that is, activities which traffic in items with market or fancy price, is possible.¹⁷ Now purchase and sale, and the various forms of value which follow therefrom, only have a value because persons can make decisions. Purchase and sale are activities which, even when quickly performed, nevertheless take time, and for an agent participating in such transactions to understand herself as performing a single, continuous action which she can understand and justify to herself, she must understand herself to have at hand a kind of value which continues to exist throughout the entire transaction, allowing her to guide herself in what she does. She must, in other words, have a sense that, despite all of the change in value taking place in the transaction, there is still a kind of value at hand which she can hold onto and thereby allow herself to understand herself as performing a single, unified action of transaction over time, rather than being subject to a kind of disunified heap of value. That value is the value of her decision to transact in the first place. In other words, then, she must find her own decision to engage in this activity worth respecting in the first place. And since the notion of transaction here has really been something of a placeholder, we do not need to say that the value is the value of a decision to *transact*, but rather, that the value is the value of her *decision* to transact. So, the agent must take her decisions to have a kind of normative *authority*, and since decision is the activity of the capacity of humanity, and since the agent can value the activities of a capacity only on the condition that she values the capacity, she must then value her humanity.

But this just leads us back to the same problem: it seems like the agent values her *own* humanity, and is not under any special obligation, demand, or whatever to value humanity in general.

¹⁷ The analogy is meant to be wide to account for any action in which we do something for some point. I agree with Hursthouse that there are what she calls *arational actions*, actions which are not done for the sake of some point. But those sorts of actions are exceptions, and, as the saying goes, “the exception proves the rule.” (For more, see Rosalind Hursthouse, “Arational Actions,” *The Journal of Philosophy* 88 no. 2 (Feb. 1991): 57-68.)

2.3.5 Or does she? Recognizing her own humanity requires the agent have a concept, first, of humanity *simpliciter*, and second, of what is her *own*. Humanity is understood here as providing a value by which the agent can guide herself in what she does or, to put it another way, as providing what she does with a point. And, for her own humanity to have any value unconditionally, humanity itself must have unconditional value, or rather, humanity itself must be sufficient to ensure the agent's actions have a point, rather than having a value which is individually necessary and jointly sufficient with something like the identity of the agent in question. Humanity *simpliciter*, in other words, must be sufficient to establish the fact that actions have a point, with the concepts of what is and is not *her own* being neither prior to nor simultaneous with the concept of humanity, but rather, as following only once humanity has been established as having value. But at that point I am bound to respect humanity wherever it is found, as it were, or rather, in *whomever* it is found. That is, I must treat humanity *simpliciter* as itself sufficient to amount to a source of reasons, or, in Kantian terms, I must treat humanity as an end in itself, never merely as a means.¹⁸

2.3.6 We should take stock. I have argued that our various contingent forms of practical identity are practically possible, and indeed justified, or as I have put it at points, vindicated, for us only on the condition that we value humanity as a source of reasons, and to value humanity is to understand a particular, non-contingent form of practical identity as being sufficient to give actions, as well as the various practical identities in which they are found, a point at all.

¹⁸ See Christine M. Korsgaard, "Valuing Our Humanity," in *Respect*, ed. Richard Dean and Oliver Sensen (New York: Oxford University Press, 2021), 171-191. Korsgaard's thought is that our humanity is sufficient to establish that we have a normative standing. As she puts it, in terms of Kant's argument for the FH in GMS II:

But if Kant intended the argument in the way I have suggested, the claim that we are ends in ourselves is not the claim that the power of rational choice is a valuable property; it is the claim that in virtue of the power of rational choice, we assign ourselves a normative standing – the standing to legislate the value of our own actions and ends. That commits us to assigning the same standing to every other rational being, and so to respecting his choices, and helping him pursue his ends (184).

What this commits us to is an identification with Enlightenment morality. Humanity is here understood as sufficient to give an agent's actions some sort of point at all, and so as having *authority* over questions of actions. As a form of authority, we then have to recognize anything that has humanity as sufficient to give actions a point at all, since otherwise I would not be recognizing humanity to be sufficient to give actions a point. I would be valuing humanity on the condition that it is *my own* or *your own* or *her own*, but I would not be valuing humanity *simpliciter*. So, we must always already be recognizing the value of humanity, and recognition of the value of mere humanity, that is, humanity *as itself alone* sufficient, is the recognition of a kind of status a being may have in the moral community, that is, within the Kingdom of Ends. To value humanity as sufficient for establishing that actions can have a point, then, I recognize that there are beings with humanity whose actions have a point, which, within the Kingdom of Ends, are known as persons.

2.4: Objection and Replies, Part I: Hussain, Shah, and the Non-Exclusion Objection

2.4.1 What I have attempted to offer here is a transcendental argument for moral identity. We can move on to consider certain concerns. I have tried to anticipate certain objections to this sort of transcendental argument for moral identity that I have offered above, but it is nevertheless worth considering and responding to them. In particular, I want to discuss two objections: first, the objection that constitutivism does not serve as an alternative to substantive metaethical realism, which we could call the *non-exclusion objection*, and second, the so-called *shmagency objection*, according to which the constitutivist account presupposes the very thing it was supposed to explain, namely, the normativity of reasons. I will take each objection in turn, first considering the non-exclusion objection here in 2.4 and considering the shmagency objection in 2.5. I will also try to bring out points of disagreement with other Kantian constitutivist strategies.

Here we may begin to get a glimpse of the last chapter's "voice of skepticism," and I will try to raise some doubts about other approaches to constitutivism.

2.4.2 First, then, we can consider the objection of Nadeem Hussain and Nishi Shah against Korsgaard's argument in the *Sources*, on which my argument is heavily based. The objection is that Korsgaard's argument and, in turn, my own argument, does not provide an alternative to substantive realism, that is, non-natural, non-reductive realism. In other words, the idea is that the argument does not preclude or otherwise exclude substantive realism, despite Korsgaard's intentions. Why not? Because it does not adequately distinguish between the claims of normative ethics and metaethics. The objection in my own case, then, will be that my own argument is not an alternative to substantive realism, and that it does not navigate between the Scylla and Charybdis I discussed above: in fact, it does not even deal with either of them whatsoever.

Let's try to unpack this. Hussain and Shah "take normative ethics to be continuous with our everyday human practices of making normative judgments,"¹⁹ while, on their view, "metaethics is the second-order investigation of the practice of making moral judgments – the everyday practice and the more philosophical practice of normative ethics."²⁰ In a companion piece, they put the distinction slightly differently, saying that normative ethics has two tasks, "the first [of which] is to construct a set of principles that systematize and ground our correct moral judgments,"²¹ while "the second task is to place morality within practical reason, explaining whether we have reason to do what morality demands and, if so, whether these reasons are derived from another branch of practical reason."²² By contrast, "a metaethical

¹⁹ Hussain and Shah, "Meta-Ethics and its Discontents: A Case Study of Korsgaard," in *Constructivism in Ethics*, ed. Carla Bagnoli (New York: Cambridge University Press, 2013), 86.

²⁰ Ibid.

²¹ Hussain and Shah, "Misunderstanding Metaethics: Korsgaard's Rejection of Realism," in *Oxford Studies in Metaethics*, vol. 1, ed. Russ Shafer-Landau (New York: Oxford University Press, 2006), 266-267.

²² Ibid., 267.

account offers an interpretation of the normative claims that are offered as answers to these queries...aiming to tell us what these claims mean, whether they involve metaphysical commitments, if so, what these commitments are, and whether and how we acquire knowledge of these normative claims.”²³ I will come back to these distinctions on offer by Hussain and Shah later, along with the normative ethics/metaethics distinction itself, but for now we can move forward.

I will not review literally all of Hussain and Shah’s arguments since they cover a lot of territory, engaging with Korsgaard’s arguments in the *Sources*, her arguments for the normativity of instrumental rationality in papers, and some of her arguments in other assorted papers. For my purposes it will be sufficient briefly to review one of their objections to Korsgaard, namely, that in the *Sources*, “she fails to distinguish the task of placing normative principles and judgements within practical reason from the task of giving a metaethical account of those principles and judgements,”²⁴ and in particular, she fails to distinguish these tasks in formulating the *normative question*. The *normative question* is not even properly articulated in the first place, on their view and in turn, answers to it will also be similarly confused, including Korsgaard’s own Kantian answer.

2.4.3 First, then, we can consider the problems with the *normative question*, this being the question we ask when we ask “what *justifies* the claims that morality makes on us?” as Korsgaard puts it early in the *Sources* at 1.1.1, and the posing of which we can assume has the appropriate signposting regarding, for instance, the depth and nature of the *justification* sought here, and so on. This question can be understood, according to Hussain and Shah, in at least two ways: first, as a question within normative ethics, a context in which the question would be

²³ Ibid., 268.

²⁴ Ibid., 270.

asking something like “what *reason* do I have to be moral, if any?”, or, second, as a question within metaethics, in which case we would be asking something like “what are the epistemological, metaphysical, and semantic commitments of saying ‘we have a reason to be moral’?” The former question appeals directly to the content of normative ethics. The latter, metaethical question, by contrast, does not assume any particular normative content, and instead only seeks to understand the metaphysics, epistemology, semantics, and so on of both the reason(s) proffered and that which the reason is offered to justify, along with the metaphysics, epistemology, semantics, and so on of the relationship between the two.

The issue, according to Hussain and Shah, is that Korsgaard’s objections to rival views make it entirely unclear whether she understands her own project to be one of normative ethics or one of metaethics. For instance, her objection to the sort of crude evolutionary theory she considers early in the first lecture of the *Sources* seems to suggest that the question is one within normative ethics, since the problem with the evolutionary theory is that it does not provide a *reason* to be moral. On the other hand, though, her objections to non-natural realism are silent on the content of those reasons, appealing instead to the metaphysics and epistemology thereof. For instance, she seems to suggest that the core issue with such realism isn’t so much that it is non-natural as much as that it is *supernatural*, which, if true, would, obviously and trivially, offend against broadly naturalistic sensibilities. She also objects to what she takes realism’s epistemology to require, namely, a form of an intuitionism in which the mind’s eye can, as it were, see beyond the edges of the cosmos to a place where light neither shines nor fails to do so, which, if true, would seem to generate the sort of access problems that Benacerraf points out in

the case of Platonic mathematic objects,²⁵ as well as the sort of issues pointed out by Mackie in his *argument from queerness*, to use terminology that has not aged very well.²⁶

Now, to be fair to the realist, this picture of what they think may be something of a strawman. The main issue is that Korsgaard takes non-naturalist reasons to be, not only outside the head and outside the self, but outside the world, even the world of second nature, and she then has to take intuitionism to be an epistemology of otherworldly, paranormal perception, as though the realist must at the end of the day understand themselves to have a “telephone of the Beyond,” to use a phrase of Nietzsche’s. But I think this is backwards. There is no need for the realist to posit a literal place beyond the cosmos where reasons reside when they can instead locate these reasons, not *outside* the self, but deeply *within* it. The resulting picture would be *non-natural* because we cannot understand the self and its reasons in naturalistic terms, and *realist* because there is still space to say these reasons are response-independent in all the usual ways, and in turn construe the relevant knowledge we have of reasons as self-knowledge. This would be a much less silly and more respectable version of non-natural realism than what Korsgaard considers, and if there is to be a problem with it, it will not be because, on that picture, we are forced to say, for instance, that on this view it’s as though “we’ve spotted some normative entities, as it were wafting by,”²⁷ because there is no way for that analogy to gain traction to make her epistemological objection: the way I notice the wafting stench of roadkill is via observation, but whatever else my knowledge of myself is, it is not something observational, and insisting on the observational element would make out (bodily) self-knowledge to be like the

²⁵ For more, see Paul Benacerraf, “Mathematic Truth,” *The Journal of Philosophy* 70, no. 19 (November 1973), 661-679.

²⁶ See chapter 1 of *Ethics: Inventing Right and Wrong*.

²⁷ SN 1.4.8.

sort of knowledge that Tony Stark has of his suit of armor and the activities he performs while wearing it when he is Iron Man.

In any event, though, even this more plausibly construed picture of non-natural realism still can only receive metaethical objections from Korsgaard, because that picture does not provide anything we'd typically say belongs in normative ethics. Or, to put it differently, in that picture, there are reasons, but we do not know the content of those reasons. But, if so, then Hussain and Shah's objection seems to make sense: it seems like she wants to say that rival views do not answer the normative question, but it seems like the failure to answer the normative question is sometimes a failure on ethical grounds, but other times, on metaethical grounds. As such, it starts to look like the normative question is a confused question, which in turn might suggest that answers to it are going to be equally confused. Hussain and Shah put it the following way:

...her own normative question is itself susceptible to two different interpretations. "How can any moral obligation be normative?" can either express a request to place moral duty within practical reason, a "justification" of morality, or a request for a metaethics of moral judgement – an explanation of what it is to judge that X has a moral duty. By failing to distinguish these questions, Korsgaard gives the mistaken impression that, by showing that "substantive realism" is inadequate as an answer to the former question, she has shown that it is inadequate as an account of anything that might be reasonably requested by asking for "the source of normativity."²⁸

Non-natural realism's inability to give a compelling answer to the question "why should I be moral?" does not itself show that such realism cannot offer a metaphysics, epistemology, or semantics of moral concepts, judgments, and so on.

This confusion becomes clear when we see, according to Hussain and Shah, that Korsgaard's own Kantian answer does not exclude a non-naturalist realism. Korsgaard's own argument in the *Sources* is a transcendental argument to the effect that reasons and obligations

²⁸ Hussain and Shah, "Misunderstanding Metaethics: Korsgaard's Rejection of Realism," 273.

arise from my various practical identities, which are ways of valuing myself under some description or another, and that such a form of value is possible only on the condition that I value my humanity as such, and that in valuing myself simply as a human being, I have moral identity. According to Hussain and Shah, the non-natural realist can grant the argument and then nevertheless still hold that, for instance, we should understand the activity of *valuing oneself under a description*, whether that description is a more particular description (valuing oneself as a parent, say) or the description of oneself as a human being, in terms of valuing a non-natural property or reason. That is, while Korsgaard may have provided an account which answers the question “why should I be moral?,” a question within normative ethics, she has not said anything that excludes the possibility of offering the non-naturalist realist’s preferred metaethical interpretation of that account. In turn, Kantian constitutivism does not exclude the possibility of non-natural realism: the confused normative question can only receive confused answers.

2.4.4 Hussain and Shah are very confident in the concept of *metaethics*—*too* confident, I say²⁹—and they use that concept to draw a distinction between the areas of *metaethics*, on the

²⁹ They write that “It is perhaps only relatively recently, c. 1903, that philosophers have self-consciously isolated and pursued specifically metaethical questions. Thus, when interpreting ethicists in the history of philosophy who did not explicitly distinguish these questions, we must be very careful not to assume that because of the metaphysical or epistemological sounding labels used to express their views that they are always making metaethical claims.” (“Misunderstanding Metaethics,” 268-9 n.6). I find this striking because identifying what relatively recent philosophers have been offering as *questions*, rather than as (for instance) nonsense, means that those metaethical questions are legitimate. It is striking to me, then, that Hussain and Shah are confident in this concept of *metaethics* when it is, first, so *recent*, and second, so *ahistorical*, so *apolitical*, so *acultural*: contrast *metaethics* with concepts like *liberalism* or *justice*. Ahistorical concepts such as *metaethics* really do need to be treated with some skepticism, since it is not at all clear why they can be taken to be not only *deep*, but *philosophically interesting*, particularly when these terms and the distinctions they are used to draw gain traction and take hold, not because of anything with any wider human significance, such as the course of history, but due to academia’s *Ancien Régime* self-consciousness and corresponding politics and sociology. For such reasons it is just as possible to read the history, not in the optimistic terms Hussain and Shah ascribe to it with their talk of the “pursuit of questions”, but rather in terms of *wandering*, by saying something like “Starting with G.E. Moore’s *Principia Ethica*, philosophers have been tilting at windmills as a result of the illusory distinction between *normative ethics* and *metaethics*.” The mere fact that a concept has been isolated and used to guide work is not by itself a win in the game, unless the rules had previously made mention of such a concept and showed how it would figure into things and the relevant success conditions, but the rules made no such reference. So, we should not say, first, that the introduction of the concept *metaethics* is some sort of win or success, because it is not: it is a change, and like any other change necessarily enables the possibility of error as much as it does success.

one hand, and *normative ethics* on the other. That said, the distinction between normative ethics and metaethics, at least as Hussain and Shah draw it, at best, unclear, and that lack of clarity is important when we are talking about *normative* judgments, and indeed, normative *ethical* judgments, because there is then room for the sort of slippage between the two that they wish to avoid in order to motivate the objection that Korsgaard and, in turn, someone like me, are misunderstanding metaethics.

The distinction between normative and metaethics on their view can be read as amounting to a formal difference or a difference in content, but I do not think either option is plausible. Saying normative and metaethics differ in form amounts to saying that the difference lies in the fact that in normative ethics we make, unsurprisingly, *normative* judgments, while in metaethics, we do not make such judgments and instead carry out a second-order “investigation” or “interpretation.” It is not clear what the difference between “normative judgments,” on the one hand, and “investigation” or “interpretation” on the other is supposed to be, though perhaps it is plausible to say that in the case of first-order normative judgments, we make judgments which are *motivating*, while in second-order, metaethical “investigation” or “interpretation,” we do not. I find a distinction between the two made on this basis to be this thoroughly implausible. I see no

To put it all differently, there should be an account explaining why everyone else got it wrong by not drawing the relevant distinction; indeed, by not *noticing* it. Otherwise, the distinction looks not like the growth in wisdom it is alleged to be, but the introduction of a word used by the cool kids at the cool kid lunch table, and one that obscures more than it illuminates precisely as a consequence of its function to distinguish the cool kids from the creepy goth kids, the band nerds, and the other various losers. At this point in these discussions, one such attempted account is *always* offered, virtually like clockwork, and it basically takes the form of saying “philosophy is hard,” but that is no explanation; by itself, that does not do anything to show why *this* distinction, rather than some other distinction, concept, or whatever, came out of it all. I suspect a similar story can be told for at least *many* other philosophical concepts, meaning we’ll find that many philosophical concepts are the products of mechanisms which are indifferent to philosophical truth and are instead responsive to things like prestige and luck. Such concepts have a short shelf life: on the one hand, they need to be understood and so need to be given an account, but on the other, they offer so little in the way of content precisely because they are the invention of some guy at his typewriter, so that what happens is that the “literature” spends some amount of time doing everything it can to understand the concept, and then it finds there’s not much *there* there. So was the story with the concept of *supervenience*, and so too will be the story of *grounding*. *Metaethics* and *normative ethics* have had a longer shelf life, but they are dying.

reason for saying that the content of normative ethics is exhausted by, or even focused on, consideration of motivating judgments, because it is possible to say that morality's content does not necessarily motivate—this seems to be Mill's view in *Utilitarianism*, for instance—and because normative ethics is simply quite *rich*: it may very well involve an attempt to understand the reactive attitudes, for instance, and those attitudes are not themselves to be understood as *motivated* by anything, since saying otherwise misunderstands what they are and treats my fear or anger, say, as something I *do*, not something I *feel*. Leaving that aside, I also see no reason why someone cannot be motivated to do something, such as write a paper, as part of an investigation upon or interpretation of our ethical practices.

Instead, we might try to draw the distinction between normative ethics and metaethics, not in terms of the type of thought grasping whatever the relevant content is, but in terms of the content itself: normative ethics is concerned, on this reading, with judgments *within* the practice of normative judgments, while metaethics is concerned with reflections *upon* the practice of normative judgments, perhaps in the way we can distinguish between judgments made *within* a baseball game and judgments made once the game is over and we reflect upon the entirety of baseball's rules, institutions, and culture while sitting in the ESPN TV studio. Perhaps a way to put the thought is to say that normative ethics features *uses* of ethical vocabulary, while metaethics instead features *mentions* that vocabulary. This approach to the distinction strikes me as equally implausible, if not more so, because a considerable part of ethical life resides in reflecting *upon* our practices so we can then understand what to do *within* them, but surely, in thinking about, say, the nature of promising as part of my deliberation whether to break my promise to pick you up from the airport in order to go on a date, I am not doing metaethics. Indeed, there are various virtues and vices—*ethical* virtues and vices, to be clear—having to do

with the way a person relates to those practices in which she finds herself: being a thoughtful friend, for instance, might involve thinking from time to time about the whole practice of friendship itself, while the insufferable boor, by contrast, just drones on as he does to the detriment of everyone at the dinner party, but none of these virtues or vice require a concern for anything specifically metaethical. That is, the thoughtful person need not think distinctively metaethical thoughts to be thoughtful, and the insufferable boor need not exhibit his insufferableness through, say, insisting his wife doesn't have reason to complain about their marriage because "yadda yadda yadda, Cornell realism is correct," though of course he *can* be insufferable in such a way—indeed, if he said *that*, it's hard to see how he wouldn't be.

2.4.5 More generally, I see in the background of Hussain and Shah's objection something like the assumptions that, first, the distinction between normative ethics and metaethics exhausts the relevant logical space of the genus of which they are species, that genus perhaps being *value theory* or *practical philosophy*, and second, that normative ethics is to focus on *action*. But the third assumption, which I take to be doing much of the heavy lifting here, is, I think, an assumption of the possibility of a kind of Archimedeanism, to draw on a term of Ronald Dworkin's, with respect to ethics, and that they take metaethics to be *Archimedean* metaethics. I take them to explicitly accept this third point when they write that:

...meta-ethical investigations do not attempt to figure out which moral judgments we should make, but rather try to understand what is going on when we engage in the practice of making moral judgments. The point of meta-ethics is to give an account of what it is to think, and express, a moral thought, not to tell us which moral thoughts to think.³⁰

In a similar vein, they write that "We do count views that argue that there is, in some sense, no way of getting outside normative thought to explain it, and that therefore no answers to these

³⁰ "Meta-Ethics and its Discontents: A Case Study of Korsgaard," 86-87.

questions are possible, as doing metaethics.”³¹ They take these aforementioned sorts of views to be *metaethical*, in disagreement with what their proponents say about them, because “...this type of quietism, which claims that no metaethical theories are possible, is not equivalent to merely failing to state a metaethical position.”³² It is initially puzzling that this sort of quietism should be considered a metaethical theory any more than my view that Santa Claus doesn’t exist should be considered a theory of Santa Claus, rather than a rejection of Santa Claus theorizing in the first place, but the first assumption I mentioned above, namely that everything in practical philosophy can be classified either under the heading of *normative ethics* or *metaethics*, enters the picture at this point, I think, and leads to the unusual result that the rejection of Santa Claus theorizing is itself Santa-Clausology, and that the rejection of metaethics is itself metaethics, since it can’t be normative ethics and it must be one of the two.

These conclusions are not restricted to metaethics. They reach a similar conclusion in the case of normative ethics, writing that “the radical claim that no systematization [of our everyday practice of making normative judgments] is possible, expressed perhaps by some forms of particularism, is the limiting case of theories in normative ethics.”³³ It is puzzling that they understand particularism to be a view within normative ethics: Jonathan Dancy, for what it’s worth, writes that “particularism is officially a doctrine in meta-ethical theory.”³⁴ If his word is not taken to be decisive, that’s fine: all the example shows is that dispute is *reasonable* here, which I take to support my view that the *normative ethics/metaethics* distinction is, at best, not as clear or as stable as Hussain and Shah need it to be if they are to rely on it to do substantive philosophical work, rather than having it function as a distinction which has more a sociological

³¹ “Misunderstanding Metaethics: Korsgaard’s Rejection of Realism,” 268.

³² Ibid.

³³ “Meta-Ethics and its Discontents: A Case Study of Korsgaard,” 86.

³⁴ Jonathan Dancy, *Ethics without Principles* (New York: Oxford University Press, 2004), 190.

role than anything. Leaving that aside, this line of thought, much as in the case of metaethics and quietism, has the uncomfortable consequence of classifying those views typically falling under the heading of *anti-theory* in ethics as *theories*. Consider Sophie Grace Chappell, in her recent book *Epiphanies*, who writes that:

So what I am anti in being ‘an anti-theorist’ is what Nietzsche calls ‘the will to system’ (and condemns as a lack of integrity), and what Wittgensteinians often call ‘being in the grip of a picture’ (see *Philosophical Investigations* I, 115, *ein Bild hielt uns gefangen*), and what Aristotle is attacking when he says (of the *Gorgias* view that the virtuous man is happy even on the rack: *Nicomachean Ethics* 1096a2) that τὸν δ’ οὕτω ζῶντα οὐδεὶς ἂν εὐδαιμονίσσειεν εἰ μὴ θέσιν διαφυλάττων, ‘No one would say this unless he was defending a theory.’³⁵

I’m inclined to think Chappell picked some bad examples of what she’s after, but that is neither here nor there.³⁶ The point is that I find Chappell’s statement of her position coherent and something about which we can have a reasonable discussion, though undoubtedly, we’d need more to talk about. But on the view of Hussain and Shah, she is confused.

2.4.6 In any event, the third assumption I identified above, i.e., of Archimedean metaethics, is question-begging. If the Categorical Imperative really is a constitutive principle of the will, I cannot simply uncouple my will from it and ‘stand outside it’, and to assume otherwise is to assume, not only a particular position within normative ethics, namely that this is even possible, let alone permissible, which is actually not at all clear, a thought I will return to soon, but one within metaethics as well, and in particular, it is to assume the answers to questions which the debate is about, such as the question “how should we understand how normative ethical thought works?” The second assumption I mentioned, to the effect that the focus of normative ethics is to

³⁵ Sophie Grace Chappell, *Epiphanies: An Ethics of Experience* (New York: Oxford University Press, 2022), 69.

³⁶ If she is an anti-theorist, then the problem isn’t with biting the bullet, as in the example of Aristotle, but with the very existence of a bullet in the first place, which I take Nietzsche to have in mind (I’m unsure about Wittgenstein); but what Nietzsche says is, actually, very puzzling, and Chappell is not sufficiently puzzled by his thought. After all, why isn’t the will to a system, not the *lack* of integrity, but its fullest embodiment? I think his thought is that, in trying to view things from the perspective of God, I am actually slowly chipping away at the world because I am necessarily part of that world.

be on action, is also false, again for the sort of reason I mentioned above, namely that there is quite a bit which is ethically interesting that is not action. It is more reasonable, though certainly not by much—I see little hope for the individuation of philosophy by trying to say there is either a special sort of *philosophical object* of thought or a special sort of *philosophical thought* itself, and suspect the most plausible way to do so is by reference to a historical explanation and *maybe* in terms of the function of thought that *that* history has birthed, and I suspect something similar is most plausible with regard to philosophy’s subdisciplines— to say that normative ethics is to focus, not on action, but on (something like) *activity*. But if this is so, then the distinction they want between normative ethics and metaethics will again be destabilized because *interpretation* or *investigation* are activities, and if it is insisted that *interpretation* in the relevant sense here means something like “the true interpretation, lying in wait for us to find,” this just kicks the can down the road because *that* thing dubbed “the true interpretation” must then be understood upon our investigation of it. Concepts, propositions, etc. do not come pre-packaged with their being understood.

Further, to return to a thought briefly mentioned above, it is worth considering the possibility that Archimedean metaethics really portends something quite awful: imagine what the world would be like if one could, simply through choice, free oneself from ethical commitments under the guise of wanting to undertake a specific sort of investigation. People have, of course, thought this is possible, as shown by biology’s, psychology’s, and medicine’s less-than-ethically-stellar history of experimentation on live organisms of all sorts.

A different assumption Hussain and Shah may make, which I have not explored here, is that they are simply interested in a different question than either Korsgaard or I am. Korsgaard is interested in the *normative question*, which is a question about the *justification* of moral

obligation, and I am interested in the *vindication* of moral identity, which I take to amount to something of the same sort of thing. This sort of question is not a question *within* metaethics because it is a question prior both to normative ethics and the aforementioned metaethics, for instance, by asking whether something like those practices of *justification* within the moral practice are themselves worth taking seriously. But metaethics, as defined by Hussain and Shah, regardless of whether that distinction of their works out, at the very least *presupposes* those very practices *as* practices, rather than as, as it were, *illusions* of practices, exercises in self-deception and delusion, or something to that effect. (It does not need to be that strong: the same point could be made by saying that metaethics presupposes those practices *as* practices, rather than as things engaged in with a shaky understanding thereof.)

2.4.7 So far, my argument against Hussain and Shah is merely negative, and for that reason, it is weak, since there may be a way of re-drawing the relevant distinctions. They themselves suggest positive ways of responding to their arguments and showing that metaethics is, indeed, something we are entitled to bypass. This may amount to arguing for a kind of *metaethical quietism*, in the sense of the term used by David Enoch, who takes quietism to be not so much one position as much as “a number of closely related worries” about the possibility of metanormative theorizing.³⁷ I do not have a positive argument for quietism, and perhaps it is inadvisable to attempt to offer any such argument anyway, at least if doing so requires buying into metaethical thought enough to talk about it in the first place. But I want to lend some indirect credence to the view by arguing against Enoch’s objections to quietism, itself similar to an objection to quietist views offered by Tristram McPherson.

³⁷ David Enoch, *Taking Morality Seriously: A Defense of Robust Realism* (New York: Oxford University Press, 2011), 121.

The objection under consideration is the objection from *counter-normativity*. This sort of objection presupposes what Enoch calls the “‘no-vantage-point’ intuition,”³⁸ which in my view is not an intuition but falls out from the picture of morality on offer here, an intuition Enoch takes to amount to the idea that there is no way of standing outside the first-order practice of ethical judgment, from which it would then follow that morality does not admit of, nor needs, any justification outside of the practice. The problem will arise if the relevant practice is understood to be contingent in some respect: Enoch writes that “so long as the relevant practice...is itself acknowledged to be contingent, or at least...rationally *arbitrary*, then I reject the thesis that it needs no justification external to it.”³⁹ The space afforded by contingency of some sort or another enables the possibility, according to Enoch, of *counter-normativity*:

[Imagine] another discourse (or perhaps another community engaging in it), what may be called the counter-normative discourse. The standards internal to the counter-normative domain license claims quantifying over counter-reasons. Those engaged in that discourse treat counter-reasons much as we treat reasons. For instance, they take them to be relevant to their practical deliberation, or perhaps counter-deliberation, in roughly the same way we take reasons to be relevant to ours: when they judge that there is a counter-reason to do Φ , they tend to Φ , to criticize those who do not Φ , and so on. But their judgments about counter-reasons would sound very weird to us (once translated into reasons-talk). For instance, they think that it is rather obvious that that an action will cause the agent pain is counter-reason *for* performing it.⁴⁰

Enoch’s objection, then, is that the quietist will, on the one hand, want to reject counter-normativity and accept normativity, but on the other hand, will not be able to do so; in treating reasons in formal terms, while at the same time attempting to reject metanormative theorizing, the quietist cannot adopt an *error theory* of counter-normativity and counter-reasons, and must instead accept them as legitimate as normativity and reasons are, even when it seems they are not.

³⁸ Enoch, *Taking Morality Seriously*, 122.

³⁹ Ibid.

⁴⁰ Ibid., 124-125.

I find this objection unconvincing. To identify the counter-reasons *as* counter-reasons in the first place, those in the reasons practice must already possess the concept of a counter-reason, and since that concept functions the same way as reasons do, they must too be fluent in the use of counter-normativity. But this presupposes the falsity of the very thesis Enoch takes himself to be criticizing because it presupposes a vantage point which is either, first, located entirely in the practice of normativity-and-counter-normativity, or second, not, in fact, wholly internal to the reasons-practice, but one outside of both, while at the same time at home in each. If the objection is to gain any traction, those within the reasons practice cannot be allowed to identify counter-reasons *as* counter-reasons in the first place, but when we then imagine what that might be like from their own point of view, it is harder to see why those in the reasons-practice not only need, but can reasonably be *expected*, to have anything to say. The situation in that case is one in which creatures very similar to you and me are operating on the basis of considerations of some sort which seem to be somehow very similar, and yet at the same time very different, from yours and mine, which is perhaps what we find in cases of cross-cultural contact. Such contact need not undermine our commitment to practicing our own culture, and similarly, the practices of some group over yonder which is somehow both very similar and yet not at all similar need not undermine what we are doing here and now. Indeed, it *can't* undermine what we're doing: for it to undermine what we're doing, we'd have to recognize *what they're doing*, and in particular, recognize it as offering something that, say, serves as a defeater to the justification we offer for our practice, but part of what we are imagining is that we *don't* entirely recognize what they're doing. It does not seem to me that an error theory can then be called for because we are not in a position to be able to appreciate any of the concepts, propositions, claims, etc. that an error theory of counter-normativity would need to be able to appreciate in the first place if it is to bring

to bear on the whole thing the question of *truth*. It seems to me instead that counter-normativity is something that, as Wittgenstein puts it, *wovon man nicht sprechen kann*.

In short, then, I take Enoch's counter-normativity objection to metaethical quietism to be question-begging.

2.4.8 In general, I myself am sympathetic to Dworkin, as well as to Selim Berker, on the relationship between normative ethics and metaethics, both of whom argue that the distinction between these domains is not stable, a consequence of which I take to be that we should not rely on these distinctions to do any serious philosophical work. Insofar as Hussain and Shah, then, rely on these distinctions to do serious work, their arguments will not succeed. The moral to draw from all this is not that we are deceived into thinking that the metaethical exists; rather, the moral to draw is that the ethical is much more wide-ranging than you might have otherwise thought, since the metaethical can perhaps be understood, in *some* cases, as something like the articulation of the spirit of the ethical. And that spirit is certainly *ethically* interesting: it makes a difference, an *ethical* difference, to know that you're talking to someone who denies that the Holocaust is morally wrong, not because they are a white nationalist, but because they read chapter 1 of a book by some Oxford don. Both instances of denial are hideous of course, but that hideosity has a different character, one that does not obviously favor the kid who did the reading for his metaethics class one day.

"But still, can't the realist..."—yeah, okay, *fine*, maybe, *sure*, the non-natural realist can perhaps still insist on the consistency of their view with the line of thought I have tried to develop here in certain respects, in line with its Hydra-like regenerative character, a thought I will return to later in 2.5, but I take it that, at this point, the burden is on them to provide a question or objection that the view is supposed to answer. Non-natural realism is not itself a non-

natural realistically-construed reason, always already there, lying in wait as something simply given: it is a human cultural product, and like any other cultural product, it has to earn its keep. If it is to be an answer, it is the answer to some question, and that question needs to be supplied. Barring that, the shouting of the non-natural realist strikes me as little more than a cleaned-up version of the shouting of the lunatic on the street corner to the effect that the world lieth in sin and that the Kingdom of God is at hand, here to save the day precisely when it was felt to be in need of saving, for instance because it is felt we are not taking things sufficiently seriously, and in both cases I see no reason not to simply *pass by*.⁴¹

It is a mistake to think that *passing by* is an exercise in bad faith, because it is not. The reason to pass by non-natural realism, under some guise or another, is because it does not offer an understanding of morality which is able to vindicate it, regardless of whether that understanding of morality is true or false. It was always going to be the case that the norms of morality needed to be understood, and, additionally, that those rules would then be able to, as it were, give rise to something like a culture with respect to themselves, in the way that the rules of baseball both need to be understood by those within the game and, additionally, give rise to the culture of baseball. In turn, the institutions of the culture of baseball is where we can discuss those rules and cultivate various virtues and vices with respect to those rules, such as the virtue of *sportsmanship* and the vice of being *nitpicky* with respect to the rules. Similarly, morality and its rules enable something like that space akin to the culture of baseball, a space with its own virtues and vices, both with respect to those rules and with respect to that culture itself.

My suggestion is that the substantive, non-natural realist attempts to fill that space enabled by morality, the space in which we try to understand the rules, with a very rich

⁴¹ The analogy is less rhetorical and cheap than you might think: see David Killoren, "Robust Moral Realism: An Excellent Religion," *International Journal for Philosophy of Religion* 79, no. 3 (2016): 223–37.

ontological picture of those rules, the thought being that *that* understanding of the rules is necessary in order to take those rules seriously, or at least, seriously *enough*. In my view, this is a mistake. The reason it is a mistake is because the pressures upon the rules of morality are not theoretical pressures, or at least not in their first instance, but are instead practical pressures, with those theoretical pressures amounting to *pressures* because they may serve to undermine morality's vindication due to presupposition failure. (For instance, if morality presupposes a strong, libertarian conception of freedom, and if no such conception of freedom is tenable, then morality is undermined and that presents a pressure upon morality, unlike the pressure presented by, say, the possibility of nominalism about the numbers, since nothing in morality's content or presuppositions requires any non-nominalist conception of numbers, such as a Platonist conception.)

In fact, in some sense, the insistence that morality require a richly metaphysical understanding of itself is deeply at odds with the liberal ideals of morality itself, and so we should not insist that morality requires the non-natural realist's ultimately mistaken understanding of itself, nor, for that matter, should we insist that morality needs to be understood in terms of Kantian transcendental idealism. What allows us to appreciate and share an understanding of morality, along with arguments which attempt to vindicate it, is, in some sense or another, all the natural stuff that is *not* on the page, such as the history shared by modern Western liberals.⁴²

⁴² See, for instance, David Sussman, "The Horizons of Humanity," in *Normativity and Agency: Themes from the Philosophy of Christine M. Korsgaard*, ed. Tamar Schapiro, Kyla Ebels-Duggn, and Sharon Street (New York: Oxford University Press, 2022), 1-20, and especially 12ff, where he writes that "as a good liberal modern, I take it for granted that such qualities as my gender, race, class, and religion are, metaphysically speaking, accidental. However important and unavoidable these categories are in my actual social life, I cannot but allow the possibility that I could have been female, or black, or Muslim (regardless of whether or not there is any remaining possibility that I might become such, given who and what I am)." I take it that, according to Sussman, one feature of the modern liberal self-understanding (among *many*: liberalism is complex, and Sussman is not interested in a reductive account) is found in the thought that persons are not in their first instance essentially any of their particular social

2.4.9 In brief, then, I take myself to have undermined the arguments offered by Hussain and Shah, and while it *may* be the case that the Korsgaardian line of argument is *consistent* with substantive realism in certain respects, there is no need to invoke substantive realism, and so the burden is on the opposition to furnish some sort of consideration explaining why we need to consider it, that is, consider substantive realism.

2.5: Objections and Replies, Part II: Enoch and the Shmagency Objection

2.5.1 That consideration may be provided by Enoch's *shmagency objection*, to which we can now turn. The objection, in brief, is that the constitutivist strategy is circular because it presupposes the very normativity of reasons which it was intended to explain. To understand this, we can put things in terms of Rawlsian analogies to baseball. In playing baseball or some other game, that is, some practice constituted by a set of rules, a player only first enters the game by having a reason to play, and without that reason, they will understand their play to be forced or coerced in some way, but whatever the case, they will regard their play as unjustified. Similarly, consider the game, as it were, of agency: like a baseball game, it is a practice constituted by a set of rules, namely, those of morality and other practical principles, which allow us to achieve goods internal to the practice by enabling them as goods, but an agent in the agency game can nevertheless complain about their participation in the practice in much the

identities, but rather, they are essentially that which enables the possibility of such identities, which he takes to be something like a capacity for (practical) self-identification, or what Korsgaard calls, as mentioned previously, *reflective endorsement*. I think when he says that he could have been female, or black, or Muslim, then, he is better read as saying that he could have *identified* himself as being female, or black, or Muslim. That is the sense in which these identities are metaphysically accidental: they are not, as it were, necessitating, and for them to be necessary to an agent's identity, the agent must *do* something – and that capacity to do something in the relevant sense (here, the capacity for self-identification) is what is essential. But these understandings of identity and identification "...are implicit in the distinctively modern, liberal form of self-consciousness that we happen to inhabit as the result of wholly contingent historical processes (contingent both metaphysically and rationally)" (3). It may have been different in the past, and it may be different in the future. But in the way that counter-normativity does not undermine normativity, those (possible) differences across time need not undermine what we're doing here and now either.

same way someone can complain about their having to play baseball. This is explained, according to Enoch, by the fact that the participant in the agency game has no reason to be playing it, in much the way that the person playing baseball has no reason to be playing it. We then find ourselves in the following position: the constitutivist story was supposed to explain and justify the normativity of various practical principles and reasons generally, but the strategy only works on the condition that it assumes there are justified reasons prior to the practice of agency. So goes the shmagency objection.⁴³

2.5.2 Much has been written in the way of replying to the shmagency objection, in particular by stressing the idea that agency is inescapable in a way that baseball or chess are not, a reply to the shmagency objection that strikes me as successful, this then implying that there is no reason *into* agency because there is no sense in which one could ever rationally stand *outside* it, standing outside it instead only being possible by, say, falling into a coma or dying, examples of cases in which someone requires another agent to represent them within the community since, unsurprisingly, they don't have the physical capacities to do so, i.e, to represent themselves their own agential capacities.⁴⁴ The sense of inescapability is deeper here than we may initially think:

⁴³ It is Enoch who introduces the contemporary nomenclature of "shmagency," but this sort of objection seems to have been made earlier. For instance, I read A.J. Watt as gesturing at a similar objection in his "Transcendental Arguments and Moral Principles." There, he quotes A. Phillips Griffiths in "Ultimate Moral Principles: Their Justification," where Phillips Griffiths writes that "the only kind of solution [to the problem of justifying ultimate moral principles] which seems possible is one that shows that certain moral principles must be regarded as correct if moral discourse is to be possible at all, at least as an autonomous and objective form of practical discourse." Against this, Watt writes that

This approach is handicapped from the start. Let it be shown, however convincingly, that anyone who uses this special mode of practical discourse is committed to certain moral presuppositions, a problem still remains. It has to be shown why everyone must use just such a type of practical discourse (44).

Watt goes on to make it clear that he is asking about the identification of the discourse in the first place, but it seems to me that implicit in his question is the demand for an account of the discourse's *necessity*: that is, we need to know why everyone *must* use this discourse, rather than, say, why everyone *may* use it, or why everyone *can* use it, or *should* use it, or whatever. Something that could do that work is a *reason*, but it is not clear if any such reason ever could be provided on the terms of Phillips Griffiths' account.

⁴⁴ See, for instance, Luca Ferrero, "Constitutivism and the Inescapability of Agency," *Oxford Studies in Metaethics* 4 (2009): 303–33.

it's not just that there is no way out of agency qua natural power and so no way out of hearing the call of reasons. Rather, there is no rational way into or out of this normative power or capacity. This depth would allow us to say, then, that the choice between agency and shmagency is like the choice I face between being an American and being a member of an uncontacted Amazonian tribe: it's not a choice I could ever in any serious sense face (it is not a real possibility for me, to use Williams' term here) and indeed it's not the sort of choice anything could ever face and resolve through rational deliberation and choice, since full appreciation of the former option precludes full appreciation of the latter and vice versa. The distinction between the two is one we can only make third-personally.

This perhaps accounts for something unsettling that may remain in the wake of the shmagency objection that is untouched by the inescapability response, as well as a second, briefer response to Enoch, to the effect that the shmagency objection is question-begging since part of what is at issue is whether there are reasons prior to agency in the first place, namely, something like *alienation* from those norms constitutive of agency which, in the case of the Kantian, include norms of instrumental reasoning, prudential reasoning, and, very importantly, morality, with the norms of morality typically being understood as in some sense prior to the others. This concern with alienation is something that seems implicit in Enoch's 2006 and 2011 papers on the shmagency objection.⁴⁵ Sergio Tennenbaum develops this worry in greater detail, saying that you might regard the constitutive end of agency as one you are, as it were, "'stuck' with due to the nature of agency. After all, the constitutive end of agency is one that you find yourself committed to exactly by setting to yourself particular ends..."⁴⁶ Why might this amount

⁴⁵ See, for instance, his example of the "latent and grudging patriot" in Enoch (2011).

⁴⁶ Sergio Tennenbaum, "Formalism and Constitutivism in Kantian Practical Philosophy," *Philosophical Explorations* 22, no. 2 (2019), 167.

to a kind of *alienation*, rather than something else? As Tennenbaum puts it, “while realism starts from taking for granted that the objects of our moral action are good, constitutivism seems to forge a commitment behind the back of the agent. Our constitutivist philosopher puts us in a position in which what we immediately take to have value gives way to a norm that is not grounded on the direct object of our will.”⁴⁷ The idea is that constitutivism amounts to a kind of bait and switch: it presupposes various direct objects of the will, i.e., various particular desires, and then commits us to a value which is typically not the direct object of the will, and so a value from which we are alienated. And in so doing, I think we may become alienated from our initial values, because this sort of account might be heard as suggesting that we do not really know our values as well as we had thought we did. This is not an idle worry, I think. Further, insofar as *other* persons are also valuable, Kantian constitutivism may alienate us from them as well: after all, a practical identity is a description under which I value *myself*, and the alienated value from above is the value I place on *my* humanity. The picture of ethical life we may ultimately get is what is sometimes decried as the atomistic picture of modern life: little self-contained specks of humanity bumping into one another, hearing the noise we make but not really *listening* to one another.⁴⁸

It is worth asking why alienation is a concern here. The reason is that the transcendental argument I have offered in this constitutivist framework effectively amounts to a kind of *moral metaphysics*, or rather, a kind of metaphysics which proceeds *through* the moral. I have argued that our having our normal, everyday reasons presupposes our placing importance on or finding

⁴⁷ Ibid., 168.

⁴⁸ I take this to be the sort of concern found in Jack Samuel, “An Individual Reality, Separate From Oneself: Alienation and Sociality in Moral Theory,” *Inquiry* (2021), 1-20 and Jack Samuel, “Alienation and the Metaphysics of Normativity: On the Quality of Our Relations with the World,” *Journal of Ethics and Social Philosophy* 26, no. 1 (November 2023), 158-191.

importance in our humanity, and that to place or find importance on our humanity is to have moral identity, or perhaps what is better understood as personhood. We have thus engaged in a kind of metaphysics of the person by identifying what it is to be a person, a thing with moral identity, in terms of the structure of practical reason.⁴⁹ Morality, then, at least from my own practical point of view, is not and cannot be understood merely as a kind of contingent historical phenomenon, or a contingent social institution, or whatever, since it is only through morality that I can even understand that idea of my practical point of view in the first place. Morality is a necessity, and it is a necessity for me, since it has made me into what I fundamentally am. It is one thing to be alienated from a contingent and unimportant social institution or event. It is something else to be alienated from myself, particularly when the form of alienation would be so deep that it would require me to be alienated from that very sense of alienation from myself.

2.5.3 I find it unclear why philosophy should have anything to say at this point. It is important for the objection that alienation not be a mere possibility but something that instead must necessarily follow in the course of deliberation or simply in life generally, insofar as you incorporate the constitutivist account into your everyday practical self-understanding, but the worry we have so far considered only shows that alienation is a possible result. That is not, by itself, an objection because the (mere) possibility of misuse of a rule is not typically sufficient to ground an objection to the rule. All we have seen is that under certain conditions morality may result in alienation, but under the right (or perhaps “wrong” is the better term) conditions morality could result in bad things anyway, such as my getting stuck in my own head and trapped in a kind of moral analysis paralysis as described by Williams,⁵⁰ by enabling distinctive

⁴⁹ Harry G. Frankfurt, “Freedom of the Will and the Concept of a Person,” *Journal of Philosophy* 68, no. 1 (1971), 5-7 are familiar here.

⁵⁰ See chapter 10 of ELP, and especially around 181-182, leading to the thought that “if obligation is allowed to structure ethical thought, there are several natural ways in which it can come to dominate life altogether.”

forms of vice such as *grandstanding*⁵¹ and *degradation*,⁵² and so on. Further, none of this is new for a Kantian account, because these points are recognized by Kant himself, repeatedly and in various ways: for instance, Kantian self-conceit is parasitic on the moral law because self-conceit is a kind of self-effected transformation of self-love—the “propensity to make oneself as having subjective determining grounds of choice into the objective determining ground of the will in general”⁵³ — into something “lawgiving and the unconditional practical principle,”⁵⁴ and self-love can only become law-giving if, unsurprisingly, the subject has the capacity to give *law* through her maxims. Other examples include those found in the discussion of radical evil (indeed, radical evil is itself an example: human evil is only possible on the condition that the human being knows the moral law), such as the vices of culture, as well as the discussion of the passions in the *Anthropology*. In brief, then: the possibility of error with respect to a rule is not by itself sufficient to sustain an objection to that rule, and this is accounted for in my argument because it is accounted for in Kant.

But to return to the main course of discussion: this merely possible alienation in the case of the Kantian constitutivist account is different from the sort of alienation that results from a thoroughgoing acceptance of utilitarianism, which does not merely enable but requires that you suffer alienation in various respects: perhaps from the theory itself on the grounds of its denial of transparency, that is, on the grounds of its being an esoteric morality, or from yourself and what you care about, as we find in the background of Williams’ integrity objection, or from other people by dissolving them into one another, as we find in the case of Rawls in TJ §5. And the

⁵¹ See Justin Tosi and Brandon Warmke, *Grandstanding: The Use and Abuse of Moral Talk*, (New York: Oxford University Press, 2020).

⁵² Judith Hill, “Pornography and Degradation,” *Hypatia* 2, no. 2 (Summer 1987), 39-54.

⁵³ KpV 5:74.

⁵⁴ *Ibid.*

mere possibility of alienation is exactly what we should have expected, since the constitutivist is ultimately saying that what is being provided is a set of rules, where that set of rules is the enabling condition both of certain successes as well as certain failures, in the way that the rules of baseball enable both fair play and the susceptibility on the part of everyone involved to things such as corking the bat, a baseball wrong as it were, rather than merely using equipment people typically don't use.

My suspicion is that we find in the background of this failed objection an understanding of morality according to which being a person, that is, having knowledge of morality, is something like an achievement (and so as something that should not be accompanied by various symptoms of failure and error, such as alienation) and not the ground of possible achievement. But this is an error. It is a mistake to view morality not as a set of rules but as something more like a trophy or an award. That agency is constituted by various norms such as the norms of morality, and that this may lead us to being alienated from ourselves by means of our being alienated from morality, is not a compelling objection to constitutivism, and if anything supports it by creating or incorporating the self from which I can be alienated at all, a very real human possibility.

It is worth noting at this point that, while alienation is bad, it does not thereby follow that complete non-alienation, or rather, what you might think of as the ideal of thoroughgoing, radical integrity, is therefore good, a form of non-alienation in which the very *susceptibility* to alienation has been left behind. There are reasons for thinking that a susceptibility to alienation is necessary to have a good human life, and since radical integrity would uproot such a susceptibility, we have reasons then to reject the ideal of radical integrity. Korsgaard, particularly in *Self-Constitution*, seems to have something like this in mind at points, even prior to anything having

to do with morality, simply in discussing the idea of a constitutive standard and its use in acting some way rather than another.⁵⁵ The idea is that, to engage in some activity, such as building a house, a person must be guided by the rules of building a house, thereby taking the rules to be normative, with deviation from these rules resulting in ways of building houses which are defective in some respect. This raises a question about how much space there is between performing an activity poorly and not performing it at all. In considering the case of a person building a house poorly, Korsgaard writes that

The shoddy building doesn't follow a different set of standards or norms. He may be doing one of two things. He may be guided by the norms, but carelessly, inattentively, choosing second-rate materials in a random way, sealing the corners imperfectly, adding insufficient insulation, and so on. But he may also, if he is dishonest, be doing this sort of thing quite consciously, say in order to save money. In that case, surely we can't say that he is trying to build a good house? No, but now I think we should follow Socrates' lead, and say that he is not trying to build a house at all, but rather a sort of plausible imitation of a house, one he can pass off as the real thing. What guides him is not the aim of producing a house, but the aim of producing something that will fetch the price of a house, sufficiently like a real house that he can't be sued for it afterwards.⁵⁶

The good house builder would seem to be fully attentive to the constitutive standards of the activity of house building which are normative for said activity, while the bad house builder is either a bad builder or a bad person, one who just so happens to be building houses, or strictly

⁵⁵ The moral ideal of radical integrity, which in some cases takes the form of a radical self-sufficiency or radical independence, comes out most clearly, I think, in 9.1.5.: "On certain occasions, the people with the [constitutions other than aristocratic] fall apart. For the truly just person, the aristocratic soul, there are no such occasions. Anything could happen to her, anything at all, and she will still follow her own principles—and that is because she has universal principles, principles that can consistently be followed in any kind of case. She is entirely self-governed, so that all of her actions, in every circumstance of her life, are really and fully her own: never merely the manifestation of forces at work in her or on her, but always the expression of her own choice. She is completely self-possessed: not necessarily happy on the rack, but *herself* on the rack, herself even there." This person is fully insulated from falling part and, to borrow a term in vogue in pop mental health discussion, deeply invulnerable. This view is not reasonable because certain important features of ethical life may require a vulnerability to forms of severe loss that may amount to a kind of falling apart. It is not a moral failure for a parent's life to fall to pieces if their children die in an accident out of the blue. We should reject the ideal of radical integrity and accept a picture according to which integrity is one value among others. For more in a related vein, see David Sussman, "Morality, Self-Constitution, and the Limits of Integrity," in *Why Be Moral?*, ed. Beatrix Himmelmann and Robert Louden (De Gruyter, 2015), 123-140. See also Clayton James Monck Alsup, "Alienation, Agency, and Identity" (PhD dissertation, University of Illinois Urbana-Champaign, 2021).

⁵⁶ Korsgaard, *Self-Constitution*, 2.1.5.

speaking, house-shaped knockoffs. Korsgaard does not seem to consider the possibility that a person can be a builder of houses who is looking to make houses which are neither good nor bad in strict senses of the terms, but rather, houses which are good enough.⁵⁷ It may be a necessary condition of building houses that you take the constitutive standard of housebuilding as normative and follow that standard to some degree or another, but it does not follow that paying more attention to the standard makes you a better builder of houses, since adding more of a necessary condition does not, in general, improve the activity or thing in question. A necessary condition of a good human diet might be that I consume unsaturated fats, but the best human diet is not a diet composed solely of unsaturated fats, since here, the necessary condition serves as a kind of threshold, which, once met, leaves open space for other values to enter the picture, in this case, other nutrients, such as protein and carbs. Similar remarks hold for housebuilding: once I meet the standards for building a house, it is not inconceivable that other values can enter the picture, such as those having to do with my need to be able to get through the day, meaning that we should dismiss the idea that being a builder of houses has to commit you to a kind of radical housebuilder integrity, a thoroughgoing, all-consuming commitment to the ideals of housebuilding insofar as you act *qua* housebuilder (if such an idea even makes sense, since one may reasonably wonder how you can have a radical commitment to what seems to be a standard that is normative for you only conditionally).

Similar remarks, to return to the initial topic of discussion, apply to alienation: while I need to be an integrated agent to do anything at all and while it is morality that constitutes me as

⁵⁷ Strictly speaking, I think Korsgaard is unclear on this issue. Earlier in chapter 2, she writes that “But once you’ve answered the technical questions [about how to build a house], there is no further room for doubting that the constitutive standard has normative force. For if you fall too far short of the constitutive standard, what you produce will simply not be a house. In effect this means that even the most venal and shoddy builder must try to build a good house, for the simple reason that there is no other way to try to build a house.” Here, the issue is simply about engaging in the activity at all, and nothing she says here implies anything like “getting closer to the constitutive standard is always better.”

an agent, it does not thereby follow that the mere threat of alienation through a continued susceptibility thereto is a bad thing because it does not follow that thorough non-alienation, that is, more integrity, is better, something for which my own constitutivist argument accounts, primarily through its being silent on the issue and so not having anything turn on it. I am inclined to think that it is at least possible that a moral improvement is not always an improvement all things considered because moral value may not always be more valuable or otherwise important or worthwhile than some non-moral value.⁵⁸ The constitutive argument I have offered is, like I said, silent on the issue of the relative importance of moral value, only arguing that a necessary condition of acting is that we pay attention to moral value, and one way of paying attention to it is by saying it's not a big deal in such-and-such a case.

Further, there may in fact be contexts in which, all things considered, alienation is in some respect the best we can realistically expect. Against this, Jack Samuel writes that “an alienated relationship with something is a defective form of that relationship. In its most general form, alienation is a problematic separation between a person (a subject, an agent) and something else, something from which we ought not to be separate.”⁵⁹ I myself see no reason for thinking that an alienated relationship with something or another is necessarily a defect in the relationship: perhaps, for instance, at some level we all experience a kind of alienation from the law within a liberal democracy, because any such democracy takes articulation of legal values very seriously in a way that no subject typically does or even *should*, as though I need to, let alone could, write down the structure and content of that which I find important in my life in the form of a maximally complete *curriculum vitae*, but if the alternative to that form of alienation is

⁵⁸ A classic statement of this sort of thought is found in Susan Wolf, “Moral Saints,” *The Journal of Philosophy* 79, no. 8 (1982): 419–39.

⁵⁹ Jack Samuel, “Alienation and the Metaphysics of Normativity: Of the Quality of Our Relations with the World,” 160.

the non-alienated embrace of my own private judgment in the state of nature, and with it, your non-alienated embrace of your (*practical*) judgment that (say) you shall behead me and put my head on a pike to deter your fellow human animals from attacking your encampment, the alienated relationship begins to look either not at all defective or, if defective, then a defect I can at least (here, all-too-literally) *live* with. If someone tries to suggest that life under liberal democracy is still defective, because we should understand that defect with reference not to the state of nature, but to some form of political life beyond liberalism, in which we are yet again fully one with ourselves and one another after all our private judgments, to use a very chic term, *embody* the general will and its judgments, through and through somehow, I do not see how this objection could in any serious sense gain traction since we do not have the concepts of those in this non-alienated political future and so have no way to understand what they're doing as *better*, and in turn, that what we're doing as *defective*, rather than as *different*. These points can also be made by thinking not about our relationship to something like a community and its various norms and standards, but to one another on individual terms: perhaps the ex-husband and ex-wife's alienated relationship with one another after the divorce is the best they can reasonably hope for, for the same sorts of reasons mentioned above: either they remain together in their wonderfully toxic way, on the one hand, or they spread malice about one another on the other, and in both cases the kids suffer for it. Depending on the sort of alienation under consideration, it is worth considering the possibility that, in *morality*, alienation from one of its curatives is better than what ends up looking like a thoroughgoing, wholehearted identification with the disease.

2.5.4 Now, all of this presupposes that it's right to cash out the problem of shmagency in terms of *alienation* in the first place. It may not be, and we might try then to save the shmagency objection by recharacterizing the attitude in some sense or another. If someone reacted with

regret to the constitutivist argument, for instance, rather than with alienation, that might be thought to be salient in some way: we could respond by either condemning them as *irrationally* regretful, a response I find uncharitable and uninsightful, or, instead, that they regret something because they recognize a kind of bad necessity. But surely, the objector may continue, it is a bad result for the constitutivist if acceptance of their view is registered as bad and worthy of regret, or worthy of fear, or disappointment, or whatever, particularly if you are someone like Korsgaard, who is offering a constitutivist argument as an answer to the normative question, a question being asked by someone who might be thought of as on the fence about morality. Some of these attempted objections may simply be question-begging, depending on the account of the attitude under consideration: for instance, if the attitude requires a reason to be appropriate and if that reason is then taken to be prior to agency, a question has been begged in much the same way I discussed above when first discussing the shmagency objection.

I want to consider, then, two different ways of attempting to rehabilitate the shmagency objection, and then I'll argue neither is successful. In each rehabilitation we are to consider, first, someone who is participating in a practice they feel to be, in some broad sense of the term, unjustified, though perhaps not under that description, and who, second, continues to find it unjustified, again in some broad sense of the term and possibly under a different description, even in light of the sort of constitutivist argument I have provided. In the first sort of case, the agent might then know she's been given the argument and is responding to it with what looks like *hostility*, while in the second, the agent isn't so much hostile as much as she is, as it were, *defeated*, both of which seem to be ways of responding to an argument which would suggest something is amiss.⁶⁰ In the former case, then, the thought is that the constitutivist argument is

⁶⁰ To make the cases more concrete, we could imagine we are dealing with one of Enoch's characters, such as his chess player, and then consider two cases: one in which we give the chess player an argument and she reacts with

inadequate in some respect because *blame* or, more broadly, something like *hostility* can be licensed with respect to the argument, while in the latter sort of case, the thought is that the argument is inadequate because, in allowing space for an agent to respond with attitudes such as disappointment, regret, frustration, and so on, the argument is in some broad sense unable to restore *confidence*, with these second sort of cases representing *failures of confidence*. I discuss each sort of rehabilitation in what follows.

2.5.5 The first way of rehabilitating the shmagency objection is by saying that what we find in Enoch's cases are agents who hold attitudes of hostility toward the arguments they are given, and that this sort of hostility might be best thought of as *blame*. Let me try to motivate the thought.

We can distinguish, I think, the responses we have, or at least might have, towards certain sorts of theoretical arguments, on the one hand, and those we might have towards practical arguments on the other. An important feature of arguments in practical philosophy is that at least *some*, though I would venture a guess and say *many*, perhaps even *all*, of these arguments can themselves be construed as moves within the morality game. I myself am inclined to think they all are. There are different ways of understanding how this might be so: for instance, in some cases I find it plausible to follow a suggestion from Ana Itzel López Romero to the effect that some pieces of ethical philosophy are akin to *speech acts*, and in the way that speaking can be approached from an ethical point of view and ethically evaluated, censured, blamed, etc., so too can a piece of moral philosophy. In other cases, a piece of ethical philosophy might be expressive of something like a *mindset* or *worldview*, and mindsets are objects of moral interest and evaluation, in the way that you would find it relevant to know you're on a date with someone who expects the date to go nowhere, due to their mindset that dating is all just a waste of time.

anger, and another case in which she reacts instead with something like despair or defeat, and further, assuming for the sake of discussion that neither of these cases feature instances of alienation.

But whatever the case, the thought is that a piece of ethical philosophy is itself ethically assessable due to the nature of morality and its distinctive scope which does not allow for an Archimedeanism with respect to itself, while in the case of theoretical philosophy, this need not be the case, though it can be. In turn, the attitudes we take towards a piece of philosophy and argument generally carry a different significance depending on the context in which they are offered. To put it another way, the incredulous stare directed at David Lewis's chatter about modal realism is one thing, but it means something else when directed at a piece of moral philosophy, because in the context of modal realism it may only register the thought that the view is weird and that Lewis has made some sort of mistake in his account if that's where he's ended up, while in the latter case, i.e., that of morality, the incredulous stare instead can at least *sometimes* register something like *blame* or *censure*, and to be clear, I do not have in mind "blame" in the sense of attribution of causal responsibility ("the leaking faucet's to blame for the dripping sound"), nor something like *epistemic* blame, but rather, distinctively *ethical* or *moral* blame. Blame and censure need not be performed under those descriptions and, much of the time, they aren't and indeed shouldn't be, since doing so blows the whole matter out of proportion. Regardless, we may blame or censure in some way when we understand ourselves to be unfairly pained by another in some way or another, which means that, in ethical philosophy, when something doesn't strike us the right way, we may gain a reason to blame the argument, along with the person offering it. This, then, could be a reason why unhappiness, in a *very* wide sense of the term, could be a problem for the constitutivist, I want to suggest, at least on the line of thought under consideration: such unhappiness might amount to something like blame, or give a reason to blame, or something else to that effect, but an account of morality should not itself be worthy of censure or blame, and so if it is, it is a defective account of morality.

At this point, a variety of responses could enter the scene: the incredulous stare might itself be one of them, coupled with the thought that this suggestion I'm considering is not serious and amounts to something like *Woke philosophy*, as it were, and is a form of grandstanding or virtue signaling, which is itself an abuse of morality. But this is too fast: we should be charitable and not immediately write off the suggestion. A not-inconsiderable amount of ink has been spilled on the idea of *doxastic wronging*, for instance, and perhaps there is an argument to be had that the argument I have offered amounts to a kind of doxastic wrong, for instance by representing human agents as having equal say when, in reality, they are profoundly unequal, and maybe what I have offered might amount to a kind of *ideal theory*, in this case one of ethics, of the sort Mills condemns as a form of *ideology*: "a distortional complex of ideas, values, norms, and beliefs that reflects the nonrepresentative interests and experiences of a small minority of the national population—middle-to-upper-class white males—who are hugely *over-represented* in the professional philosophical population."⁶¹ So perhaps my argument not only misrepresents the human agent in some way, but does so in an ideological way, and to that extent, is worthy of blame. This is only one possibility, and I do not think this particular suggestion will ultimately work out (though the account does predict that's what I'll think anyway): Mills seems to take ideal theory to be something like an empirical abstraction and generalization over a set of given data, but my argument is not an empirical generalization (and neither is the argument of Mills' target, Rawls).⁶² Nevertheless, the point isn't that an objection such as that of Mills' would be misplaced: the point is, instead, that it shows how the notion of blame or censure could meaningfully enter the picture in the first place. So my suggestion is that

⁶¹ Charles Mills, "Ideal Theory as Ideology," *Hypatia* 20, no. 3 (Summer 2005): 172.

⁶² *Ibid.*, 166ff.

an argument may, in principle, be blameworthy, and so perhaps one reaction to my own argument is one of blame, rebuke, or censure in some form or another.⁶³

2.5.6 This attempt to rehabilitate the shmagency objection will not succeed because it is question-begging, since, in line with the pattern we've seen several times now, it assumes there is some *reason* to be communicated, or found, or whatever in the first place. The point isn't so much that the relevant reason is always *communicated* to the offender through the attitude or reaction of blame, since we can blame even when such communication to the offender is impossible, such as when someone is dead or in a coma, or when you're a passive-aggressive coward like me who makes sure they blame the offender behind their back, nor that blame communicates a *reason* to the offender, because there may be no such reason, using the term "reason" in the relevant sense here of *reason for action*, since I can blame someone and thereby rebuke them for caring about or otherwise valuing things in an inappropriate or otherwise defective way: I can rebuke someone for caring about contradictory values, say, or for holding bad values, or for caring about something which is really just too stupid to be worth caring about very much at all. (These cases may at some level seem contrived, but we can appeal to Rawlsian baseball analogies to show the idea: for instance, we can perfectly well blame a particular baseball player for acting in an unsporting way even though his actions are entirely in accordance with the rules.) But the primary thought instead is that blame is something *done*, and done for a reason, the normativity of those reasons being justified through the Kantian constitutivist argument presented above. A response of blame to the constitutivist argument,

⁶³ Another attempt might get started in Rima Basu's thought that the practice of philosophy itself needs an ethics, in the way that the practice of psychology, and in particular, when it involves experiments on human subjects, requires ethical oversight. (For more, see Rima Basu, "Risky Inquiry: Developing an Ethics for Philosophical Practice," *Hypatia* 38 (2023): 275-293.) The idea in this case is that an ethics would require enforcement mechanisms and those could be provided by blame.

then, could be only the sort of thing you can do on the basis of holding false beliefs, such as the belief that there is some *further* source of normativity here, and to that extent represents a response which is confused.

2.5.7 There is a rejoinder available at this point, namely, to say that my response is inadequate because it construes blame as an action, but this is false, and so while blaming is something done, it is not done for reasons for action, but for other sorts of considerations.⁶⁴ There are a variety of ways in which we could instead construe blame: we could say it is a judgment of ill will or disregard, to follow Pamela Hieronymi; we could construe it as an emotion; we could attempt to individuate blame by appeal to its functional role in an ethical exchange or relationship; and so on. On these understandings of blame, blame is not done for a reason *for action*, and so my charge that the objection under consideration is question-begging will not get off the ground.

None of these responses will succeed since they all presuppose moral content somewhere along the line. Take, for instance, Hieronymi's account, according to which blame is a judgment of ill will: for us to be able to distinguish an *ill* will, or *disregard*, from *goodwill* or from *adequate* or *apt* regard, we need some sort of justified standard; that standard would seem to be one of morality, since the inappropriateness of blaming someone who has not committed an act of ill will, leaving aside cases in which we inappropriately blame due to factual error (you blame her inappropriately because you thought she took your money when in reality it was someone else, say), seems to be an ethical failing rather than *just* a failing of prudence or something to that effect; but my argument is precisely what offers that justified standard. In this case, we need morality in order to distinguish appropriate *targets* of blame from inappropriate targets, and we

⁶⁴ An example of such a view is found in Pamela Hieronymi, "The Force and Fairness of Blame," *Philosophical Perspectives* 18, no. 1 (2004), 115–48.

would also need morality to make use of the notion of the *appropriate* in other contexts. So blame's not being an action is not important, since it will still need to presuppose moral content at some point or another, and the normativity of that content, whatever it turns out to be, is what is provided by my argument.

2.5.8 So much then for the first attempt to rehabilitate the shmagency objection, in which, recall, we construe the attitudes of the subject to whom the argument is given as something like a form of *hostility*, which, I have suggested, can be construed as a kind of *blame*. With that, we can move onto the latter case, in which the subject, the shmagent, reacts to the constitutivist's argument not with hostility but with something like *defeat*. Why, then, might someone be defeated?

It is not entirely uncommon for philosophy to be motivated by *philosophical angst*, a term I borrow from Joshua Blanchard,⁶⁵ which consists in the thought that, if a certain position were true, things would be *worse*, something related to what Guy Kahane calls the *value question in metaphysics*.⁶⁶ Indeed, I have already gestured at something like this above when suggesting that Archimedean metaethics, if possible, would mean the world is, in some respect or another, *worse* for us. The question might be thought to get going because we can “step back” from our everyday concepts, our everyday objects of knowledge, and so on, at some level or another, and reflect upon them, and since one such object is the *world*, we can in some sense or another “step back from” and reflect upon the world, while nevertheless having a place within that world, a particularly interesting and puzzling sort of reflection—for instance, the ability of the modern moral self to step back from and reflect upon it all in this way may be what enables

⁶⁵ Joshua Blanchard, “Moral Realism and Philosophical Angst,” in *Oxford Studies in Metaethics Volume 15*, ed. Russ Shafer-Landau (Oxford University Press, 2020), 118-139.

⁶⁶ Guy Kahane, “The Value Question in Metaphysics,” *Philosophy and Phenomenological Research* 85, no. 1 (2012): 27–55.

anxiety as “the dizziness of freedom,” since in stepping back from everything the modern self also steps back from those things it needs to provide the terms in which to understand that activity of stepping back in the first place—and one to which I cannot possibly hope to entirely do justice in what follows. In any event, this reflection can be theoretical, but it can also be ethical, and, importantly for present purposes, it can be *evaluative*. The value question, then, arises because, as Kahane puts it, “answers to traditional metaphysical questions tell us what kind of world we inhabit. Answers to these further evaluative questions will tell us how good the world is, and whether it is better or worse than the alternatives.”⁶⁷ Now in some cases, something bad might amount to a *threat* of some sort, and that which is threatening is, or at least can be, an appropriate object of *fear*, and perhaps *angst* (in the relevant sense, which is different from the dizziness of freedom above) can be understood as a form of fear at some level. This is consistent with Blanchard’s account of *philosophical angst* of the sort mentioned above as “a complex cognitive judgment combined with a conative component,”⁶⁸ since the emotions in general are plausibly understood as cognitive, in a sufficiently broad sense of the term, due to their intentionality: that is, in the case of fear, my fear is fear *of* something or another, like a snake, my shadow, something illusory, or, in this case, that a certain philosophical thesis might ultimately turn out to be correct (or incorrect, for that matter). And since that thesis is a claim about how the world is, I can then have some sort of fear about how the world might turn out to be if such-and-such a view were true (or, for that matter, false).

⁶⁷ Guy Kahane, “The Value Question in Metaphysics,” 28. Kahane writes that “although vast effort has been spent trying to answer metaphysical questions...and although the practical implications of some of these questions are sometimes considered, these further evaluative questions are almost entirely neglected” (Ibid.). I do not think this is correct, or, if it is correct, it is not for the reasons Kahane seems to suggest, namely because the question simply hasn’t occurred to us. My own impression is that a certain sort of optimism isn’t explicitly addressed because it is very deeply *presupposed*, and to that extent these evaluative questions are not neglected, but they are always asked and answered beforehand and so take the form of a *prejudice*.

⁶⁸ Joshua Blanchard, “Moral Realism and Philosophical Angst,” *Oxford Studies in Metaethics* 15, ed. Russ Shafer-Landau (2020): 119.

As I mentioned, philosophical angst, according to Blanchard, is a cognitive judgment with a conative component. He writes that “the cognitive judgment is that something existentially important is also irreplaceable,” where “*existential importance* is positive importance to the meaning, intelligibility, or overall value of our lives and the world,” and “*irreplaceability* means that there is no available surrogate for the important role in question.”⁶⁹ As for the conative component, Blanchard writes that it is “an anxiety [licensed by the judgment] that what is important and irreplaceable might be unavailable.”⁷⁰ If you are angsty with respect to the existence of God, for instance, you judge that the existence of God would positively contribute to the value of the world or life – the world or life would be *better* for it – and that it is *only* God which can provide for the sort of value under consideration, while at the same time having a kind of fear that God may not exist, and so the world or life may be *worse* for it.⁷¹

Angsty metaethics is practiced by those who worry that a certain metaethical position may “fail to accommodate something irreplaceably important to the meaning and intelligibility of our lives,” and can be understood as a kind of philosophy which is sensitive to the value question.⁷² (Blanchard uses the term *metaethics*, but the same points can be made, *mutatis mutandis*, simply by talking about *angsty ethics*, which I would prefer since I reject the distinction between normative ethics and metaethics, as I discussed above, though in discussing Blanchard I’ll stick to what he says.) For something to count as *failure* there must be success conditions, and these success conditions are provided by some value or good which has to do with the relevant view under consideration in some respect. For Blanchard, who offers an

⁶⁹ Ibid.

⁷⁰ Ibid.

⁷¹ Blanchard’s account seems to me to state, at most, necessary conditions for philosophical angst, but they cannot be sufficient: it is surely wrong to say that the chemist who banks on theory of bonding X and worries that Y might be true is in a state of *philosophical* angst, unless we construe the term *philosophical* so broadly as to mean something like “thoughtful.” But Blanchard’s own examples are confined to stereotypical academic philosophy.

⁷² Ibid., 120.

account of angsty metaethics, one view about which you might be angsty is *ambitious metaethical realism*, which provides the relevant success conditions, and he offers an account of what he calls *pro-realism*, according to which “the truth of realism is important for some good, and there are no adequate alternatives: it is realism or bust.”⁷³ “There are objective moral facts,” Blanchard writes, “and the moral facts are necessary and radically response- or stance-independent, in that they are not fundamentally grounded in human minds or attitudes, whether individual, collective, actual, ideal, or otherwise hypothetical.”⁷⁴ Blanchard also accepts that “we can know and express moral reality propositionally, and we have, by-and-large, made progress in moral inquiry.”⁷⁵ Accepting realism in this sense, even on Blanchard’s own terms, does not require you be angsty with respect to it, and you may not even care about the value question with respect to realism whatsoever, finding the whole discussion merely interesting for instance.

2.5.9 What drives Blanchard’s own angsty pro-realism is what I can only consider to be an extraordinarily unreasonable demand he makes on all ethical thought, namely that we be able to satisfactorily—though the notion of the *satisfactory* here will be very odd, I think, if not morally insidious—speak to quite literally every possible ethical situation and answer literally any possible ethical question,⁷⁶ as though there would be something wrong with a world, such as this

⁷³ Ibid., 119.

⁷⁴ Ibid., 121.

⁷⁵ Ibid.

⁷⁶ Blanchard writes that “it seems bad that there would be no grounds for objecting morally to this pitiful state of affairs” (122), the state of affairs being the events in the Melian dialogue, discussed below, and which I take to be an example intended to generalize to *any* pitiful state of affairs; that “what morality does, vis-à-vis the Athenian-Melian dynamic, is secure for us a particular normative standing in virtue of which we enjoy an authoritative claim against injustices” (123-4), which I also take to generalize to any dynamic and, additionally, to other sorts of moral failings and errors; that “there is an additional kind of independent involved in the true moral verdict, realistically construed: morality itself, the system of moral truths itself – or as Eklund says, ‘reality’ itself – declares in favor of the weak against the strong, ruling the justification of their oppression a normative impossibility, with no reference to human moral attitudes in the grounds of this impossibility” (129), which I take to range over all possible agents and patients, all of whom have the capacity to press for justification or to have someone or something press it for them on their behalf; and that “from the pro-realist point of view, for the system of moral truths to be fully independent is for it to be independent of our attitudes in *any* sense – wholly free in its grounding from actual, individual responses” (129-130), which here focuses on all possible *responders*.

one, in which the raving lunatic on the corner of the sidewalk refuses to accept our reasons. The natural response at this point is to say that the lunatic's refusal to accept our arguments and our reasons more generally are precisely why he's a *lunatic*, rather than something else, but that response has what I take to be the unwelcome result of building particular ethical content into the idea of mental health, since a necessary condition of lunacy will have been that you at the very least hear the call of the relevant *ethical* reasons, seeing as that's what we're offering, and for that to then be possible, you must in turn build into the idea of mental health certain sorts of ethical *values*. But the real issue is that you do not need to be a lunatic not to buy a sound argument: maybe the argument just doesn't sit well with you, it remains unbought, and that's it. I can read an argument and simply be undecided on it for a very long time. I suspect, but cannot prove, that this remaining undecided is overlooked not so much because it doesn't happen, since it clearly does, but because there are strong reasons of various sorts to forget it does, such as, restricting our attention to academic philosophy, a culture that insists, to the point of hyperinflation, on the value of *talking* and *writing* since, as Sophie Grace Chappell herself accurately notes, "*every job applicant needs a distinctive pitch*, which they first stake out and then spend the rest of their careers defending – against all comers and at all costs,"⁷⁷ no matter how trivial or stupid the pitch is, as well as the wider ethical culture of overwrought hyper-rationalism which connects moral character to intelligence in very unusual ways that generate an inverse bell curve, locating virtue in people like the innocent but stupid Forrest Gump and the non-innocent but intelligent Einstein but not in the grocery store cashier, and which is perhaps connected more broadly with what Williams has to say about at least some of the ambitions of moral theories in general, namely, that in some of their guises they "can readily be seen as

⁷⁷ Sophie Grace Chappell, *Epiphanies: An Ethics of Experience* (New York: Oxford University Press, 2022), 69, her emphasis.

offensive weapons, aimed against prejudice, so that if there is an important style of prejudice that is immune to them, they are not well designed for their job and are likely to be replaced, if not by prejudice, then by an ethical theory with more firepower.”⁷⁸ On this conception of moral theory, an argument or reason which does not have *force* is a defective argument, and I suspect this is where we find the real core of Blanchard’s angst: that reasons, and with it, morality, might, just *might*, fail to *compel* someone. What is sought are not reasons which are simply authoritative and settle the question, but reasons which make it impossible to raise the question again, and that is what counts as satisfactory. Forrest Gump never could’ve asked the question, and Einstein could always answer the question, but with the grocery store cashier, it’s open, and that is a problem, and that problem is not solved by simply giving the cashier an answer from a *human being*. Rather, for the pro-realist à la Blanchard, there needs to be an answer given, a solution provided, a verdict delivered, not from a human being, but from *the world*: “it is rather that there is an independent verdict issued, as it were, by reality itself.”⁷⁹

But this whole way of understanding ethical philosophy is extraordinarily implausible, if not thoroughly immoral, and not simply because the police, along with the criminals, for that matter, carry guns rather than the *Republic*, nor for the obvious reason that, in much the same way that Sidgwick lost sight of the obvious when he gave the cosmos itself a perspective, Blanchard has lost sight of the obvious by allocating to the cosmos something like a capacity to judge, but because whatever else philosophy is, particularly in *this* context, i.e., the context of modern Western liberal capitalism, it’s typically something said or something written, but I can put on a pair of headphones, close the web browser window, unfollow that annoying Facebook friend, and so on, and anything which can be so easily disregarded is simply not a force, which,

⁷⁸ ELP 85.

⁷⁹ Blanchard, “Moral Realism and Philosophical Angst,” 132.

recall, is what is being sought. Indeed, this is precisely how Kant defends the freedom of speech in the *Rechtslehre*: the freedom of “merely communicating [your] thoughts to [others], telling or promising them something, whether what [you] say is true and sincere or untrue and insincere” is perfectly consistent with the innate right to freedom, and is even entailed by it, because “it is entirely up to them whether they want to believe [you] or not.”⁸⁰ This is a significant problem for what you might call the *activist conception* of moral theory precisely because the theories offered are, allegedly, supposed to decisively compel the other side, but if the other side is prejudiced against you, it is deeply implausible to assume they will somehow learn how to listen to you *now*, whereas they didn’t do so previously, simply because *now* you have a theory. (If anything, they’ll laugh at you.) The circumstances in which reasons and argument are even *offered*, let alone *taken seriously*, are already *very* special circumstances, and outside those circumstances, a theory is like anything else which is written or spoken, and while it is true that what’s written or said must be able to “intrude on my reflections” and “get under my skin,”⁸¹ we need to distinguish the capacity from its activity and note that a necessary condition for its activity is the presence of what are ultimately a set of very lucky social circumstances, but the sorts of conflicts the activist conception of moral theory has in mind are cases in which that sort of good faith isn’t there: after all, that’s what motivated the whole project from the get-go.

Blanchard’s own concrete examples of what generates the philosophical angst that undergirds his pro-realism are equally unconvincing: for instance, he seems to think things would be worse if we can’t authoritatively condemn the Athenians for the “unmitigated injustice” that is their treatment of the Melians,⁸² but leaving aside the fact that we were always

⁸⁰ MS 6:238.

⁸¹ SN 4.2.2.

⁸² Thuc. 5.85-116.

able to talk behind the back of whoever we wanted *anyway* without first needing to get a license from the Transcendental Department of Moral Veto, a relevant consideration since even raising a *question* can be enough to trouble the conscience depending on the context, as well as the more important facts that, first, morality is not in its first instance a matter of what you can say *about* someone or *at* someone, but what you can say *to* them, and second, that it is actually *far* from obvious there is an *injustice* there in the first place, I do not see by what *right* we sit in judgment of these people we barely understand, and further, what the *point* of this whole exercise could possibly be, in particular the point for *us*, since the condemnation in question isn't simply there, lying in wait to be found, but rather it's an activity: it's something *done*. Further, on Blanchard's own terms, we—though it is unclear who “we” are exactly, and it strikes me as significant that “our” identification with “them” *could not* be reciprocated, and not simply because they are dead and gone—have made moral progress, and so to some extent it is not unreasonable to think that this progress, assuming it exists, consists in a growth and shift in the scheme of ethical concepts, such that we have various ethical concepts the ancients do not have and could not have in principle, perhaps due to their having passed the age of acquisition, as it were; and at that point, I have a hard time seeing how you and me aren't conducting what amounts to thoroughly unjust proceedings in our trial of the Athenians, seeing as they do not, and *could not*, understand the terms in which we conduct those proceedings.⁸³ This result—that our trial of the Athenians is

⁸³ To provide a concrete example, suppose in our trial we discuss *anger*. Aristotle writes that anger “may be defined as a desire accompanied by pain, for a conspicuous revenge for a conspicuous slight at the hands of men who have no call to slight oneself or one's friends” (Aristot. Rh. 2.2). Aristotle is not out of step here in thinking that anger is a desire to harm: as Myles Burnyeat puts it in his “Anger and Revenge,” “...everyone agrees that the desire for vengeance...is anger. Indeed, it is what anger essentially is. In one set of words or another this is common ground to all philosophical schools” (363). This seems strange to us liberal moderns: after all, it seems, to me at least, entirely possible to be angry at someone and yet have no desire to inflict physical harm against them, to take revenge against them, and so on, and instead merely to want an apology, and with it, a recognition that they did wrong by me. Why is there such a difference between ancient and modern anger? According to Burnyeat,

...the feeling itself has changed. It is a familiar thought in philosophy that the emotions have a cognitive dimension. They are partly constituted as reactions to things conceived of as good or bad. If so, any large-

more a show trial than anything—is entirely consistent with ambitious metaethical realism and is in fact typically used as one of its selling points, generally under the more PR-friendly guise that is the idea that “we,” the self-appointed conscience of humanity at large, can morally condemn an entire social order or practice more generally on the grounds of, among other things, its injustice, and follows from the radical response-independence of reasons. One only hopes that such reasons do not turn out to be hostile to responders as such.

2.5.10 That said, leaving aside Blanchard’s own pro-realism, which is not reasonable, it is nevertheless possible to see how the angsty metaethicist might then go about metaethics, namely, by arguing that the truth of such-and-such a position implies or otherwise licenses certain sorts of evaluative attitudes, responses, or whatever else to the world, since those metaethical views say something about what the world is like, and we can and do think about the world and take attitudes towards it. We can instead take his view as a template and adapt it, *mutatis mutandis*, and understand the target of my constitutive argument to be an *angsty ethicist*, one who is *pro-morality*: not only does morality exist, but it is a good thing it exists, and without it, we would lose something deeply important, something that cannot be replaced. What that *something* is will depend on the particular sort of pro-morality under consideration, and in particular, what

scale shift in a society’s values is likely to leave its mark, in the end, on the emotions of individuals who grow up under the new system of values. The emotions we feel are in part at least the product of our social formation, and so will vary as and when that social formation does....The difference is not that revenge and retribution are never desired...the difference is simply the availability in our world of non-retributive anger (367).

The particular social changes involve, among other things, the concentration of power in a consolidated state with a monopoly on the use of force, unlike in ancient societies where the head of household, for instance, has the power to execute his slaves and children. (See 360ff.) Burnyeat’s thought, then, is that the concepts which figure into the content of the cognitive dimension have changed as part of the larger historical-social-political changes he mentions, and with it, there are different sorts of anger available to us liberal moderns that simply were not available to the ancients.

Suppose, then, we say that we are angry with the Athenians for the treatment of the Melians. Do we commit ourselves to executing them, or even simply harming them? Similar issues come up in other places in Thucydides, such as the third speech of Pericles in II.60-64, in which Pericles specifically talks about the Athenians’ *anger* at him, as well as the Mytilenean Debate in III.36-49, and in particular the speech of Diodotus, in which he discusses Athenian *anger* at Mytilene for their revolt. (Indeed, the case of Diodotus is a good one in this context.)

morality is taken to secure—indeed, what it is taken to *be*—and what the alternatives thereto are understood to be. (And of course, there need not be literally just one thing.) For instance, if you think, like Nietzsche, that many forms of human ethical life are possible, of which what he calls “morality in the narrower sense” is one, then (unlike Nietzsche) you might be pro-morality, i.e., pro-morality in the narrower sense, because morality is a form of ethical life in which all human beings have equal say, unlike ancient forms of ethical life, and that this is preferable because it is fair and reduces human exposure to luck. By contrast, if you do not follow Nietzsche, reject the sort of relativism which is implicit in the previous suggestion, and take it to be the case that there is one form of human ethical life which can be realized in a variety of human cultural contexts, then you might contrast morality with something like a moral state of nature, a condition which may but need not be incoherent as a human social condition, depending on the understanding of morality under consideration, and then motivate your pro-morality position by arguing, perhaps following Hobbes in a way, that morality makes our lives non-morally better by providing what is needed to avoid the condition in which *you* effectively cannot *do* anything because the best explanation for achieving your ends in such a condition isn’t *you*, who are maybe a necessary causal condition, but *luck*, and that a variety of non-moral goods cannot be achieved through luck because luck, like what Williams calls *supernatural necessity*, as he puts it in his rather terse way, “has, so to speak, no style.”⁸⁴ Or you might simply argue that in a condition in which there are only the demands of prudence and instrumental rationality, we all have incentives to make ourselves worse off due to cases like the prisoner’s dilemma, and so morality is valuable because it helps us resolve such practical coordination problems.

⁸⁴ Bernard Williams, *Shame and Necessity* (Berkeley, CA: University of California Press, 1993), 151.

Further, when Kahane's value question and the discussion above is then combined with the thought that the relevant world here is the *ethical* world, we can then get something like the following line of objection: given some of our philosophical angst, the constitutivist line of argument generates a negative, or at least a non-positive, evaluation of what the ethical world would be like if constitutivism were true, whether in the form of regret, disappointment, or whatever else, and since those evaluative attitudes are ethically important on the terms of the very same morality being justified, it also seems like constitutivism generates attitudes which can, on its own terms, be assessed and understood as reasons which speak *against* constitutivism. In brief: if constitutivism were true, it would make morality look bad in some respect since its truth would at least fail to license a positive evaluation of itself, and may even license a negative evaluation of itself through its licensing attitudes towards itself such as *regret* or *disappointment*, and so we need a better account of morality.

The thought, then, is that constitutivist arguments can, in some way or another, license an attitude such as *regret* or *disappointment* towards them and, in turn, towards morality as a whole. Perhaps it is better to think of the relevant attitudes I have in mind here as *disillusionment* or *disenchantment*. You might be disillusioned when you think, recalling what I wrote above, that something *isn't the real deal* and that you didn't get what you had hoped you paid for. In any event, this is more interesting because these attitudes and others like them may perhaps be thought of as failures of *confidence*. The Korsgaardian story gets going as a response to the *normative question*, and the normative question is asked from the point of view of a person who is at the very least not *confident* in the normativity of morality and moral obligation, and in turn, the constitutivist answer, if it is to be successful, must at some level be able to restore confidence. Similarly, my own argument, then, must at some level be able to restore confidence,

and—so goes the objection, which, recall, is a kind of revision of the shmagency objection—it does not, since it does not still these attitudes of disillusionment, which are failures of confidence.⁸⁵ So, the argument fails.

2.5.11 What I want to suggest, against this objection, is that attitudes of disillusionment or disenchantment are not *necessarily* failures of confidence, though of course they may be. I'll sketch out two lines of response.

We can begin with the first sort of response and return to a discussion above to do so. Recall the example of Blanchard: Blanchard puts forward demands on ethical thought which are not merely unreasonable, but are, in a certain sense, very deeply *optimistic*, since on his view, morality must be able to help us to settle, through discussion, any moral dispute with any moral agent. That is, I read him as holding that it is, in principle, *really* possible for us to all work it out with one another, with that thought itself being the content of something like an attitude of *hope*, given the optimism. This sort of conception of morality is what you might call a *cooperative* conception, according to which morality has a point, namely, to secure a social life in which we can get along for coordinating our activities and for our mutual advantage more generally. (Admittedly this can't be Blanchard's own conception exactly, since there is no possibility of our sharing a social life with the ancient Athenians, but we can leave that aside for present purposes.) There is no reason to accept such a conception, since if morality can secure cooperation, it can just as easily secure strife by providing a condition of the possibility of certain forms of vice not found in a kind of moral state of nature, as I discussed above in 2.5.3. For these reasons it would also be a mistake to offer a conception of morality according to which it is specially, uniquely able to introduce division into the community of we human animals, because here too, if

⁸⁵ I discuss confidence in greater detail below.

morality can divide, it can just as easily unite. The error in both views is the error of thinking of morality as having a point or, more formally put, some end. The reason is not that morality is pointless, but because it neither has a point nor lacks a point: it was never the sort of thing which could have a point in the relevant sense in the first place, since holding *that* end would then require a justification, and since *that* end is one which is doing *ethical* work in this context, we will have only kicked the can down the road. Instead we should not take morality to have an end, and in turn, we should reject the cooperative conception. Morality does not have a (substantive, rich, interesting) point because it is through morality that we gain the capacity to set ends and do things for a point.⁸⁶ Brandom writes the following about language, but analogies to language can be useful in this context:

...Habermas will insist, there is still all the difference in the world between what I just called ‘one-sided understanding of another’ and ‘mutual understanding of each other.’ And his claim is that the whole ‘*point* of linguistic communication’ is to achieve the latter. But I deny this – not because I think that linguistic practice has some *other* point, but because I think it is a mistake to think of it as having a point at all. Linguistic practice is not *for* something. It does not, as a whole, have an aim or a goal. It may and does, of course, fulfill many functions. But none of them is its *raison d’être*. Language is certainly not a tool for the expression of thoughts intelligible as such apart from their relation to such a means of expression...neither is it a means to secure some other end specifiable in advance of engaging in linguistic practice...even if in a causal, evolutionary sense, those functions explain why we came to have language, once we did have it, our transformation into discursive creatures swept all such considerations aside. For discursive practice is a mighty engine for envisaging and engendering of *new* ends...”⁸⁷

All of this strikes me as both relevant to the current discussion and as correct. It is related to a thought I offered above, namely, that it is a mistake to think of morality as a kind of win or a success relative to some *further* set of rules, since on morality’s terms, there are no such further

⁸⁶ Or if it does have a point, then its point will consist in securing the capacity to do things for a point.

⁸⁷ Robert Brandom, “Facts, Norms, and Normative Facts: Reply to Habermas,” *European Journal of Philosophy* 8, no. 3 (2000): 363.

rules. What morality provides are a set of rules or, better yet, a body of ethical law, and is not by itself any sort of success (nor, for that matter, failure).

That said, the cooperative conception of morality is just one optimistic conception. I cannot hope to address them all. Instead, I want to try use the discussion above as a kind of template. The concern above was that a constitutivist argument does not necessarily still attitudes of disillusionment or disenchantment towards morality, and since that might be thought to register a failure of confidence, and since the point of the whole argument was to restore confidence in morality, the argument fails. The response I offered above is one instance of a broader type of response which may be given more generally: in these responses, it would be argued that confidence is not restored because of some sort of presupposition which is not reasonable to maintain upon reflection, which, in the case above, was found in the conception of morality according to which it has a point and the accompanying optimism enabled by such a conception; but once disabused of that erroneous presupposition, there is nothing to hold back a restoration of confidence: it was previously held back due to a kind of hope, and with it, something like a *desire* or a *wish*, for something that was not reasonable to accept on reflection and so was necessarily going to be frustrated, which explains the disappointment, disillusionment, disquietude, and so on above. So this represents one sort of strategy for response to the charge of disquietude: some forms of disquietude presuppose false beliefs, unreasonable demands, and so on.

2.5.12 The second sort of strategy involves showing that disillusionment or disenchantment can be consistent with confidence, and in some cases, may even require it. If successful, this would show that there are cases of the relevant sort of attitude, which I am calling disillusionment, disenchantment, or perhaps another term is *disquietude*, which do not presuppose beliefs which

are both relevant and false, and which, in the above strategy, are pointed out *as* false, *as* irrelevant, and so on. In any event, this response, if successful, would undercut this other attempt to rehabilitate shmagency worries: the reply would be, briefly, that the feeling of unfulfilled expectations, resulting from something like a kind of optimism with respect to what we could achieve philosophically, *is* confidence. (Or rather, it *can be* confidence.) Perhaps we could say that, if this is correct, the disquietude is best understood as loss of innocence.

We will need to discuss, first, *confidence*, and second, *optimism* and *pessimism*.

We can begin by noting that confidence is the relevant sense is *practical* confidence and should not be confused with or understood in terms of *credence*, where *credence* is understood as something like a notion of belief according to which belief admits of degree. Confidence, like credence, is something which does admit of degree—one can be more or less confident—but unlike credence, confidence also has a bearing on motivation, and not just in the sense of providing a presupposition necessary for motivation, and with it, action. This leads us to a major question: what *is* confidence in the first place?

We can begin with what Bernard Williams has to say about confidence in *Ethics and the Limits of Philosophy* (ELP). The choice is not arbitrary: Korsgaard is influenced strongly by Williams, as I see it, and since my own argument of this chapter is strongly Korsgaardian, the influence of Williams will in turn be present here.⁸⁸ In ELP Williams notoriously argues that “in ethics, *reflection can destroy knowledge*.”⁸⁹ If reflection can destroy knowledge, and if we insist that our relationship to our ethical life is one of *knowledge*, then reflection can destroy our relationship to our own ethical life (and with it, to ourselves). We cannot replace the thought that the relationship we have with our ethical life is one of knowledge with the thought that it is

⁸⁸ For instance, Korsgaard appeals to confidence in her objection to moral realism. See SN 1.4ff.

⁸⁹ ELP, 148.

instead one of *certainty*, because we are not certain about our ethical life and probably don't want ourselves to be certain about it anyway, since one form of certainty is uncritical, unthinking acceptance. It also cannot be a relationship of *decision* or *choice*: whatever we do under these conditions of uncertainty is not going to look like a *decision* as much as it is going to look like uncritical, unthinking *assertion* or *gambling*. Williams's own thought is that we should instead think of the relationship in terms of *confidence*. But it is immediately unclear what he means, since he actually writes that "we need a third conception, for which the best word is perhaps *confidence*."⁹⁰ *Maybe, possibly, perhaps* the best term is confidence, which I take to suggest that he is at best *gesturing* at something, and that is what he indeed does: he gestures, and that's it, because confidence, I will later suggest, is not the sort of thing which ever could be *written down* or *articulated* because it effectively has to do with the spirit a person brings to bear when considering that which is to be articulated and reflected upon. Confidence "is basically a social phenomenon," he writes, in the sense that "the first questions that should come to mind about ethical confidence are questions of social explanation."⁹¹ Further, "confidence is both a social state and related to discussion, theorizing, and reflection; correspondingly, these activities are themselves forms of practice, which take up social space, just as in the individual they take up psychological space."⁹² Philosophy cannot tell us how to bring about confidence, but other forms of study can, as long as they are conscious of the fact that they are dealing with the confidence of *human beings* and not the confidence of a disembodied Cartesian soul, or perhaps even "confidence" in the sense of a word on the page.

⁹⁰ Ibid., 170.

⁹¹ Ibid.

⁹² Ibid., 170-171.

Despite what Williams has to say, can philosophy say much more about what confidence is, then? Interpreters diverge on this point; Cottingham writes that “it is fair to say that [the] appeal [to confidence], and the nature of the confidence involved, have largely mystified his critics and interpreters,”⁹³ and perhaps the divergence should be understood as amounting to different attempts to reduce the mystification. Some, such as Cottingham and Altham, offer more minimal conceptions of confidence, while others, such as Łukomska, offer more ambitious and richly developed understandings thereof. Cottingham, for example, does not provide an account of confidence by providing a set of individually necessary and jointly sufficient conditions or anything like that, but rather, offers a *genealogical* account of confidence, or at least the *aspiration* to confidence, writing that “...(if a final aetiological hypothesis be allowed) that aspiration to confidence seems very likely to be a wan, ghostly trace of the ancient theological virtue of *hope*.”⁹⁴ The difficulty with (ethical) confidence, according to Cottingham, comes out more clearly when we contrast it with hope: hope has an object, whereas it is not clear what the object of confidence is supposed to be on Williams’s view, especially when we are talking about confidence in the ethical world as he conceived of it, according to which we find a significant, perhaps even fatal, amount of contingency in our ethical representations, this contingency being significant or perhaps fatal because a necessary condition of the authority of at least some such representations might turn out to be their non-contingency. Altham might be read as offering a minimal conception of confidence as well, offering not a genealogical account as Cottingham does but an account which nevertheless appeals to the causal effects of reflection’s destruction of

⁹³ John Cottingham, “The Good Life and the ‘Radical Contingency of the Ethical’,” in *Reading Bernard Williams*, ed. Daniel Callcut (New York: Routledge, 2009): 36. Cottingham cites Jenkins, who writes that “...despite admirable attempts to make sense of Williams here..., it remains very, very hazy just what ethical confidence amounts to” (184). For more, see Mark Jenkins, *Bernard Williams* (Chesham, Bucks, UK: Acumen, 2006).

⁹⁴ Cottingham, 36.

knowledge, allowing confidence—whatever that ultimately is in itself—to fill the space left over. Perhaps this can be understood as a *functional* account of confidence: on this view, confidence is that which post-reflectively supports our values. Łukomska, by contrast, offers a more ambitious account of confidence: she “proposes an outline of a ‘theory of moral confidence’—a version of strongly anti-intellectualist ethical cognitivism which I believe could account for both the existence of what appears to be propositional moral knowledge and for its guiding role in our moral practice.”⁹⁵ Łukomska does note her account proceeds “without claiming that this was what Williams had in mind (especially given the fact that Williams does not develop this idea [of confidence] further)...”⁹⁶ a remark I consider appropriate due to Williams’s distaste for a certain sort of metaethical way of looking at things which her account may presuppose.

In any event, though, to return to the point of departure: these different ways of understanding confidence are, indeed, different, and may nevertheless be different ways of understanding *confidence*, rather than something else, especially because Williams’s remarks on it in ELP are brief. Other understandings are possible, and I do not want to claim everything we’ve seen exhausts the space.⁹⁷

2.5.13 My own view is that we can understand confidence to be something like an, as it were, *healthier* conception of the *reflective self-conscious form* of our ethical dispositions, taken

⁹⁵ Agata Łukomska, “Confidence: On the Possibility of Ethical Knowledge,” in *Morality and Agency: Themes from Bernard Williams*, ed. András Szigeti and Matthew Talbert (New York: Oxford University Press, 2022): 112.

⁹⁶ Ibid.

⁹⁷ Blackburn, for instance, offers sentimentalism à la Hume or Smith as an antidote to at least some of Williams’s worries: some feelings imply or in some way seem to ‘contain’ confidence, and so confidence, whatever it is, may in general need to do less work than Williams thinks. (For more, see Simon Blackburn, “Lonely in Littlemore: Confidence in *Ethics and the Limits of Philosophy*,” in *Ethics Beyond the Limits: New Essays on Bernard Williams’ Ethics and the Limits of Philosophy*, ed. Sophie Grace Chappell and Marcel van Ackeren (New York: Routledge, 2019): 27-36. In particular, see 31ff.) See also J. E. J. Altham, “Reflection and Confidence,” in *World, Mind, and Ethics: Essays on the Ethical Philosophy of Bernard Williams*, ed. J. E. J. Altham and Ross Harrison (Cambridge University Press, 1995), 156-169 and Nicholas Jardine, “Science, Ethics, and Objectivity,” in *World, Mind, and Ethics: Essays on the Ethical Philosophy of Bernard Williams*, 32-45.

together as a whole. That is, confidence is the *form* of our ethics, by which I do *not* mean something like “the form of our ethical philosophy.” This idea has the advantage of eliminating from consideration the thought that we can, first, talk about confidence *simpliciter*: that would be talk about self-consciousness of nothing whatsoever; and second, also makes sense of Williams’s use of the thought experiment of the *hypertraditional society* in ELP 8: such a society would have no consciousness of itself, and would simply have the material of ethics without anything like its form, and at that level is a kind of necessarily fictional society, a society that could never exist in reality. On Williams’s view, it is a misunderstanding to think that our ethical dispositions take the *form* of knowledge, and a better way of understanding them is by saying that they take the *form* of confidence.

Now, talk of *matter* and *form*, in these Kantian contexts, has a way of inviting into view a certain picture of harmony, the idea being the properly formed object is also harmonious, but Williams does not accept that our ethical dispositions are deeply harmonious. So we cannot explain the picture by appeal to a kind of analogy in which properly formed matter is such that everything has its place, fitting together all the way down. Instead, the picture should be something like this: our various ethical dispositions are akin to children’s building blocks, such as Legos, except we are not dealing with Lego pieces from a set we just bought at the Toys-R-Us; rather, some of the Legos are new, some are older, some are *quite* old, some were recovered from under the radiator and a bit melted, some have been stepped on and a little squished, some have been left outside, and some, if not many, are the cheap, knock-off Legos you never wanted to get as a kid (Mega-Blok is the name I remember), which *kind of, sort of, maybe* fit with the Legos, some better than some others. Despite this, it is possible to construct an object which, first, is indeed an *object*, i.e., is a genuine *unity*, rather than a mere heap, but is nevertheless what

you might think is not a *harmonious unity*, and indeed, there really *can't* be a *deeply harmonious unity* here, the pieces having been produced by different manufacturers, with different plans and processes, and moreover those pieces having been exposed to external pressures of various sorts in different ways. Nevertheless, it is still entirely possible to, first, construct the same sort of object out of the set of pieces in multiple ways and then ranked against one another according to which is most likely to hold up, even while we know the construction *could* collapse, due to the precarity embodied in the object – even under its own weight – and second, that some of those constructions could be perfectly interesting and worth holding onto, and that if someone were to tell us we had only the second-, third-, nth-best because we did not have official, pristine Legos, *real deal Legos*, that would not have to be a strike against us, for all sorts of obvious reasons, such as the reason that we like *our* Legos, warts and all, and *identify* with them, or for the reason that we do not want to do what would be required to get those real deal Legos, such as getting a more demanding job or selling some of our other belongings.

Further, if confidence is, in the relevant sense, a practical attitude of some sort, an attitude most at it were at *home* in contexts of action, then attempting to pluck it out of those contexts and approach it from the point of view of philosophy will also remove those features which allow confidence to make sense in the first place, which in turn distort it in various respects. I want to suggest, then, that whatever confidence in the relevant sense is, it's not the sort of thing which can be articulated by writing it down on a page or telling someone about it, which implies that any attempt to articulate the nature of ethical confidence will also turn out to be a kind of distortion thereof. There is a danger in such a conception of confidence, namely, the danger of turning it into a kind of a dormitive virtue or a *deus ex machina*, and so it is important not to allow confidence to do *too* much work. I do think, though, such a conception of

confidence has two virtues: first, the inability to state what it is without distortion in any one way means we can look at it fruitfully in all sorts of ways, and in particular, can do so from a *social* point of view in all sorts of ways, in line with the suggestion Williams offers; second, that we find examples of other such “attitudes,” if that’s what we can call confidence here, and, in particular, that we find such an attitude in Kant, to whom I briefly turn.

We can at first think of confidence as something like Kantian *faith* (*Glaube*) in the postulates of pure practical reason. Faith in Kant is a difficult attitude to grasp and I cannot hope to do justice to it here, though it will ultimately follow from what I have said above that Kantian faith cannot be understood as something like a *belief as-if*: that is, the Kantian agent who has faith in God does not simply conduct themselves as someone who believes as if God existed and as if her soul were immortal.⁹⁸ Part of the difficulty of understanding Kantian faith is that it is an attitude which is presupposed by doing anything, including understanding that attitude and talking about it, so it is elusive. Confidence is akin to faith in the postulates in that it is, first of all, a practical attitude which must be held by any acting subject because a necessary condition of acting for creatures who exist in time, such as us, is that we can reasonably expect the world to keep on going on even though it’s consistent with everything we know that it does not, and for reasons that do not simply boil down to the Humean story about induction, since it’s partly a question of what *the world* even is, and here, we’re interested in the *moral* world, as it were. For Kant, keeping the moral world going on requires realizing the highest good, and this requires a faith in those things which would enable the realization of the highest good, namely, the existence of God and the immortality of the soul. I suspect, but cannot show, that morality does

⁹⁸ A non-as-if reading of Kantian faith is found in Addison Ellis, “The Self-Conscious Form of Rational Faith,” in *Kant’s Project of Enlightenment: Proceedings of the 14th International Kant Congress/Kants Projekt Der Aufklärung: Kongressakten Des 14. Internationalen Kant-Kongresses*, ed. Christoph Horn et al. (De Gruyter, forthcoming).

require the thought that, at the very least, people get what they deserve, though I suspect it requires a stronger thought to the effect that the world itself is just. But in any event, it is not reasonable for us to maintain belief in God or the immortality of the soul, since the better angels of our scientific nature tell us there is no God and there is nothing immortal, and to that extent, it is something of a matter of luck whether people get what they deserve, though we may nevertheless maintain a kind of faith or hope that they will do so eventually. I myself do not find such a faith plausible. But nothing hangs on this. The point is rather that confidence can be thought of as akin to Kantian faith, but disabused of the remnants of supernaturalistic Christianity (which Kant illicitly and incorrectly builds into his account of faith and the objects thereof by mistaking a set of contingent, culturally-bound artifacts with that which available to any rational agent as such), by refusing to call it *faith* in the first place and giving it another name instead, in line with the commitment to a kind of naturalism and *Entzauberung der Welt* present in this overall line of argument.⁹⁹

Second, confidence is akin to faith in that it is consistent with *doubt*. Kantian faith is something I need to keep on the rail because theoretical reason loves to overstep itself and try to gain knowledge of the unconditioned, and keeping oneself on the rails, then, requires a certain amount of self-suspicion. Confidence, is similar, as I see it, particularly if we accept, as I think we should, Miranda Fricker's thought that

Williams introduces [confidence] as 'basically a social phenomenon', though it is also a normative notion, and not merely a social-psychological description. If confidence is a

⁹⁹ This also implies I disagree with some remarks of John Cottingham, op. cit., who writes that "so if confidence doesn't work, and we wish to put aside irony and despair, then what remains is hope. Since hope, unlike confidence, is a theological virtue, it takes us beyond those 'limits of philosophy' which are the implicit and explicit theme of so much of Williams' work. For those who can espouse it, hope enables us to reach forward, beyond the contingent circumstances of our situation, and aspire to align ourselves with objective, non-contingent values that represent the best that humanity can become" (37). I see no reason, first, to accept such an account of hope, but more importantly, I see no reason why the only responses available to us, when reflecting on the contingency of our values, must be confidence, irony, despair, or hope. (The human story may be a story of *errors*, i.e., accidents and contingencies, but it need not for that reason be a *drama*. After all, there is such a thing as a *comedy of errors*.)

good state to be in with respect to the ethical, it must inhabit a midway position between bad kinds of conservatism on the one hand, and neurotic or otherwise exaggerated kinds of self-questioning on the other.¹⁰⁰

We do not have to accept the faint echo of the Doctrine of the Mean in Fricker's suggestion to get the thought, namely, that confidence is a state individuated by normative standards, so that certain states which pretend to confidence can devolve therefrom in all sorts of ways: reactionary ethical nostalgia and conservatism, to pretentious and insufferable ethical messianism, to Eagle Scout-like ethical do-goodism with its values of being "trustworthy, loyal, helpful, friendly, courteous, kind, obedient, cheerful, thrifty, brave, clean, and reverent," to ethical disinterest, elderliness, and infirmity, seen in Cephalus perhaps, of the sort that whenever it confronts a potentially interesting, thought-provoking idea, it responds "what a deep question! God only knows"—and changes the channel.

2.5.14 Above I suggested that the relevant sort of disenchantment or disquietude is best understood in terms of something like a deflated optimism, and I am trying to argue that confidence is consistent with such deflated optimism, and so, having discussed confidence, we can move on to briefly discussing optimism and pessimism themselves. There is no general account of optimism or pessimism available because these attitudes deal in values, those values presuppose some context, and without the necessary evaluative context, these terms only carry connotations—"things'll be okay" in the former case, "things won't be okay" in the latter— but nothing more informative. But there is still nevertheless something interesting here. First, attitudes of pessimism or optimism have a content, and that content is something being evaluated under conditions of at least subjective uncertainty. Second, that content can vary, since "things" in the relevant sense might vary in all sorts of ways; indeed, "things" might be something like

¹⁰⁰ Miranda Fricker, "Confidence and Irony," in *Morality, Reflection, and Ideology*, ed. Edward Harcourt (New York: Oxford University Press, 2000): 97.

“the world”. Third, the future tense can be taken in at least two ways (perhaps neither of which necessarily excludes the other): we could be saying that things, right now, are uncertain because they are in process, but that in the future, once the process is completed, they will definitely be some way or another and we can then evaluate how they are and the process by which they were brought to bear, an example of which is found in the case of applying to a competitive job, say; but we could also be saying that, as things stand, we do not know how things are, but in the future, they will turn out to have been fine (or bad) *all along*, an example of which is found in the idea that perhaps our philosophical angst turns out to have been for naught because the world really is as we hoped it to be the whole time. The latter case features a subjective uncertainty which is epistemic: we are uncertain because we do not know. That is different from the former case, in which we are uncertain because there is no object of knowledge in the first place, since things are in process.

But once we know what the relevant values are, who deals with them, etc., we can then make sense of optimistic and pessimistic views. An optimist can be understood to be someone who is confident that things will work out, noting the ambiguity I just mentioned above, while a pessimist is, at the very least, someone who fails to have any such belief that things will work out, though typically is confident of something stronger, namely, that things will not work out. But in other contexts, a pessimist might simply be someone who fails to be optimistic. The optimist and pessimist make theoretical judgments *about* the practical, and that is the sense in which the former has the confidence that things will *work out*, while the latter does not.

There are a variety of ways in which you might think things will not work out: you might think that for things to work out, good luck is necessary, but since luck isn’t the sort of thing which can be *counted upon*, one may then be pessimistic, since a necessary condition of things’

working out is the cooperation of something which cannot be said to be *cooperative*, nor, for that matter, *uncooperative*, since, unlike a normal human person, luck has no character. This sort of pessimism is typically registered as a kind of frustration or disappointment because identifying the conditions of things' working out requires a sense of the relevant criteria and typically these are provided by an end that someone has. For instance, if I want to get the girl but I know that getting the girl requires a lot of good luck, I might be thought to be disappointed or frustrated with things, and to that extent pessimistic, because my getting the girl is easily interfered with, as it needs to be if I need *good* luck, but if it's exposed to good luck it's also exposed to bad luck as well, since something like *necessarily good luck* or *essentially good luck*, a form of luck which is not just good but essentially so, is simply not a form of luck, but a (perhaps literal) *force for good*, and there are no such forces for good.

2.5.14 What I want to suggest, then, is that, first, disillusionment or disenchantment, even when it registers a kind of pessimism, may nevertheless be consistent with confidence, because pessimism in general can be consistent with confidence. You may be confident while failing to have the belief that things will work out because you reject a presupposition that would have to be filled in by context, namely, that the idea of *things' working out* makes sense. In certain cases, this notion does make sense because the relevant *thing* is, say, a group, and *working out* involves an exercise of group agency; in that case, talk of *things' working out* amounts to talking about the group deliberating and acting appropriately, and this is something which makes sense. But, to take a different example, this makes no sense if the relevant thing is the world, and, importantly, this can be the *ethical world*. The notion of *working out* gets no traction here. First, if things can work out they can also fail to do so, which presupposes success and failure criteria which then must arise from either something about us, like a desire, or something about the object. But it

cannot be something like our desire because what we are trying to justify is something like a desire of ours, and it also cannot be something about the object, in this case the world, because the notion of *working out* would require mechanisms of action which are not plausible to accept, such as an agent which is controlling and guiding the world, or a conception of the world according to which the world itself is an agent. So, we should simply abandon the belief that *things will work out*, when those *things* are *the world*, due to presupposition failure. One can still be confident things will keep going on as they have gone on, though, and to that extent can retain confidence.

So far, I have only argued for the weaker claim, namely, that one can retain confidence while failing to have a belief that things will work out. I want to also argue for the stronger claim, namely, that confidence can be retained alongside the belief that *things will not work out*. The reason is that you can be confident *in* that very belief, without retaining anything like a *wish* to the contrary. Like bad TV, maybe it's all just more *interesting* when it doesn't work out. Here too, whether this is reasonable depends on what we are talking about, and this depends on context. Suppose I say that things will not work out, and in the context, it is clear I am talking about my ability to live with myself. If I want to be able to live with myself, while at the same time believing that I will be unable to live with myself, this seems not so much like confidence as much as it does a failure of confidence. By contrast, I can believe that I will not be able to live with myself, and to that extent, things will not work out since my own functioning will continually be impaired by myself and what I do, without anything like a wish to the contrary, because I can value my life that way: I find it more interesting that way, say. You can also maintain a pessimism with respect to the world, without abandoning confidence, by believing it is unlikely things will work out, since a condition of the world working out is *good luck*, but luck

is precisely what cannot be relied upon in any serious sense, but you can at the same time maintain this belief without any wish to the contrary, for instance because the objects of wish, which in this case would be whatever would be needed to replace the element of luck, is unreasonable to accept on reflection. At this level, perhaps you would have joined Nietzsche, as I see it, who writes correctly that “we have become hard-boiled, cold, and tough in the realization that the way of the world is not at all divine – even by human standards it is not rational, merciful, or just. We know it: the world we live in is ungodly, immoral, ‘inhuman’...”¹⁰¹ The world itself cannot have what is needed for it to be either just or unjust, and so our relation to the world is more like a relationship of power against power. Similar remarks hold at some level for the relationship between the person and the ethical world: people can meaningfully reason with one another, but not with the ethical world itself, since that world cannot exhibit the capacities, etc. needed to be either just or unjust. In turn, the distribution of obligations, etc. may be quite unequal due to bad luck. But it is possible to accept all of this without retaining a wish to the contrary, because a wish to the contrary may turn out to be hideous on reflection, requiring either the indecency of an omniscient God watching you as you undress and shower like a cosmic peeping Tom,¹⁰² or requiring a radically illiberal politics.

It is not necessarily true, then, that something like disenchantment or disillusionment signals a failure of confidence, and so it is not necessarily true that disenchantment about morality signals a flaw in the sort of constitutivist argument I have offered.

2.5.15 I suspect that what motivates the worry about disenchantment or disillusionment is an ambitious and, in my view, quite unreasonable demand on argument in moral theory and perhaps on moral theory itself, namely that an adequate argument ought to suffice for something like full

¹⁰¹ GS 346.

¹⁰² GS 4.

or thoroughgoing reidentification with the content of the argument. This might be thought to be particularly important in this case because Korsgaard notes, correctly, that morality can make very large demands on us, demands so large that our failure to fulfill them amounts to a kind of suicide, if not literal then, to make the whole thing sound more interesting than it really is, “spiritual.” This is at least part of what explains what I called the “Hydra-like character” of a certain brand of non-natural realism in 2.4.8, though one need not be a non-natural realist to have the motivation: I suspect it is also at work in communitarian nostalgia for a necessarily fictional world of *rootedness*, and, relatedly, perhaps even in Marxist crypto-religious faith in a world beyond this one in which we are all whole again since everyone has a matter-energy replicator. There may be various motivations for making this unreasonable demand on the adequacy of an argument in ethical theory, because those making the demand are presumably doing so for reasons, but those reasons may be different: those with the activist conception of ethical theory, for instance, which I mentioned in 2.4.9, may see the inability of an argument to compel deep reidentification as a defect thereof because there is then space for thoughts which do not line up with conclusion to enter the picture, while, to take a different sort of conception that might be at work in the communitarian picture, the *nostalgic* conception may want a *Wiederverzauberung* of the at-present-disenchanted world, and perhaps in some cases, it might be nothing more than a sense that the world, and with it the *ethical* world, should, when all is said and done, turn out to have been *really good* all along (rather than bad, say or, differently, not a proper object of evaluation in the first place).¹⁰³ Philosophical angst, then, arises because, even though the

¹⁰³ I take this sort of thought to be found in Nagel, “Personal Rights and Public Space,” *Philosophy and Public Affairs* 24 no. 2 (Spring 1995): 91ff. The idea is further developed in Enoch, “Wouldn’t It Be Nice If *p*, Therefore, *p* (for a moral *p*),” *Utilitas* 21 no. 2 (June 2009): 222-224. Enoch sees the question whether such arguments are valid as reducible to the issue of whether we are willing to accept inferences of the form $\Diamond\Diamond\phi \rightarrow \Diamond\phi$, where we then let *G* be an operator meaning “It is good that...” and let *p* be some proposition, such that $GGp \rightarrow Gp$, where $Gp \equiv q$, where *q* is some moral claim. Inferences of this may *sometimes* be admissible on Enoch’s view, but we have to take it on a case-by-case basis. Ryan Preston-Roedder offers a different, albeit related, account of Nagel’s thought in Ryan

argument is there, and we know it's there, it's still possible for us to then be disillusioned, but now not simply with respect to morality, but rather with respect to the conjunction of morality *and* the argument which was intended to head off that very disillusionment in the first place.

But this demand for full re-identification is not a reasonable demand to make on the power of argument in ethical theory, and against this demand, to make explicit something which has only been implicit up to this point, I have tried to suggest throughout this chapter that arguments in ethics should, for ethical reasons, allow the space for some amount of reflective distance from themselves. Further, there are limits to what argument in general, even outside of ethics, can achieve anyway. The kind of full reidentification present here can only be achieved through non-rational means and not through something like decision or judgment itself, since if I'm to stick to my decision to forget F, say, I have to have the concept F. So no argument can *make* me forget, and while I could get an argument concluding that I should forget, *that* could not make me forget. The thought generalizes and presents the same sorts of conclusions at the level of the culture: reidentification may in some sense be possible through non-rational means, though at the level of the culture this presents special problems because morality exists only as a cultural item, and in trying to reidentify with morality to the point that we are effectively in the Garden of Eden again (without being able to think "we're doing this *again*") with respect to it

Preston-Roedder, "A Better World," *Philosophical Studies* 168, no. 3 (2014): 629–44. According to Preston-Roedder, "bringing about a better world is among our substantive moral aims," and so if "...it would be better in the relevant respect if the principles that make up moral theory M were true," then "...the truth of M would, by itself, serve the moral aim of bringing about a better world, an aim that all plausible moral theories assign to us" (633). By contrast, "...any rival to M that makes plausible claims about the content of our moral aims is also self-defeating in the following sense: it both assigns certain substantive aims to us and includes principles the mere truth of which would render those very aims worse achieved than the truth of other, rival principles" (634). Taken together, all this business is nothing more than wishful thinking, and of a particularly insidious sort because it is all restricted either to those propositions, concepts, etc. we already have and can appreciate, or instead, most clearly in the case of Preston-Roedder, relies on vacuities like this idea of "bringing about a better world," which he does not argue is a substantive moral aim and instead simply asserts. It is not clear to me what he means when he says that this is a "substantive aim": if he means that all plausible theories assert we all have a reason for action which has as its content the proposition "we are to bring about a better world," then this is simply false.

makes it entirely unclear, first, if cultural identity persists (I suspect it doesn't—after all, the whole point was to begin anew), but second, if the relevant cultural item will even be there on the other side. There is no way to fully reidentify with morality because any such reidentification will presuppose the argument I have presented, and with it, what I would hope is at least *some* amount of reflective self-consciousness, and with it, the capacity for reflective *distance*, and this sort of reflective consciousness, at both the individual and cultural level, can only be removed by, not exactly *forgetting* it, but something *deeper* than forgetting it, something perverse, and the means we'd have to take to do so are awful: coordinated projects of hitting ourselves on the head with rocks; enormous campaigns run by the company Lacuna from *Eternal Sunshine of the Spotless Mind*; chemical breakups with ourselves, one another, and those values of ours Korsgaard says "it is best if we love;"^{104,105} government death panels which are willing to kill, not only the Grandma and Grandpa who were the objects of care and concern by Obama-era Republicans, but themselves; using fancy, shmancy nuclear weapons on ourselves; thoroughgoing destruction of human cultural heritage; book burnings galore; in general, not so much acting as much as *resigning* from the capacity to act in order that some cause be able to have a certain hoped-for effect on us. At best there is the possibility of a kind of *second innocence* with respect to morality, but that sort of innocence is *very* different from the innocence of the Garden of Eden, since it is conscious of itself, enabling it to say of itself that it is *second*. (None of this, by the way, addresses the obvious point that certain sorts of innocence with respect to morality may not be worth inhabiting anyway because some forms of innocence at least presuppose, and may even be constituted by, a set of false beliefs.)

¹⁰⁴ See Brian D. Earp, Olga W. Wudarczyk, Anders Sandberg, Julian Savulescu, "If I Could Just Stop Loving You: Anti-Love Biotechnology and the Ethics of a Chemical Breakup," *The American Journal of Bioethics* 13, no. 11 (2013): 3-17.

¹⁰⁵ SN 3.3.2.

This demand of full reidentification strikes me as totally misunderstanding the relationship between *us*, or at least *me*, on the one hand, and *values* on the other. At the end of the day, my values are *my* values, and I do not need to turn myself into some sort of weird doormat for them. At the same time, the fact that they are *my* values, or, in the case of morality as a whole, *our* values, does not have to imply that the fit between us and them is, as it were, harmonious. There are simple reasons why I might not fit into morality very well, for instance, by being someone who is just not very good at following rules. Similar remarks hold at the level of the culture. It is entirely consistent with the truth of Kantian constitutivism that, in certain respects, we may not be entirely well-adjusted for the moral world in which we find ourselves. It cannot be *so* disordered that normative considerations do not ever present themselves as *considerations* but rather as *forces*, but that is not to say that it all makes sense without remainder. But on reflection, isn't that precisely what we'd expect to find? Morality is a cultural product, among other things, and for it to make sense without remainder presupposes a set of mechanisms which were deeply attuned to it, and it is not reasonable to think there are any such mechanisms. But this need not be distressing. Jack Samuel, who I quoted above, writes that "...morality cannot be alien to us, and...a theory of normativity must come along with an explanation of how it can be *ours*."¹⁰⁶ A lot of work is being done by that sneaky little modal term "cannot" along with the first-person plural, as well as that use of italics, but granting all that, my suggestion is that a theory of normativity can be completely adequate as a theory of ours without it being a theory of *ours*.

2.5.16 There are still a number of questions here that now present themselves and which I have passed over, which I think center around the core question of what an adequate theory does in

¹⁰⁶ Jack Samuel, "Alienation and the Metaphysics of Normativity," 170.

fact look like, and in particular, a theory which is able to restore confidence, if not by allowing us to wholeheartedly reidentify with something from which we are not a little distant, then in terms which are more reasonable. I am inclined to think there is no general answer: if confidence involves the use of capacities which are psychological, or at least psychological in part, then perhaps the lighthearted optimist is more easily satisfied and made confident again than someone more cynical, and perhaps some people are such that nothing you can say to them will gain traction at all. Such people are familiar from life, and if there are limits to the extent to which we can indulge in bracketing – which there are, despite Aristotle’s all-too-liberal use of the term *qua* and his fragmentation of the person into the man *qua* doctor, *qua* patient, *qua* person worrying about his health insurance, *qua* employee with a boss who has little patience for time off from work, *qua* husband of a wife who hates him and hopes he drops dead so she gets some insurance money and can finally have a public relationship with the man she’s been seeing on the side, *qua* on and on – then we should expect this to affect the philosophy.

2.5.17 I have belabored this point, that is, the shmagency objection, because it is perhaps one of the more potentially damaging criticisms of the sort of argument that I have provided, but I hope to have shown that it can be defused by appeals to inescapability, that it is question-begging, and that worries about alienation are not sufficient to warrant a rejection of the constitutivist account.

2.6: Closing Remarks: Minimalism and History

2.6.1 Finally, I want to emphasize the fact that this argument is, in certain respects, not at all ambitious and is instead pretty minimal, in the sense that there is a good bit of morality that the argument is silent on. I have not, for instance, put the argument in terms of concepts associated uniquely with transcendental idealism, such as those of phenomena and noumena, nor have I talked about issues having to do with the Kantian understanding of freedom, such as whether

Kant must accept libertarian freedom or can instead be read as a compatibilist. These issues I understand to be issues in the theoretical metaphysics of the practical, but we have been interested in a kind of metaphysics wholly enmeshed within the practical. But even from a point of view wholly enmeshed in morality, I have still attempted to construct an argument which is silent on certain controversial issues, such as that of the status of animals, a tricky issue for the Kantian. Kant, somewhat notoriously, distinguishes persons from mere things in such a way as to put animals into the category of the mere things, since animals, or what other authors call “non-human animals,” lack the capacities that Kant uses to establish civic membership in the moral community, leaving them outside the body politic.¹⁰⁷ It seems implausible, though, that I can treat a cat the way I can treat a television set, say, and while it might be stupid and wasteful to shoot up an old television because I’m about to get a new one anyway and I want to test out my new SKS, it seems far worse than merely stupid and wasteful to shoot up an old cat because I’m about to get a new one anyway and I want to test out my new SKS. It is not plausible that animals have the status of mere things, at least at face value, and while Kant himself attempted to get around the problem of animals by arguing that we have certain sorts of indirect duties to animals, the basic idea being that I owe something to the animal because of what, at the end of the day, I owe to myself, these solutions seem ad hoc. Korsgaard criticizes them in *Fellow Creatures* and offers her own account of our obligations to the other animals, one which may not succeed.¹⁰⁸ In any case, however, this is irrelevant to my argument above, since the argument is silent on how we relate to those beings, in the widest sense of the term, which do not make decisions.

¹⁰⁷ See, for instance, GMS 4:428 and MS 6:223.

¹⁰⁸ See note 16 above.

2.6.2 My argument is also silent on the way we have come to have the concepts in which it has been offered. To put it another way, the argument is silent on the way in which we've come to have the concepts of, say, "morality" and "moral obligation," rather than something else, assuming "something else" is even possible. This means, then, that my argument, much like Korsgaard's in the *Sources*, is consistent with a kind of Nietzschean or Freudian account of the origin of morality, for instance, in the idea the "the special character of human consciousness arose when the impulse to dominate – the will to power, or the aggressive instincts – were deprived of any outlet and turned against the self."¹⁰⁹ Now Korsgaard does not discuss Nietzsche and Freud because she agrees with them, nor, for that matter, because she disagrees. Instead, Korsgaard discusses them to show that their accounts are consistent with hers, writing that:

Nietzsche and Freud have provided us with a powerful account of how the distinctive features of human conscience and consciousness could have evolved in a natural world of animals. You can see them as trying to explain how obligation ever emerged, a source of normativity in a different, genealogical sense. The account I have given of what obligation is and where it comes from is harmonious with theirs. And I take this to be a point in its favour.¹¹⁰

The harmony between Korsgaard's argument in the *Sources* and these genealogical accounts is a good thing because, first, it shows that nothing in her own argument seems to presuppose any particular origin story with regard to the concepts that her arguments uses and so any genealogical account is, in a sense then, irrelevant. Further, even if Nietzsche or Freud are correct, that does not change the fact that we can only act on the condition that we recognize our identity as moral beings, which is just to say that we must take that identity to be justified in any case anyway.

¹⁰⁹ SN 4.3.14, 158.

¹¹⁰ Ibid., 160.

2.6.3 This is connected to the second point, that the consistency is a good thing because the Nietzschean and Freudian accounts are subversive accounts of morality. Such accounts do not dispute that there is such a thing as Enlightenment morality: rather, they are meant to show that it is, in some way or another, *bad* that there is such a thing as Enlightenment morality. We can consider the case of Nietzsche to understand the idea. Nietzsche, as I understand him, accepts a constitutivist picture similar to that of Korsgaard, but where Korsgaard identifies the norms of morality as the norms of human self-maintenance, Nietzsche instead finds the norms of morality to be norms of human decline and disintegration, the reason being that morality is best understood in terms of the features of human life that morality identifies as its enemies, such as cruelty, the sulky, grudge-like anger that is *ressentiment*, as well as a violent history, and finally a significant amount of contingency and luck. The problem with morality, then, isn't so much that it is the *cause* of bad *effects*, as it were.¹¹¹ Instead, I take it the idea is that its *authority* is based on a kind of *illusion*, keeping in mind the idea that illusory experience, that is the

¹¹¹ Thus I think that Leiter is wrong in his understanding of Nietzsche, since Leiter reads Nietzsche as arguing that moral culture is the cause of bad effects, and since this is an empirical question, we must then make use of empirical methods: "In its Nietzschean incarnation, philosophy quickly crosses the line into psychology, cultural anthropology, and social critique—territory now occupied (regrettably) almost exclusively by literary theorists" (Leiter, "Nietzsche and the Morality Critics," 278). He continues, writing that

This conception of philosophical practice, of course, has always been more common on the European continent. Indeed, it is this conception of philosophical practice that binds Nietzsche most closely to the philosophical tradition on the Continent, since he shares none of the metaphysical ambitions of the German Idealists before him and none of the phenomenological scholasticism of many of those who followed. (Ibid.)

This, I think, reveals Leiter's central error in reading Nietzsche, namely, that he does not read Nietzsche as having "metaphysical ambitions". My suggestion is that this is false. Nietzsche, I want to suggest, is better read as offering a kind of metaphysics of the human being in the morality system, or a kind of moral metaphysics, one which starts from the point of view of a person. Leiter reads Nietzsche as a broadly reductive thinker and as holding that the central issue with morality is a causal one, and to be understood by means of the empirical sciences which deal with such causal issues. The problem with this reading is that Nietzsche himself suggests that the sciences do not stand in opposition to Christianity and morality, but rather, are just its latest incarnations, which I take to be at least one of the points he suggests in the later sections of GM III. Now it is true that Nietzsche ultimately does end up condemning himself on his own terms in some way or another, but not because he condemns morality and yet takes up the sciences (which are just more morality); rather, it is because of this business about the will to truth, the idea being that a commitment to certain values associated with truth, such as honesty and a kind of suspicion (among others), subvert themselves and require an account disabused of old illusions to stabilize such values, if that is even possible. (See, among others, GM III.24 and GS 344 for more.)

experience of illusion, cannot be made veridical with the addition of new beliefs: I cannot see the pencil in a glass of water as straight even though I *know* “the pencil in the glass of water is straight.” If Korsgaard is right, though, then we in a way confer (legitimate) authority upon morality when we act, and in fact we *must* do so if we are to act at all, and so in conferring (or recognizing) the authority of morality, we recognize a certain sort of necessity with regard to what we are to do. So Korsgaard can respond to Nietzsche and Freud, then, by claiming not only that the history of morality is not only relevant from the point of view of explanation, in line with the first point early, but that it is irrelevant from the point of view of evaluation or justification, which I take to be the second point.

2.6.4 This point should not be underestimated because a fair bit of work has been done in contemporary ethics on *debunking arguments*. Debunking arguments generally function by arguing for presupposition failure. One sort of debunking argument is the so-called *evolutionary debunking argument*, but this sort of argument attacks realism, whereas the argument I have offered is not a realist argument.¹¹² And while debunking arguments need not be evolutionary, they all typically aim to undermine a specifically *realist* construal of some domain, such as that of values, practical reasons, mathematical truths, or whatever else. One such non-evolutionary form of debunking takes the form of *etiological* or *genealogical arguments*. An implausible genealogical argument against mathematical realism or Platonism might, for instance, try to hold that the most plausible theory of knowledge is a causal theory, and that since we cannot enter into causal relations with numbers construed realistically, it follows that numbers do not exist as the realist would have it. But here too, I have not offered a realist argument, so that should make no difference.

¹¹² For instance, see Sharon Street, “A Darwinian Dilemma for Realist Theories of Value,” *Philosophical Studies* 127 no. 1 (January 2006), 109-166.

A special case worth briefly addressing is an argument offered by Andrew Smith. He offers an argument that he alleges is not only a genealogical debunking argument, but one against Kantian constitutivism, rather than realism, which is why I single it out for attention. His argument is rather opaque and I find it not at all clear that what he's offering is even *genealogical* in the first place. Leaving that aside, the argument, as far as I can tell, cannot appeal to anything about realism and must instead appeal to the activity of recognition, endorsement, identification and so on, which I have used here, and Smith – again, only from what I can tell – tries to argue that the activity of recognition somehow fails on the very terms of the morality being recognized. The details are opaque, but I think they are irrelevant for my purposes because I think the response can be brief, namely, that these are the sorts of problems you can have only on the condition of buying into the morality game in the first place, which is the only thing I am trying to show.

Chapter 3: A Condemnatory Genealogy of Morality

3.1: Introduction

3.1.1 It is worth asking whether human moral identity is a form of identity which is justified; or, better yet, since membership in the moral community carries with it a demand not only to act from the representation of a particular norm but an entire system of justificatory standards beyond which there are no further standards, we might instead ask whether or not moral identity is something which we can *endorse*, or which we can *recognize*, or with which we can *identify*: in brief, whether it is a form of identity which *makes sense* of us, for us. Something we can endorse, or recognize, or identify with can be said to be *vindicated*, and something with which we cannot so identify can be said to be *condemned*.

I want to argue that moral identity does not make sense anymore and is a form of condemned identity, and I will do so by sketching an argument which I take to embody the spirit of a *genealogy of morality*. This will take some preparatory work. I will have to discuss what a genealogy is, as well as why it is worth bothering with one. In particular, I want to offer an account of genealogy according to which we should understand genealogy to be something like the notion of a *genus* or a *type* of argument, rather than a *species* of argument. I offer an account of the genus *genealogical argument* according to which we can distinguish these arguments along (at least) three dimensions: the way the genealogy bears upon the *justification* of the genealogical object, the type of *reason* generated by the genealogy, and finally, the type of *explanation* offered by the genealogy. Each of these dimensions offers concepts in terms of which we can characterize a particular genealogy: in discussing a genealogy's justificatory dimension, we can characterize said genealogy as *vindicatory* or *critical*; in discussing the type of reason generated, we can talk about *epistemic* or *practical* genealogy; and finally, in

discussing the explanatory dimension, we can talk about *pragmatic* or *empirical non-ideal* genealogy. I will return to all these concepts later.

Before discussing these dimensions of genealogy, I'll consider a global objection to genealogical arguments, according to which every instance of the genus "genealogy" commits a fallacious inference, namely the *genetic fallacy*. If it were the case that all instances of genealogy were invalid for this sort of reason, then there would be no reason to continue thinking about these arguments in the first place, but I argue that, as a global objection, the claim that genealogy commits the genetic fallacy does not succeed.

There will be many issues that I cannot address here. There is a question, for instance, whether genealogy is best understood as a form of argument, which will be a background assumption I adopt here, or if it instead should be understood as a methodology.¹¹³ In what I think is a similar vein, Raymond Geuss, who has written on genealogy and who I will return to later, seems to suggest that genealogy is, or at least was, a "competitor" to philosophy, which I take to imply that genealogy is not actually philosophy in the first place.¹¹⁴ Both lines of thought see genealogy not as philosophy, but rather, as an alternative to it. It seems to me that exploring this line of thought requires a (meta)philosophical account of what philosophy itself is, so that we can then say what is a part of it. That is a huge task, and I am not going to take it up here.

¹¹³ For some discussion of this point, along with a helpful survey of genealogy, see Verena Erlenbusch-Anderson and Amy Nigh, "Genealogy," in *Oxford Research Encyclopedia of Literature*, ed. Deidre Shauna Lynch (Oxford University Press, n.d.), <https://doi.org/10.1093/acrefore/9780190201098.013.978>.

¹¹⁴ In "Goals, Origins, Disciplines," he writes:

Oddly enough, this genealogical interest in origins does not seem to have developed in the ancient world into an intellectual, hegemonic, formal discipline. Genealogical inquiries do not seem to have been one of the major direct ancestors of anything we moderns would recognize as full-blown "history" (or, for that matter, what the Greeks called "history," namely systematic empirical enquiry of any kind), and history itself seems never in the ancient world to have attained the exalted status it occupied in some part of Europe in the modern period. Rather, at a relatively early age the genealogical impulse was crushed to death and pulverized between two huge millstones, which to some extent represented theoretical competitors to genealogy. These two competitors were rhetoric and philosophy (6).

Leaving that aside, the literature on genealogy is vast, and my use of it will surely be very selective, governed by the thought that, unlike an encyclopedia entry, it is better for a writing like this one to be interesting than radically comprehensive.

Once that is done, I will try to develop an argument which I take to be inspired by elements of thought in the tradition of critical genealogy which will show, in brief, that morality generates reasons against itself, and in turn that those with moral identity have moral reasons not to identify with that very identity in the first place. That is, there are reasons to *reject* one's own moral identity. This is a paradoxical conclusion, and that is entirely the point.

3.2: Genealogy and the Genetic Fallacy as a Global Objection

3.2.1 First, why is it worthwhile to even think about genealogy at all here, rather than something else? Answering this requires answering a prior question, namely, what a genealogy even *is* in the first place. I will discuss the latter question and return to the former.

There is not a great deal of consensus on what genealogy even is, and so at some level my own account, and in turn my own arguments later, will, or at least *may*, have something of a stipulative character to them. A jumping-off point that will be useful for beginning my own discussion is that it *does* seem to be generally agreed upon that a genealogical argument or account of a thing, such as a concept, a practice, an institution, or so on has a bearing on that thing's justificatory status, such as whether we are justified in using the concept at all, or whether we are justified in taking the concept to be authoritative, or whether the practice is to be understood as justified, and so on. Some thinkers, such as MacIntyre and, I think, Brandom and Korman, seem to understand a genealogy to be an account which subverts or otherwise delegitimizes a thing by undermining its justification in some way or another. (I will come to the question "how does it do so?" later.) MacIntyre, for instance, contrasts genealogy with a method

in ethics he calls *Encyclopedia*, the details of which are irrelevant for our purposes here, by writing that “what *Zur Genealogie der Moral* provided was not only an argument in favor of, but a paradigm for, the construction of a type of subversive narrative designed to undermine the central assumptions of the Encyclopedia, both in content and in genre.”¹¹⁵ Later, he writes that “a genealogical view requires of us sufficient insight to understand that allegiance to just such a view [of the Encyclopaedist] is always a sign of badness, of inadequately managed rancor and resentment,”¹¹⁶ and again later, contrasts “the encyclopaedist’s affirmations and distinctions” with “the genealogist’s subversions.”¹¹⁷

Brandom, like MacIntyre, also seems to take genealogy to be a form of argument which undermines justification: he writes that

...a crucial trajectory of nineteenth century thought expresses the revenge of Enlightenment *naturalism* on Enlightenment *rationalism*. The form that revenge took is *genealogy*. Genealogies directly challenge the very idea of the normative force of the better reason, which lies at the core of the Enlightenment rationalist successor to the traditional subordinary model of authority.¹¹⁸

Genealogy works to undermine justification because those practicing genealogy “...found causes underlying the reasons,” and even more radically, that “...what the genealogists dug down to is not just causes *distorting* our reasons, but causes *masquerading as* reasons.”¹¹⁹

Finally, Dan Korman, after introducing an example in which he tells you not to believe what you have read because it is fiction, writes that “I am attempting to ‘debunk’ your beliefs, by showing there to be no appropriate explanatory connection between your beliefs and the putative subject matter.”¹²⁰ He continues, writing that “arguments with this same underlying structure

¹¹⁵ Alasdair MacIntyre, *Three Rival Versions of Moral Inquiry: Encyclopaedia, Genealogy, and Tradition* (Notre Dame, IN: University of Notre Dame Press, 1990), 25.

¹¹⁶ Ibid., 42.

¹¹⁷ Ibid., 43.

¹¹⁸ Robert Brandom, “Reason, Genealogy, and the Hermeneutics of Magnanimity,” m.s., 3.

¹¹⁹ Ibid.

¹²⁰ Daniel Z. Korman, “Debunking Arguments,” *Philosophy Compass* 14, no. 12 (Dec. 2019): 1.

arise in a wide variety of domains...what unified these arguments – variously called debunking arguments, *etiological arguments*, *genealogical arguments*, access problems, isolation objections, and reliability challenges – is the transition from a premise about what does or doesn't explain why we have certain mental states to a negative assessment of their epistemic status.”¹²¹

My impression is that Korman is interested in something a bit narrower than what we find in either MacIntyre or Brandom, namely, arguments which undermine various forms of Platonism or realism. Some such accounts go on by arguing that objects so understood, such as mind-independent, Platonic numbers or response-independent normative reasons for action, face a difficulty because it is not clear we have a realistic epistemology which allow us to understand such objects as possible objects of knowledge in the first place. If you think that numbers are Platonic objects of some sorts and that these objects are abstract and do not have either a spatial or temporal location, it is immediately unclear whether an epistemology which includes a causal component as a condition of knowledge can make sense of our knowledge of such numbers, since it would seem that abstracta with no spatio-temporal location cannot enter in causal relationships with us. Other sorts of arguments which are intended to undermine various forms of realism or Platonism with respect to X include *evolutionary debunking arguments*, such as the argument offered by Sharon Street in her paper “A Darwinian Dilemma for Realist Theories of Value,” the very title of which makes it clear what the target of the argument is.

3.2.2 Now, given what I want to argue here, it is clear that I cannot follow MacIntyre, Brandom, and Korman in understanding a genealogy to be a form of argument or account which not only ultimately concerns a thing's justificatory status – that is not objectionable – but does so

¹²¹ Ibid., my emphasis.

in a way that undermines that status, because doing so would mean I would simply beg the question at a very basic level: I would be trying to undermine moral identity by offering an account which, *by definition*, undermines the object of the account. Fortunately, however, I do not see any special reason why we *must* follow MacIntyre, Brandom, and Korman here and hold that a genealogy is *by definition* subversive. It is true that Nietzsche, who introduced the term *genealogy*, uses such an account to undermine morality, but that by itself does not show anything about these forms of argument themselves. If I am not to immediately beg the question, it must be the case that a genealogy is not by itself necessarily subversive or such that it otherwise detracts from a thing's justification. Perhaps a defender might respond by suggesting the term *genealogy* to be a success term: if the argument or account does indeed undermine justification in a special way distinctive of these sorts of arguments, yet to be discussed here, then it is a *genealogy* in the first place, rather than something else, but if it does not, then it is indeed *that* something else, a “genealogy in name only” as it were. That may not by itself be objectionable, but it just kicks the can down the road and transforms the issue into a verbal dispute since we need to understand what success or failure even consists in from the get-go. Additionally, I could not follow Korman because I am not interested in offering a genealogy of a realistically-construed morality, or a genealogy of realist normative reasons for action, or something like that – rather, I want to defend and offer a genealogy *of morality*. Finally, on all of these views, it is not at all clear how it is possible for the *genetic fallacy* to exist, which I will discuss in greater detail below, beginning at 3.2.5.

3.2.3 Not everyone agrees, however, that genealogy is subversive by definition. According to Bernard Williams and Edward Craig, for instance and about whom I will say more below, a genealogy can subvert justification or, as it was put above, debunk, but it can also confer or

otherwise contribute to justification. For Geuss, by contrast, genealogy primarily operates by as a form of *critique*, a point he makes by leaning heavily on the Greek etymology: the adjective κριτικός, according to the LSJ, means “able to discern, critical,” which is in turn derived in part from the verb κρινεῖν, meaning “separate, put asunder, distinguish,” from which Geuss ultimately suggests that “to offer a genealogy is to provide a historical dissolution of self-evident identities.”¹²² A concrete example he offers involves Christianity: Christian apologetics, criticism, and so on “...tacitly presuppose that something like that Christianity already exists as a unified, internally coherent, given phenomenon that presents itself as an object for possible discussion.”¹²³ “Genealogy is designed,” he continues, “to render precisely this presupposition problematic,” a less than helpful characterization that might be using “problematic” in the sense of “difficult to understand,” or in the sense of “possible target of rebuke,” or maybe in the sense of Foucauldian jargon, though if this is indeed Foucauldian jargon then it is not immediately clear how Geuss understands the work of genealogy: above I quoted him saying that genealogy provides “a historical dissolution of self-evident identities” and that this also makes certain assumptions “problematic,” but according to Colin Koopman in his account of problematization in Foucault,

one way of summarizing Foucault’s notion of problematization in its two senses [as a verb and a noun] is to acts of problematization as giving coherence to the extant problematization that is the object on which the act operates. The activity of problematization renders an object of problematization more coherent – but also more challenging.¹²⁴

Perhaps it is possible to square all this, but we can leave all this aside since it is not immediately

¹²² Raymond Geuss, “Genealogy as Critique,” in *Outside Ethics* (Princeton, NJ: Princeton University Press, 2005), 157.

¹²³ Ibid.

¹²⁴ Colin Koopman, “Problematization,” in *The Cambridge Foucault Lexicon*, ed. Leonard Lawlor and John Nale (New York: Cambridge University Press, 2014): 400.

relevant to the current point, namely, that not everyone takes genealogy necessarily to be subversive, a point explicitly accepted by Geuss when he writes, for instance, that “a genealogy is obviously not a critique in the everyday sense mentioned above, that is to say, it does not automatically imply the rejection of what is subjected to genealogical analysis.”¹²⁵ Mark Bevir agrees, writing that “a genealogy is a historical narrative that explains an aspect of human life by showing how it came into being. The narratives may be more or less grounded in facts and more or less speculative, but they are always historical.”¹²⁶ On Bevir’s view, genealogies can operate both as forms of critique and criticism, thereby undermining justification, as well as by conferring or otherwise contributing to justification.¹²⁷ And Amia Srinivasan, who I will discuss in greater detail later in this chapter, writes that genealogies typically elicit what she calls *genealogical anxiety*: “the anxiety that the causal origins of our representations, once revealed, will somehow undermine, destabilize, or cast doubt on the legitimacy or standing of those representations.”¹²⁸ But she notes later that not all genealogies affect us this way: “some of them appear to have the opposite effect: affirming or legitimizing what they explain. Bernard Williams calls such genealogies ‘vindictory.’ Famous examples include Locke and Hobbes’s accounts of the emergence of the state, which are meant to not only explain but moreover justify their authors’ favoured political arrangements.”¹²⁹

In brief, then, while it is true that some, such as MacIntyre, Brandom, and Korman, who I discussed above, seem to understand genealogy to be necessarily or essentially undermining, in the sense of undermining justification of the genealogical target, not everyone agrees, and in

¹²⁵ Raymond Geuss, “Genealogy as Critique,” 158.

¹²⁶ Mark Bevir, “What is Genealogy?,” *Journal of the Philosophy of History* 2, no. 3 (2008): 263.

¹²⁷ See *Ibid.*, 270ff.

¹²⁸ Amia Srinivasan, “Genealogy, Epistemology, and Worldmaking,” *Proceedings of the Aristotelian Society* 119, no. 2 (2019): 128.

¹²⁹ *Ibid.*, 129.

turn, it is available to me to say that the use of genealogy here is not necessarily question-begging, though to be sure, this does not yet provide an adequate answer to the question why a genealogy is useful here – all it shows is that such arguments are not immediately to be ruled out.

3.2.4 So far, I have shown that while some thinkers take genealogy necessarily to undermine justification, not all do. It is still quite unclear what genealogy even is. I will try to fill this in some more here, and the idea in what follows is that by understanding both *failures* and *successes* of genealogical reasoning, we can in turn understand what genealogy is, and I will do so by starting with a form of error most commonly thought to be a problem for genealogies, namely, the *genetic fallacy*, though I will also discuss a recent objection against genealogy in general offered by Amia Srinivasan.

3.2.5 The genetic fallacy is plausibly understood to be a fallacy of relevance,¹³⁰ and so to allege irrelevance, we need some sense of what relevance consists in. Reichenbach draws a distinction between the *context of discovery* and the *context of justification*, and with that distinction, we could then say that a genetic fallacy is a fallacy which conflates or confuses the context of justification – which is what's relevant – with the context of discovery. Norwood Russell Hanson offers several statements of the fallacy, each of which bears on the issue of relevance as well. He first writes that “it has been urged that a Genetic Fallacy occurs *when an explanation of S confuses the temporal order of actual events leading up to S with the logical order in which S must be generated.*”¹³¹ Later, he writes “another presentation is this one: The *Genetic Fallacy obtains if an account of how S came into existence is confounded with an account of the*

¹³⁰ On this point I agree with Kevin Klement, “When is Genetic Reasoning Not Fallacious?,” *Argumentation* 16 (2002), 385.

¹³¹ Norwood Russell Hanson, “The Genetic Fallacy Revisited,” *American Philosophical Quarterly* 4, no. 2 (April 1967), 101, his capitalization and italics.

*structural constitution of S, here and now;*¹³² that “some urge that a Genetic Fallacy obtains when a proposed explanation of *S* treats it as a ‘disguised form’ of some earlier state in a sequence (historical or logical) generating *S* – ignoring thereby the unique peculiarities *S* may have in itself;”¹³³ that “the Genetic Fallacy is sometimes said to arise when a trivial necessary condition of some highly developed state of affairs is presented as if it were a sufficient condition for that state;”¹³⁴ that “yet another, somewhat blatant, form of the Genetic Fallacy consists in evaluating an argument by references (defamatory or congratulatory) to the ‘psychological type’ of the arguer;”¹³⁵ and finally, that “even more pernicious variations of the Fallacy consist in enlisting as support for a claim *S* all those intra-cranial episodes leading up to the enunciation of *S*.”¹³⁶ There are a variety of standards of relevance in Hanson’s statements of the fallacy, assuming they all do in fact provide a statement of the same principle (referring to the arguer’s “psychological type” might be better understood as a form of *ad hominem*, depending on the context): some take historical facts to be irrelevant, others take psychological facts to be irrelevant, and another takes the fallacy to be a confusion between a necessary and sufficient condition for a state.

I myself am inclined to agree with Hanson when, in remarking on those statements of the fallacy quoted above, he writes that “...there seems barely more than a family resemblance between them all.”¹³⁷ Some of the difficulty arises from the fact that Hanson is discussing any arbitrary proposition *S*. My suggestion is that, in thinking simply about some single proposition *S*, almost entirely devoid of context and absolutely devoid of content, there is simply nothing to

¹³² Ibid., 102.

¹³³ Ibid.

¹³⁴ Ibid.

¹³⁵ Ibid., 103.

¹³⁶ Ibid.

¹³⁷ Ibid., 104.

learn here, in principle: imagine being behind a particularly ignorant form of the veil of ignorance and hearing a voice say, from everywhere and nowhere, “S!” – what could you possibly do with that? (In fact, even being to identify what is said *as* a *single* proposition, a linguistic unity rather than a mere heap of sounds, is itself an achievement that would need to be accounted for.) We should approach things differently, because at this level, though it is certainly true that we can make a few points which are not altogether minor – in response to the self-posed question “Now, is it really true that the structure of S and the genesis of S are completely unconnected? Must they be unconnected?,” Hanson answers, in my view correctly, “no,” since “there *could* be an identity between the steps needed to delineate the structure of some S, and the steps actually traversed in generating S in the first place,”¹³⁸ a thought of some importance because there are certain views in ethics which attempt to account for the normativity of practical reasons in terms of a *construction procedure*, a point I will return to later – those answers have to take the form of slippery conditionals with slippery modal vocabulary, like the slippery “*could*” used by Hanson above, because there is just not enough here in terms of content and context to say anything more definite.

3.2.6 To see how the allegation that an account commits the genetic fallacy might gain traction, we can consider not a placeholder for a single proposition S, but instead, the modern scientific method, M, and assume that M is being practiced, first, by people like us in the relevant respects, second, that not everyone practices it, and third, that it is possible for two people to practice M while having a different conception of what M is, from which it follows that it is possible to misunderstand the nature of M while nevertheless practicing it. In other words, then, we can talk about contemporary, institutionalized science. Suppose now that I attempt to criticize

¹³⁸ Ibid.

institutionalized empirical science's pretensions to pursue and attain truth about the world (or explanation, or whatever), i.e., that I attempt to undermine M as a reliable, or truth-conducive, or appropriate, or whatever means to attain the truth (or knowledge, or belief, or justification, or whatever), by pointing out that institutionalized empirical science was established not because of anything having to do with truth, but because of a desire to make money, or to more effectively kill people on the battlefield than the other side can, or whatever. In other words, the idea behind this attempted objection is that we can undermine the alleged credentials of institutionalized empirical science to deliver knowledge of how the world is by pointing out that the creation of institutionalized empirical science and method M had nothing to do with those explanatory credentials offered by M, and in fact may have origins which conflict with any attempts of such science to represent itself as legitimately having any such credentials.

Now it should first be pointed out that this particular example runs into some immediate problems: if institutionalized empirical science did in fact go because of a desire to effectively kill opposing state actors, say, or to turn a profit or whatever, then it makes sense why you'd want a reasonably good picture of the world and how it works, namely, in order to more effectively kill people or turn a profit. So in this case not only do the explanatory credentials fail to conflict with the motives of the institution's origin, but those original motives, it seems reasonable to think, would naturally lead to the pursuit of such explanatory credentials. Sustained projects of evil or of the merely bad cannot really go far if you're poorly informed about the world you're trying to manipulate because the sort of deep manipulation you're aiming for requires you to have a good picture of things so you can then lead people astray (this then being part of what explains why there are certain actions or courses of action which are just too stupid to be evil). And this can begin to give us insight into why we find a genetic fallacy being

committed here, since we can see the way in which the appeal to the origins of the institution of empirical science are either entirely irrelevant, and if relevant, are in fact exactly what you'd expect to find on reflection. Here, we find something like the latter, and in turn, we see why there is a genetic fallacy here. As I see it, there would still be a genetic fallacy if we understood the account I have tried to offer against M not in terms of M's *origin* exactly, but rather, in terms of its functional role within the culture and society in which M is practiced: perhaps M is best understood as functioning to make money for corporations and to help nation-states kill people, but this function does not preclude any claim to M's offering good theoretical justification, or explanation, or truth, or knowledge, or belief, or whatever, for the same sorts of reasons I mentioned earlier. There are two problems in these cases: first, there is not only a conflation of the context of origin or social individuation by appeal to functional role, on the one hand, with a context of justification on the other, but a confusion resulting from the conflation of *ethical* justification and *theoretical* justification. As I mentioned above, though, there are all sorts of reasons why someone doing something hideous might need to have a very good grip on the truth: for instance, if I am going to stalk someone in a new city, I probably shouldn't uninstall Google Maps.

3.2.7 This can all be put a little differently in the following sort of way. Assume that we are dealing with an understanding of M and the relationship it stands in with the results it generates according to which everything involved can be represented in the form of an *argument*: for instance, on one classic view, namely that of Karl Popper, science operates by taking testing hypotheses which take the form of conditionals: if such-and-such, then so-and-so, and after running an experiment in which we elicit such-and-such, a result of not-so-and-so falsifies the conditional, i.e., the hypothesis, and otherwise the hypothesis is at least not dead. In this case,

questions of the motivations of M, its function, its history, and so on simply do not bear on the logic of the entire process by which M operates in the typical cases, nor does it bear on, say, the evidential value (or whatever) of observation, experimentations, and so on. Now undoubtedly, Popper's model is not a good understanding of the scientific method, for instance because there needs to be a place in science for the role of probabilities and inductive reasoning more broadly, but I assume that can be accommodated and the same point can be made *mutatis mutandis*. The point I am making, in other words, is a point made by Hanson: "the logical relevance of history of science to philosophy of science is nil. Staring at novel facts has never made old arguments invalid, new arguments valid (or vice versa)."¹³⁹

Of course, it is important to note that this case so far has several special features that cannot be taken to generalize to genealogy as such. For instance, I have talked about a particular form of inquiry, and even then, with just one interpretation and attempt to best make sense of that form of inquiry, but there is no reason to say that all forms of genealogy have as their object a form of inquiry. Hanson, who I quoted above, is not talking about forms of inquiry for instance: he is talking about some proposition S. Further, and more importantly, there is no reason to assume from the start that all genealogies have as their object something which can be represented in the form of an argument, let alone a deductively valid argument. So, while the history of science might be irrelevant to the justification of certain instances of scientific reasoning and the whole of M as such, we are not justified in assuming that history, simply as such, really is always irrelevant to the justification of certain instances of reasoning, simply as such. The point, in other words, is that Reichenbach's *context of origin* or *discovery*, on the one

¹³⁹ Norwood Russell Hanson, "The Irrelevance of History of Science to Philosophy of Science," *Journal of Philosophy* 59, no. 21 (October 1962), 585.

hand, and the *context of justification* on the other, assuming we can draw the distinction between the two at all, are sometimes not related in the way they are related in modern natural science.

This means, then, that there may be cases where justification depends on origin or discovery, in some sense or another. If you are asked, for instance, to prove that your marriage is legally valid, you have to show that the relationship between you and your spouse was constituted through a particular process established through law, and it is certainly not an instance of the genetic fallacy to say “my marriage is valid because we got a marriage certificate after paying fees for a marriage license and then getting married,” and moreover, it is not a genetic fallacy now, nor is it on your 50th anniversary. The *origin* of this legal relation does not somehow stand in tension with its justification in this sort of case: rather, its origin, i.e., its establishment via participation in a particular in a set of processes, here provided by positive law, just *is* its justification. But crucially, to see why the appeal to history does not amount to a genetic fallacy here, you need to know what the relevant justificatory standard even *is* in the first place. What my examples so far seem to suggest is that you do not determine this by thinking about the form of genealogical reasoning. Rather, you need to know what the genealogical object is. Once you know that the object, in the case just mentioned for instance, is a particular marriage, you can then see why the origin of the marriage is not at all irrelevant to the marriage’s validity.

3.2.8 In brief, then, while it is true that the genetic fallacy is a possible form of error found in genealogical arguments, such as in the case I offered of modern science and method M, it is a mistake to assume from the start that *every* genealogy commits such a fallacy, because certain objects of genealogy are subject to justificatory norms which make crucial reference to the emergence or origin of the object, and that attempting to remove these references from the

picture simply changes the object of genealogical investigation. At some level this point should be obvious, especially given the name of the whole method: if I am to be right when I say that I am the biological great-grandson – a relation which is one of *ethical* significance, crucially – of Francesco and Antoinette (née DeLuca) Giarletta, then I need the family tree.

3.2.9 A different, somewhat related global objection to genealogical arguments comes from Amia Srinivasan. In considering genealogical skepticism, she argues that the genealogist must rely on a tacit normative claim, namely, that an object with such-and-such a genealogy *should* be regarded as debunked, or unjustified, or whatever. But, as she puts it, “epistemologists have written about the difficulty of finding a plausible epistemological principle that can vindicate genealogical scepticism while avoiding global scepticism.”¹⁴⁰ In particular, the problem is that “any plausible argument for genealogical scepticism rests on contested first-order epistemological premises – premises that some philosophers find intuitively attractive while others do not.”¹⁴¹ The problem arises from the fact that some genealogical skeptics hope “to take an Archimedean view of philosophy, one that inhabits the philosophically neutral perspectives of sociology, history, science, or commonsense.”¹⁴² Against this, she writes that “unfortunately no such Archimedean stance is available. To argue against philosophy on the grounds of genealogical contingency requires taking a stance within epistemology and thus within philosophy itself.”¹⁴³ She then shows that the genealogical skeptic might appeal to various principles or conditions on knowledge and that one might nevertheless reasonably disagree with such principles or conditions: for instance, it is possible to reject the claim that “sensitivity is a

¹⁴⁰ Amia Srinivasan, “The Archimedean Urge,” *Philosophical Perspectives* 29 (2015), 327.

¹⁴¹ *Ibid.*, 327-328.

¹⁴² *Ibid.*, 328.

¹⁴³ *Ibid.*

condition on knowledge,”¹⁴⁴ or that “when a judgment can be explained without mention of its (putative) truth, then that judgment is unjustified,”¹⁴⁵ or that “if there is no plausible explanation of how judgments in a domain track the truth in that domain, then those judgments are unjustified,”¹⁴⁶ or that “if it’s no more than 50% probable that one of one’s judgement [sic] is true conditional on the relevant genealogical evidence, then that judgment is unjustified,”¹⁴⁷ or that “whenever we have strong, undefeated evidence that one of our judgments is unsafe_n, we ought to abandon it”¹⁴⁸ where *unsafe_n* refers to a *safety condition* on knowledge, inspired by Sosa and provided by Srinivasan in the form “SAFETY_n: S’s belief in the necessary proposition *p* is safe_n iff S could not have easily believed not-*p* using a sufficiently similar method she uses to believe *p*.”^{149,150} Additionally, one might disagree, not with any of the above-mentioned principles, but instead with some factual premise(s) on which the genealogical skeptic is relying, such as the claim that “your philosophical judgments are insensitive to the truth.”¹⁵¹ (There is no need to run through the rest of the list.)

In brief, then, the idea is this: the genealogical skeptic cannot simply argue for global skepticism since that will undermine their own genealogy, but anything they might appeal to as a condition on knowledge, judgment, etc. will also be controversial and may simply beg the question. Srinivasan herself sees three main responses to these arguments: first, the development of an epistemology which is resistant to luck, and in particular, to what she calls *genealogical luck*, a particular sort of *epistemic luck*; second, an anti-realist construal of the content of

¹⁴⁴ Ibid., 329.

¹⁴⁵ Ibid., 331.

¹⁴⁶ Ibid., 333.

¹⁴⁷ Ibid., 335.

¹⁴⁸ Ibid., 339.

¹⁴⁹ Ibid.

¹⁵⁰ For more on safety, see Ernest Sosa, “How to Defeat Opposition to Moore,” *Philosophical Perspective* 13 (1999): 141-153.

¹⁵¹ Srinivasan, “The Archimedean Urge,” 329.

philosophical judgment subject to genealogical scrutiny; third and finally, “abandoning the idea that our philosophical commitments amount to beliefs at all.”¹⁵²

3.2.10 Srinivasan is interested only in a particular sort of genealogy, namely, genealogies which undermine or subvert justification, rather than those genealogies which contribute to justification or confidence or something like that: genealogies, that is, of the sort I discussed above in 3.2.3.

Insofar as one is offering such a genealogy, what Williams calls a *vindictory genealogy*, one need not worry about her arguments, then. Her arguments will not undermine genealogy as such; instead, if they succeed, they will only undermine critical genealogies.

Now, should the genealogical skeptic worry? It is not clear to me. At some level Srinivasan is right that skepticism presupposes an understanding of what knowledge is, and in turn, genealogical skepticism presupposes some understanding of various things epistemic, but it is certainly false that the skeptic must take a stance in epistemology *on the terms currently on offer*, since such a skeptic might want to debunk or, if not debunk, then at least instill a certain sort of *disquietude* with regard to those very terms in the first place. (I will return to something like disquietude later in 3.2.7ff., when I discuss genealogical anxiety in greater detail.) And there are, indeed, all sorts of reasons to reject this entire way of thinking about things. In general, I find this approach to (theoretical) epistemology almost completely hopeless, for the same sorts of reasons I find most ethical theorizing to be almost completely hopeless: it is forced to assume a number and variety of philosophically significant and, to my mind, not-at-all-obvious understandings of how things are in order even to get started. To take one example, consider the assumption that epistemology can be made *articulate*. As far as I can tell, there is perhaps a single context in which it is important to have a conception of knowledge which can be

¹⁵² Ibid., 347.

articulated and written down in a way that could be understood by the public (at least in principle, in some sense, though it's hard to know what this idea of being "understandable in principle" even amounts to), namely in the context of law, which does have the notion of *mens rea*, to pick one example, and needs to be able to distinguish acting knowingly from acting with negligence or recklessness. (Another context is that of business.) But there is no reason to think that the demands made by the law represent anything like an ideal to which philosophy ought to aspire. (For that matter, there is no reason to think that I should aspire to it either.) Another such assumption is the assumption of what you might call *epistemic monism* and can be contrasted with *epistemic pluralism*, where the monist holds that knowledge is constituted as *knowledge* through a single set of necessary and sufficient conditions, while the pluralist would hold that there is no one set of such conditions, and instead, that knowledge can be constituted as knowledge through different facts, activities, or whatever.

I am not claiming that Srinivasan assumes there is an analysis of knowledge in terms of belief and that there is no such analysis, à la Williamson, or that she is assuming internalism when it is not reasonable to assume we always have access to that which provides epistemic justification as the internalist would have it,^{153,154} or that she is saying we are like crude reliabilist thermometers when we are so clearly not, nor anything else to that effect. The point, rather, is that the genealogical skeptic may very well wish to bring into question not only the content of some of our judgments, but the assumptions and presupposes of those judgments and what you might unhelpfully call the *spirit* with which such a set of judgments are held, such as the spirit of *philosophical optimism*, which assumes, among other things, that we can really make

¹⁵³ In fact, she argues for externalism elsewhere. See her paper "Radical Externalism," *Philosophical Review* 129 no. 3 (2020), 395-431.

¹⁵⁴ At least if you accept a sort of access internalism, but mentalism is an internalist view without necessarily presuming access.

sense of everything (and thus of ourselves) without remainder and to my mind provides one of the essential presuppositions of all the other various assumptions of epistemology I mentioned above. For this sort of reason, it is a substantive claim Srinivasan makes when she says that the genealogical skeptic attempts to occupy an Archimedean point of view with respect to us here on the Earth, since that does assume that the Earth is, at it were, even worth standing on, let alone that there's enough there for us to stand on it in the first place, a point on which some sorts of genealogical skeptics may wish to press.

Leaving that aside, it is, additionally, not clear to me that the genealogical skeptic needs to take a stance within epistemology in the sense that she needs to take a stance on any of these principles or any other (assuming they exist, which I find far from obvious, as I discussed above). It is not clear to me why the genealogical skeptic is not entitled simply to say that there is knowledge, belief, judgment, justification, explanation, evidence, etc., that when it comes to identification of these activities, states, etc., we recognize it when we see it, and that in certain cases, against initial appearances, we in fact seem to find ourselves recognizing something else.

In any event, though, Srinivasan is right that genealogy does presuppose some conception of the epistemic, in some sense or another, and further, is using at least some of those conceptions to recommend a certain conclusion. Whether the moves being made within the particular skeptical arguments are illicit or not will depend crucially on the content of the argument, and so in much the same way that a genetic fallacy cannot be diagnosed simply by looking at the form of the argument, I am inclined to think the same is true here.

3.2.11 But doesn't this seem rather weak on my part? Srinivasan is right that, first, epistemic principles are disputed, and second, that there needs to be a way of individuating activities and processes which participate in the formation of beliefs, judgments, knowledge, etc. in a way that

does not beg the question by presupposing that the object of genealogical inquiry is not actually an object of knowledge in the first place. I also do not want to follow certain criticisms made of Srinivasan in the literature. For instance, Brian Leiter argues that “if reliabilism is correct, then the *etiology of belief directly matters* to justification,”¹⁵⁵ and later, that “...one need not be an externalist about justification for the simple skeptical etiological argument to go through. An internalist could agree that if an agent’s belief is produced by an unreliable mechanism *and* that agent is aware of that, then the agent’s belief is not justified.”¹⁵⁶ I do not want to follow Leiter here, not exactly because his objection is a conditional, but rather because Srinivasan’s point has to do with issue of figuring out what to make of the antecedent of that conditional and others like it: her point is that determining whether reliabilism (or some other conception of justification, or knowledge, or whatever) makes best sense of our epistemic practices is ultimately going to presuppose some understanding of what is *known* and what is *not known*, and that in these skeptical arguments, what is known and what is not are exactly what is at stake in the whole dispute.

Now, is Srinivasan right that genealogical skepticism is, in general, question-begging? For Srinivasan to get her conclusion, we need to consider more deeply her view that formulating a content-neutral epistemology is not possible. If this is the best way to capture her point, then I am inclined to agree with her, but it is also not clear that anyone in epistemology would disagree: for better or worse, a considerable amount of contemporary epistemology involves the use of cases to generate intuitions from which theorizing then proceeds, with Gettier himself famously offering two such cases to show the insufficiency of the so-called “JTB” analysis of

¹⁵⁵ Brian Leiter, “On the Relevance of Etiology to Justification (with reference to Marx and Nietzsche),” *Midwest Studies in Philosophy* 47 (2023), 158, his emphasis.

¹⁵⁶ *Ibid.*, 159, his emphasis.

knowledge.^{157,158} This method as typically deployed has some problems, but for present purposes the point is that the use of these cases seems to suggest that contemporary epistemology does not aspire to the sort of neutrality that a certain type of metaethics aspires to with respect to the ethical (though I do not think epistemology can aspire to the sort of relationship that philosophical ethics bears to real ethical practice due to the role of choice in ethical practice). Whatever else epistemology is, it is constrained by the understanding that what is being talked about is *knowledge*, perhaps in the form of what Duncan Pritchard calls *intensional platitudes*.¹⁵⁹ If a term or concept's intension is something like the term or concept's *meaning*, and if meaning is in some respect normative, then epistemology would in turn be subject to normative constraints, and once the normative is in the picture, we then get into the picture notions of *success* and *failure* with respect to those norms, which sound like *evaluative* concepts. All of this, then, would need to be presupposed by epistemology in the first place, and if that were true, a content-neutral epistemology would indeed be nonsensical: it would presuppose rich normative, evaluative, and descriptive concepts and practices.

¹⁵⁷ See Edmund Gettier, "Is Justified True Belief Knowledge?," *Analysis* 23 no. 6 (June 1963), 121-123.

¹⁵⁸ For an account of epistemological methodology which is broadly in line with this conception here, see Duncan Pritchard, "On Meta-Epistemology," *The Harvard Review of Philosophy* 18 (2012), 91-108. He writes that "...the methodology of analytical epistemology is essentially the application of a process of reflective equilibrium to the inputs just described" (99), where these inputs are various types of intuitions. Pritchard identifies three sorts of intuitions dealt with in epistemology: *extensional intuitions*, judgements "...about whether the target term is applicable in the case under discussion (which may be actual or hypothetical)" (91), as well as *intensional intuitions*, and lastly, intuitions he calls *general intuitions*, which are neither about the extension nor the intension of the term. (An example of a general intuition is "...that knowledge is more valuable than mere true belief..." (92).) Pritchard distinguishes all these intuitions from what he calls *linguistic intuitions*, a category of intuition having to do with the correct usage of a particular term in speech. A difficulty with this method is that the notion of intuition is itself unclear. Pritchard writes that "...intuitions are most naturally understood as a kind of 'intellectual seeing'..." (95). This seems to be similar to Michael Huemer's understanding of intuitions as "intellectual seemings" in *Skepticism and the Veil of Perception* or an "initial, intellectual appearance" in *Ethical Intuitionism*. In discussing Huemer's view, *phenomenal conservatism*, Luca Moretti writes that "philosophers have taken at least *four* different views about the nature of seemings:" the *belief* view, the *disposition* view, the *evidence-taking* view, and the *experience* view. (See Luca Moretti, "Phenomenal Conservatism," *Analysis* 75 no. 2 (April 2015), 298-299.) Since it is not clear what seemings are, and since seemings appear to be relatively similar to intuitions here, it follows that it is at least unlikely not to be clear what intuitions are.

¹⁵⁹ Duncan Pritchard, "On Meta-Epistemology," 93.

For these sorts of reasons, then, I am inclined to think Srinivasan does not merely mean that a content-neutral epistemology is not possible. She seems to have in mind that a *particular* sort of content-neutrality is not possible, and that this sort of content-neutrality is what the genealogical skeptic needs, namely, a way of identifying belief-forming methods without presupposing the truth or falsity of the beliefs generated by the method, or more broadly, a way of identifying those methods which are relevant to the epistemology of the domain under consideration without presupposing an evaluation of their content or outputs. Now, to avoid global skepticism, the genealogical skeptic, when asked what the methods she wants to impugn are, cannot just answer “all of them.” But the skeptic cannot avoid saying “all of them” by instead saying something like “the method whereby the capitalists manipulate us into thinking that this is the only sort of life that we can live.” The genealogical skeptic needs to say something, such as appeal to the safety principle or the sensitivity principle, but arguments in favor of those principles will presuppose what is known and what is not.

3.2.12 I want to suggest a middle way between these two extremes that the genealogical skeptic can say is an option, while nevertheless showing that Srinivasan’s objection can gain traction, but crucially, only in *some* cases.¹⁶⁰ I want to say that it is possible to identify and distinguish what I have called *epistemic domains* from one another by appeal to those norms internal to the domain, and that if domains are sufficiently similar to one another, then it is likely that the epistemic methods and activities found in one domain are to be found in the other, and these domains can be identified and distinguished from one another either in their articulation of epistemic norms or in terms of something non-epistemic, such that we do not first articulate a conception of epistemology prior to the task of individuating the domains in which knowers

¹⁶⁰ Recall 1.2.7 at this point. The following discussion would benefit from further engagement with research in *hinge epistemology*. I hope to do so in future work.

carry on with the activities of knowing. This is not a *contextualist* view, at least if by *contextualism* we have in mind a *semantic* thesis, and in particular, a view on the semantics of knowledge attribution, because what I am offering is not a semantic view.¹⁶¹ Rather, my suggestion is that activities of knowledge take place within practices of various sorts, or what I have called domains, and that we can distinguish these practices either through their explicit articulation of their own epistemic standards internal to themselves, or through some non-epistemic considerations which uses a non-epistemic principle which is prior to the practices it is looking to individuate. To offer some examples, we can distinguish the epistemology of the criminal law from that of civil law by appeal to their articulations of the standard of *mens rea*, for instance, while in the latter sort of case, we can distinguish the epistemology of geometry and the epistemology of arithmetic by appeal to the object of inquiry. Now, my suggestion is that if we have two domains, where the first domains has an epistemology with such-and-such features, and where the second domain is relevantly similar to the first, then it is likely to have an epistemology with such-and-such features as well, for the reason that, at least for us now, it must be psychologically possible for a person to inhabit both domains without massive alienation or forms of “bracketing” that would destroy the psychology of the subject. In all practices we’ll probably find similar features, given that it’s human beings inhabiting them, but any pre-practice understanding of human epistemology will also be an empty formalism. This approach will

¹⁶¹ For instance, see Keith DeRose, “Contextualism and Knowledge Attributions,” *Philosophy and Phenomenological Research* 52, no. 4 (December 1992), 913-929 and Keith DeRose, “Solving the Skeptical Problem,” *The Philosophical Review* 104, no. 1 (January 1995), 1-52. In the former article DeRose writes that he is interested in “...a ‘contextual’ theory of knowledge attributions: it is a theory according to which the truth conditions of sentences of the form ‘S knows that p’ or ‘S does not know that p’ vary in certain ways according to the context in which the sentences are uttered” (914). Similarly, in the latter piece, DeRose writes that “Suppose a speaker A...says, ‘S knows that P,’ of a subject S’s true belief that P. According to contextualist theories of knowledge attributions, how strong an epistemic position S must be in with respect to P for A’s assertion to be true can vary according to features of A’s conversational context” (2).

necessarily involve some amount of slippage, but since I am only offering a suggestion, I will leave aside further defense for a different occasion.

Now, will this approach show that Srinivasan is, in general, right? No, but it will allow that she is right in *some* cases. In brief, whether she is right will depend on the epistemological practice in view, which is the appropriate result on my view and one that accords with what I said above on the genetic fallacy above in 3.2.7, namely, that whether or not the fallacy is being committed depends on the content of the argument and cannot in general simply be assumed to be present. In a practice like that of the criminal or civil law, for instance, it is false that belief-forming methods cannot be identified independently of first-order beliefs because it is through the law that the relevant epistemic notions gain traction: acting knowingly, acting negligently, and so on presuppose these concepts of doing something *knowingly*, doing something *negligently*, and so on, and these notions are specified by the law of the relevant jurisdiction and have no sense outside of it.¹⁶² It is less clear when we are talking about general social epistemology, by which I have in mind the epistemology of private citizens interacting in ways which do presuppose the law, but so deeply that mentioning the law would be a kind of conversational mistake. In that case, if we find a particular epistemology that is given over to ideological influence in some other domain, and if that other domain is sufficiently similar to ours, then it is likely there is something like that happening here, but saying that does not require us to identify the content of the relevant belief-forming methods as true or false.

¹⁶² The law in general may include within itself a variety of different understandings of knowledge: the sense of the term in the concept of *acting knowingly* is different from the sense of the term present in or otherwise implied by the legal principle that *ignorance is no excuse*. In the former case, it is possible for a subject to fail to act knowingly, but in the latter case, I am inclined to think that ignorance is no excuse because, at that level, ignorance is *not possible*, and that part of what it is to *be* a legal subject is to have knowledge of the law.

3.2.13 So much, then, for these topics. These are two broad concerns you might have with regard to genealogical arguments. There are others, depending on the particular sort of genealogy one deploys: later, for instance, I will talk about some possible forms of error that afflict a particular type of genealogical argument, originating in Craig and Williams and developed in most detail by Mattieu Queloz, what Queloz calls *pragmatic genealogy*, problems that have to do with the particular sort of content which figures into such genealogies. Here, though, I have tried to speak as broadly as possible and to abstract from the content of genealogical arguments as much as reasonably possible, and in that regard, you may worry that these arguments do indeed commit a genetic fallacy or that they beg certain epistemic questions.

What, then, should we make of this? In particular, what should we make of the possibility that genealogy might commit one of these aforementioned errors? On some views, the possibility that an argument might commit a genetic fallacy gives good reason not to make use of that form of argument, but that cannot be reasonable: to make yet another tired analogy to baseball, the possibility that I might make an error when trying to turn a double play simply does not give me a reason not to play baseball. It is not in general true that the *possibility* of error with respect to some set of normative considerations gives reason to reject the normativity of those considerations entirely. Not even the *probability* of error, simply by itself, generally gives you reason not to play the game: you will probably commit an error when you are learning to play baseball, but that is par for the course, seeing as you are *learning* the game.¹⁶³ Without any further context that allows us to make sense of the significance of a win or a loss in the game, there's just not much to say here, and in turn, since there are all sorts of possible contexts in which these genealogical arguments can be offered, and in turn different understandings of the

¹⁶³ I take this to be amenable to Agnes Callard in *Aspiration: The Agency of Becoming* (Oxford University Press, 2018).

relative and absolute significance of the notions of *success* and *failure* with respect to them, I see no reason to think there is a general answer to be found here. In turn, then, in response to a question such as “does the threat of genetically fallacious reasoning mean I shouldn’t use a genealogy in the first place?,” I see no reasonable answer other than something analogous to what Wittgenstein says in PI 47, namely, that *it depends*, “and that, of course, is not answer to, but a rejection of, the question.”¹⁶⁴

What about Srinivasan? It is true that I see her argument as presupposing various starting points that I find not obviously true, but I have tried to argue that we can grant those presuppositions and still show that her own objections depend crucially on the particular epistemological practice under consideration. As such, I am inclined to say something similar about her objection as I did in the case of the genetic fallacy: whether the argument is fallacious simply depends on what is being talked about, and as such, there is no general claim to be made that genealogical arguments are question-begging. They, of course, *can* be, but it is false that they always are.

3.3: Forms of Genealogy: Critical, Vindictory, Epistemic, Functional

3.3.1 So far, then, I have discussed two global objections to genealogical reasoning and arguments, namely, that it is possible for them to commit a genetic fallacy and that they assume controversial understandings of what knowledge, justification, etc. are. I have tried to argue that, as global objections to genealogies *in general*, they both fail, a point which is nevertheless consistent with some *particular* genealogy’s committing the genetic fallacy and, for that reason, failing.

¹⁶⁴ PI 47.

We can now discuss what the *successes* of genealogical reasoning are, and from that, attempt to gesture at what genealogy itself is. We can talk about the successes, first, of *critical genealogy*, which undermines justification, and then move on to the successes of *vindictory genealogy*. We will also talk about *epistemic* and *functional* genealogy. In doing so, we will be filling in my account of genealogy at the same time, according to which we can categorize these arguments along the dimensions of the critical, vindictory, epistemic, and functional. (In 3.4., I will talk about *pragmatic* and *empirical non-ideal* genealogy.)

3.3.2 Critical genealogy, I have said, undermines justification. The natural question to ask is how it does so. Korman and Locke offer two accounts, what they call an *explanationist account* of *genealogical defeat*, as well as a *modalist account*. On the explanationist view, a critical genealogy undermines justification because it shows that there fails to be an appropriate explanatory connection between your beliefs and the facts. On the modalist view, by contrast, genealogical defeat results when there fails to be the appropriate *modal* connection (unsurprisingly). Neither of these accounts is adequate so far because each of them is circular, explaining explanationism in terms of explanation and modalism in terms of modality. What is important is the notion of an *appropriate* explanatory connection or an *appropriate* modal connection.

A first pass at the explanationist account of an appropriate explanatory connection is what Korman and Locke call “E_{NAIVE}”: the principle E_{NAIVE} states that “if S is not entitled to believe that her belief that p is explained by the fact that p, then S’s belief that p is defeated.”¹⁶⁵ This would give the right result in a case of the sort provided by Korman and Locke in which you read a book about Namibia, develop all sorts of beliefs about it as a result, and later learn

¹⁶⁵ Dan Korman and Dustin Locke, “An Explanationist Account of Genealogical Defeat,” *Philosophy and Phenomenological Research* 106 (2023), 177.

that the book was written by someone who doesn't know the first thing about Namibia, but would also rule out other sorts of beliefs since it is, on their view, too demanding: your belief that the sun will rise tomorrow is not explained by a fact that the sun will rise tomorrow since there is no such fact. *Modalism*, by contrast, also needs to be spelled out, and according to Korman and Locke, one obvious contender is provided by the idea of a *safety condition* of the sort I mentioned above in 3.2.9 when discussing Srinivasan. The principle Korman and Locke call "M_{SAFE}" states that "If S is not entitled to believe that her belief that p is safe, then S's belief that p is defeated."¹⁶⁶ Safety, in turn, is a modal notion: as Korman and Locke put it, "one's belief in p is safe just in case one couldn't easily have been mistaken about whether p."¹⁶⁷ M_{SAFE} also does not work for the usual reasons – for any articulated substantive principle we can *always* craft a case that the principle cannot account for – that we do not need to rehearse in more detail here.

Later, Korman and Locke offer their own explanationist principle, "E_{REASONS}," according to which "If S is not entitled to believe that the facts she treats as reason to believe that p support* her belief that p, then S's belief that p is defeated."¹⁶⁸ The notion of *supporting** is defined by Korman and Locke in the following way: "Let us say that the fact that p *supports** S's belief that q if and only if the fact that p supports, relatively to everything else S ought to take to be the case, S's belief that q."¹⁶⁹

3.3.3 It is not entirely clear to me what to make of this proposal, in part because I confess I find this style of philosophy rather obscure – accounts of this sort strike me as lending a certain amount of credence to my view that the alleged clarity of a certain brand of analytic M&E

¹⁶⁶ Ibid., 180.

¹⁶⁷ Ibid.

¹⁶⁸ Ibid., 190.

¹⁶⁹ Ibid., 187.

eventually becomes the disease it was supposed to cure –, in part because this account is restricted to the genealogical defeat of propositional belief, but primarily because, on Korman and Locke’s own terms, it is not even clear that what they have offered is actually an explanationist account of genealogical defeat anyway: after all, E_{NAIVE} explicitly included the concept of explanation in its content, whereas E_{REASONS} does not. Korman and Locke are then required to say, as they do indeed go on to say, that “treating a fact as a reason is itself an explanatory relation.”¹⁷⁰ As stated this cannot be right and should be revised to say that treating a fact as a reason *can be* an explanatory relation, namely when a person does in fact go on to form a belief on the basis of the reason, because if I simply don’t do anything with the reason other than possess it, such as when I’m asleep or, better yet, when I fall into a coma, there’s nothing to explain. Further, it is unclear what it is to *treat* something as something here: Korman and Locke say that, in the case of treating a fact as a reason, it is “to respond to that fact in a certain way, and one is not *responding* to a particular fact unless that fact is part of what explains one’s so responding.”¹⁷¹ This is unilluminating: it does not help to be told that treating something as a reason consists in “responding to it in a certain way” because the whole question is about what that “certain way” even *is*.

The main issue, though, as I see it, is that Korman and Locke are talking, first, about *belief*, and second, all of their examples and their principles are stated in a third-personal way. But when reconsidered from the first-person point of view, their cases begin to look quite strange, and it becomes entirely unclear whether what these people have really is *belief* in the first place. Consider their first case, NAMIBIA:

Nysha reads a book about Namibia and believes what she read. Among other things, she reads and believes that there are monarch butterflies there. She then learns that the book’s

¹⁷⁰ Ibid., 190.

¹⁷¹ Ibid.

author has never been to Namibia, has never read anything about Namibia, has never spoken with anyone who has been to Namibia, has never seen photos from Namibia, and so on. In short, Nysha learns that the author has had no contact – direct or mediated – with Namibia, and was just making stuff up for the purposes of publishing a book.¹⁷²

If I am Nysha, though, after reading the book I will certainly not say that I have various beliefs about Namibia, but rather I will take myself to have *knowledge* of Namibia. When I then learn that I had been tricked by this unusual person (one who somehow has no contact at all with Namibia, and so presumably no knowledge thereof, and yet has enough of *something* that enables them to make a sufficiently convincing forgery), I will say “I guess I didn’t know it after all,” and then we get into the territory of explaining error, and while it is *possible* I will say “I guess I only believed that there are monarch butterflies in Namibia,” it is just as possible I will go on to say “I don’t know what I was thinking actually – I’m confused about the whole episode.” That is, when I find I did not have knowledge after all, it is not at all obvious that, first, my mental states and activities which pretended to knowledge – they had to pretend to knowledge for me to be willing to ascribe knowledge to myself – somehow undergo a kind of *conversion* or *reversion* into belief, nor, second, that my own self-understanding of my own mental states and activities *smoothly transitions*, whatever that even means, from a content using the concept *knowledge* at t_1 to something else at t_2 . Rather, I want to suggest that it is possible that my own mental states and activities might themselves be straightforwardly indeterminate, and if they are indeterminate, it is also indeterminate whether they are beliefs, and can only be made into something determinate, such as belief but not necessarily so, when I, perhaps quite literally, make up my mind. Making up my mind is not the sort of activity that I can delegate to another, but this is what is presupposed in all of Korman and Locke’s cases: those entertaining the cases have no more and no less authority than those in the cases themselves, and since this

¹⁷² Ibid., 176.

would be false of any actual thinkers, such as you and me, it is either false of us and the fictional thinkers or, if not false exactly, then instead necessarily fictional.

But the whole issue here, as I see it, is that, at least *sometimes*, the genealogical skeptic or debunker is going to try to argue that “treating a fact as a reason” is *not at all* an explanatory relation, and indeed, that that is precisely the problem they are trying to expose: that what appears to be an explanatory relation is in fact not such a relation at all.

3.3.4 In brief, it cannot be taken for granted that what Nysha, nor anyone else in Korman and Locke’s examples, has is a *belief*, but their account seems crucially to require that the subject does indeed have a belief. Despite all this, it is still plausible to say that, for at least *some* but not for all cases of genealogical defeat, something like the proposal by Korman and Locke can account for the phenomenon, namely, because there fails to be an appropriate explanatory relation between one’s beliefs and the sources of those beliefs. Further, even though their proposal cannot cover all the territory they want, Korman and Locke’s proposal can cover some important cases. Cases in which I ascribe belief to myself include cases in which I subjectively know or at least suspect that my evidence is not altogether strong, that the method I have relied upon is not clearly or obviously reliable, that it is not clear to me what my reasons for believing P even are, or something to that effect: in brief, cases in which I ascribe belief to myself are cases in which I am aware that I may not have the justification (or reliability, or sensitivity, or safety, or whatever) necessary for me to have knowledge.¹⁷³ Now as mentioned, there are important cases in which we seem to find beliefs of this sort: *trust* and *hope*, for instance, seem to be attitudes which presuppose subjective uncertainty of some sort, while attitudes related to

¹⁷³ This is not to adopt a belief-first epistemology: that is, nothing here has to be read as saying that belief is prior to knowledge. Rather, if we were to adopt a knowledge-first epistemology, we might say that I do not have knowledge and have mere belief, a form of error, and that the error is to be explained in the way sketched above.

these, such as *mistrust* and *despair* seem to presuppose subjective certainty (thought that certainty may be mistaken), while a different sort of subjective certainty seems to render trust and hope entirely moot: after all, it is at least odd, maybe even straightforwardly irrational, for me to have to hope that you, my wife, are not yelling at me about my incompetence and cowardice when I see you sitting across from me at the breakfast table with your bowl of Rice Krispies, playing Wordle. Despite the fact that their proposal cannot cover the range of cases they hope it to cover, Korman and Locke's proposal can perhaps help elucidate *some* cases of the sort just mentioned in which a person changes their attitudes towards another: if I realize that my mistrust of you was based on a rumor which turned out to be baseless, I might come to mistrust you less after seeing that my belief in your untrustworthiness was based on a poor reason, and, in a different direction, my hope might turn to despair when I realize that the doctor is simply trying to keep my spirits up.

We have thus seen one account of the success of critical genealogy: according to Korman and Locke, such arguments succeed by showing that there fails to be an appropriate explanatory connection between one's beliefs and one's reasons.

3.3.5 Srinivasan offers a different account of what we find in cases of genealogical defeat, one which, when fully fleshed out, might be thought to naturally lead into what we find in at least some cases of vindictory genealogy, and as such, makes her views worthy of consideration. Recall that above, I drew on material from her 2015 paper "The Archimedean Urge," where she provides a detailed account of the way in which the genealogical skeptic may beg the question against his opponent: in brief, the idea was that the skeptic must presuppose various things epistemic, such as a conception of knowledge, in order to motivate his own argument and recommend his conclusion to the untroubled believer, but in order to do so he must have, among

other things, various first-order beliefs about what is *known* and what is *not* known. But part of what is at stake in his own argument is precisely *what is known* and *what is not known*. So, the skeptic begs the question. Her account in her 2019 “Genealogical, Epistemology, and Worldmaking” offers some points similar to those in “The Archimedean Urge,” but then, to my mind, goes on to make more interesting and deeper points, in part because, unlike in the 2015 paper, she offers an answer to the question “what *does* genealogy do?” So, I want to look more closely at that paper for her statement of genealogical defeat, which, as I just mentioned, will lead into something like what we find in cases of vindictory genealogy.

At a first pass, I read her as holding that, while genealogy does not offer an *epistemic* defeat, it can offer something more like *meta-epistemic* defeat, in the sense of revealing the attitudes we take towards our own representations, in particular (though not exclusively) towards what we take ourselves to know, and since these attitudes are not themselves necessitated by anything epistemic, these attitudes can also be *changed* while maintaining the same beliefs (or at least something like them). Changes in attitudes toward one’s own representations, beliefs, concepts, and so on can be found when a subject comes to see what such representations *do* – that is, what *function* they perform. In turn, a subject with changing attitudes towards her first-order beliefs can redescribe the content of those beliefs in ways that can have good effects. In fact, in some cases, some of these redescrptions can, with suitably important beliefs, literally *make* a new world. To understand this, we need to look more closely at the moving parts.

As I said above, Srinivasan does not accept that, in general, genealogical debunking arguments are successful. The reason, I have said, is that the genealogical skeptic must avoid global skepticism if he is to be able to make his own argument in the first place, and so must provide an account of what belief-forming methods give rise to knowledge and which do not: for

instance, at a first pass, it would seem like dreaming is not a reliable method, while (hopefully) something like astronomy is, such that, while both methods might produce beliefs, beliefs which result from dreaming are not knowledge while those which result from astronomy are.¹⁷⁴ Now, how do we individuate and distinguish belief-forming methods from one another? On her view, “what is at issue here [in this question] is how to individuate belief-forming methods for the purposes of assessing their safety. The problem is that there is no principled, independent answer to be given to this question – that is, independent of the very first-order beliefs that are in dispute.”¹⁷⁵ Determining whether a belief-forming method is *safe* in the first place involves assessing the products of that mechanism and whether they amount to knowledge, but what is in dispute is whether the belief-forming method does indeed produce knowledge in the first place by being a *safe* method, rather than an unsafe one. I have tried to suggest above that we can individuate at least *some* methods, but crucially not *all* of them, in terms of knowledge of various propositions which must be accepted as a condition of the possibility of engaging in a certain epistemic practice, where that practice is in turn individuated and distinguished from others precisely by means of what it identifies and incorporates as a reliable belief-forming method, but we can leave this aside for present purposes and move forward.

3.3.6 Now, even though genealogical arguments, on Srinivasan’s view, cannot generally undermine knowledge in a non-circular way, such arguments and, more broadly, genealogical pictures of things nevertheless seem to do *something*. That *something* is not to be found at the level of the first-order beliefs, methods, and so on under question for the reasons given above.

¹⁷⁴ I am putting this in terms of *reliability*, belief forming *methods*, and so on because Srinivasan seems to accept that a reliabilism which accepts the safety principle is the most plausible epistemology on offer: she writes that “the safety principle is, I think, the critical genealogist’s best hope” (133). The safety principle originates in Sosa, “How to Defeat Opposition to Moore,” which offers an externalist characterization of knowledge along reliabilist lines. I do not have the space to explore the issues here further.

¹⁷⁵ Srinivasan, “Genealogy, Epistemology, and Worldmaking,” 133.

Instead, she suggests that genealogical skepticism operates by inculcating *genealogical anxiety*. Srinivasan does not provide an account of such anxiety, saying only that it can either contribute to or perhaps constitute a loss of confidence in the relevant beliefs.¹⁷⁶ So what is genealogical anxiety in the first place?

An initially plausible suggestion is to say that genealogical anxiety is related to, or perhaps identical with, what Andreas Mogensen calls *contingency anxiety*, and which on his view “...arises...in cases where we discover that our beliefs about some topic are contingent on some arbitrary background factor, such that varying the background would yield some contrary belief at the other end.”¹⁷⁷ Mogensen, following a suggestion by Roger White, gives a reductive account of contingency anxiety in the form of what he calls the “Disagreement Hypothesis,” according to which “...for any case of contingency anxiety, any defeater that occurs is to be explained by reference to the epistemic significance of disagreement.”^{178,179} I do not find it entirely clear how to read this proposal, but given that Mogensen aims to show that “...we can *reduce* the epistemology of contingency anxiety to another fashionable topic in contemporary epistemology[, disagreement],”¹⁸⁰ I am inclined to say that he means that any defeater that occurs is to be *entirely* explained by reference to the epistemic significance of disagreement.

One difficulty with this proposal, which Mogensen attempts to circumvent, is that there seem to be cases of contingency anxiety in which there is not only no actual disagreement, but no possibility of even hypothetical disagreement. To deal with this issue, Mogensen proposes the “Arbitrary Absence Thesis:”

¹⁷⁶ See 136.

¹⁷⁷ Andreas L. Mogensen, “Contingency Anxiety and the Epistemology of Disagreement,” *Pacific Philosophical Quarterly* 97 (2016), 592.

¹⁷⁸ *Ibid.*, 597.

¹⁷⁹ For White’s suggestion, see Roger White, “You Just Believe That Because...,” *Philosophical Perspectives* 24 (2010): 573-615.

¹⁸⁰ Mogensen, “Contingency Anxiety and the Epistemology of Disagreement,” 591, my emphasis.

Necessarily for any S_1, S_2, p : if S_1 believes p and knows that S_2 would believe some contrary of p if not for some condition C , which is arbitrary with respect to S_1 's belief that p , S_1 should be as confident of p as S_1 ought to be of p if, all else being equal, S_1 knew that S_2 does believe some contrary of p .¹⁸¹

In other words, "arbitrarily absent disagreement has the same epistemic significance as actual disagreement, all else being equal."¹⁸² The difficulty in the hypothesis I want to try to identify, to put it rather elusively at a first pass, is that it seems to me there is a tension between disagreement's *absence* and *disagreement's* absence. A case that is supposed to motivate this thesis, and which I take to show the tension I want to point out, is what he calls *The Restaurant Case*^{**}, which builds on an earlier case, *The Restaurant Case*:

[You go out to dinner. There are eighteen people in your party: your seventeen companions are experts at mental arithmetic; you are only ordinarily able. After dinner, you decide to leave a 20% tip and otherwise split the bill.] ...you first calculate your share of the bill to be \$43 and then wait for the maths experts to get to work. You correctly predict that they are all just about to arrive at the answer '\$45', but you pre-emptively use your mind-changing ray gun and zap them into agreeing with you. They never form the belief in question.¹⁸³

A strength of the case is that it is not third-personal, but I think that the non-third personal character is the case's undoing, and with it, support for the Arbitrary Absence Hypothesis. Here, am I to imagine that I, some schlemiel who is not particularly good at math, not only correctly predict that the experts will arrive at the correct solution, but I *know* that I have correctly predicted, enabling me in turn to *act* and zap them with the ray gun? If that is right, then I can clearly say that disagreement is absent, true, but disagreement is also irrelevant here because I *know* that my calculation was wrong. If we instead say that I do correctly predict that they experts will arrive at the correct solution but I do not know that I have correctly predicted – I can feel it in my bones, say – then when I act, I find it not at all clear that I'll be able to say that I

¹⁸¹ Ibid., 598.

¹⁸² Ibid.

¹⁸³ Ibid.

have zapped them *because they were going to disagree*. At best I can say I stopped them from saying *something*, and since I don't know what that something is, I don't then know that they won't be disagreeing with me down the line after all – maybe all I've done is delayed the inevitable commentary from the peanut gallery on my mediocre arithmetical skills. The tension, then, is that the more certain I am that there is disagreement, the less it seems that its absence is epistemically significant, and that the more absent the disagreement is – such as putting conditions in place to prevent the subject from using the concept of *disagreement* when thinking about the absence, which in turn prevents her from having the relevant sort of knowledge – the less certain I am that I was ever dealing with a disagreement in the first place.

The problem with the thesis that I am trying to identify is found in the antecedent: “if S_1 believes p and knows that S_2 would believe some contrary of p if not for some condition C .” One way that S_2 could believe some contrary of p is by *knowing* that not- p , and if I know that S_2 knows that not- p , it is possible that I know they know that not- p because I myself simply *know* that not- p – that's what enables me to say that *they know that not- p* –, in which case I need to revise my belief that p because it conflicts with my knowledge. So, of course I should be less confident in my *belief* that p , but not because of anything having to do with S_2 . This *could* be a case where we find contingency anxiety, I think, one of a self-deceived kind, but importantly one that does not require disagreement to explain it, and so one that falsifies Mogensen's reductive account: in such a case I might be holding onto a belief that p against my better judgment. Suppose instead that I believe that p and don't know that not- p : that is, I merely believe that p . Now, in virtue of what do I know that S_2 would believe some contrary of p if not for some condition of C (with C , recall, being arbitrary with respect to my belief that p), without myself knowing that not- p , a contrary of p ? In the Restaurant cases, the reason is provided by their

expertise: in brief, in such a case, I know that S_2 will believe a contrary of p because she is an expert. But the issue is that if that's all I know, then that does not imply that I know they will believe some contrary of p unless you also presuppose somewhere along the way that I have reason to believe p is false, i.e. to believe that not- p is true, which is precisely what I am not in a position to assert because I do not know that not- p . In fact, in that case, I do not even have reason to be suspicious of my own belief that p : after all, I'm not particularly good at arithmetic, but I'm not particularly bad either.

In brief, then: the main issue in the Arbitrary Absence Thesis is that identifying an absence as an absence of disagreement is something done for a reason, and sometimes, once you've made the identification, it is that reason doing the work of generating the contingency anxiety, rather than the disagreement, and without a reason it can look like I wasn't really *identifying* an absence as one of *disagreement* as much as hoping for one. In turn, Mogensen's reductive account of contingency anxiety will not be successful, and as such we cannot use it to understand Srinivasan's genealogical anxiety. What, then, do we do next?

3.3.7 My own suggestion is that we can begin to understand genealogical anxiety by noticing a different lacuna in Mogensen's proposal which I have not mentioned. As it stands, I do not see how his proposal can explain why contingency anxiety is *anxiety*, rather than, say, contingency *surprise*, contingency *anger*, contingency *elation*, or just some sort of recognition of contingency passed over in affective silence. My suggestion is that, rather than trying to eliminate anxiety from the account, we instead use anxiety as the starting point. I want to say that genealogical anxiety is best understood as, indeed, a kind of *anxiety*, one distinguished from other sorts of fear and anxiety due to its object. We need to put the *anxiety* back into genealogical and contingency anxiety.

Anxiety is, plausibly, a kind of fear, and so to understand anxiety, and with it, genealogical anxiety, we can consider fear. I do not want to take a stance on contentious issues in the philosophy of emotion, but I will presuppose that the emotions have a cognitive dimension in *some* respect: that is, the emotions *represent* their objects, meaning that the emotions have intentionality. Now it seems generally agreed that fear is a painful emotion that represents its object as a threat, i.e., the cause of some future harm, ill, or something to that effect. So says Aristotle in *Rhetoric* II.5, where he writes that “fear may be defined as a pain or disturbance due to imagining some destructive or painful evil in the future.”¹⁸⁴ In a similar vein, Hume writes that “when either good or evil is uncertain, it gives rise to fear or hope, according to the degrees of uncertainty on the one side or the other.”¹⁸⁵ This may be a reasonable account of fear in general, but presumably there is a difference between the emotion I have when I wake in the middle of the night to see you standing over me with a knife, on the one hand, and what all these authors are after when they talk about anxiety on the other – and not, simply, because they are not being confronted by someone with a knife, I want to suggest, though *obviously* that is relevant.

Joshua Blanchard offers an account of what he calls *philosophical angst* which is useful here. He writes that it is “a complex cognitive judgment combined with a conative component,” where “the cognitive judgment is that something existentially important is also irreplaceable,” and where the conative component “...is an anxiety that what is important and irreplaceable might be unavailable.”¹⁸⁶ “*Existential importance*,” Blanchard writes, “is positive importance to the meaning, intelligibility, or overall value of our lives and world,” and “*irreplaceability* means that there is no available surrogate for the important role in question.”¹⁸⁷ This account does

¹⁸⁴ Rhet. II.5.

¹⁸⁵ David Hume, *A Treatise of Human Nature*, II.III.IX, SBN 439.

¹⁸⁶ Joshua Blanchard, “Moral Realism and Philosophical Angst,” 119.

¹⁸⁷ Ibid.

unfortunately define angst in terms of anxiety, and it also does not explain why philosophical angst is *philosophical*, but that is neither here nor there because what we should focus on is this notion of *existential importance*: whatever else angst or anxiety is concerned with here, it is not what I feel when I see you with a knife in my bedroom because you threaten me and, in particular, my *body*, rather than threatening the meaning, intelligibility, or overall value of the world. This element of philosophical angst is what we should take onboard if we are to understand genealogical anxiety, and we can then say that genealogical anxiety is an anxiety having to do with the meaning, intelligibility, or overall value of the world in some particular respect.

The next question is obvious: “in *what* particular respect?” It is not helpful to say that the worry is that our concepts are not apt, that our knowledge is not safe, and so on because those worries are also found in cases of anxiety with regard to global skepticism or skepticism about knowledge of the external world, for instance, and so those ways of cashing out “the particular respect” will not suffice. Srinivasan says the worry arises because some of our representations are the result of processes and mechanisms which are *alethically indifferent*: that is, our representations are the result of mechanisms which are indifferent to the truth of what they are churning out.¹⁸⁸ There is something to this, but I do not think it is adequate as it stands because it

¹⁸⁸ Not everyone will accept this. Brian Cutter argues that moral realists should abandon a commitment to naturalism and instead opt *axiarchism*, which he characterizes as the view that “the natural world is ‘ordered for good.’” (For more, see Brian Cutter, “From Moral Realism to Axiarchism: A Metaphysical Response to the Debunking Challenge,” *Midwest Studies in Philosophy* 47 (2023), 73-101.) Cutter himself argues for a theist form of axiarchism, but non-theist forms exist as well. This type of view either denies that the relevant processes or mechanisms are indifferent, or instead would hold that they are indifferent but play some sort of role in a higher-order process or mechanism, where that higher-order process is not indifferent. Without any account of the good, though, there is no reason to think that the result picture will be one that helps maintain confidence in realism: reality might be ordered for a good which is hostile to humanity in much the same way radically response-independent reasons have to have at least a susceptibility to hostility towards the entire community of responders if they are to have a reasonable claim to response-independence; it might be ordered for a good which is a funny money good or one which is just not *that* good; nature might indeed be ordered for good, and humanity’s place in it all is to exist as one of nature’s waste products; other possibilities are out there as well. Realists are insistent on the response-independence of reasons because they, very deeply, take for granted morality’s chosen interpretation of the

is too general: lots of mechanisms may be alethically indifferent but I do not worry about all representations of mine generated through them, and not simply because it hasn't occurred to me to think about and reflect upon them. For instance, I care about the Mets, rather than the Yankees, due to the contingencies of my upbringing, and so I affirm various claims about the Mets – say, that they are the better team (under a, shall we say, suitably flexible understanding of “better”) – as a result of my upbringing, but none of this is *that* important.

As such, it seems to me that genealogical anxiety is found only when the relevant representations are, in some sense or another, *important*. The failure to pay attention to the importance of certain beliefs is why Mogensen is not able to explain the anxiety of his contingency anxiety. Fear, in general, is only felt when the feared object is thought to present an ill or evil to something that is even worth caring about in the first place, and insofar as anxiety is a species of fear, it seems reasonable to hold that anxiety is felt in response to a threat to something of some importance. This is in line with Aristotle's understanding of fear in the *Rhetoric*. There is a difficulty here in talking about “the importance of representations:” does this mean that the *content* of the representation is important, or that the representation itself is important, independently of its content? I suspect that, *generally*, the representation gains its importance as a vehicle for its content, but occasionally the representation itself might be important regardless: perhaps when my life is a chaotic mess and I simply make up my mind about *something*, that activity of making up my mind is what is important. Additionally, I want to say that the relevant objects of genealogical anxiety then need to be, not only important, but also such that they do not give rise to or otherwise make appropriate the sorts of fear I mentioned above, namely, the type of fear I feel when you threaten me with a knife. So, the objects of

idea of *response-independence*, but to do that is to build into the picture a particular *response* (here, the interpretation) to those reasons.

genealogical anxiety are important beliefs and attitudes. Such beliefs and attitudes, in *some* cases, are constitutive of one's identity as human being, simply as such, as well as constitutive of various other identities we can maintain on the condition of being a human being. Other beliefs and attitudes may be important but do not function in such a constitutive role.

3.3.8 My suggestion, then, is that genealogical anxiety, while it can arise for any important belief or attitude, is particularly apt and most clearly seen in those cases where the object of anxiety is a belief or attitude which functions constitutively. My own impression of genealogical anxiety is that the loss of confidence I feel is not just in the belief or attitude I hold, but a loss of self-confidence as well, and my suggestion can explain this: when the belief or attitude is not only important but functions in a constitutive role, that attitude may constitute a particular practical identity of mine, and insofar as I lose confidence in the attitude, I lose confidence in myself. This is why, seen from one angle, genealogical anxiety is clearly about some representation of mine, while, seen from another, it is not so much about any one particular representation but instead something more like the various *horizons* upon which my representations appear. Additionally, my suggestion explains why such anxiety, from one angle, clearly looks like an emotion, and why, from another angle, it instead looks more like a *mood*.

3.3.9 We can return to Srinivasan with this understanding of genealogical anxiety in hand to understand her positive proposal. Above, I said that, on her view, genealogy functions by inculcating genealogical anxiety. The genealogical skeptic, in this way, is making not so much an epistemic point as much as a meta-epistemic point, as Srinivasan puts it and as I mentioned above: such a skeptic targets what you might think of as the *spirit* brought to bear on one's own epistemology.

Now, not everyone feels such anxiety. Such people, according to the genealogical skeptic, must instead, at least tacitly, take themselves to be the beneficiaries of *good genealogical luck*, where genealogical luck is a distinctive sort of epistemic luck. In general, I am inclined to read Srinivasan's philosophical work, up to this point, in something akin to the spirit of Bernard Williams' work: one of Williams' own goals was to develop a picture of things in which luck is a real ethical player, and in my view, Srinivasan is looking to develop a picture of things in which luck is not only a real ethical player, but a real *epistemic* player.

In brief, then, genealogical skepticism, when successful, inculcates genealogical anxiety by showing that a believer maintains various beliefs and attitudes on the basis of a tacit acceptance that they have benefitted from good genealogical luck.

Now, it is possible on Srinivasan's view to have knowledge while simultaneously failing to believe one is such a beneficiary, and indeed, one can believe one has bad luck and nevertheless have knowledge. The reason is that "...being in a position to justifiably believe that one's first-order belief is justified is not a condition on one's first-order belief being justified," since "to think otherwise leads to an endless regress of justificatory demands."¹⁸⁹ In the first case, it seems possible that a human without the concept *genealogy* could nevertheless have knowledge, despite the fact that such a creature could not think thoughts with the concept *genealogy* in their content and in turn could not understand itself to be genealogically lucky. More broadly, it seems possible for a human to have knowledge while failing to have knowledge of the methods by which she comes to her beliefs, some of which may amount to knowledge if the methods are reliable. Or, she may have knowledge of her methods while failing to have knowledge of their reliability, and nevertheless she may form beliefs on the basis of reliable methods and thus have

¹⁸⁹ Srinivasan, "Genealogy, Epistemology, and Worldmaking," 135.

knowledge; and we could go on. The latter sort of case is a bit trickier and depends on the sort of luck in play, as well as the particular beliefs because it is plausible to think that, in some contexts, a belief that one has had bad epistemic luck can serve as a defeater.

That said, Srinivasan seems to offer such cases in her paper “Radical Externalism,” such as the following, what she calls “Classist College:”

Charles is a young man from a working-class background who has just become the newest fellow of an Oxford college. He is initially heartened by the Master’s explicit commitment to equality and diversity. The Master assures him that, though the college is still dominated by fellows from elite socioeconomic backgrounds, Charles will be welcomed and made to feel included... Charles is confident not only that the college will be a good community for him, but also that the Master is a person of excellent judgment on these matters. Soon, however, a few incidents disrupt Charles’s rosy view of things. [For instance,] at high table, when Charles explains that he went to a state school, a fellow responds with “but you’re so well-spoken!”... Charles, who has a dependable sensitivity to classism, goes to the Master to report that he has experienced a number of classist incidents in college. Shocked, the Master asks him to explain what happened. But when Charles describes the incidents, the Master is visibly relieved. He assures Charles that none of these are genuinely classist incidents, but playful, innocuous interactions that are characteristic of the college’s communal culture. He tells Charles that he is sure that Charles himself will come to see things this way once he gets to know the college and its ways better. And finally, he suggests that Charles is being overly sensitive – something to which (the Master goes on) Charles is understandably prone, given his working-class background. Charles is unmoved. He continues to believe that he has faced classist discrimination in the college, dismissing the Master’s testimony to the contrary...¹⁹⁰

There are all sorts of ways Charles might think himself lucky or unlucky – he might think himself lucky to be alive, unlucky to have such a person as the Master – but not all these forms of luck are *epistemic* luck, and in turn, they make no difference for present purposes. But it seems possible for Charles, first, to justifiably believe that the college is classist, while believing, second, that he has had the bad luck to find himself in something of a testimonial desert, as it were.

3.3.10 The issue for such persons, however – that is, for people who have knowledge while either failing to believe they are genealogically lucky or believe they are unlucky – is not so

¹⁹⁰ Amia Srinivasan, “Radical Externalism,” *The Philosophical Review* 129 no. 3 (2020), 397.

much with their *knowledge* but instead with what they can say to the genealogical skeptic, whether that skeptic is thought to be a literal second person or instead something more like the skeptical voice in themselves. Here we begin to transition to Srinivasan's positive proposal, one based on the thought that "perhaps the problem is not the belief in genealogical luckiness per se, but the tendency of precisely the wrong people to think themselves the lucky ones."¹⁹¹ This involves focusing on a different strand of thought found in critical genealogy, one which focuses not so much on its epistemic aspects – whether a critical genealogy of X provides a defeater of a belief in X, say, or whether a method, given a critical genealogy, is nevertheless reliable – but in its *functional* aspects. Such a strand of thought in genealogy is offered to provide an explanation for the massive error that the critical genealogist is attempting to diagnose. For instance, if the critical genealogist argues that religious belief is all false because any such belief is best understood be formed by means of a method which is unreliable, the genealogist should then go on to explain why every religious believer nevertheless maintains these erroneous beliefs, which seem to bear relations to other religious beliefs, as well as non-religious beliefs, which are, at some level or another, rational. That is, the genealogist needs to show, not only why all these beliefs are false, but why someone would nevertheless believe them. Not all explanations of error need to involve an appeal to the function of the beliefs (or, differently, the concepts) being subjected to genealogical scrutiny: an example of a bad explanation in my example case of religious belief would be something like "they maintain these false beliefs because they are stupid." While this would explain why they do not appreciate the relevant arguments, this is not helpful because it does not explain why *religious* beliefs are so maintained. (For this sort of reason, it is not helpful for American liberals to attempt to explain certain beliefs on the

¹⁹¹ Srinivasan, "Genealogy, Epistemology, and Worldmaking," 137.

effectiveness and justice of Republican policies by saying “they believe it because they’re stupid.”) A different explanation which strikes me as moderately better might go like this: “they maintain these false beliefs because these beliefs, despite their falsehood, are able to make life for a believer somewhat more bearable.” In this case, what is offered is a functional account of the relevant religious beliefs – they “make life somewhat more bearable,” i.e., they contribute to or serve as a constituent of well-being in some sense, despite their falsehood.

Now, insofar as we are willing to talk about the function of a belief or a concept, we are, at the very least, willing to talk about the *effects* of these beliefs or concepts. But we have to be willing to talk about more than this if we want to talk about the function of a belief or concept, since there may be all sorts of things effected by a belief or concept that do not seem to be its function. It is trivially true that an effect of having any concept is that you can think thoughts with that concept in their content, so to say something non-trivial about the functions of these concepts, we cannot simply say that we exhaust the discussion by talking about their effects. I do not see a way to talk about function without an appeal to teleology, and while from the point of view of scientific biology it might in some sense be ideal to eliminate teleology entirely or at least offer a reductive account thereof to causal mechanism, that is not the case in ethics, and what I am doing here is ethics. Insofar as we are then willing to talk about teleology, we can then talk about what a representation, such as a belief or a concept, not only *does*, but what it is *supposed* to do, and we can then talk about, not only the function of the representation, but whether it is performing that function well – indeed, we can ask whether we want anything at all to be performing that function in the first place.

3.3.11 This brings us to Srinivasan’s positive proposal, which will appeal to the idea of a function. As she puts it:

A critical genealogy is a guide to worldmaking when it not only diagnoses our representations in terms of the oppressive function they serve, but moreover shows us the role that agential powers – individuals, groups, and institutions – have played in the emergence and continued dominance of these representations.¹⁹²

Worldmaking is “the transformation of the world through a transformation of our representational practices.”¹⁹³ So, when critical genealogy provides an account of the function of our beliefs, concepts, or representations more broadly, we can see the way “agential powers” established and, now, continue to maintain those representations by maintaining the practices in which they play some role. In turn, with that account, “we might be able to exercise our own agential powers to make our representations, and thus our world, anew.”¹⁹⁴ Worldmaking can take different forms, depending on the representation being dealt with, since representations can play different roles in the world under consideration: in some cases, worldmaking focuses on the *causal* effects of a representation, while in other cases, the focus is instead on possible *constitutive* effects.

It is not clear to me why Srinivasan refers to this activity of transforming our representational practices as *worldmaking* when there is already a similar activity, or at least one which sounds similar on the face of it, which is something of a philosophical hot topic, namely, *conceptual engineering*. Herman Cappelen, for instance, says that conceptual engineering is “the activity of assessing and developing improvements of our representational devices.”¹⁹⁵ Similarly, Kevin Scharp writes that he takes “...conceptual engineering to be actively changing some aspect of our concepts – eliminating bad ones, deciding which ones we should use, and which

¹⁹² Srinivasan, “Genealogy, Epistemology, and Worldmaking,” 145.

¹⁹³ Ibid.

¹⁹⁴ Ibid.

¹⁹⁵ Herman Cappelen, “Conceptual Engineering: The Master Argument,” in *Conceptual Engineering and Conceptual Ethics*, ed. Alexis Burgess, Herman Cappelen, and David Plunkett (New York, Oxford University Press, 2020), 132.

word should express them.”¹⁹⁶ In fact, I would have thought Scharp’s understanding of conceptual engineering aligns quite nicely with at least some of what Srinivasan has to say throughout the paper I have been discussing. Scharp, for instance, writes that

Conceptual engineering is taking a Socratic, that is, critical, and Nietzschean, that is, active, attitude towards one’s own conceptual scheme. Right now, many of us think that we should already take this attitude towards our beliefs. For example, we should subject our beliefs to a battery of objections, see how well we can reply to those objections, and if a belief doesn’t fare well in this process, then that’s a good indicator it should be changed...The central idea of conceptual engineering is that we ought to take the same critical attitude toward our concepts.¹⁹⁷

This attitude of doubt towards one’s own representations, and in particular one’s own inherited concepts, seems to align with Srinivasan’s remarks.

Further, conceptual engineering, as mentioned above in the quote from Cappelen, also involves the development of *improvements* to our representations (and in particular, at least for conceptual engineers, for our concepts). These improvements will depend on the sort of concept we are dealing with: Scharp, for instance, thinks

...that most, if not all, commonly discussed philosophical concepts are inconsistent...One way to make sense of this idea of an inconsistent principle is to say that the concepts have constitutive principles – principles that constitute that concept in the sense that they tell you which concept it is, and often those constitutive principles are inconsistent with one another or with obvious facts about the world. The concepts I think are inconsistent include truth, knowledge, nature, meaning, virtue, explanation, essence, causation, validity, rationality, freedom, necessity, person, beauty, belief, goodness, space, time, and justice.¹⁹⁸

For Scharp, improvement takes the form of “identify[ing] the conceptual defects...craft[ing] new concepts to avoid the old defects...with an eye toward repairing the philosophical subject matter for outsourcing as a science. The ultimate goal of the process is the potential end of

¹⁹⁶ Kevin Scharp, “Philosophy as the Study of Defective Concepts,” in *Conceptual Engineering and Conceptual Ethics*, 396-397.

¹⁹⁷ Ibid., 398.

¹⁹⁸ Ibid., 397.

philosophy.”¹⁹⁹ All of this does depend on several presuppositions in the background of Scharp’s *radical therapeutic program*, but those are irrelevant for present purposes. What *is* relevant is simply the idea that here we see one sort of proposed improvement: the identification of inconsistent concepts, their replacement with consistent ones, and the development of a scientific program which uses the consistent, replacement concepts. Worldmaking presumably does not look quite like this: the point of worldmaking is to make, unsurprisingly, a *new world*, and particularly a new *social* world, I think, rather than, say, a new scientific paradigm or a new innovation within an already-existing paradigm.

3.3.12 But a different model of improvement to our representational devices, one that might be closer to what Srinivasan has in mind, is found in the work of Sally Haslanger, who is thought to be undertaking conceptual engineering in what is called an *ameliorative* spirit. For instance, in her paper “Gender and Race: (What) Are They? (What) Do We Want Them to Be?,” she writes that her “...priority in this inquiry is not to capture what we do mean [when we use gender and race concepts], but how we might usefully revise what we mean for certain theoretical and political purposes.”²⁰⁰ Perhaps we find ourselves with concepts of sex/gender and race which are, at some level or another, confused or the products of bad science and philosophy, but we can still ask, about those very concepts, a question like Haslanger’s: “why might feminist antiracists want or need the concepts of gender and race? What work can they do for us?”²⁰¹ In the “Gender and Race” paper, she refers to this project as “analytical,” but in later work she begins to refer to it as “ameliorative,” as I mentioned above, but in either case, the point of the activity is the same. As she puts it:

¹⁹⁹ Ibid., 399.

²⁰⁰ Sally Haslanger, “Gender and Race: (What) Are They? (What) Do We Want Them to Be?” *Nous* 34 no. 1 (March 2000), 34.

²⁰¹ Ibid., 36.

Ameliorative projects, in contrast, begin by asking: What is the point of having the concept in question[?]. . . what concept (if any) would do the work best? In the limit case a theoretical concept is introduced by stipulating the meaning of a new term, and its content is determined entirely by the role it plays in the theory. If we allow that our everyday vocabularies serve both cognitive and practical purposes that might be well served by our theorizing, then those pursuing an ameliorative approach might reasonably represent themselves as providing an account of our concept – or perhaps the concept we are reaching for – by enhancing our conceptual resources to serve our (critically examined) purposes...²⁰²

Haslanger goes on to identify various concerns within the analytical, i.e., ameliorative project, such as the “need to identify and explain persistent inequalities between females and males, and between people of different ‘colors.’”²⁰³ To put it differently, it sounds like what Haslanger is identifying are various ends because what she is looking to provide is an account of sex/gender and race concepts which can meet those ends: that is, she is looking for concepts with a certain *function*. In some cases, we may need to introduce a new concept since nothing in our conceptual repertoire can serve the function we have identified, while in other cases, we might provide a new account of a concept we already have, one which introduces into the concept either entirely novel content or one which frames the content in a different way.

3.3.13 As I mentioned, it is not clear to me why Srinivasan refers to the activity of transforming the world via a transformation of our representational practices as worldmaking when the activity of conceptual engineering sounds like it would fit the bill. Indeed, the sort of engineering imagined by Haslanger would seem nearly identical. It is possible that it is an oversight on Srinivasan’s part, but I do not find that answer charitable. So, I want to hazard a guess on the difference between worldmaking and conceptual engineering, and to make my guess, we have to consider conceptual engineering again.

²⁰² Sally Haslanger, “What Good Are Our Intuitions?,” *Proceedings of the Aristotelian Society, Supplementary Volume* 80 (2006), 95-96.

²⁰³ Sally Haslanger, “Gender and Race: (What) Are They? (What) Do We Want Them to Be?,” 36.

It seems to be recognized that conceptual engineering, given its revisionary nature, faces various *implementation challenges*. Some of these challenges have to do with the mere acquisition and use of the engineered concept, while other challenges are ethical and political. One implementation challenge, for instance, concerns the possibility of preserving reference to the same topic after the use of an engineered concept. The challenge of *topic continuity*, in other words, is the challenge of showing that conceptual engineering does not simply generate merely verbal disputes between users of some initial concept and some engineered concept (I will also discuss this in 4.5). Here is Cappelen's presentation of the problem:

Suppose 'F' means M. We then ameliorate and in so doing revise the meaning of 'F'. The following will be the result: Pre-ameliorators using 'F' will be talking about something other than those using 'F' post-amelioration. The result of the amelioration will be a change of topic. That, again, can lead to verbal disputes: the pre-ameliorator asserted 'Fs are G' and the post-ameliorators say 'Fs are not G'. It looks like a disagreement, but if there's been a change in meaning of 'F', then there's no disagreement. Moreover, if people pre-amelioration had put massive effort into trying to answer the question: 'are Fs G?'; it now looks like we've lost track of that question. The question asked by post-ameliorators when they utter 'Are Fs G?' is a different question.²⁰⁴

This implementation challenge is a linguistic challenge. The extent to which the challenge can be met may depend on the particular concept under consideration, and further, the content of the concept and the way in which the concept secures reference.

As I mentioned, though, other challenges are ethical or political. For instance, Eve Kitsik argues that certain instances of epistemic engineering run the risk of being morally objectionable because they involve *paternalistic cognitive engineering*, where *cognitive engineering* is the practice of "...deliberately and reflectively shaping an agent's belief-formation in light of assumptions about their cognitive system,"²⁰⁵ and where the engineering is paternalistic because

²⁰⁴ Cappelen, "Conceptual Engineering: The Master Argument," 140.

²⁰⁵ Eve Kitsik, "Epistemic Paternalism via Conceptual Engineering," *Journal of the American Philosophical Association* 9, no. 4 (December 2023), 618.

the agent is not consulted and the engineering has an aim to “improve the agent’s epistemic situation...this may be instrumental for further non-epistemic purposes,”²⁰⁶ and finally, where the engineering is objectionable because “...the agent could reasonably regard it as a violation of their sovereignty over their belief formation.”²⁰⁷ Not every form of conceptual engineering will face such problems: Kevin Scharp does not seem to be engaged in paternalistic cognitive engineering with his introduction of replacements for the concept of *truth*, what he calls *ascending truth* and *descending truth*, because it is not reasonable for an agent to regard the introduction of these concepts as a violation of sovereignty over belief-formation, since Scharp introduces these concepts in a book and offers reasons to use them. The engineering would not be morally objectionable even if Scharp’s account ultimately did not succeed, which it may not – I am not competent to take a stance on the matter.

By contrast, a suggestion that I find rather more disquieting is that we engineer social norms in order to implement the engineered concepts, and moreover, that we can do so in a way that does not require that we appeal to everyone in the relevant linguistic/conceptual community: as Nimtz puts it, “social norms may allow us to bring about a general change in the collective linguistic behaviour of a community by convincing just a few speakers – given that these are the right ones.”²⁰⁸ Depending on the particular concept, this may be entirely unobjectionable, but in other cases, this would strike me as insidious. Moreover, not every concept can be taken seriously by those who use it if they have an understanding of the social process by which they came to have it, and this suggestion by Nimtz may run into that sort of problem: if something, such as a concept, is understood to be a product of *mere* choice, *arbitrary* choice, *luck*, or

²⁰⁶ Ibid.

²⁰⁷ Ibid.

²⁰⁸ Christian Nimtz, “Engineering Concepts by Engineering Social Norms: Solving the Implementation Challenge,” *Inquiry* (2021), 3-4.

something to that effect, or if the process can be represented in those terms, then the concept was not introduced for a reason, and in turn, it looks like it either has no significant function at all or, if it does have a function, then one that does not necessarily accord with the rational order of things, and in both cases, seems to be unimportant. Finding your own conceptual repertoire to be populated by unimportant concepts – concepts with either no explanation or an explanation which does not appeal to anything like a good reason – can be uncomfortable. To take a concrete example, I can use certain chic therapy concepts, such as *self-care*, *mindfulness*, *boundaries*, and *vulnerability*, and every time I use them, I find myself annoyed with myself because the explanations I have been given on those concepts – why I should use them, etc. – strike me as, frankly, stupid. But this is totally unsurprising: I can become conscious of my own concepts and bear attitudes towards them, in much the same way I can bear attitudes towards other features, activities, etc. of myself, and there is no reason to assume that all those attitudes will be happy and pleasant.

3.3.14 We need to return to the topic under consideration, namely, the relationship between worldmaking and conceptual engineering. As I said above, I believe the nature of these implementation challenges brings out the difference.²⁰⁹

My suggestion is that the difference between worldmaking and conceptual engineering of the sort discussed above has both a formal and a material element, which, if right, means that worldmaking and conceptual engineering, while related, are nevertheless distinct, such that one is not an instance of the other or something to that effect: worldmaking is not “applied conceptual engineering,” nor is conceptual engineering something like “worldmaking for the classroom.” The difference comes out with the implementation challenge. I want to suggest that,

²⁰⁹ I take myself to be building on Srinivasan here, rather than strictly explicating her.

while any particular program of conceptual engineering *may* have an implementation challenge, any instance of worldmaking, *trivially*, *has* such a challenge: that worldmaking (necessarily) has such a challenge shows the material difference, and that worldmaking *trivially* has such a challenge will bring out the formal difference.

The material difference, i.e., the difference in content, between conceptual engineering and worldmaking is that worldmaking, crucially, focuses on the transformation of concepts which play not only a political role in day-to-day life, but concepts which are used to identify various politically salient activities and statuses. Formally, the difference is that the activity of worldmaking is itself one which is public and political, rather than, say, private.²¹⁰ Conceptual engineering, on this suggestion of mine, *may* face an implementation problem depending on the particular engineering project and the particular concepts under consideration, but I think it does follow that worldmaking not only has implementation challenges, but it has them *trivially*. The reason is that worldmaking, by hypothesis, concerns concepts (or more broadly, representations) which are used in politics to offer explanations and justifications, and in modifying those concepts, the worldmaker modifies what is politically valuable. In this way, the worldmaker does not simply take people's preferences for granted. In turn, worldmaking will then always have a tense relationship with liberalism, for the reason that, as Geuss puts it, "one of the central pillars of most contemporary liberalism is anti-paternalism, which in most of its forms presupposes that individual preferences in politics are to be taken as they come and not questioned."²¹¹ (It is also for this reason that genealogy has a connection with radical politics, though the radical politics

²¹⁰ The distinctions between the personal/private and the public/political are unclear, not only because there are good reasons for thinking that "the personal is the political" in at least some respects, but because those very concepts have a messy genealogy: see Raymond Geuss, *Public Goods, Private Goods* (Princeton University Press, 2001).

²¹¹ Raymond Geuss, "Introduction," in *Outside Ethics*, 4. The worldmaker need not be acting in a paternalistic spirit: that is, the worldmaker need not think that they are criticizing and modifying concepts and representations for the good of the subjects who have those representations. They might instead simply think that it is politically necessary to modify those representations.

need not be left radical politics.) The content of worldmaking involves those concepts which figure into the content of people's preferences, as well as the concepts in terms of which people understand, among other things, the concept of a *preference* in the first place.

From this, I think it will follow that worldmaking does indeed, trivially, have various implementation problems: subjects may indeed regard the activities of the worldmaker as infringing upon their sovereignty (of belief-formation, or whatever) because the worldmaker is attempting to modify those activities in the first place, as well as activities which surround it, such as the understanding of the concepts of *sovereignty*, or what constitutes *infringement*, and so on. These types of implementation problems would not arise if worldmaking simply involved me trying to modify my own representations in the comfort of my own home, so worldmaking's implementation problems are essentially intersubjective or social. By contrast, in the case of conceptual engineering, it seems possible for me to engineer a new concept and use that concept on my own, and then I can ask myself whether, say, questioning my old beliefs with that new concept simply generates verbal disputes with myself.

My conclusion, then, is that while Srinivasan's worldmaking does indeed sound similar to conceptual engineering – it sounds like it might be an instance of it, i.e., it might be a particular engineering program – it is ultimately distinct, because the sorts of problems worldmaking attracts are different from the sorts of problems conceptual engineering may attract, meaning that worldmaking and conceptual engineering are constituted by activities which are subject to different norms.

3.3.15 I have discussed Srinivasan at great length because I consider this account of critical genealogy one of the stronger accounts available. What is the payoff? Critical genealogy is unlikely to work if it remains purely epistemic. Moreover, critical genealogy typically attempts

to undermine the epistemic justification of various beliefs on the assumption that the content of those beliefs is given a realist construal. On this picture, then, critical genealogy attempts to undermine moral knowledge by arguing that, say, one's beliefs are not safe, and so are not knowledge, because response-independent reasons for action are unlikely to be the content of one's beliefs. If, however, you opt for some sort of anti-realist construal of the content of those beliefs, the situation is different. On one sort of Kantian view, for instance, reasons for action are the products of a construction procedure constituted by the Categorical Imperative, rather than being response-independent entities, and so my beliefs about morality are indeed safe.

How does this bear on the arguments against morality which I hope to generate later on? I will need to offer an argument which simply bypasses issues of theoretical epistemology, and one way to do so is to take up one of her suggestions, namely, that a genealogy consider not so much the epistemic justification we have in believing some proposition, the aptness of some concept, but rather, the *functions* of various representations and activities within the moral community. The point will have to be, not that the mechanisms upon which we rely for moral beliefs are not reliable, but that those mechanisms are instead, in some sense, objectionable.

3.4: Forms of Genealogy Continued: Pragmatic and Empirical Non-Ideal

3.4.1 The last piece to put in place has to do with a different distinction, namely, the distinction between *pragmatic genealogy*, a term introduced by Matthieu Queloz in various writings, and *empirical non-ideal genealogy*, a term introduced by Nicholas Smyth. My own genealogical argument will attempt to thread the gap between both sorts of genealogy, each of which can be either critical or vindicatory.

3.4.2 *Pragmatic genealogy* is a form of genealogy which is discussed and used by Edward Craig and Bernard Williams, though it may have been used by Hume in the *Treatise* in his

account of the artificial virtue of justice, as well as some earlier figures in the early modern tradition. This form of genealogy is explicitly *fictional* in its set-up, a thought I will explain shortly, and effectively amounts to an argument by analogy. Craig uses the method to offer an account of the concept of *knowledge*, while Williams uses it to offer an account of what he calls the *virtues of truth*, namely, *Accuracy* and *Sincerity*, in *Truth and Truthfulness*. In the case of Williams, some initial condition is first specified – what Williams calls *the state of nature* – in which human beings have some sort of need, which in *Truth and Truthfulness*, is the need for truth. Those within the condition then have reason to converge upon a practice, a set of virtues, or something like that which offers a solution to the problem or addresses the relevant need. Finally, the thought is that because we, in the actual world, are sufficiently similar to those in the genealogical account, we can conclude that we use the relevant concepts, inhabit the relevant practice, or whatever for similar reasons, and that those reasons justify our use of the concept, the practice, or whatever.

As I said above, the initial condition is understood to be fictional, but that does not mean that the entire account must then exclude from itself anything actual: Williams, for instance, does indeed appeal to real history eventually to explain, for instance, how something like a notion of *authenticity* might develop as a kind of aberration or instance of sincerity. Moreover, the picture of the solutions – here, the virtues of truth – need not be unambiguously good and happy from every angle. Indeed, in the case of authenticity, we get a picture of something that is taken to be a virtue but presupposes a false picture of what it takes to know oneself – indeed, to *be* oneself – in the first place.²¹² That said, insofar as the genealogy is successful, it can vindicate or undermine

²¹² For more, see TT ch. 8, esp. sect. 3, “Steadying the Mind.” Williams’s thought is that without intersubjective mechanisms of proleptic blame it will not in general be possible for a subject to identify her own mental states. I discuss these mechanisms in greater detail in chapter 5: see 5.4.14ff. for more.

a practice, and it can do so in a variety of ways, such as by offering a *practical reason* to continue doing what we're already doing anyway, or by restoring *confidence*, or, turning to those genealogies which are critical, it may show that a belief-generating mechanism is *unreliable*, or that we are relying upon misleading *evidence*, or that we fail to have any of the practical reasons we actually thought we had, or whatever.

3.4.3 By contrast, Nicholas Smyth distinguishes pragmatic genealogy, of the sort used by Craig, Williams, and Queloz, from what he calls *empirical non-ideal genealogy*. According to Smyth, empirical non-ideal genealogy is distinct from pragmatic genealogy, first, because it dispenses with the idealization inherent in pragmatic genealogy. It is not clear to me how to best make sense of Smyth's appeal to the currently very chic *ideal/non-ideal* distinction, but I do not think he is using the distinction in the way Rawls does in TJ, where it is understood in terms of *full* and *partial compliance* in §53, nor in the other ways proposed by Laura Valentini, who writes that we can distinguish ideal and non-ideal theories in not only the Rawlsian way, but in terms of *utopian* and *more-or-less realistic* theories, as well as in terms of *end-state* and *transitional* theories.²¹³ I think Smyth has in mind something like a distinction between the *abstract* and the *concrete*, but perhaps a better way of understanding the *abstract* here is as the *abstracted-from*. That is, here, idealization involves the introduction into an account of simplifying assumptions, and in turn, an ideal (or better, idealized) genealogy incorporates such simplifying assumptions, such as by assuming the persons in the initial condition live in a temperate climate on Earth, rather than in a Martian polar region. By contrast, a non-ideal genealogy does not have such simplifying assumptions in virtue of its empiricism. As Smyth ultimately puts it, non-ideal empirical genealogy "...dispenses entirely with the idealized model

²¹³ Laura Valentini, "Ideal vs. Non-ideal Theory: A Conceptual Map," *Philosophy Compass* 7, no. 9 (2012): 654–64.

and simply looks to the actual functions of our concepts and practices given their distant and recent history.”²¹⁴ Smyth offers the following account of the way that empirical non-ideal genealogy presents us with reasons:

(P1) In our actual group, G, there is some practice CP into which I want to inquire.

(P2) By looking at its contemporary shape, its recent history, and potentially its ancient ancestor-practices, I find good evidence that CP exists largely because it produces effect E, and I am able to specify, in some general terms, the feedback mechanism that reproduces CP on the basis of its having effect E.

(C1) Therefore, I have good reason to believe that one major social function of CP is to produce E.

(C2) Therefore, to the extent that I would value E under conditions of full information, I have reason to promote or foster CP. And, to the extent that I would *disvalue* E under conditions of full information, I have reason to frustrate or oppose CP.²¹⁵

Smyth does use the language of *cause* and *effect* here, but I do not see why his account would have to be restricted to saying that the problem with a practice is to be found in its *effects*. A practice might be bad not so much because of the effects it has, but because of the way in which it assigns statuses to those within it in the first place, either in virtue of the way that the assignment itself works or in virtue of what those statuses are. For instance, slavery is, obviously, associated with bad effects for both the enslaved and the slaveholders, as well as those who have to live in a society where that sort of thing is practiced, but even prior to any treatment, there is still a wrong simply in being designated a *slave*. In this case, we might say that the practice, in addition to having bad effects, functions in objectionable ways in virtue of its being constituted by objectionable principles.

3.4.4 Are either of these ways of looking at genealogy helpful? Both of them have some flaws, some of which are considerable. In the case of pragmatic genealogy, the fact that we’re dealing

²¹⁴ Nicholas Smyth, “Purity and Practical Reason: On Pragmatic Genealogy,” *Ergo* 10, no. 37 (2023), 1058.

²¹⁵ *Ibid.*, 1075.

with an explicitly imaginary set-up might already sit with us uneasily because it can signal that we're already aiming for the second-best, as it were, by trying to content ourselves with something imagined since we can't get to the real, the actual, or something like that. After all, if I knew the actual history of a concept or a practice, why would I bother with a pragmatic genealogy in the first place? There are some different responses available at this point, two of which I will outline: the first is that we are not so much thinking about the imaginary as much as we are about the *hypothetical*, while the second is that we can offer a different characterization of the initial conditions, the so-called *state of nature*, and see these arguments in a different light.

First, then, we might characterize the initial condition of a pragmatic genealogy not so much as an imaginary or idealized condition as much as a *hypothetical* condition. This is significant because, once we have in view the idea of a hypothetical condition, we can then talk about certain sorts of activities and statuses which seem ethically and politically significant, such as *hypothetical consent*.²¹⁶ This is significant because hypothetical consent seems to be able to do work that neither actual nor tacit consent can do, or at least can do realistically, because hypothetical consent can establish what is *justifiable* and what is *unjustifiable*, or what is *reasonable* and what is *unreasonable*, and these statuses can themselves provide or undermine justification.

A general difficulty with tacit and hypothetical consent is that it becomes difficult to make sense of either withholding such consent or revoking it, unlike in the case of actual consent. Some of the problems with tacit consent seem parasitic on its being a species of actual consent. In a classic appeal to tacit consent, for instance, Locke writes that the authority of the state power is justified only on the condition that it is consented to, and he notices, accurately,

²¹⁶ For a recent discussion of hypothetical consent, see David Enoch, "Hypothetical Consent and the Value(s) of Autonomy," *Ethics* 128, no. 1 (2017): 6–36.

that few people, if anyone, actually do openly, or as he puts it, *expressly*, consent to the authority of the state, such as by saying to the governor “I consent to your authority” when you reach the age of majority. Since he requires actual consent as a condition of the legitimacy of authority of state power and since explicit consent does not seem practiced, nor does it seem reasonable to practice, he instead appeals to tacit consent to understand the legitimacy of state authority, writing that

The difficulty is, what ought to be looked upon as *tacit consent*, and how far it binds...And to this I say, that every man, that hath any possessions, or enjoyment, of any part of the dominions of any government, doth thereby give his *tacit consent*, and is as far forth obliged to obedience to the laws of that government, during such enjoyment, as any one under it; whether this his possession be of land, to him and his heirs for ever, or a lodging only for a week; or whether it be barely travelling freely upon the highway, and in effect, it reaches as far as the very being of any one within the territories of that government.²¹⁷

It seems to me that, on this account of tacit consent, you cannot help but consent to the authority of the state because Locke identifies anything that you cannot help but do as a human being with the conferral of tacit consent. If the human being were a cactus, the cactus-person would not act in a way to confer tacit consent, but since the human is not and cannot be a cactus, and cannot live a cactus life, it must move around, but mere movement is sufficient to confer tacit consent. This seems like a form of consent that you cannot help but offer, but consent that you cannot help but offer simply does not seem like consent. Moreover, if this is actual, albeit non-express, consent, I do not see why the account does not allow me to travel freely upon the highway while expressly saying, over and over, “I do not consent.” Tacit consent, if it is indeed a species of the genus actual consent, seems too easy to cancel or revoke, but by contrast, hypothetical consent does not seem easy enough to cancel or revoke.

²¹⁷ John Locke, *Two Treatises of Government* (Cambridge University Press, 1988), sec. 119.

That said, understanding a civil condition's legitimacy in terms of our hypothetical consent thereto does seem to make a difference, despite these problems. In turn, the move to discussing the hypothetical in genealogy *can* be reasonable, but, of course, it depends on what is being talked about. If that is true, then pragmatic genealogy does not necessarily presume that we are already aiming for the second best, i.e., that we are only going to be able to generate an account which is still defective at the end of the day.

3.4.5 The other possible response to the criticism of the use of pragmatic genealogy asks us to re-imagine the so-called *state of nature*, the starting condition. On certain genealogical accounts, part of the point of the account may be to show that the imagined state of nature is in fact an impossible condition, in some sense that would have to be specified. The concrete example of Hobbes in *Leviathan* is useful here, a case I borrow from David Sussman in discussion.

A typical reading of Hobbes's reasoning in *Leviathan* takes the form of saying that the state of nature is a really possible human condition, and since we all have reason to avoid the perils enabled by inhabiting such a condition, we all have reason to obey the sovereign, since the sovereign provides for the civil condition and thereby helps us avoid the state of nature. A difficulty with this reading has to do with understanding this idea that we all have reason to enter a civil condition: not only does the specification of the state of nature in the Hobbesian mean that none of us is in a position to assert that we all share a reason, but the relevant reasons could only be appreciated by people who had already been in the civil condition.

A different reading of the text, one advocated in discussion by Sussman and one which I find more plausible, holds that Hobbes is instead showing that the state of nature is *incoherent*, in particular, incoherent as a human social condition, and that instead, we human beings are always already in a condition which is a political condition. On this reading, we start from where we are

– in a civil condition – and imagine what would happen if human beings lacked that which constituted such a condition. Hobbes’s view is that, without a legal authority of the sort found in a civil condition, we would be in a state of nature in which each of us exercises purely private judgment, a condition that is a *state of war*, and human life would ultimately turn out, as we all know, to be “solitary, poor, nasty, brutish, and short.” The insight is to recognize that *that* sort of life is not a human life, or more precisely, that sort of life, while it can be the life of particular human beings, cannot be the life of the human being as such, since the human being, as a species, would not be able to subsist and reproduce itself if its life were “solitary, poor, nasty, brutish, and short.” What we then do, per the initial suggestion, is reconceive of the state of nature: here, we reject the idea that the condition itself is normatively indifferent in favor of the idea that the condition is incoherent as a human social condition, and that while particular persons and particular groups in some sense could find themselves in such a condition, they would, first, be the exception and not the rule, and second, would find themselves in a condition which was defective. In turn, this is a second way in which a pragmatic genealogy’s starting point with something imaginary is not necessarily a bad thing: the idea, in brief, is that we can disabuse ourselves of a certain illusion, one that is here identified in the specification of the state of nature.

In brief, then: while pragmatic genealogy’s set-up, involving an imaginary state of nature condition, *can* be a problem, it does not *have* to be one. In particular, it does not have to be a problem when we are dealing with concepts or practices which are, first, in some sense or another *necessary* to us, and second, when those necessary concepts or practices are such that we can still reasonably expect either a justification of them, or, barring that, a way to make sense of them.

3.4.6 What about empirical, non-ideal genealogy? I think we can grant both premises, from which the relevant conclusions do follow. But I think cases where these premises are true are *far* less common than you might initially think. Take, for instance, P1: “In our actual group, G, there is some practice CP into which I want to inquire.” It is already a substantive move to first identify the relevant phenomenon as a *practice*, and moreover, as *this* practice. To explain what I have in mind, one example I want to consider is a Nietzschean favorite, *punishment*. If we were to find on reflection that the most plausible account of legal punishment were a retributive theory, then there is a possibility, suggested by Bernard Williams, that what we will have come up with is an error theory of legal punishment: as he puts it, “those who think that punishment has a lot to do with retribution should, correspondingly, ask whether anything done to an offender under modern conditions can really be punishment.”²¹⁸ *Under modern conditions*: this is the crucial bit, by which Williams means modern demands on criminal justice in the context of the law, such as the demand for transparency, all of which have a function of *slowing down* judicial procedures, at which point it is hard to see how the resulting punishment can really be a form of retribution. To return to the case of Smyth, then, and premise P1 of his empirical non-ideal genealogy, even in *saying* there is a practice, such as the practice of punishment I was just discussing, presupposes that certain accounts of that practice are off the table, such as a thoroughly retributive understanding of criminal punishment for the reasons just outlined.

But it’s P2 that I think raises greater difficulties and speaks more to my suggestion that empirical non-ideal genealogy is effective in fewer cases than we may initially think. P2, recall, states that “by looking at its contemporary shape, its recent history, and potentially its ancient ancestor-practices, I find good evidence that CP exists largely because it produces effect E, and I

²¹⁸ Bernard Williams, “Moral Responsibility and Political Freedom,” in *Philosophy as a Humanistic Discipline*, ed. A.W. Moore (Princeton, NJ: Princeton University Press, 2006), 124.

am able to specify, in some general terms, the feedback mechanism that reproduces CP on the basis of its having effect E.” Leaving aside the language of causality, a point I mentioned above, as well as the point that identifying CP as CP is already a substantive move, I think there is a difficulty in identifying the effects of the practice under consideration. The concept of E itself may be a recent concept that was not used by participants in CP until now, and so in looking at the history of CP we will also be distorting that history by thinking about it in terms not available to those within the practice in the past. To put it differently, it is not clear if those in the past agree with us or simply use the same word, or, differently, if we disagree with them or are instead in a verbal dispute. If the concepts involved are relatively stable over time, then this problem does not arise, but my impression is that practices of this sort – practices with a stable set of rules and a stable culture enabled by that set of rules, used to interpret those rules and their concepts – are the exception, not the rule. Practices like these would need to be unresponsive to political, cultural, and technological development, and I suspect that few practices are like this. Further, any target behavior-type we might be interested in studying the effects of is a possible instance of any number of practices, and again, here too there is room for distortion by importing into the picture our conceptual repertoire, which, of course, we cannot help but import.

For these reasons I am not sure whether Smyth’s conclusions follow, or at least, follow in general, i.e., follow independently of the content of CP, E, and so on. C1, recall, is that “I have good reason to believe that one major social function of CP is to produce E,” while C2 is that “to the extent that I would value E under conditions of full information, I have reason to promote or foster CP. And, to the extent that I would *disvalue* E under conditions of full information, I have reason to frustrate or oppose CP.” I would modify C1 to say something to the effect of what I have reason to believe about CP, *when practiced by people like us*. C2 strikes me as

objectionable due to the idealization in the antecedent of the conditional: it is not clear to me that I am ever in a condition of full information, but as a necessary condition of valuing something is that you understand yourself to be in a condition of at least the full relevant information anyway, so the “full information” clause strikes me as vacuous.

3.4.7 I conclude, then, that pragmatic and empirical non-ideal genealogy are both limited, but each has their place, and that pragmatic genealogy has more uses than Smyth might want to admit.

3.4.8 More broadly, what can we distill from all of this? That is, what can we conclude not only from section 3.4, but 3.3 and 3.2 as well? Discussions of genealogy have a variety of distinctions at play, and not all authors appear to be talking about the same thing. There are three primary distinctions that we can glean, and genealogy can be categorized and understood using these distinctions. First, there is a distinction between *epistemic* and *functional* (or *practical* or *ethical*) genealogy, where an epistemic genealogy is offered in terms that have to do with a subject’s claims to belief, knowledge, evidence, reliability, and so on, while a functional genealogy will instead have to do with reasons for certain sorts of activities, such as action. Second, there is a distinction between *vindictory* and *critical* genealogy, where a *vindictory* genealogy confers justification on the genealogical object, while critical genealogy detracts from the object’s justification. Finally, there is a distinction between *pragmatic* and *empirical non-ideal* genealogy, where a *pragmatic* genealogy is explicitly fictional, while an *empirical non-ideal* genealogy is not.

We can, as I mentioned, use these distinctions to characterize different uses of the genealogical method or genealogical forms of argument. For instance, Craig offers a vindictory pragmatic epistemic genealogy of the concept of knowledge, while Foucault seems to offer a

critical, empirical non-ideal, practical genealogy of punishment. These distinctions are helpful, even if it turns out they do not exhaust the space, since they can still help us understand things within the space which may seem to be odd outliers, such as a sort of genealogy which simply makes things *harder*: Geuss seems to offer such a genealogy of the concepts of the *public* and the *private* in *Public Goods, Private Goods*, where he shows that these concepts are constituted by considerations and principles which stand in an uneasy relationship with one another. This is keeping with Geuss's understanding of genealogy as *critique*, which I discussed above in 3.1.3. This may mean all sorts of things depending on the concept under consideration: if a concept only has a certain sort of authority in thought on the assumption that it is a strong unity, then a genealogy in this sense may undermine it, but for other concepts, that may not be the case. In any event, the distinctions above help us understand why this genealogy is a bit of an outlier: it eludes some of those distinctions, but to say so requires that those distinctions exist in the first place.

Further, within all of these dimensions, it is possible to develop further characterizations. An epistemic genealogy might function by offering a *defeater*, for instance, or by offering *evidence*, or by speaking to the (un)*reliability* of a mechanism of some sort, and so on. Similarly – and something I will return to shortly – a practical genealogy might function in all sorts of ways: it might offer a *reason*, or it might instead function not so much to offer a reason as much as to restore *confidence* in a practice which provides for the possibility of reasons, or it might offer a practical *explanation*, or whatever else.

I am inclined, then, to think that genealogical arguments are to be understood perhaps in terms of a family resemblance with one another. They do not exhibit any deeper unity.

3.5: A Practical, Critical, Pragmatic Genealogy of Morality

3.5.1 This brings me to my positive argument. To try to motivate what I am after, I want to return to an example from earlier, which I will repeat. Recall: in the *Treatise*, Humes writes that:

It requires but very little knowledge of human affairs to perceive, that a sense of morals is a principle inherent in the soul, and one of the most powerful that enters into the composition. But this sense must certainly acquire new force, when reflecting on itself, it approves of those principles, from whence it is deriv'd, and finds nothing but what is great and good in its rise and origin.²¹⁹

Hume says that the “sense of morals,” when it takes itself for its object, “acquires new force” because it approves of itself, in the sense that it approves of those principles which constitute it. I want to argue that Hume is wrong: that is, I want to argue that the “sense of morals,” as he puts it, when it takes itself for its own object, does *not* approve of itself.

I said above that I want to offer a critical, practical, pragmatic genealogy of morality, a genealogy we can distinguish from others by using the dimensions I discussed in the earlier parts of this chapter. Here, what I will assume is a form of Kantian constitutivism of the sort argued for by Andrew Smith elsewhere, and show that *that* account, if it does establish the normativity of practical reasons and with it, moral identity, only does so on the condition that we have a form of agency which I will call *aphetic agency*, a form of agency in which the norms constitutive thereof are authoritative only on the condition that those norms do not include a transparency condition due to the operation of a mechanism I will outline and discuss that I want to call *aphesis*. Since morality includes a transparency condition, as well as a naturalistic understanding of itself given its own liberal ideals, it follows that the activity of endorsement, identification, recognition, etc. with morality is itself something immoral. Morality is not so much our way of

²¹⁹ SBN 619.

being animals, as Korsgaard puts it, as much as it is our way of being *tumors* or *parasites unto ourselves*.

3.5.2 To begin, then, assume for the sake of argument that a Kantian constitutivist argument is successful. One such argument that is relatively recent and plausible is offered by Andrew Smith, who argues that we have to accept the normativity of moral identity in order to be able to do anything at all, i.e., to have authoritative practical reasons. Since “acceptance of the normativity of moral identity” is an endorsement of morality, it follows that we can only act on the condition that we endorse morality. Smith’s argument is very minimal and is objectionable in the way that these arguments are always objectionable: he claims, for instance, that we must *recognize* the authority of morality in order to do anything, but he not only gives no account of what this activity of *recognition* consists in, he does not even justify his claim that what is found here is, indeed, *recognition* in the first place. I do not see why the problem is solved if we instead say that the activity of one of *identification*, or of *endorsement*, or whatever else. But leaving that aside and simply granting that the relevant activity is, indeed, one of recognition, there is simply no reason why that recognition is one that must stay the disquietude we might have with respect to morality, such as some sort of genealogical anxiety of the sort discussed by Srinivasan which I tried to elaborate upon. It is entirely consistent with these arguments that the relevant activity is one that, very simply, we cannot help but do. But that *I cannot help but X* does not in general justify my performance of X, though it may excuse it.

What I want to do is grant Smith his argument. What I then want to do is think more about this activity of *identification*, *endorsement*, *recognition*, or whatever else, which is typically appealed to in this vicinity under these names or those like them. This activity is something human beings can do by nature, but this activity does not come pre-packaged with its

being understood and interpreted in some way, and so the interpretation of this activity is instead something like a cultural product. What I want to argue is that the activity of recognition of the normativity authority of practical reasons, when those reasons are the product of a system of ethical reasons which features, first, a transparency condition, second, the denial of the possibility of an Archimedeanism with respect to itself, third, a strong universality condition, and fourth, a naturalistic interpretation of the system, can only be performed on the condition that the subject forget those features of the ethical system. To put it differently, the endorsement of morality presupposes a false consciousness with respect to the nature of the endorsement of morality, and since that is a failure of honesty, and since a failure of honesty is immoral, it follows that an endorsement of morality is itself immoral, on the terms of the morality being so endorsed. As I said above, this is a paradoxical position, and that is the whole point. This argument will take several steps.

3.5.3 I want to begin with some remarks which will seem unrelated but which I think will turn out to be crucial, in particular, some remarks on agency in the human being.

I want to follow Nietzsche in his basic picture of agency, which we can understand more closely by thinking about some of his remarks on freedom. In *Twilight of the Idols*, Nietzsche identifies as one of the “Four Great Errors” the “error of free will.” He offers, as you might expect, a debunking explanation of the aptness of the concepts of “free will” and “responsibility,” saying that these concepts have conditions of aptness which are determined not by the use of freedom or by responsibility, but rather by principles responsive to the demands for punishment. I do not think he should be read as taking a stance in debates that we would identify as debates on freedom and determinism in contemporary philosophy. Rather, I think he is more interestingly read as taking an interest in the scope of possible objects of deliberation. On this

view, the moralist is suggesting that we can deliberate on, among other things, each and every individual motive we might have, and I think that Nietzsche is suggesting that this is a mistake, and that, while deliberation is very much real – it’s as real as anything else – it has a much smaller scope than the moralist understands it to have.

So, I think Nietzsche does not deny that we deliberate, or that we act for reasons, or whatever. What he does point out, and what is important for what I want to argue, is that there are a number of other psychological activities which are deeply important for the human exercise of agential capacities. At various points, for instance, Nietzsche praises forgetfulness, failures of self-knowledge, and inattention. These types of psychological powers are deeply important to human beings. When Williams objects to the use of the impartial or ideal observer (the “IO”) in “The Human Prejudice,” for instance, he does so on the grounds that adoption of the point of view of the IO is simply too much for these psychological powers and susceptibilities to put up with. Similarly, Geuss writes that:

...as Nietzsche very powerfully pointed out, humans do not always exhibit maximal interest in clarity and explicitness, and they are right now to. Clarity is often of no use to us at all, and can in some circumstances be a positive hindrance to attaining various important human goods. In addition to our desire for clarity and definiteness, humans exhibit a second set of properties that are perhaps equally important, are very inadequately understood, are very little under our control, and are seriously underappreciated. These are the powers of forgetting, ignoring, failing to ask questions.²²⁰

I want to suggest that *forgetfulness* is, first, not merely a power but a *virtue*. It cannot be a virtue, an excellence, of *reason*, because reason is a capacity for knowledge and forgetfulness would seem to hinder the acquisition of knowledge. It is instead a psychological virtue. If this is so, then there is a tension between the psychological virtues of human beings and their rational

²²⁰ Geuss, “Introduction,” in *Outside Ethics*, 6.

virtues, and in particular, there is a tension between the capacity for knowledge and the capacity for forgetfulness.

Why, then, is forgetfulness a psychological virtue? The claim is not that the more forgetful a person is, the better off they are, psychologically speaking: after all, the amnesiac is clearly in a bad way, and not simply because that's what the doctors say about them. The amnesiac, of the sort I have in mind, someone who is like the main character of *Memento*, Leonard Shelby, is in a bad way because they cannot remember their own reasons. That is, they show a defective relationship to themselves and their own various capacities for practical rationality, one that is explained by a defect in their psychology. The amnesiac, we might say, has, from their point of view, *too few* reasons. The unforgetting person, by contrast and who I will return to at various points, has *too many* reasons. The appropriately forgetful person is that person who is aware of their own reasons, unlike the amnesiac, without being overwhelmed by all the reasons they could have, unlike the unforgetting person. Further, this must be a virtue of one's psychology, rather than a virtue of one's rational capacities, for the reason I mentioned above: namely, that insofar as Smith is willing to be a Kantian, he must be willing to say that reason is a capacity for knowledge, but forgetfulness seems to represent a failure of that capacity, and so seems to be a vice *of reason*.

As such, there is a very uneasy relationship between, on the one hand, a subject's rational capacities, and on the other hand, their psychological capacities. As I see it, this is only possible if the human being is, at the very least, *subject* to very different, indeed, opposing, principles.

Given that we act for reasons, and given that we are creatures with a psychology of the sort I have just described, it follows that the activities of our own psychology must be able to be

represented as having been done for reasons. But these activities cannot be done for reasons.

This point will be crucial in what follows.

3.5.4 I have said that we are constituted by principles which are psychologically virtuous but rationally vicious, and conversely, by principles which are psychologically vicious but rationally virtuous. I want to argue that, for such a creature, it is impossible to endorse the normativity of a system of ethical reasons with, first, a transparency condition, and second, a naturalistic understanding of that system, along with, third, a strong universality condition. The reason is that the naturalistic understanding of the system will overwhelm the subject with reasons which speak against the endorsement of the system, on the terms of the system itself. As such, to endorse the normativity of those reasons generated by the system, the subject has to be forgetful with respect to that system. This will involve the mechanism I above referred to as “aphesis.”

To make my argument, I have to discuss the relationship between a principle and that which amounts to *error* with respect to that principle.

A principle is normative only on the condition that it is possible to violate it, i.e., that there are identifiable instances of error with respect to that principle. In the case of practical principles, those are normative only on the condition that it is possible to violate them, in which case there are, quite literally, *erroneous actions*, and more broadly erroneous activities. Given morality’s strong universalism, i.e., its coverage of all rational agents, the only way to provide content to the notion of error, given that sort of principle, is to locate that error in the exercise of the capacity for moral judgment itself. In this regard, I agree with Kant that, within the morality system, the human being must represent itself as radically evil, but unlike Kant, I take this to be a *reductio* of the morality system. The idea of a capacity which necessarily abuses itself at its most fundamental level is incoherent.

The issue can be represented in Rawlsian terms. Assume that I am behind the veil of ignorance in the original position, and I face a choice between the authority of the principle of morality, the Categorical Imperative, or the authority of prudence, and that when I am disabused of the erroneous pretensions of prudence to be a fundamental practical principle, I can then endorse the authority of morality. In order to ensure that the Categorical Imperative, with its distinctive scope, has content for the notion of error, a condition of the categorical imperative's normativity, we have to strip down the original position as much as possible: the subject behind it knows not a single fact, nothing at all about where they might find themselves in the moral commonwealth, nothing. In order to provide content to the notion of error, the very activity of opting for the categorical imperative, at this point, must itself be immoral. And it is, indeed, immoral, because in removing so many facts, the subject has nothing in terms of which to understand their *opting* for the categorical imperative, so much so that calling it an activity of *opting* is already a substantive move. It is an activity of *brute assertion*, a *brute fact*, as it were, in a more Kantian sense of the term *fact*. This is the sense in which Nietzsche is right that human being has a formal conscience in BGE 199, and that the fundamental commandment of that conscience is to *do*. To see one's own basic relationship to morality in terms of brute assertion makes it entirely unclear why you would take that morality seriously on reflection, because brute assertion is done for no reason as it is a precondition of having any reasons. It is like the operation of luck, except a kind of luck that happens through us, or better yet, through me. On the terms of the morality being endorsed, a brute assertion is indeed just that, a brute assertion, and is not respectable. It is possible to continue to act and take morality seriously precisely because of the operation of forgetfulness, and insofar as one is aware that one is always already doing something wrong, one cannot act. Action, of any sort at all, would be deeply pointless, and

the attempt to convince oneself that it is not by means of the belief in the postulates is an exercise in bad faith, but it is precisely what Kant is forced to appeal to in order to head off the despair.

3.5.5 Smith does not want to say that what is undertaken is an activity of *brute assertion*: he wants to say that we *endorse* the authority of morality, or that we *recognize* it, or that we *identify* with it, or whatever. He also does not want to follow Kant in requiring religious faith as a necessary subjective condition of taking one's obligations seriously. To say this, he must, first, give the subject behind the veil of ignorance in the original position something, such as concepts, principles, facts, knowledge, whatever in virtue of which she, i.e., that subject, can understand her own activities as those of *endorsement* or whatever. Since it is possible to, as it were, *misendorse*, or to *misrecognize*, or to *misidentify*, he must also provide the subject something to give content to the notion of error. If he wants to dispense with the metaphysics of transcendental idealism, which he should on the terms of the morality he is attempting to endorse, then, obviously, he cannot give that subject the first Critique as the language in terms of which she can understand her own activities. He will try to follow Rawls, who writes that "it seems desirable to detach the structure of Kant's doctrine from its background in transcendental idealism and to give it a procedural interpretation by means of the construction of the original position."²²¹ But the terms of the construction procedure need to be understood, and with it, the hope is that we give to the subject something in virtue of which she can understand her own activity of endorsement as being, indeed, one of *endorsement*. If the subject is to perform an endorsement, she must have knowledge of the terms needed to appreciate what she is being presented with. She must also have knowledge of error with respect to the relevant principles.

²²¹ PL VII §10, 285.

There are now two questions: first, the nature of the relevant sort of error, and second, the relationship between error and the principles with respect to which various activities amount to error in the first place.

Since Smith wants to say that morality is one sort of ethical system among, potentially, many, he must allow that there are at least two sorts of errors of endorsement, identification, or whatever. First, there must be a sort of error found in cases where one simply fails to endorse or identify with anything, and in that sense, one then is understood to misendorse, misidentify, and so on. In this case, the error consists in a privation. Second, there must be a sort of error in which the subject does indeed successfully *endorse* or *identify* with something, but they identify with the wrong ethical system. That system S_1 will be understood to be wrong from the point of view of some other ethical system S_2 .

There is, second, the issue of how these forms of error relate to one another. We are assuming that those within the morality system have a naturalistic understanding of themselves and the system in which they find themselves. It is entirely unclear what *naturalism* is, but I want to say that, whatever else naturalism is, it includes the aspiration to place activities and events into a single, unified historical time. Naturalism, in other words, presupposes what I want to call the *commensurability* of events and activities in time. A failure of commensurability is, unsurprisingly, what you might call *incommensurability*, and an incommensurable temporal order is one in which the activities and events within the order cannot be incorporated into some other temporal order. *The Chronicles of Narnia* and *The Lord of the Rings* present temporal orders which are incommensurable with one another, whereas the temporal order of *The Chronicles of Narnia* are commensurable with the historical time, i.e., the temporal order, of the actual world. An achievement of Thucydides is to unify the activities of the various Greek city-states into a

single historical time, and that was possible only on the condition that those different activities and their histories were commensurable. By contrast, no one will ever be able to incorporate the temporal order of the *Lord of the Rings* into modern liberal historical time.

A naturalistic understanding of morality, then, is one which presupposes that there are forms of error which, first, can be located in time, and second, are located in a temporal order which is commensurable with the historical time, and its temporal ordering, of the actual world. Smith must then say that those in the morality system can, at least in principle, identify certain instances of error which can be brought into the modern liberal historical time, i.e., the temporal order of those in the morality system. Further, there must be an ambition on the part of the subject to see their own activity of endorsement, recognition, or whatever as being one which can be placed in time. If there is to be a history of morality, there must also be a history of *moral error*, and these must be commensurable.

Return to the initial thought that the subject, on Smith's view, *endorses or identifies with* morality. These are activities which have their own normative principles, and so require content for the notion of error, and within a naturalistic understanding of morality, the subject will aspire to locate those errors in the same historical time as their own endorsement of morality, as well as what enables them to understand their own activities as ones of endorsement.

One way the subject may understand the relationship between their own activity of endorsement and the history in which it occurs in terms of a relationship between an activity and its historical preconditions. But those preconditions need to include within them various forms of error – *moral error*. This is needed to ensure the normativity of the principles they endorse. But moral error can require address of some sort, no matter when it occurs, because error does not

expire, and neither do certain kinds of *reasons*.²²² There is a very uneasy tension between, on the one hand, endorsing, recognizing, or otherwise identifying with morality, while, on the other hand, recognizing that the preconditions of that identification *are themselves immoral*, in that they include instances of moral error or are the products of such error.

The argument, then, that I am making is that for the Kantian constitutivist to say that an agent recognizes, identifies with, endorses, or whatever else with morality, that subject must be able to understand their own activities; the terms of that understanding are provided by something like a *natural history of morality*; but that very natural history presents reasons, or occasions for reasons, which are instances of moral error and require moral address, such as refraining from endorsement. Insofar as one endorses morality, then, one does something morally wrong: one is a something of a *collaborator* in the Kingdom of Ends.

I take this to be not so much a genealogy of morality as much as genealogy of one's identification with morality. To return to the case of Hume who I mentioned above, the thought is that the "moral sense," i.e., the capacity for moral judgment, does not approve of itself because it does not approve of the real, historical preconditions it needs in order to make sense of its own activities.

We can represent the issue in terms of a Rawlsian original position, different from the one I discussed above. In this instance of the original position, the subject has an opportunity to endorse the categorical imperative, and in order to make sense of the opportunity, they are pumped full of various facts. Insofar as that subject develops a naturalistic understanding of all of those facts, they will seek to organize them, and they will seek to do so in time. If the subject endorses morality, they can reflect on those facts and find reason not to endorse morality, so if

²²² I will return to this point in 5.6.5.

the subject is to endorse morality and be untroubled, they must *forget* some of the facts they needed in order to make sense of their own endorsement. And this is what I have in mind by the notion of *aphesis*: a mechanism, or set of mechanisms, for forgetting the reasons, or occasions for reasons, which are present in one's own history and which would undermine the authority of the ethical system which establishes the normativity of those same reasons if acted upon or otherwise embodied.

This is typically not noticed because there are various sorts of mechanisms in place which make use of the psychological power of forgetfulness I discussed above, though, for obvious reasons, not openly. That is, this is not noticed because these mechanisms are successful. Some of these mechanisms take the form of *thought-terminating clichés*. One such thought-terminating cliché takes the form of what Williams calls *progressivism* in *Shame and Necessity*.

Progressivism is a historical view, and in particular, a view about the ancient Greeks, according to which “the Greeks had primitive ideas of action, responsibility, ethical motivation, and justice, which in the course of history have been replaced by a more complex and refined set of conceptions that define a more mature form of ethical experience.”²²³

On this sort of view, the Greeks are, in some sense, like *children*, and if not children, then in some respect defective. They have not reached the age of majority and are not full persons, so insofar as they fail to endorse morality – which they don't – it neither gives us a reason for pause, because they are children, nor does it give us a reason to think less of ourselves in terms of the history they have given us, because, again, they are children. This is a thought-terminating cliché. Another thought-terminating cliché is the cliché of the *Dark Ages*. In my experience we simply do not study these people at all, but insofar as they play any role in modern, liberal ethical

²²³ Bernard Williams, *Shame and Necessity* (Berkeley, CA: University of California Press, 1993/2008), 5.

thought, they are taken to be in the grips of ideology or at least in a condition of incomplete information, which is why these are *Dark* ages, rather than enlightened ones. If I am right, it is not coincidental that the modern liberal culture thinks of its history in this way.

3.5.6 So far, then, I have argued that a subject can endorse morality only on the condition that they forget the facts they needed in order to understand their activity as one of endorsement, and that insofar as one endorses morality clear-mindedly, one can have reason not to have endorsed morality.

But recall, the initial assumption that I granted to Smith, namely, that Kantian constitutivism is true. If my argument here is successful, then Kantian constitutivism generates reasons against itself. That does not exactly mean it is false. Kantian constitutivism is a kind of moral metaphysics, and what I am arguing is that Kantian constitutivism incorporates us as something *very* different from what someone like Smith or Korsgaard thinks it does.

Morality, on the view of Korsgaard and, I assume, on Smith's view – he does not go on about this a great deal – is, first, closely connected with *integrity*, and second, it is our *way of being animals*, as Korsgaard puts it in *Fellow Creatures*. I have offered a picture of things in which there is a very deep tension between, on the one hand, the norms constitutive of the moral person, and on the other hand, the norms constitutive of *that* person's psychology. These kinds of tensions do not arise in the cases of plants and animals because they cannot reflect on what they are doing. But the human being can reflect on what it is doing and find that what it is doing is objectionable, and it can reflect further and find that the preconditions for understanding what it is doing are objectionable. If I am right, it is false that simply acting from the categorical imperative constitutes the integrity of the human being, because one can be overwhelmed with reasons, including reasons which speak against one's own identification with morality, while at

the same time one must act for reasons and so one must act with consciousness of the categorical imperative.

I do not think that the Kantian constitutivist is entitled, then, to say that morality is our way of being animals in a straightforward sense. It is our way of being *something*, and that something is not a mere heap, nor is it a plant. It is our way of being a special kind of animal, one unlike the rabbit or the snake, and not simply because we have reason. Whatever else morality is, it is embodied in our character, and insofar as we are constituted by a principle which, when naturalistically understood with a transparency condition, can generate reasons against those dispositions, there is a sense in which morality is always already living on borrowed time. The only sort of organism that I can think of which has a similar way of always already living on borrowed time is a *parasite*. My conclusion, then, is that within the morality system, morality is, indeed, our way of being animals, and that those animals are *parasites unto themselves*.²²⁴ A parasite, or, in a similar vein, a tumor, is a creature which bears an uneasy relationship with its host given the nature of parasitism: on the one hand, the parasite is, in a sense, committed to the death of the host, i.e., to its bodily disintegration, since that provides nourishment to the parasite, while at the same time is committed to the life of the host, since the host provides nourishment. But from the fact that parasitic life is based on conflicting principles it does not follow that, first, there is no such thing as a parasite as a biological unity, nor, second, that there are no such things as parasitic principles.

In the case of the human being, the capacity for reflection is a kind of parasite of the animal: it requires the animal to live and feed off the animal itself, i.e., to use its own animal being as a source of motives and reasons, while at the same time being such as to kill the animal

²²⁴ The following discussion is based on a discussion in Andrew Smith, “Williams contra Nietzsche in ‘The Human Prejudice,’” ms.

if it does what it does too effectively. As I said above, then, the human being is a kind of parasite unto itself.

3.5.7 This, then, completes my own positive argument. My argument is that if we assume that Kantian constitutivism is true, it generates reasons against itself by generating reasons against its historical preconditions. That does not mean it is false; what it does mean is that the human being is constituted by principles which stand in a tense relationship with one another. In a way, Korsgaard is right that “morality is our way of being animals,” but not in a way she expects: as I have argued, morality is our way of being parasites unto ourselves.

In any event, is this a conclusion that instills *confidence* in morality, which, recall, is what Smith was going for? I can only leave this as an exercise for the reader. For my part, though, I think the answer is No.

Chapter 4: The Puzzle of Human Moral Identity

4.1: Introduction

4.1.1 At this point, I want to say a few words that will explain, first, the above arguments in chapters 2 and 3, and in particular, on the relationship those arguments bear to one another. Second, I want to offer one characterization of the way to respond to those arguments, and I'll sketch out such a response.

As I said in chapter 1, this is a dissertation on human moral identity. I explained the motivation for investigating this topic at the beginning of chapter 2, along with some motivation for the use of a Kantian approach, and while more could be said, I (perhaps implicitly) argued throughout that chapter that it is important, not just philosophically but ethically, to preserve space for reflective distance from my own arguments, so if they leave loose ends, I do not see this as a bad thing. In any event, to return to moral identity: this sort of identity is constituted by a commitment to a set of norms enabled by a commitment to a fundamental norm of practical rationality, the Categorical Imperative. But you can question your own commitments, and you can question your commitments even if you cannot, as it were, uncommit yourself from them: in such a case you might grow *sick of them* if you cannot make sense of your commitment to them. Since these norms provide a justificatory framework which is, from the practical point of view, fundamental, these norms and the form of identity they constitute, moral identity, cannot be determined to be justified or unjustified from the point of view of some *further* set of norms, since there are no such further norms. Nevertheless, we can ask whether those norms, and with it, moral identity *makes sense* of us, for us.

In chapter 2 I argue that moral identity makes sense of us and makes sense for us by means of a Kantian constitutivist argument to the effect that we – you and me – can only act on

the basis of practically authoritative reasons, and for us to have any such reasons, we must endorse moral identity since it is in virtue of the norms that are constitutive of such an identity that we are able to have such practically authoritative reasons in the first place. This is a transcendental argument for moral identity.

In chapter 3, I argue that moral identity does not make sense of us, nor does it make sense for us, by means of a genealogical argument. The argument grants to the Kantian constitutivist their argument that moral identity is a necessary condition of action for the modern liberal subject. The argument then shows that if the Kantian constitutivist wants to be able to say that the modern liberal subject *endorses* the authority of morality, or *recognizes* it, or *identifies* with it, or whatever else, then that subject can only do so on the basis of a set of historical background conditions which give content to those concepts, but since those historical background conditions will also give content to not just error in general, but *moral error*, and since moral error can demand a response, it follows that the Kantian constitutivist, through their endorsement of morality, gains reasons to *regret* their endorsement, to experience a kind of *survivor's guilt* with respect to it, and indeed, in some cases, they have reason *not* to endorse it at all. The sort of reasons one acquires based on the relevant history will depend on the details of that history.

What might that involve or otherwise look like? An example on this point is helpful.

Nietzsche writes that

In *this* sphere, hence in legal obligations, the moral conceptual world of “guilt,” “conscience,” “duty,” “sacredness of duty” has its cradle—its beginning, like the beginning of everything great on earth, was thoroughly drenched, and for a long time, in blood. And might we not add that this world at bottom has never quite lost its odor of blood and torture? (not even in old Kant: the categorical imperative smells of cruelty...) ²²⁵

²²⁵ GM II.6.

On this sort of view, the real historical background that enables the modern liberal subject to endorse, or identify with, or recognize morality is, first, a bloody history, and bloody histories can give reasons of various sorts, such as those I mentioned above. Second, the modern liberal subject is endorsing an ethical system, morality, which, despite its content, does not exactly turn out to stand in opposition to such a history: rather, morality *presupposes* such a history as a condition of its endorsement.

4.1.2 In light of this, it is natural to ask what the point of the above discussion is. If the arguments seem to contradict, then isn't the project of this dissertation a failure? Whatever else a philosophical project is, it at least should be *coherent*, and if the project up to this point is so openly incoherent, then it simply fails. Against this, I say that the arguments do contradict, but that is entirely the point. These arguments generate what I want to call a *puzzle of human moral identity*. The point of the dissertation is to first show what gives rise to the puzzle, and to then offer something like a solution to it. I will return to these points later in 4.5.

In this chapter, then, I hope to make these points. I will first say more about the arguments I developed in chapters 2 and 3 and how they relate to one another. My hope is to show that, in at least *some* cases, and in the case of the arguments I offered above, transcendental and genealogical arguments can be understood to be "two sides of the same coin," to quote David Sussman in conversation. In particular, in the case of this dissertation, the two arguments I have offered are such that they both can re-establish confidence in the authority of practical reasons. Nevertheless, in the case of my arguments above, we do *not* get the same answers: that is, in the case of one of these arguments, we have something which does (re)establish confidence in the authority of morality, while in the other case, we have something instead which *detracts* such confidence. This is what I called above the *puzzle of human moral identity*: how can two

arguments, of the sort just described, generate different, indeed contradictory, results? I argue that the reflective structure of human self-consciousness is what gives rise to the puzzle. After discussing the puzzle, I discuss different strategies for resolving it, and I argue in favor of a strategy of *dissolution*, a strategy which will turn out to be somewhat radical but one which I consider plausible.

4.2: Arguments in Ethics

4.2.1 First, a brief diversion which I think will be important for my argument later on. The diversion is a discussion of argument in ethics.

Any form of argument requires the subject given the argument to bring *something* to the argument in order to appreciate it. This is true even of (potentially radically) revisionary philosophical projects, such as the project of *conceptual engineering*, discussed in the third chapter, as well as later in 4.5. After all, if someone like Haslanger is going to propose an amelioration of the concept of, say, *woman*, then that amelioration will only gain traction with me if I possess that concept in the first place. Similarly, in the case of another radically revisionary account albeit in ethics, namely, the proposal offered by Peter Singer in “Famine, Affluence, and Morality,” you and I need to bring to the table enough in order to appreciate the principles he proposes, and further, since those principles are the objects of knowledge or intuition, I must then have a capacity for knowledge or intuition, and so on. At the same time, what is being brought to the table when dealing with an argument need not remain untouched. Again, consider the case of an amelioration of the concept *woman*: I may bring to the argument my unclear concept of *woman*, but in the course of dealing with that argument, my concept is changed, along with my understanding of that concept.

I see my arguments above as arguments in *ethics*. So, there is then a question relating to what I mentioned in the last paragraph, namely, what a subject must bring to the table if they are to appreciate arguments in *ethics*.

This question is made easier by the fact that each of the arguments above, that is, of chapters 2 and 3, does not address itself to quite literally any possible human being. That is, neither of the arguments addresses, say, a Stone Age hunter or, differently, someone like Zarathustra the Godless or those working in the philosophy of the future to which *Beyond Good and Evil* was just a prelude. Each argument addresses contemporary Westerners. Contemporary Westerners will bring to the table, in broad outline, a set of *dispositions* of various sorts, and I see no hope of saying that one such disposition has ethical priority over another. Insofar as we have values, we have those values in the sense that we have *dispositions* of various sorts. Insofar, then, as I am doing ethics, I presuppose ethical dispositions. This is not to say that I presuppose dispositions which are themselves such that they would be evaluated well: that is, I do not presuppose ethical dispositions in the sense of dispositions which are themselves ethically *good*. What I do presuppose is that the reader is not ChatGPT.

There is a difference between ethical dispositions of the sort I have mentioned above and what you might instead think of as *scientific* or *theoretical* dispositions. By the *scientific* or *theoretical dispositions*, I have in mind those dispositions which figure into thought about the world, of the sort that would be found in what Williams calls an *absolute conception* of the world. In the case of the physical sciences, for instance, there is a way that the world is, independently of those sciences, such that the sciences attempt to converge upon a conception of the world which is as independent of various local perspectives as possible. An absolute conception would explain the activities of those local perspectives as well as why other people

have been wrong about the way the world is. What I have called the scientific or theoretical dispositions are those dispositions which are brought to bear in thinking about these sorts of issues. In some of these cases, such dispositions will take the form of *virtues* – a particularly effective instructor might have the virtue of putting complicated theories into lay language, say – while others may take the forms of *vices*, and others may be simply indifferent in some respect. The ethical dispositions and the scientific dispositions are different in that you can fail to pass on the scientific dispositions while nevertheless having the body of doctrine that amounts to the best physical science. By contrast, the failure to pass on the ethical dispositions does not allow for the possibility of somehow “possessing” the relevant ethics. To put it all differently, the destruction of the world and the human species allows for the possibility of the preservation of the achievements of the physical sciences – the aliens could arrive one day and translate our books with their universal translators, say – but does not allow for the possibility that our ethics could be preserved – the aliens could discover *occasions* for human ethical thought, or *records* of such thought, or, different, *occasions* or *records* of evaluation, action, thought and feeling, on and on – but they would not discover *that* life. It would be gone.

4.2.2 My arguments, as I see them, are the *articulations* of contemporary Westerner ethical dispositions. They presuppose the ethical dispositions of the sort I have just mentioned, and since philosophy is simply not going to teach anything to the individual that the individual does not already in some possess in their dispositions, these arguments instead only make explicit and put into words what is there already. In this sense I agree with Hegel that

As far as the individual is concerned, each individual in is any case a *child of his time*; thus philosophy, too, is *its own time comprehended in thoughts*. It is just as foolish to imagine that any philosophy can transcend its contemporary world as that an individual can overlap his own time or leap over Rhodes. If his theory does indeed transcend his own time, if it builds itself a world *as it ought to be*, then it certainly has an existence, but

only within his opinions – a pliant medium in which the imagination can construct anything it pleases.²²⁶

Consciousness – indeed, self-consciousness – is itself a cultural achievement, and so a historical achievement. Insofar, then, as my arguments articulate contemporary Westerner ethical dispositions, they unpack what is there is contemporary Western character.

To say, then, that the conclusions of my arguments contradict is to miss the point. These arguments articulate contemporary Western dispositions, and if the arguments contradict, it would then seem to me that the contemporary Westerner ethical dispositions are incoherent. (I will discuss this in greater detail in 4.5, where I try to show how this might be possible.) This fits with a principle familiar with computer science but need not be confined there, namely, the principle of *garbage in, garbage out*. That said, it would be too quick at present to say that the above is successful, at least if we are to follow the *garbage in, garbage out* principle: after all, what I have shown is that we do, indeed, get *garbage out*, but that does not confirm that we put garbage in, i.e., that contemporary Westerner ethical dispositions are, indeed, incoherent. To suggest otherwise is to affirm the consequent.

More, then, needs to be said. In particular, I need to argue not merely that we have gotten garbage out – that I take to have been shown – but that we indeed get garbage out because we have put *garbage in*. I have done some of this work already in arguing that these arguments articulate Western ethical dispositions, rather than, say, show a conflict between two realistically construed definitions. But to further support my view that we have gotten garbage out because we did, indeed, put garbage in, I think I need to say something more about those arguments above. In particular, I need to justify my implicit claim that these arguments are talking about the

²²⁶ G.W.F. Hegel, *Elements of the Philosophy of Right*, trans. H.B. Nisbet, ed. Allen W. Wood (New York: Cambridge University Press, 1991), 21-22.

same thing, which requires that I show that transcendental arguments and genealogical arguments, in at least *some* contexts, amount to the same form of argument.

4.2.3 I need to show that transcendental and genealogical arguments *can*, as I put it above, be “two sides of the same coin.” To do this, I could argue in several ways: that *all* instances of transcendental argumentation are identical to genealogical argumentation or that at least *some* instances of transcendental argumentation are identical to genealogical argumentation would both be ways of arguing for this point. Both of these views would be quite strong, though, and I do not think I need something that strong. So instead, I want to argue for something weaker, namely, that in the case of my arguments in this dissertation, both arguments concern that same object, namely, self-conscious human moral identity. I will try to flesh this out further in 4.5.

Now I will have to say more about transcendental arguments in what follows, but at a first pass, it seems that the cases of genealogical argumentation are most likely to be able to generate conclusions about a given content C, in the way that a transcendental argument could, in those cases where the genealogy is vindicatory. The reason is that it is generally agreed that whatever else transcendental arguments are – something I will come back to –, they are anti-skeptical. This is one of the reasons why my arguments are puzzling: one of my arguments, the genealogy, is skeptical, while the other is not. Later, I will try to argue that transcendental arguments are not, in fact, necessarily anti-skeptical, which implies that the mere fact that an argument is a critical genealogy does not suffice to think that the content of the argument cannot also be found in a transcendental argument.

First, though, let’s discuss transcendental arguments a bit more. What are they?

4.3: Transcendental Arguments

4.3.1 Transcendental arguments are thought to originate in Kant, and for my purposes here we can simply take that for granted. The “Refutation of Idealism,” an argument offered only in the B edition of the first *Critique*, is taken to be a paradigmatic example of a transcendental argument. The correct reading of the Refutation, like everything else in the Kantian corpus, is a matter of some dispute, and there is evidence that Kant himself was still not entirely happy with the argument as the B edition went to press.²²⁷ It is common to read the Refutation along something like the following lines: “idealism,” Kant writes, “is the theory that declares the existence of objects in space outside of us to be...merely doubtful and indemonstrable,”²²⁸ and since “...it always remains a scandal of philosophy and universal human reason that the existence of things outside us...should have to be assumed merely **on faith**, and that if it occurs to anyone to doubt it, we should be unable to answer him with a satisfactory proof,”²²⁹ we thus need to construct such a proof. The aim of the Refutation, then, in being such a proof, is to show to someone who doubts the existence of things outside us that their doubt is irrational, and on their own terms. The aim of the Refutation, that is, is *anti-skeptical*. The basic idea, then, is to start where the skeptic wants to start from and, from that starting place, argue in favor of a conclusion which, as I just mentioned, is anti-skeptical. In the case of the Refutation, that starting place is provided by “our **inner experience**, undoubted by Descartes,”²³⁰ and the conclusion is that this inner experience “is possible only under the presupposition of outer experience.”²³¹

²²⁷ See his long note at B xxxix-xli, where he rephrases a line of the argument and explains it in detail.

²²⁸ B274.

²²⁹ Bxxxix.

²³⁰ B275.

²³¹ Ibid.

I take the basic idea to amount to something of the following: if the Cartesian is willing to say that at t_1 they fail to doubt that there are objects in external world, while at t_2 they do, then the Cartesian has to admit they have knowledge that enables them to make the temporal ascriptions, and that knowledge is not more knowledge of themselves through inner sense – that is the sort of knowledge is the starting place – and is instead knowledge of the external world. An analogy can be made to images on a strip of film, such as a movie. When a viewer watches the movies, they see each cell, one after another, yet the viewer does *not* understand themselves to see 24 distinct, unrelated images, one after another, each second; rather, some of what they see *persists* from frame-to-frame. If the Cartesian is willing to say that there is something on frame 1 and something *else* on the second frame, rather than the same thing, then the Cartesian has to have knowledge of something that is not represented within the film itself. In the case of movies, what you need to know is a kind of *cinematic grammar*, as it were, which enables you to figure out what a *scene* is, how scenes relate, and so on. But moreover, what you know is that you're watching *a movie*, even though you're sitting in the audience and never see what the projectionist sees, namely a set of film on reels (and if the projectionist *only* saw the strips of plastic on the reels, we would not say he saw the movie): that is why your use of cinematic grammar is warranted in the first place. In the case of knowledge of ourselves via inner sense, to return to the topic of discussion, you know various principles which are constitutive of the categories, and these are only apt on the condition that they are being applied to something other than yourself, even though you do not *see* the externality of the external world, as it were, in the way that you do not see the plastic strips on reels when you see the movie. Thus, we arrive at the anti-skeptical conclusion.²³²

²³² It is not clear to me that this is the best reading of the Refutation available, but it is sufficient for my purposes. This reading, first, sounds more like a Refutation of *Skepticism* than a Refutation of Idealism, and moreover, does

4.3.2 Now, it seems to me that we find in the Refutation several key features of transcendental arguments in general as identified by Robert Stern and Tony Cheng. According to Stern and Cheng, such arguments are “typically anti-sceptical;” second, they “must begin from a starting point that the sceptic can be expected to accept;” third, they are “characteristically...first personal;” fourth, they involve claims “to the effect that X is a necessary condition for the possibility of Y, where in saying this, the arguments do not assume this to be a matter of merely causal, natural, or nomological necessity,” claims which are known as *transcendental claims*; fifth, that the nature of this necessity then needs to be understood; sixth and finally, that “because of the apparently rather special nature of these transcendental claims...the suspicion arises that there will then turn out to be something distinctively Kantian about such arguments,” such as by relying upon the metaphysics of transcendental idealism in some way, which then helps us understand the relevant notion of *necessary*, i.e., the way in which X is indeed a *necessary* condition for the possibility of Y in the first place.²³³ We find all of these features in the case of the Refutation: it is anti-skeptical, it begins from a starting point accepted by the skeptic (namely, inner sense), it is first-personal, it involves a transcendental claim, and in the fifth and sixth cases, the metaphysical necessity is provided for by the metaphysics of transcendental idealism, a point I will return to later when discusses transcendental arguments more generally.

How should we take this account of transcendental arguments? I think it would be a mistake to think that what Stern and Cheng are offering a set of individually necessary and jointly sufficient conditions, and not simply because some of the language they use in the

not explain why Kant adds the Refutation within his Elucidation of the Postulates of Empirical Thinking in general, and of the Postulate of Actuality in particular. See also Stephen P. Engstrom, “The Transcendental Deduction and Skepticism,” *Journal of the History of Philosophy* 32, no. 3 (1994), 368ff.

²³³ Robert Stern and Tony Cheng, “Transcendental Arguments,” *The Stanford Encyclopedia of Philosophy* (Fall 2023 Edition), ed. Edward N. Zalta and Uri Nodelman: <https://plato.stanford.edu/archives/fall2023/entries/transcendental-arguments/>.

material quoted above includes terms like “typically.” Rather, as in the case of genealogical arguments, I want to suggest that the relationship between different transcendental arguments is best understood in terms of something like family resemblance. It is true that there is a strain of thought according to which the only sort of argument that has a claim to the title of “transcendental argument” will be found in something very Kantian, such as in a view which accepts the metaphysics of transcendental idealism. The difficulty with this line of thought is that while transcendental idealism does offer a picture which is less inflationary than the metaphysics of someone like Leibniz, it is still inflationary.

There is still an open question you might have at this point. Suppose you are not a skeptic about some claim; do these arguments gain no traction with you? Are they simply irrelevant if not for skepticism? On Kant’s view, no. To motivate his argument in favor of the constitutive aptness of the categories of the understanding, Kant draws upon a distinction used in the law between *questions of fact* and *questions of law*. What justifies a legal claim in the first place and what answers or otherwise speaks to a question of law is a *deduction*. Concepts in general are subject to both questions of fact and questions of law: in the former case, we would be interested in what Kant calls an *empirical deduction*, an account which explains the origin of a concept, while in the latter case, we would be asking for a deduction: an argument establishing the aptness of some concept. With most everyday concepts, it seems that we do not need to establish their legitimacy because “we always have experience ready at hand to prove their objective reality.”²³⁴ In other cases, though, this is not true:

But there are also concepts that have been usurped, such as **fortune** and **fate**, which circulate with almost universal indulgence, but that are occasionally called upon to establish their claim by the question *quid juris*, and then there is not a little

²³⁴ A84/B116-117.

embarrassment about their deduction because one can adduce no clear legal ground for an entitlement to their use either from experience or from reason.²³⁵

You can perhaps see the wheels of the classical philosophical tradition at work here: Socrates does not dispute Euthyphro has the concept of *piety*, nor that he is fluent in its use: Socrates asks the question of *law*, *quid juris*? and we know the various answers Euthyphro tries to give, none of which are successful.

4.3.3 Now, the particular sort of justification, i.e., deduction, that is needed depends on the concepts under consideration. Concepts that we can use prior to experience cannot be given an empirical deduction; instead, these concepts require what Kant calls a *transcendental* deduction. Here, then, we can see ways in which Kant's own use of the terminology of the *transcendental* may differ from contemporary usage. In any event, Kant seems open to the idea that some, perhaps even many, concepts can be given an empirical deduction, and understands Locke to have been the source of such a project. But Locke's error is in thinking that *all* concepts can be given an empirical deduction. With pure *a priori* concepts, it is a mistake to try to *justify* their use by appeal to experience and, more broadly, the causal order which gives rise to those concepts, though of course we could explain "...the **possession** of a pure cognition"²³⁶ in this way. With these concepts,

Yet a **deduction** of the pure *a priori* concepts can never be achieved in this way;; it does not lie down this path at all, for in regard to their future use, which should be entirely independent of experience, an entirely different birth certificate than that of an ancestry from experiences must be produced.²³⁷

It would be a genetic fallacy to try to argue that our use of pure concepts *a priori* is justified by appeal to experience, but we can only make that claim when we know what the genealogical

²³⁵ A84-85/B117.

²³⁶ A87/B119.

²³⁷ Ibid.

object is. We could not in general say that an empirical justification is unwarranted, nor that a transcendental justification is warranted instead. In brief: even on Kant's view, *it depends*. In some cases, in turn, a transcendental argument may be the only appropriate argument on offer.

How does this bear on my own arguments? Unlike Kant, I am not claiming that we know the moral law *a priori*, I do not claim that the Categorical Imperative and the moral law are the same thing, and I accept that mere knowledge of the Categorical Imperative, without anything in terms of which to understand that imperative, is knowledge of an empty formalism. That formalism can still be, in a sense, rich, in the sense that it can enable sophisticated forms of practical thought, but I reject that an agent knows the content of morality independently of experience, and if they are potential knowers, it is in the sense of first potentiality. In turn, I do not accept that empirical justification is *necessarily* unwarranted, because in some cases, that is the only possible justification we could ever reasonably hope for.

4.3.4 Transcendental arguments are not confined to the tradition of German idealism. J.L.

Austin discusses a “transcendental argument,” under that description, in his paper “Are There *A Priori* Concepts?”²³⁸; Strawson uses transcendental arguments in his work; Putnam's arguments in his paper “Brains in a Vat,” which I discuss below, are transcendental arguments; Williams offers an account of Wittgenstein as a transcendental idealist;²³⁹ Stern and Cheng also read

²³⁸ J.L. Austin, “Are There *A Priori* Concepts?” in *Philosophical Papers*, 2nd ed., ed. J.O. Urmson and G.J. Warnock (Oxford, UK: Oxford University Press, 1970), 32-54. In particular see 32-40, where Austin discusses a transcendental argument for the existence of universals. Austin notes that, in the particular example he is considering, “it is assumed that we do ‘sense’ things, which are many or different...it is assumed, further, that we make a practice of calling many different *sensa* by the same single name...and finally it is assumed that this practice is ‘justifiable’ or indispensable” (33). At that point, according to Austin, “then we proceed to ask: how is such a practice possible?” (Ibid.). Austin sounds like he is describing the same pattern of argument that I am discussing here.

²³⁹ Bernard Williams, “Wittgenstein and Idealism,” in *Moral Luck: Philosophical Papers 1973-1980* (New York: Cambridge University Press, 1981), 144-163. See also A.W. Moore, “Transcendental Idealism in Wittgenstein, and Theories of Meaning,” in A.W. Moore, *Language, World, and Limits: Essays in the Philosophy of Language and Metaphysics* (New York: Oxford University Press, 2019), 71-89.

Davidson as offering transcendental arguments in several papers. It has even been suggested that there is a transcendental argument at work in the very unexpected place that is the first chapter of Bentham's *Introduction to Principles of Morals and Legislation*, and I will return to this example later in 4.4.3.²⁴⁰ It is not necessary to survey all of these papers, but it is worthwhile to briefly consider Putnam in order to return to him later as an example, and later I will discuss one of Strawson's arguments in greater detail.²⁴¹

Putnam explicitly says that he is offering a transcendental argument, writing that "my procedure has a close relation to what Kant called a 'transcendental' investigation; for it is an investigation, I repeat, of the *preconditions* of reference and of thought..."²⁴² His own brief statement of his argument is that "if we are brains in a vat, then 'we are brains in a vat' is false. So it is (necessarily) false."²⁴³ The idea is that while a brain in a vat's (BIV) condition is logically and physically possible, it is, as it were, representationally impossible.^{244,245} That is, it

²⁴⁰ See Ross Harrison, "The Only Possible Morality," *Proceedings of the Aristotelian Society Supplementary Volumes* 50 (1967), 21-42.

²⁴¹ There is a host of literature on this argument, and I will not be able to address it all here. See, among others, Earl Conee, "Review of *Reason, Truth and History*," *Nous* 21, no. 1 (1987), 81-84, Michael Devitt, "Review of *Reason, Truth and History*," *The Philosophical Review* 93, no. 2 (Apr. 1984), 274-277, John Heil, "Are We Brains in a Vat? Top Philosopher Says 'No,'" *Canadian Journal of Philosophy* 17, no. 2 (June 1987), 427-436, and Jane McIntyre, "Putnam's Brains," *Analysis* 44 no. 2 (Mar. 1984), 59-61. A general issue pointed out by reviewers is that if Putnam's account of reference is correct, then there is no reason to think that we can conceive of even being a BIV in the first place, rather than simply having some BIV-shaped thoughts that refer to nothing.

²⁴² Hilary Putnam, "Brains in a Vat," in Hilary Putnam, *Reason, Truth and History* (New York: Cambridge University Press, 1981), 16.

²⁴³ *Ibid.*, 15.

²⁴⁴ Putnam himself says that it is *philosophically* impossible: he writes that what "rules out this possibility [that we are BIVs] is not physics but *philosophy*" (*Ibid.*). I don't think, though, that philosophy does anything to rule out the possibility: as I understand his argument, *descriptions* or *accounts* of reference do not rule out the possibility, but rather, it is reference itself which rules it out.

²⁴⁵ Anthony Brueckner offers two readings of Putnam's argument in his paper, also titled "Brains in a Vat," and on his first reading, the goal of the argument is instead to refute the claim "*That I am a brain in a vat inhabiting a world in which the only objects are brains in a vat and laboratories containing computers programmed to stimulate the brains is a logically possible proposition.*" (See Anthony Brueckner, "Brains in a Vat," *The Journal of Philosophy* 83 no. 3 (March 1986), 149.) On this first reading, to refute that claim is to show that the italicized proposition is "necessarily false" in the sense of *logically* impossible, such that *necessity* is understood as *logical* necessity. But I do not think Putnam was ever saying that being a BIV is logically impossible. On 7, for instance, Putnam writes that the BIV hypothesis is false, "although it violates no physical law, and is perfectly consistent with everything we have experienced..." and presumably if something is physically (i.e., nomologically) possible, then it is also logically possible.

is incoherent as a condition in which creatures, such as we human beings, have and deploy a capacity for various referential devices in thought and language.²⁴⁶ According to Putnam, a feature of being a BIV is that you do not have the appropriate causal connection to anything in the actual world – trees, almanacs, whatever – to be able to refer to those things, though of course you will have the experience of referring to them.²⁴⁷ But since a necessary condition of achieving reference to an object in thought or speech is an appropriate causal connection, it follows that if a BIV really could say “we are brains in a vat,” and could actually refer, not something like the *experience* of brains, or the *experience* of being in a vat, but to actual *brains* and *vats*, it would have the appropriate causal connections to those items and would, in turn, not be a BIV at all.

²⁴⁶ In my view, then, anything in a BIV situation would also not be human.

²⁴⁷ Brueckner notes that if this is so, then it does

...not obviously hold for what one might call a *standard* brain-in-a-vat situation. The claims [about what a BIV can refer to] do not obviously hold for a situation in which I am a brain in a vat and am stimulated by evil neuroscientists who, e.g., stimulate my brain in exactly the way their brains are stimulated when they see a beech tree outside their laboratory, thereby causing me to have sense impressions just like their *veridical* sense impressions as of beeches. In such a standard brain-in-a-vat situation, a reasonable causal theorist of reference would surely hold that the brain's token of 'tree' is causally connected with trees by virtue of the token's causal connection with the evil neuroscientist and *his* tokens of 'tree.' Putnam's claims about reference, then, hold at best for worlds in which there is nothing other than brains in vats and their automatic tenders...(152)

Paul Coppock agrees with this characterization in his “Putnam's Transcendental Argument.” To put it differently, not every skeptical situation is one in which the skeptical subject lacks the appropriate causal connections needed for a causal theory of reference to get off the ground, but Putnam needs, at the very least, a causal connection as a necessary condition of successful reference in order to make his anti-skeptical argument. Brueckner's own example strikes me as puzzling: I would have thought that it is not possible for the neuroscientists to exactly stimulate the brain in the way a beech tree can stimulate it because the scientists are not beech trees. I am not just saying “X can't do A the way Y does because X is not Y.” I instead want to say that scientists do things for reasons while plants, such as beech trees, do not, which is why you can call the scientists *evil* in the first place. This is not epistemically idle: that someone is evil, for instance, can generate what Joshua Blanchard calls *the problem of unwelcome epistemic company*.

That said, it seems to me that Brueckner can say that while the scientist cannot stimulate the brain the way a beech tree can, they nevertheless can stimulate the brain in such a way as to mislead the person being so stimulated. If I want to mislead someone about the contents of their perception, then I had better not present them with a beech tree, to return to the example above: instead, I need to present them with a kind of *forgery* of a beech tree. The evil scientists can create *very* convincing forgeries. But for the forgery to be a forgery of a *beech tree*, the scientists must have some causal contact with beech trees, and *perhaps* the BIVs have an appropriate causal connection here for the BIV to think about beech trees and not simply the forgeries of beech trees. If this were so, then there would indeed be skeptical scenarios that feature the necessary causal condition of reference, and in turn, Brueckner's point, namely that Putnam cannot undermine what he called *standard* BIV situations, would go through. (Strictly speaking, whether it goes through depends on the specification of the situation.)

Now, how does Putnam's argument exhibit those features of transcendental arguments provided by Stern and Cheng? Putnam's argument is, first, anti-skeptical; second, it starts with something the skeptic is prepared to accept anyway, namely, reference; third, the argument is first-personal, at least insofar as it is filling to talk about what *we* do; fourth, there is a transcendental claim; fifth and finally (I will leave aside discussion of the sixth feature here), Putnam has to provide an account of the sort of necessity found in the transcendental claim, which I have said is something like *representational* necessity or some sort of *metaphysical* necessity. None of this is to say that Putnam is right, and indeed, his argument has seen significant critical discussion; the point, rather, is just to show how this argument exhibits those features of transcendental arguments mentioned above.

4.4: Objections to Transcendental Arguments: Körner and Stroud

4.4.1 We've seen, then, two different transcendental arguments, namely, Kant's "Refutation of Idealism" and Putnam's argument against the BIV hypothesis. We've also seen the way these arguments typically work: as Stern and Cheng note, these arguments are, broadly, anti-skeptical, they begin with something that the skeptic does not question, and they rely on a crucial claim to the effect that Y somehow *enables* X, allowing us to conclude that Y must be the case since X is.

The question, now, is whether any of these arguments can really establish the strong conclusion they are looking to establish. There will also be a question whether these arguments can establish their conclusions in a metaphysically and semantically palatable way. Finally, connected with both worries will be a question whether transcendental arguments offer anything new. We'll first consider an objection from Stephan Körner before moving on to discussing the most influential objection to these sorts of arguments, one offered by Barry Stroud.

4.4.2 We can begin with Stephan Körner, whose objections I do not find easy to grasp. He writes that “a transcendental deduction of a categorial schema would be the statement of reasons why *every* method of differentiating a region of experience belongs to this schema,”²⁴⁸ where a *categorial schema* is “the set of constitutive and individuating attributes...to which the method of individuation, with its associated logic, belongs.”²⁴⁹ This is similar to what he writes in a separate paper: “A transcendental deduction can now be defined quite generally as a logically sound demonstration of the reasons why a particular categorial schema is not only in fact, but also necessarily employed, in differentiating a region of experience.”²⁵⁰ Now, on Körner’s view, the problem with these arguments is that they need to demonstrate the uniqueness of the schema, and yet this uniqueness cannot be demonstrated without presupposing some further schema, and so no transcendental deduction (to use his terminology) can be successful. To draw on an example from the first *Critique* which I think might help illuminate what Körner is after, Kant does not give a proof of the completeness of the table of judgments, which in turn places the table of the categories on shaky ground, but without that proof, it is then unclear why we should accept his claim that we can validly apply the categories, since it is unclear why those categories are, indeed, *categories* in the first place. What needs to be given is a completeness proof, or what Körner says, a proof of the “uniqueness of the schema,” and yet this cannot be provided because such a proof would either show that the schema was not actually a schema in the first place, i.e., that the categories are not in fact categories but are derivative thereof, or that it would presuppose you can stand outside your own head, as it were, and gaze inside it.

²⁴⁸ Stephan Körner, “Transcendental Tendencies in Recent Philosophy,” *The Journal of Philosophy* 63, no. 19 (October 1966), 552.

²⁴⁹ Ibid.

²⁵⁰ Stephan Körner, “The Impossibility of Transcendental Deductions,” *The Monist* 51, no. 3 (July 1967), 318-319.

It can be difficult to figure out what to make of Körner's arguments because he accepts as basic the metaphor of a "region of experience," as though my having experience is anything like – *could* be *anything* like – the sort of thing that has a floor plan. (Maybe – *maybe* – my field of vision has a *where*, as it were. Does my sense of balance?) This misleading metaphor is crucial, however, to Körner's objection: whatever else a region is, it is a *part* (probably a proper part) of some whole, but a part need not be a thing which gains its unity through being teleologically organized and having a function. A part can thus achieve its unity in all sorts of totally arbitrary ways, especially when the whole has no functional organization either. Suppose there is a heap of sand composed of, say, one hundred thousand grains of sand: part A, a single grain of sand, and part B, composed of ninety nine thousand, nine hundred ninety nine grains of sand, both have the same claim to the title of part of the heap, and it is not as though that partition plan has, or indeed, *could* have, any claim to being the *unique* way of splitting up the pile. In the case of a functional unity, if we are willing to disregard the teleological organization of the object (though in so doing we already distort our understanding of the object), we can also partition that object in all sorts of ways: indeed, this is exhibited in gangster movies when the goal is not to handle a human body so it would make for a good display in a museum, but rather, to get it to fit into the trunk of the getaway car. In Kant, *experience* is a functional unity, unlike what we find in the case of a pile of sand, and so experience cannot be "carved up" in purely arbitrary ways, in contrast to the way that a heap of sand can be carved up in whatever way we like nor, to return to the analogy of "regions of experience," in the way that planet's surface area does not itself compel any one unique set of divisions to be made upon it. Since the notion of a *region* is at best ambiguous, and at worst subject to being understood as something like a mere part, Körner can then construe Kant's understanding of experience in a way that is devoid of any talk of teleology

and function, and can in turn hold that experience can be partitioned into various parts arbitrarily because there is no single unique schema by which that partitioning is completed. And I think he is probably right about this: if I really want to disregard the teleology, there is no reason in principle why I can't say that my experience has exactly two parts, the first part of which is the empirical knowledge I have of the effect upon iron fillings that is caused by placing a magnet near them, while the second part is the complement of the first part. But if anything is true, it is that no one in a condition of minimal rationality will understand their experience to be anything like a mere heap, and in turn, no one will understand their experience to be such that it can be partitioned in such a way. We then need to understand why that is so, and the Kantian answer is that experience not only exhibits but is constituted by principles of reason, in virtue of which a subject can, say, infer, on the basis of her experience of an event, that the event she saw was *caused*, even though she has only seen, heard, felt, etc. the event and will learn of the cause *later*.

There are other issues with Körner's objection, but we can leave these aside for present. It seems to me that Körner's objection is not so much to transcendental arguments in general, nor to Kant's own arguments in particular, but rather, towards any attempt to justify something – a proposition, a principle, etc. – which is to be seen as *fundamental*. It seems typical to assume that, when arguing that something like a proposition is fundamental, the arguer needs to offer an argument on as thin a basis as possible, because otherwise an opponent can object by saying that her argument presupposes some thicker, more local concept of some sort. But when an argument deals only in the thinnest possible terms available, it can start to look entirely unclear why that argument is an argument for the *particular* proposition under consideration, because as far as that argument is concerned, there is no reason why it should determine *any* particular proposition, rather than *some* proposition, or perhaps even something like the *form* of proposition

which then needs to be filled in with content from somewhere or another. This assumption, or set of assumptions, seems to be motivated by something like an overly scientific demand for “theoretical economy,” a demand that is ultimately nothing more than an empty formalism.

As global objections to transcendental arguments, I do not think Körner’s objections should be worrying, at least when it is presented in this form.

4.4.3 That said, Körner may be on to something when we construe the objection somewhat differently. We can, and should, leave aside the talk of “regions of experience” and, more broadly, a conception of transcendental arguments according to which they are to be found only in theoretical philosophy, because there are transcendental arguments in practical philosophy. We should then reject the idea that we can generate a global objection to transcendental arguments, so understood, because if these arguments are to be anti-skeptical, no global objection will gain traction because the practical and the theoretical do not share an epistemology, except in the purely formal and uninformative sense that each has an epistemology in the first place. To put the point differently, skepticism about (say) the external world and skepticism about (say) the authority of practical rationality are fundamentally different types of skepticism, and it would be a mistake to think that, in allaying skepticism about the external world, we, *at the same time*, allay skepticism about practical rationality. This does *not* mean that we cannot offer objections to these arguments, but rather, that the argument or sets of arguments need a fair bit of content for any such objections to gain traction. (I understand Stroud’s objection, which I will come to later, to work in such a way.) In any event, this will allow someone to save something like Körner’s objection, because the content being assumed when considering a particular transcendental argument also allows us to understand what *uniqueness* even amounts to in the first place.

The thought, then, is that Körner's objection fails as a global objection because it either collapses into an objection for any argument attempting to show that something is fundamental or, if not, then cannot make itself be understood on its own terms since it wants to cover all possible transcendental arguments and so cannot rely on particular content in any of them. This can be overcome, I am saying, by rejecting the idea that it is worthwhile to consider a global objection in the first place.

What, then, comes of Körner's objection when it is recast as something more local?²⁵¹ It comes to the objection that the relevant transcendental argument cannot justify its implicit assumption that, in searching for various candidates for the transcendental conditions, it has found all of them. You might say that the objection is that a particular argument reflects failure of imagination. This objection *cannot* be offered as a global objection to transcendental arguments because some arguments can, clearly, justify such an assumption, such as by using terms which can be known *a priori* to exhaust the relevant space.²⁵² In other cases, however, things may be different.

An example would be helpful. It has been argued by Ross Harrison that we find a transcendental argument in the rather unexpected place that is Bentham's *Introduction to the Principles of Morals and Legislation*. Bentham identifies the principle of utility as the fundamental principle of morality and law, and then goes on to make the argumentative moves you would expect someone to make once they've identified something as a fundamental principle: for instance, he thinks your disagreeing with the principle of utility just shows you are

²⁵¹ The following draws on Ross Harrison, "The Only Possible Morality."

²⁵² This may then motivate a new worry, namely, that transcendental arguments do not offer anything new. The reason is that a transcendental argument which meets this condition might have the form A or B, not-A, thus B, and we already know that arguments like that are valid. The *point* of the argument might nevertheless be anti-skeptical in a special sense, and in that sense, it may be a transcendental argument.

insufficiently clear-minded,²⁵³ and he also thinks the principle of utility is incapable of proof because any such proof would require, as a premise, a prior principle or set of principles, which would contradict the claim that it is, indeed, fundamental.²⁵⁴

Harrison, however, reads Bentham as not simply stopping there, because Bentham continues by saying that “to disprove the propriety of [the principle of utility] by arguments is impossible; but, from the causes that have been mentioned, or from some confused or partial view of it, a man may happen to be disposed not to relish it.”²⁵⁵ Bentham is saying that, even though the principle of utility is not capable of proof, it may nevertheless not sit well with you. Now, it does not seem to me to be generally true that fundamental principles need to sit well with those who accept them or even merely entertain them: nothing in the notion of *fundamentality*, nor anything in the notion of a *principle*, seems to imply anything about their having to be related to at all, let alone in some distinctive way having to do with human affect. So, if a man’s being disposed not to relish the principle of utility is to be a problem, it cannot be a problem *just* because it is a fundamental principle. The problem, as I see it, has two sides: one has to do with the principle of utility itself, and the other has to do with Bentham’s conception of us, that is, creatures of the sort which can appreciate this principle in the first place. On the former, Bentham writes that

By the principle of utility is meant that principle which approves or disapproves of every action whatsoever, according to the tendency which it appears to have to augment or diminish the happiness of the party whose interest is in question: or, what is the same thing in other words, to promote or to oppose that happiness. I say of every action

²⁵³ “Has the rectitude of this principle been ever formally contested It should seem that it has, by those who have not known what they have been meaning” (Principles of Morals and Legislation, I.XI). Another remark in this vein: “When a man attempts to combat the principle of utility, it is with reasons drawn, without his being aware of it, from that very principle itself.” (Principles of Morals and Legislation I.XIII).

²⁵⁴ “Is [the principle of utility] susceptible of any direct proof? It should seem not: for that which is used to prove every thing else, cannot itself be proved: a chain of proofs must have their commencement somewhere. To give such proof is as impossible as it is needless” (I.XI).

²⁵⁵ I.XIV.

whatsoever: and therefore not only every action of a private individual, but of every measure of government.²⁵⁶

Given that Bentham seems to think that both I and the state are capable of something called “action,” we should then think his account of action is broad. I want to suggest that what he has in mind is better thought of as *activity*.²⁵⁷ Some activities are, indeed, actions – one activity I can undertake is that of raising my arm, and that is certainly an action – but not all activities are actions. Am I *acting* when, in the middle of an extraordinarily tedious, boring colloquium talk, I fantasize about a meteor’s levelling Greg Hall? No, but from the fact that I am not acting it does not follow that I’m not doing *anything*, nor that my fantasizing somehow happens to me, as it were. I am obviously doing something, namely daydreaming, an activity which is not an action. Now, another activity is the activity of believing the principle of utility. This means, then, that the activity of accepting the principle of utility is itself evaluable on the terms of the principle so accepted, and given the content of the principle, that activity ought to be a happy one.²⁵⁸

Now suppose it isn’t. What, that is, could happen if it were *not* a happy one? This brings us to the second part of the problem, which has to do with Bentham’s conception of us. Bentham endorses both psychological and normative hedonism.²⁵⁹ Now Bentham’s man who is disposed not to relish utilitarianism seems to have, not only motivation, but justification, not to accept the principle of utility, on the terms of – *the principle of utility*. This is not a problem if you do not agree with one Jesus of Nazareth that “the truth shall set you free,” but it *is* a problem if you propose that the principle of utility is “the foundation of that system, the object of which is to

²⁵⁶ I.II.

²⁵⁷ I credit this suggestion to Addison Ellis in conversation about the idea of *epistemic agency*.

²⁵⁸ This is in contrast with Sidgwick, who holds that we should not be taking for granted the activity of believing the principle of utility in the first place.

²⁵⁹ “Nature has placed mankind under the governance of two sovereign masters, *pain* and *pleasure*. It is for them alone to point out what we ought to do, as well as to determine what we shall do” (I.I).

rear the fabric of felicity by the hands of reason and of law.”²⁶⁰ Bentham’s project is ultimately one of social reform and not simply one in which you, a private individual, try to make your own private beliefs about morality as coherent as possible, and social reform requires coherent patterns of motivation and explanation; further, since Bentham’s man who is disposed not to relish utilitarianism need not be a single individual but all of us, such as by being a representation of that part of us with which utilitarianism does not sit well, it then seems to follow that he would have a problem if we did not like utilitarianism upon being told about it, because we would then gain reason to reject the various social reforms being proposed. So there needs to be something that can be said to still that voice of doubt within us.

It is at this point that Harrison reads Bentham as appealing to a transcendental argument, in section XIV of chapter 1 of the *Introduction to the Principles*. Harrison writes that

Bentham wants to demonstrate that unless the principle of utility is adopted there can be no moral judgments. He does this in the present not by deploying empirical observations, but by suggesting that something would not be a moral judgment at all unless it matched up to certain conditions, and that only judgments based on utility can do this.²⁶¹

I think Harrison is right in reading Bentham this way. Bentham seems to be arguing that there is no such thing as moral reasoning unless there are normative standards – what Bentham calls “principles” – to distinguish success and error in reasoning, and further, that these standards cannot be based the arbitrary whims of any one particular person, because at that point they are no longer *standards*. So there needs to be some sort of public standard if there is to be moral reasoning at all. Now what is that standard supposed to be like? Well, it has to apply to any token instance of moral reasoning, as well as to any and all possible considerations that may enter into reasoning. And, as expected, the only sort of thing that can do that work is the principle of utility.

²⁶⁰ I.I.

²⁶¹ Ross Harrison, “The Only Possible Morality,” *Proceedings of the Aristotelian Society, Supplementary Volumes* 50 (1976), 28.

As such, any opposition to the principle of utility presupposes the very same principle of utility.²⁶²

4.4.4 It is at this point that Körner's objection can enter the picture and say something with some bite. We can accept that the possibility of error in moral reasoning presupposes some sort of principle by reference to which we can distinguish good and bad reasoning. If the argument simply stopped there, we do not get the principle of utility, nor any other particular principle: all the argument would show is that there is *some* principle, we know not what. In chapter 2 of the *Principles*, we get an account of the principles opposed to that of utility, with Bentham offering a reductive account according to which they are all versions either of what he calls the *principle of asceticism*, according to which an act is right if it produces the most unhappiness, or the *principle of sympathy and antipathy*, which seems to be a principle of private sentimentalism and

²⁶² Bentham's argument is presented as a series of rhetorical questions:

1. Let him settle with himself, whether he would wish to discard this principle altogether; if so, let him consider what it is that all his reasonings (in matters of politics especially) can amount to?
2. If he would, let him settle with himself, whether he would judge and act without any principle, or whether there is any other he would judge and act by?
3. If there be, let him examine and satisfy himself whether the principle he thinks he has found is really any separate intelligible principle; or whether it be not a mere principle in words, a kind of phrase, which at bottom expresses neither more nor less than the averment of his own unfounded sentiments...
4. If he is inclined to think that his own approbation or disapprobation, annexed to the idea of an act, without any regard to its consequences, is a sufficient foundation for him to judge and act upon, let him ask whether his sentiment is to be a standard of right and wrong, with respect to every other man, or whether every man's sentiment has the same privilege of being a standard to itself?
5. In the first case, let him ask himself whether his principle is not despotical, and hostile to all the rest of human race?
6. In the second case...whether at this rate there are not as many different standards of right and wrong as there are men? And whether even to the same man, the same thing, which is right to-day, may not (without the least change in its nature) be wrong to-morrow?...
7. If he should have said to himself, No: for that the sentiment which he proposes as a standard must be grounded on reflection, let him say on what particulars the reflection is to turn? If on particulars having relation to the utility of the act, then let him say whether this is not deserting his own principle, and borrowing assistance from that very one in opposition to which he sets it up:...
10. Admitting any other principle than the principle of utility to be a right principle, a principle that it is right for a man to pursue...let him say whether there is any such thing as a *motive* that a man can have to pursue the dictates of it: if there is, let him say what that motive is, and how it is to be distinguished from those which enforce the dictates of utility: if not, then lastly let him say what it is this other principle can be good for? (I.XVI)

is denounced by Bentham as the “negation of all principle.” Körner’s objection can enter here: Bentham thinks that every form of non-utilitarian sentimentalism, such as a Humean account, can be reduced to “contrivances for avoiding the obligation of appealing to any external standard, and for prevailing upon the reader to accept of the author’s sentiment or opinion as a reason for itself.”²⁶³ This is either false or – an inclusive “or” – shows the failure of imagination I mentioned above: false if you think that someone like Hume or Smith does indeed offer an “external standard” by offering an account in terms of the impartial spectator, failing to be imaginative if you think that Bentham is also missing the possibility that perhaps moral reasoning has a standard which is internal to it, or simply some other standard that he hasn’t considered. A Körner-style objection could perhaps also be levelled not so much against Bentham’s misrepresentation of the various moral principles inhabiting the space under consideration, but against the presuppositions of his arguments, and in particular, against his inability to consider the possibility of non-hedonic motivation, but whether this counts as a Körner-style objection is not clear to me, though I do not think it matters for present purposes. (It’s an objection either way.)

So construed, Körner’s objection may have something to it. Whether it does so depends crucially on the particular transcendental argument under consideration. Understood instead as a global objection, I do not think it will succeed, for reasons I outlined above.

4.4.5 The story is different with Stroud, though here too, the point can be difficult to appreciate. In his early paper “Transcendental Arguments,” where he first offers this objection, Stroud considers particular patterns of transcendental argumentation offered by Strawson and Shoemaker. According to Stroud, the transcendental arguer attempts to show that a particular

²⁶³ II.XIV.

proposition is a member of what he calls *the privileged class*. In the case of language, for instance, the privileged class is "...a genuine class of propositions each member of which must be true in order for there to be any language, and which consequently cannot be denied truly by anyone, and whose negations cannot be asserted truly by anyone."²⁶⁴ But while Stroud's example focuses on language, nothing requires a restriction to language, and we could instead say that the privileged class of propositions with respect to X are those propositions which must be true in order for X to obtain, such that, when X does in fact obtain, then those propositions cannot be rejected. In Kantian terms, propositions in the privileged class of X are the condition of the possibility of X, and in the Refutation, Kant attempts to show that "the mere, but empirically determined, consciousness of my own existence proves the existence of objects in space outside me"²⁶⁵ is a member of the privileged class. In later papers Stroud offers a more general characterization of transcendental arguments, rather than proceeding on the basis of consideration of examples, but we can safely pass by those characterizations here for present purposes.

Stroud goes on to offer two objections to transcendental arguments. First, there is the general difficulty of identifying those members of the privileged class. In the case of the Refutation, for instance, does the entire Theorem which I quoted above serve as a member of the privileged class, or are we allowed to say instead that the claim "there is an external world" is a member of the class? There is a difficulty, in other words, having to do with the identification of the members of the class, something that may be in line with Korner's objection which I discussed above. I agree with Stroud that this is a difficulty, but it does not seem to me that it is a difficulty unique to transcendental arguments, since this sounds like a problem of

²⁶⁴ Barry Stroud, "Transcendental Arguments," *The Journal of Philosophy* 65, no. 9 (May 1968), 253.

²⁶⁵ B275.

underdetermination, and the problem of underdetermination of a general representation of some sort, such as a concept, a theory, etc. is a problem for any creature which neither a brute animal nor God. So, while this is, indeed, a problem for those offering transcendental arguments, it is not a problem *just* for those offering such arguments.

4.4.6 The second objection seems more tricky, and indeed, this is the objection for which Stroud is well-known to those working on transcendental arguments. After the first objection above, he writes:

For any candidate [proposition] *S*, proposed as a member of the privileged class, the skeptic can always very plausibly insist that it is enough to make language possible if we *believe* that *S* is true, or if it looks for all the world as if it is, but that *S* needn't be true. Our having this belief would enable us to give sense to what we say, but some additional justification would still have to be given for our claim to *know* that *S* is true. The skeptic distinguishes between the conditions necessary for a paradigmatic or warranted (and therefore meaningful) use of an expression or statement and the conditions under which it is true.²⁶⁶

Here is the idea. We know that a transcendental argument is an argument to that effect that *S* is a member of the privileged class with respect to *X* and that since *X* obtains, so does *S*. Stroud's objection is that transcendental arguments cannot live up to their anti-skeptical credentials because they cannot distinguish *S*'s being true and *S*'s merely being *thought* to be true. In turn, for any transcendental argument we are given, we could substitute for *S* a claim like "the belief that *S*," "the thought that *S*," or whatever else may fit, given the argument under consideration. Transcendental arguments which begin with psychological premises do not allow us to make what Mark Sacks calls the *inference to reality*,²⁶⁷ and instead only allow us to draw a further psychological conclusion. And *if* this inference can, in fact, be made, something needs to be said

²⁶⁶ Stroud, "Transcendental Arguments," 255.

²⁶⁷ See Mark Sacks, "A Defence of Transcendental Arguments," in *Objectivity and Insight* (New York: Oxford University Press, 2000), 273-311. See also Mark Sacks, "Transcendental Arguments and the Inference to Reality: A Reply to Stern," in *Transcendental Arguments: Problems and Prospects*, ed. Robert Stern (Oxford: Clarendon Press, 1999), 67-82.

to explain *why* it can be made. Putting the thought in terms of what he calls the “Kantian enterprise” in a later paper, Stroud writes that:

[The Kantian enterprise of transcendental argumentation] must explain how we can proceed deductively, or in some sense necessarily, from facts about how we think and experience things to conclusion which appear to say how things are independently of all human thought and experience...how can truths about the world which appear to say or imply nothing about human thought or experience be shown to be genuinely necessary conditions of such psychological facts as that we think and experience things in certain ways, from which the proofs begin? It would seem that we must find, and cross, a bridge of necessity from the one to the other.²⁶⁸

Transcendental arguments, as we have seen, seem to move from facts about my psychology, or thinking, or whatever to facts about the structure of the world and, notably, vice versa: after all, in the case of the Refutation of Idealism, it seems that not only does the structure of my representational capacities prove the existence of a world outside of me, but that the structure of *that* world rules out certain representational capacities. There is some sort of non-contingent relationship between the structures of the world and of my own mind, and this does seem to call for explanation.

4.4.7 At this point, though, it seems like we could make a dilemma. One horn of the dilemma is the horn I have already mentioned above: namely, that the skeptic can insist that there is no “bridge of necessity,” but that there is the *belief* in some sort of bridge of necessity. The other horn is that the transcendental philosopher does indeed offer an account of the “bridge of necessity,” but that this bridge is accounted for in terms of a contentious semantics or metaphysics. Strawson seems to read Stroud in the first way, writing that:

Either these arguments...are little more than an elaborate and superfluous screen behind which we can discern a simple reliance on a simple form of verification principle *or* the most that such arguments can establish is that in order for the intelligible formulation of skeptical doubts to be possible, we must take it, or *believe*, that we have knowledge of,

²⁶⁸ Barry Stroud, “Kantian Argument, Conceptual Capacities, and Invulnerability,” in *Understanding Human Knowledge: Philosophical Essays* (New York: Oxford University Press, 2000), 158-159.

say, external physical objects or other minds; but to establish this falls short of establishing that these beliefs are, or must be, true.²⁶⁹

Verificationism could secure the “bridge of necessity” by making all the relevant points out in terms of a particular theory of meaning which is contentious. You might think, in a different vein, that what secures the bridge is a distinctive metaphysical picture. Stroud thinks that, in Kant’s case, it is transcendental idealism which does the trick.²⁷⁰ But idealism of any form is contentious.

An example at this point will be helpful. Kant, recall, seems to argue that the temporal ordering of one’s psychological states and activities presupposes something non-psychological which serves as the standard by which that ordering can be correct or incorrect, with that non-psychological thing being the external world. It seems to me that a Stroudian objection against Kant would take the form of saying that the argument does not show that there is an external world, but instead, that the relevant temporal ordering under consideration presupposes a (stable) belief that there is something other than those psychological states being ordered, but that may simply be false.

4.5: The Puzzle and Self-Consciousness

4.5.1 We’ve discussed, then, two forms of argumentation – genealogical argumentation in chapter 3, and transcendental argumentation in the present chapter. We have also discussed various objections you could offer against these sorts of arguments – genealogical arguments are subject to worries regarding the genetic fallacy, for instance, while transcendental arguments are subject to those worries I sketched out above from Körner and Stroud.

²⁶⁹ Strawson, *Skepticism and Naturalism: Some Varieties*, 9.

²⁷⁰ Stroud, “Kantian Argument, Conceptual Capacities, and Invulnerability,” 159.

In what follows, then, I want to try to argue for my claim above to the effect that these two forms of argumentation can represent “different sides of the same coin.”

4.5.2 The most immediate hesitation regarding this claim, I think, has to do with the fact that, as we have seen, transcendental arguments seem to be anti-skeptical, while genealogies seem to have a kind of two-way power and can be *either* anti-skeptical or skeptical, i.e., vindicatory or critical.²⁷¹ It does indeed seem to be something of a consensus view that transcendental arguments are anti-skeptical, so much so that, to recall a quote from above, Stern and Cheng can identify as a “key feature of transcendental arguments” that they “...are typically anti-sceptical, so that (as Strawson puts it) it is widely assumed that ‘the point of transcendental arguments in general is an anti-sceptical point.’”²⁷²

I want to suggest that there is nothing in the mere idea of a transcendental argument, considered simply as such, that requires any such argument to be anti-skeptical. Stern and Cheng are indeed right that these arguments are *typically* anti-skeptical, but that will have less to do with the principles of transcendental argumentation and more to do with what goes into the appreciation of such argumentation.

Stern and Cheng, at the beginning of their entry, write that “as standardly conceived, transcendental arguments are taken to be distinctive in involving a certain sort of claim, namely that X is a necessary condition for the possibility of Y – where then, given that Y is the case, it logically follows that X must be the case too.”²⁷³ Now it is true that, *when used anti-skeptically*, these arguments typically take X to be the object of skeptical doubt and Y to be the object of

²⁷¹ As we saw in chapter 3, there are also genealogies which seek to show that some phenomenon is not actually a unity, but instead a diverse inheritance of different strains of thought, historical conditions, and so on. (Geuss is the main figure I have in mind.) My own impression is that these genealogies tend to be critical, because the phenomenon usually seems important in part because it is a unity. This is especially true in those cases where the unity is something like a *worldview*, because a disunified worldview can only be held by a disunified subject.

²⁷² Robert Stern and Tony Cheng, “Transcendental Arguments.”

²⁷³ Ibid.

something like knowledge, allowing us on the basis of argument to make an inference to the reality of X. As far as this argument scheme goes, though, there is nothing internal to it that requires any anti-skeptical point because there is no reason to think that a necessary condition of the possibility of Y cannot be found in the *failure* of knowledge with respect to something, where that failure of knowledge causes or constitutes X. For various reasons, in these sorts of cases, it is more likely that the interesting part of the argument is the connection between a failure of knowledge, on the one hand, with Y on the other, but that does not change the fact that we could continue with the relevant inference and say that since Y obtains, so too must X, where X is a failure of knowledge.

It is true that Strawson seems to build into the very idea of a transcendental argument the anti-skeptical function which I have just suggested we dismiss as not, strictly speaking, necessary. But it does not seem to me that this is troubling. It is false that everyone writing about transcendental arguments understand them in this way: Harrison, for instance, who I discussed above, writes that “a transcendental argument in the first instance is an argument in which it is demonstrated that we must possess some concept, or be able to make a particular kind of judgment, if judgment of a world is to be possible at all.”²⁷⁴ Similarly, Putnam, who I also discussed above, writes that his “procedure [in ‘Brains in a Vat’] has a close relation to what Kant called a ‘transcendental’ investigation; for it is an investigation, I repeat, of the *preconditions* of reference and hence of thought...”²⁷⁵ Strawson’s conception of transcendental arguments is more ambitious, in the sense that it excludes more arguments as *failing* to be transcendental arguments. I see no reason to share such ambitions.

²⁷⁴ Harrison, “The Only Possible Morality,” 23.

²⁷⁵ Putnam, “Brains in a Vat,” 16.

4.5.3 Still, though, there seems to be something about these arguments which, in some sense or another, makes them *given* to this sort of anti-skeptical function, even if that function is not strictly required. How do we account for this? On this point, I want to lean on a different feature of transcendental arguments, identified by Stern and Cheng and quoted by me above in 4.3.2, namely, that they are (characteristically) *first-personal*. Suppose you are given a skeptical transcendental argument where, in line with the scheme above, X represents both a failure of knowledge in some respect or another and a necessary condition of the possibility of Y, and since Y is the case, it follows that X too is the case. Now, in characterizing these arguments as being, at least typically, first-personal, we could say that transcendental arguments typically feature premises which are, unsurprisingly, first-person pronouns such as “I” or “we,” rather than with third-personal referring expressions, such as definite descriptions or proper names. I find it hard to resist the thought that the claims being offered in the premises of (typical) transcendental arguments, then, function less as *reports*, where the truth conditions of the resulting proposition containing the reports being understood in terms of something like correspondence to the facts, and more as *avowals*. Can I avow a failure of knowledge? Some of them, sure: when I say that I don’t know what the back of my head looks like, I think I am, as it were, saying so with my whole chest. But that is *not* the case if the relevant failure of the knowledge looks more like *false consciousness*, since these are cases in which there is a failure of knowledge which not only is not, but *cannot*, be avowed in the normal course of things. So when I am given an argument with a premise such as “a condition of the possibility of capitalism is that we believe we own ourselves, since this enables us to rent ourselves out,” *of course* I am not going to agree with the premise, since I cannot avow it: I cannot, that is, see myself as *confused* about the relationship I bear to myself and, in turn, will not accept the idea that this belief is a *mere* belief. I cannot

avow, that is, what I think to be false, *even though I might be wrong in thinking it false*. Thinking about it some more is not necessarily going to solve the issue and enlighten me, because these are the operations of consciousness and what I have is a false consciousness.

How is avowal in this sort of case possible? That is, how is it possible for someone to avow the argument being given above? Perhaps they do not avow the consequent, but they report it, and it is the conditional which is the object of avowal. This is different from above, where you, in your state of false consciousness, are unwilling to deal with the argument in the first place. For you to avow the argument, then, the argument itself does not have to change at all: rather, it is *you* who needs to change.

The idea, then, is that it is, in principle, possible to offer a transcendental argument in which something like false consciousness held to be a necessary condition of the possibility of some Y, and since Y is the case, so is the relevant false consciousness. This argument cannot convince anyone who is in the grips of the relevant false consciousness and can only convince those who were inclined to see things in those terms anyway, where that inclination is not itself the product of an argument. So, while it is not, in principle, impossible to offer a skeptical transcendental argument, these arguments seem *idle* in a way that other arguments are not. “People who are identified with” the relevant outlook, Williams writes in a different context, “must be resistant to this explanation of it, and if they come to accept the explanation, their outlook will have to change.”²⁷⁶ Rather than the argument needing to change, the change needs to take place in the dispositions which are brought to bear on the argument, to recall my discussion above in 4.2.

²⁷⁶ TT 37.

But Williams makes that last remark in the context of discussing *genealogy*, not transcendental arguments. Perhaps these forms of argumentation are not as distant as their adherents take them to be.

4.5.4 My suggestion, then, up to this point is that there is nothing in principle to prevent someone from offering a transcendental argument which is at the same time skeptical, and that while there is a pressure to offer an anti-skeptical argument due to the characteristic or typical first-personal register in which these arguments are offered, there is no reason this cannot be accommodated by holding that one's outlook has to change in much the same way it has to change to appreciate certain critical genealogies. Insofar, then, as resistance to my initial suggestion, namely that transcendental and genealogical arguments cannot be "two sides of the same coin," is based on the idea that transcendental arguments are anti-skeptical and genealogies have a two-way power or capacity for either justification or defeat, it will not succeed. Both sorts of arguments can contribute to, as well as undermine, justification.

4.5.5 But can they both establish the *normativity* of some practice? It seems common to think that while a transcendental argument might be able to establish the normativity of a practice, such as that of morality, genealogy cannot. But as I discussed in chapter 3, genealogy can indeed give a reason of some sort. A reason is a normative consideration. So, a genealogy which produces a reason for A establishes that A is a normativity necessity, and since A is a placeholder, there is no reason why "A" cannot represent exactly the same sort of content that you would find in the conclusion of a transcendental argument.

Genealogies do, I will admit, tend to be skeptical. But it seems to me that, in this regard, the situation is analogous to that we saw above with transcendental arguments, which is just to say that, while it is true that genealogies tend to be skeptical, there is no reason why they need to

be. I showed this in chapter 3 as well. Part of what seems to enable the skeptical use of genealogy is that these arguments often seem to have a content which is third-personal. But this is not a necessity either. This means that premises of a genealogy, as well as a conclusion, could be first-personal as well, in much the same way we find such premises in transcendental arguments.

4.5.6 If genealogy and transcendental arguments, then, at least *can* be “two sides of the same coin,” under what conditions can they be these two sides? The arguments would have to be concerned with the same thing at least: after all, I do not show that genealogy and transcendental arguments are two sides of the same coin by offering a genealogy of some object X and a transcendental argument regarding some object Y. Both would need to concern the same object X. But in being concerned with the same object, it does *not* follow that these arguments must both render the same judgement about the object. To put it differently, a genealogy might conclude that S is not-P, while the transcendental argument might conclude that S is P. Both are concerned with the same object, S, *even though they draw different conclusions*. This is an easy mistake to make because modern logic typically represents the conclusion of an argument as something like ‘P’, rather than ‘S is P.’

4.5.7 So, at the very least, the objects of transcendental and genealogical argumentation need to be the same. Is it necessary, though, that the object S appear in both arguments *under that description*? I do not see why it would have to.

Here is the line of thought I will offer to try to support this. Suppose I offer some argument for the claim that Hesperus is P and that Phosphorus is not-P. I can believe each argument only on the condition that I do not know that Hesperus is Phosphorus. If I came to know that Hesperus is Phosphorus, I would have to reject one of the arguments on pain of

irrationality. If I wanted to get around rejecting one of the arguments, I would need to help myself to some form of bracketing regarding the identity claim itself, such as by trying to find a property of either Hesperus or Phosphorus which is not shared with the other, or by pointing out something about myself which might give me reason for thinking that I should withhold assent. Suppose you then find out that one of these arguments is a genealogy, while the other is a transcendental argument. What do those new facts do for you? They do not do anything: you were already given your reasons in some form or another. Because knowledge that these arguments are genealogies and transcendental arguments is idle in this case, we can also expect it to be idle in other cases in which the same content appears in different arguments under different descriptions.

Suppose next that you have two different arguments: one with the first person singular and one featuring “someone.” Perhaps in this sort of case, you conclude “I am not making a mess” and “someone is making a mess,” such as when you are John Perry in the supermarket, with a hole in your bag of sugar. In this sort of case, I can run the line of thought I just presented and get to similar conclusions. But here, suppose that you want to attempt to reject the arguments or at least indulge in something like bracketing so you do not have to accept them. Above, I said that you can do this in three ways: by thinking new Hesperus thoughts, new Phosphorus thoughts, or new thoughts about myself, seeing as I am the person entertaining the identity claim. Here, though, in the case of “I” and “someone,” I can only think thoughts about me and “someone.” That suggests that if I am going to worm my way out of the argument, I can only do so in two ways. But that is wrong. I can find a consideration that bears on me insofar as I am the person who is making a mess, but I can also find a consideration that bears on me insofar as I am

the person thinking about the fact that I am making a mess. The reflective structure of self-consciousness changes things.

Further, with the first-person in view, any attempt to engage in bracketing will be an attempt to, as it were, bracket *myself* away. Whatever else this attitude is, it is not one which seems to be stable.

4.5.8 What about when the content of *both* arguments is essentially first personal? True, both arguments require me to think about myself. But do they require me to think about myself *under the same description*? For the reasons I outlined above, I think the answer to this question is a firm “no.”

4.5.9 My suggestion, then, is the following. Both the transcendental argument and the genealogical argument I have offered are first-personal explorations of human moral identity. (You could also call this “modern liberal moral identity.”) In the transcendental argument, the exploration is about what I think about the normativity of human moral identity and its constitutive principles. The genealogy, by contrast, is about what *I think* I think about the normativity of human moral identity and its constitutive principles. When I think about the normativity of human moral identity, I think that it is vindicated. But when I think about what I think about human moral identity, I think we can offer considerations which speak against what I think. And those considerations have pretty direct implications, since thinking about what I think about some content *is to think about that content*.

4.5.10 My suggestion, then, is that in thinking about human moral identity, we find it vindicated, but when we think about what we think about it, we find it condemned. When we think about moral identity, everything looks happy and fine. But when we think about our thinking about it, and when we try to explain and understand our thinking about it and what it takes for it to be

possible in the first place, we find that it is considerably less happy and fine than we initially thought. And since what I think I think about my human moral identity is something I think about my human moral identity, it follows that I think that identity both vindicated and condemned. This is what I call the *puzzle of human moral identity*.

4.5.11 In 4.4 above, I discussed two objections to transcendental arguments, namely, Körner's objection on failure of imagination and Stroud's objection. Are those available against my own argument in chapter 2? No. Stroud's argument succeeds against strong transcendental arguments which involve a suspicious "inference to reality," where you infer certain, real phenomena on the basis of psychological consideration considerations. In my own case, though, there is no inference to reality being made, since what I have offered does not presuppose realism.

What about Körner's objection? There would be a worry in my argument if I were talking not about human moral identity, but about, say, something more like human moral identity as so-and-so understands it. But in the way that Kant talks about morality and not about something called "the Kantian understanding of morality," I have talked about human moral identity. Similarly, I have not talked about the principle of utility, à la Bentham as we saw above, but I have talked about human moral identity.

Do we have such identity – such a form of self-understanding? Yes. Can more be said about this form of self-understanding? It depends on who is doing the speaking. I am not sure that you or I could: the attempt to do so might be like the attempt to see past the edges of your field of vision. Perhaps others could.

4.5.12 Can the puzzle be resolved? At a first pass, it looks like this would involve rejecting one of the horns which form the antinomy or, as a third option, engaging in a kind of bracketing so both horns are not held together in a single consciousness. Perhaps it would be possible to reject

one of the horns, though I have tried to offer which are strong, based on some of the literature I discussed in each of the relevant chapters. As for bracketing, it seems to me this would involve something more like bracketing oneself away. This does not seem like a solution as much as it seems like an avoidance of the argument.

4.5.13 There is a further option, though: *dissolution*. In this case, the puzzle arose due to the reflective, self-conscious structure of modern liberal dispositions. So, dissolving the puzzle does not involve dissolving something like a term in an argument, where the content of the term in the argument exists in isolation from the term's being known or otherwise consciously apprehended. In this case, the puzzle is an articulation of self-conscious, modern liberal dispositions. (Recall my discussion in 4.1.) Since these dispositions exist only through their being known or consciously apprehended as such, to dissolve the puzzle requires dissolving those very modern liberal dispositions. *Real* dispositions.

What does this look like? I leave that as an exercise.

4.5.14 A question immediately presents itself at this point: “why isn’t it possible to *repair* these dispositions?” We should address this question.

This question can be taken in different directions. One of the most prominent contemporary directions in which we can take this question involves a topic of discussion in the previous chapter, namely, *conceptual engineering*. The conceptual engineer, in response to my arguments, might put the question of repair in the following terms: “What you have pointed out is that at least some of our moral concepts are inconsistent, either in themselves in that they are constituted by principles which contradict one another, or with other, distinct moral concepts. But it does not follow from the existence of these mere inconsistencies that these concepts have to be abandoned entirely.” As Kevin Scharp puts it in discussion, “you repair the ship while you’re

at sea.” Indeed, Scharp’s own philosophy can sharpen the objection: after all, the concept he says is inconsistent, namely the concept *truth*, is not exactly unimportant, and even in the case of the concept *truth*, improvement is possible by the introduction of the concepts of *ascending* and *descending truth*.

4.5.15 There are, indeed, cases in which conceptual repair is, or at least seems to be, possible. I want to argue that my case, i.e., the case under discussion, is not one of them. We need to first say more about repair, and in particular, what is presupposed by repair.

Repair, of the sort that the conceptual engineer is interested in, seems to presuppose *topic continuity*, because without topic continuity, it seems like what we get are mere verbal disputes. To see this, imagine Ameliorative Abby and Backwards-Looking Bert share some concept *C*, which serves to conceptualize some content *M*. Abby has an argument that *C* could be improved, while Bert, with his Wittgensteinian sensibilities, does not agree. Via conceptual amelioration, Abby engineers a new, improved concept *C**. What ensures that Abby and Bert are not just having a verbal dispute is the fact that both are trying to conceptualize the same content, *M*, which constitutes the relevant topic of discussion. Since both are trying to conceptualize *M*, we can then say that the shift from using *C* and *C** amounts to an improvement rather than a mere change. True, *C* and *C** are not the same concept. They are different concepts, but different concepts of *the same thing*.

This, I take it, is something like the line of thought Herman Cappelen has in mind in his own attempted solution to the topic continuity problem. He offers the following, brief statement of his view:

We know independently of considerations having to do with conceptual engineering that speakers who use the same sentence, *S*, with different but relevantly similar semantic contents, can use *S* to *say the same thing*. So suppose *A* and *B* both utter *S*, but the semantic value of *S* differs a bit in their two utterances (say, because they occupy slightly

different contexts.) We can still, in many contexts, report them by saying that they have both said that *S*. That's to say, we can use *S* to say what they have both said. So same-saying can be preserved across differences in semantic content. I suggest we use that as a model for what happens when meanings are ameliorated as described above. The result is a change in, at least, extensions and intensions, but that's consistent with a preservation of same-saying. If it can preserve same-saying, there's a sense in which they both talk about the same subject matter. I call this a preservation of *topics*. So even though the meaning of, say, 'family' can change over time, we can still say that there's continuity of topic among those who use 'family': they are talking about families. Evidence for this is that two speakers who utter 'Families are *G*', one pre-amelioration and one post-amelioration, can both be described as having said that families are *G*.²⁷⁷

When Abby and Bert use *C** and *C* respectively to utter some sentence *S*, in most contexts, it's fine to say that they have said the same thing, even though *C* and *C** differ. (Strictly speaking, I should say that it is at least *possible* that it is fine to say "they both said *S*.") And when a new engineer arrives on the scene and improves upon *C** to get the concept *C***, we can tell the same story. So, conceptual engineering can preserve sameness of topic, between speakers at a time or over time, and in turn, it does not automatically generate verbal disputes. In turn, repair is a real possibility. That is, repair does not consist in simply abandoning one's concepts for another set, but rather, we can talk about improving the concepts we have.

4.5.16 An immediate concern regarding Cappelen's proposal is that he explicitly notes that it is in *many* contexts that we can report both *A* and *B* as having said *S*, despite some small differences in semantic content, such as by *A*'s use of *C** and *B*'s use of *C*. In general, though – not always, but in general – a context where people are at pains to say that *A* and *B* have *not* said the same thing in this sort of case is the context of *philosophy*. And it cannot be taken for granted that what you say in the seminar room, something which issues from a certain sort of philosophical self-understanding, can really be integrated into the self-understanding you have when you are on the bus (or whatever), especially when philosophy claims for itself *knowledge*.

²⁷⁷ Cappelen, "Conceptual Engineering: The Master Argument," 140-141.

If, then, you say in the seminar that A and B are *not* saying the same thing because A uses C^* and B uses C , and if you take yourself to *know* they are not saying the same thing, you cannot just return to the everyday and say, of A and B, “they are saying the same thing.”

I will return to this point. Leave that aside for now and simply return to Cappelen’s account.

Now, this is all well and good when we are talking about A and B. Things look different, though, when the relevant discussion is between *me and you*. (Or, for that matter, my thinking about myself over time.) In that case, I am using C , you are using C^* : are we talking about the same thing? For me to come to an answer, I need to know what the topic is, and certainly it won’t help if you tell me, “the topic is C^* .” What you need to do is either provide an account of the topic which does not invoke the concept C^* , something you can do either by using other concepts or by ostensive definition. We are familiar with each sort of case. Suppose, for instance, that you and I are talking and we are not sure whether we are talking about the same person. (Think *Seinfeld*, perhaps, such as the episode where Jerry and Elaine each are talking about (Crazy) Joe Davola, but they are not sure whether they are talking about the same person.) We can figure out whether we are by describing the person in ways which do not use the disputed concept – “he’s the guy who works at Google, you know, Pete’s friend” – or by pointing at them, whether literally or by (say) showing you their Facebook profile pic. This sort of knowledge is something the group identified by “we” must have in Cappelen’s example above, but having that knowledge is itself an achievement, and so something that cannot just be taken for granted, especially when we are looking at things from the point of view of A and B themselves, who will not think of themselves as “A” and “B”, respectively, but, as I said above, as *me and you*.

I want to suggest that in my own case in the dissertation, neither option is available. This means that *repair is impossible*: it is impossible because there is no way to determine whether a shift from *C* to *C** preserves topics. We can take each option in turn.

The case of ostensive definition is easiest. Suppose, then, that a conceptual engineer offers a concept, *C**, as an improvement upon *C*. We want to know whether *C** preserves topics or not. So, we ask the conceptual engineer what the topic is: that is, we ask her what her concept is supposed to be conceptualizing in the first place. But it is not possible to identify morality by means of ostensive definition. After all, what could you possibly point to?

The more plausible option involves the use of alternative concepts. In this case, we determine whether *C** is an improvement upon *C* by identifying the relevant topic, not by using either *C** or *C*, but a set of different concepts. In this case, the idea would be that the conceptual engineer offers us *C** and a conceptualization of morality which does not use the concept *C**, which then allows us to say that *C* and *C** are both conceptualizations of morality in the first place. I am skeptical this will pan out, because I have a hard time seeing how this will avoid smuggling in moral content. If the engineer attempts to identify the topic by using non-moral concepts, we could, I think, rightly protest that they have not ensured they have identified morality because the description they offer does not capture morality's normativity. They also cannot use moral concepts, because we can then protest by holding that what justifies their use of *these* concepts, rather than some other set of concepts, in their attempt to identify the topic is, unsurprisingly, *morality*. But *morality* was a problematic concept all along.

4.5.17 At the same time, though, it is hard to deny that there are cases of something we might call *conceptual drift*. Consider Cappelen's case of the concept *family*, for instance: the Greco-Roman understanding of the family, where the father, as *pater familias*, has the power to execute

any member of the household, does not seem to have survived, and yet we can still say that the Greco-Roman understanding and the modern understanding are understandings of the same thing. There even seems to have been conceptual drift with *morality*. How do we square this sort of drift with what I have said above?

It is true that there has been drift, and while conceptual engineering might suffice for drift, it is not necessary. Further, and to return to the thought I had in mind at the beginning of the previous section, it is not at all clear that conceptual engineering – which is, after all, a methodology or form of *philosophy* – really will suffice for various cases. I am not saying “conceptual engineering can never effect conceptual change,” but rather, that it is actually far more difficult to do so than might initially be expected.

Why, though, is it more difficult? For the reasons I outlined above: if the self-understanding of philosophy claims *knowledge* for itself, then it is going to regard the everyday self-understanding as being bound up with various sorts of errors, yet at the same time, you cannot help but have this sort of everyday self-understanding insofar as you’re a typically brought-up person. There is an uneasy doublemindedness found here. You do not necessarily find any such double-mindedness in the process of historical change, where conceptual drift of the sort we discussed above, in the case of *family*, seems to be found, but this sort of doublemindedness is instead found in individual agents. It seems to me, in fact, that the improvement from *C* to *C** is only effected upon forgetting the arguments in favor of the improvement, since all those arguments will make use of the very concept that is to be engineered, namely, *C*.

4.5.18 From this, I conclude that repair is impossible as a response to my arguments in the earlier chapters. Repair, of the sort that the conceptual engineer seems to have in mind,

presupposes topic continuity, and in particular, it presupposes a sort of topic continuity that those involved in the relevant debates can appreciate first-personally. That sort of knowledge of topic-continuity needs to be achieved. But in the case of the concept *morality*, it is not possible to determine whether the proffered concept really does constitute an improved conceptualization of an already-given topic or instead just changes the discussion. The reason this is not impossible is because we have to identify that topic in terms which do not presuppose the concepts under discussion, such as by ostension or alternative conceptualization: the former is not possible because, in the case of the concept *morality*, there is nothing to point to, and the latter is not possible with the concept *morality* because alternative moral conceptualizations violate the requirement not to include the concepts *C* and *C** in attempt to identify the topic, and because non-moral conceptualizations will leave out the relevant normative content. Further, it does not seem to me that arguments in favor of a certain instance of conceptual engineering, to the effect that we should engineer *C* to *C**, will actually be able to effect the improvement because any such argument will invoke the very concept which is held to be defective.

Chapter 5: Rejecting Morality While Saving Liberalism? On Political Realism

5.1: Introduction

5.1.1 The arguments I have offered in the earlier chapters of this dissertation may have several results. In what follows I am interested in articulating what I see as some of the implications for issues within political philosophy. Let me offer some setup.

I have argued for a rejection of morality via a rejection of human moral identity, and on some views, a rejection of morality implies a rejection of the possibility of politics, or the possibility of liberal politics, or something to that effect. These views understand politics to be a form of applied ethics. By contrast, on a different view which I will discuss in more detail in what follows, the rejection of morality does *not* imply a rejection of the possibility of politics, liberal politics, or whatever. On this sort of view, *political realism*, there is a *distinctively political* form of practical normativity which is, in some sense or another, different from that of ethics. I will spend a lot of time trying to unpack what this means. This type of view is maintained by, among others, Bernard Williams, Raymond Geuss, and Enzo Rossi, though my focus will be on Williams. Williams, like Nietzsche, wants to reject morality, but unlike Nietzsche, is a liberal. So, he cannot maintain his liberalism if he understands liberalism to be a form of applied morality, and in turn, he attempts to maintain liberalism by appeal to the distinctively political normativity I mentioned above. Related to political realism, and influential to Williams, is an understanding of liberalism offered by Judith Shklar, the *liberalism of fear*, according to which liberalism's presumption in favor of liberty is the best security against what Shklar argues is the worst human vice, *cruelty*. Shklar consistently holds that liberalism is, perhaps uniquely, opposed to cruelty. I will discuss her in greater detail later.

In this chapter I will argue that there is no hope for the liberalism of fear when construed in the way the political realist would have it. I am not interested in arguing that this understanding of liberalism is false because an opposition to cruelty does not commit one to liberalism: I suspect this is right, but I find this rather boring.²⁷⁸ But I think it is more interesting to simply grant the thought that liberalism is uniquely opposed to cruelty. With that in place, I can say that, against Shklar and Williams, I want to argue that liberal political realism cannot stand in opposition to cruelty, because it will instead *presuppose* cruelty. I will come to this later.

5.1.2 This chapter is long, and the argument will take several steps. I do not regret this. Politics is important and worthy of extensive, serious engagement.

I'll first explain the dialectic in greater detail and, in particular, the relationship between morality and politics, at which point I will be able to move on to developing an account of political realism and its core notion of a *distinctively political normativity* which at least appears somewhat plausible. The reason to spend a large amount of time on this issue is because it has been subjected to significant critique, with a piece by Alex Worsnip and Jonathan Leader Maynard being taken to have "conclusively established," according to David Enoch, that there is no such thing "like a sui generis political kind of normativity."²⁷⁹ Against this, I want to argue that political realists *can* respond to the Worsnip and Leader Maynard piece, and in ways which further flesh out the political realist idea.

Further, my own argument in this chapter requires, I think, that I show considerable charity to the political realist. Once I have tried to respond to Worsnip and Leader Maynard by arguing against two of their objections to the realist, in the course of which I hope to further develop the realist idea, I briefly discuss what I call the *sources* of a distinctively political

²⁷⁸ This point is made by John Kekes, "Cruelty and Liberalism," *Ethics* 106, no. 4 (1996): 834–44.

²⁷⁹ David Enoch, "Shameless Liberalism: A Vision," unpublished manuscript, 2025, 10.

normativity, and I argue that we can only account for such a normativity in terms of what I will call the *primary bads*. But the continued existence of the sorts of susceptibilities and dispositions required by liberalism requires the continued, always-already occurring infliction of the primary bads upon persons within the body politic. To put it differently, if the infliction of the primary bads constitutes *cruelty*, then, on my argument, liberalism will turn out to oppose cruelty by deeply presupposing its ongoing infliction. The liberal political realist, on my view, needs to provide for mechanisms of coercion, and I will argue that those mechanisms are actually just instances of *cruelty*.

5.2: Taking Stock

5.2.1 Above, I said that we should begin by taking stock, and while I did so briefly above, it would be helpful to do so to a greater degree, since that will help put in place the various pieces of argumentative machinery I need in order to make my own argument later.

I have argued for a strategy of responding to the puzzle of human moral identity by dissolving it through the dissolution of real, modern liberal human dispositions. My argument, then, is an argument for the extinction of one particular instance of the human type, the modern Western liberal. The argument for the rejection of human moral identity claims that the normativity of morality itself needs to be understood, and that it would be inimical to morality if it required itself to be understood in terms of the contentious metaphysics of transcendental idealism. Instead, we can understand human moral identity and morality in terms of history, but when we do so, we find that we have moral reason to reject morality itself.

Now, we should ask what sorts of implications this argument has for other issues in philosophy. In particular, a natural place to turn is political philosophy. If we reject the normativity of morality, what are the implications for political philosophy?

5.2.2 On some views, the implications are perhaps rather stark, especially on those views which understand politics to be applied ethics. According to Bernard Williams in his influential piece “Realism and Moralism in Political Theory,” which we will consider throughout this chapter in detail, there are two sorts of ways you could maintain that politics is applied ethics: first, in terms of what he calls the *enactment model*, while the second is the *structural model*. Both models, it seems to me, can be cashed out in terms of distinctions that Rawls makes in the famous “Two Concepts of Rules” paper. A paradigm of the enactment model is utilitarianism, which takes various practices as given and brings to bear on them the principle of utility. By contrast, the structural model finds its paradigm in the Rawlsian account of justice as fairness, which – according to Williams – does not take for granted various practices, unlike utilitarianism, and seeks to offer a justification thereof which derives its force from morality. But regardless of the model, it would seem to be the case that if you reject the authority of morality, it then follows that there are no values to enact, nor principles to justify the rules which constitute various practices, and so on. Claims in political philosophy which presuppose morality may still be true, in some sense or another, but only vacuously so.

So, if I have rejected morality, does it thereby follow that I also reject, say, liberalism as an empty word? It does not. This would follow I was committed to saying either that the normativity of morality just *is* that of politics, or that the normativity of morality is not *just* that of politics, such that the two are distinct, but nevertheless, that the moral is prior to the political. It is unclear to me what I have to commit myself to, given the rest of the dissertation, but I propose that we consider a third possibility, pursued by Bernard Williams: the normativity of

politics is distinct from that of morality, and, further, it is *politics* which is prior to morality. Call this view *political realism*.²⁸⁰

Why does Williams accept political realism? Because he is a kind of skeptic about morality, yet he is a liberal. Indeed, he is a *committed* liberal, and one of his complaints against Nietzsche in *Shame and Necessity* is that nothing in Nietzsche provides for a coherent politics, let alone a liberal one.²⁸¹ In turn, Williams cannot accept the moralist picture of politics, according to which moral values are enacted within politics or, instead, are that which constitute various practices and provide for their justification, notwithstanding the fact that *new* considerations can arise from within those practices once so constituted. What allows him to offer an account of liberalism, one which seeks to *justify* liberalism, is that he accepts the existence of a *distinctively political* form of normativity which is, at the very least, a greater degree of *autonomy* than is traditionally conceived of by those who understand the normativity of politics as that of morality.²⁸² We will spend a lot of time with this notion of autonomy and try to understand, first, what it is, and second, whether there could indeed be such a thing. In any event, if this project were to pan out, it would then allow Williams to reject the authority of morality while nevertheless maintaining that we ought be liberals. We will come to his arguments later.

²⁸⁰ I propose, then, that in this chapter, we accept what Erman and Moeller call the *non-moral* view of distinctively political normativity. That said, some take a moral view of distinctively political normativity. In a different context, this may be worth considering, but here, it is an option which is immediately off the table. For more, see Eva Erman and Niklas Möller, “Distinctively Political Normativity in Political Theory,” *Philosophy Compass* 17, no. 6 (2022), 1-11.

²⁸¹ “Although [Nietzsche] moved beyond the conception of the world as aesthetic phenomenon that is prominent in his major, early work...he did not move to any view that offered a coherent politics. He himself provides no way of relating his ethical and psychological insights to an intelligible account of modern society – a failing only thinly concealed by the impression he gives of having thoughts about modern politics that are determinate but terrible. But we need a politics, in the sense of a coherent set of opinions about the ways in which power should be exercised in modern societies, with what limitations and to what ends” (10-11).

²⁸² In Geuss, I think it is clearer it is prior, and in a distinctive sense: for instance, he offers a brief remark that “ethics is usually dead politics” in “Moralism and Realpolitik” - see Raymond Geuss, “Moralism and Realpolitik,” in *Politics and the Imagination* (Princeton: Princeton University Press, 2010), 42.

5.2.3 In sum, then, we can return to the initial question I posed and reframe it in terms of some of the concepts I have introduced, and we can say something like the following: my arguments have shown that the normativity of morality is something we ought to reject. What are the implications of this rejection for *other* forms of normativity? In particular, if we assume that there is a distinctively political form of normativity, are there any implications that ought to worry us, such as implications to the effect that liberalism can no longer be understood as justified? If you are Bernard Williams, then your answer at this point, I think, is No.

By contrast, I want to argue against Williams. In particular, I want to argue that a distinctively political form of normativity will *not* be able to save the sort of liberalism that we need to accept at this point, namely, the *liberalism of fear*. Unlike other understandings of liberalism according to which liberalism is the form of political life which is best able to secure for us the good life or the conditions of the good life (say), in brief, in saying that liberalism secures some good, the liberalism of fear attempts to justify liberalism by arguing that it best *protects* against some ill or evil. For Judith Shklar, that evil is *cruelty*.

To return to the main line of thought: how, then, will I argue against Williams? I want to confirm a suspicion, raised by Raymond Geuss in a footnote of his paper “Virtue and the Good Life,” namely that if it turns out that something like Nietzschean cruelty is *not* the most evil vice, “it would cause rather serious difficulties for the form of liberalism associated with Judith Shklar (and tacitly endorsed by Richard Rorty), i.e., the view that cruelty is the worst thing in the world, that which is to be avoided at all costs.”²⁸³ I am going to argue in favor of cruelty by arguing that something like it is precisely what the liberal will need to make sense of coercion, and this will allow me to argue against the liberalism of fear. Further, when combined with the line of thought

²⁸³ Raymond Geuss, “Virtue and the Good Life,” in *Outside Ethics* (Princeton: Princeton University Press, 2005), 83.

above, we get an argument that there is no hope of justifying liberalism: moralism cannot justify it because morality has no justificatory credentials, and the realist cannot justify it either, because cruelty is not the worst thing in the world.

5.3: Political Realism and the Idea of a Distinctively Political Normativity

5.3.1 First, though, we should return to a core political realist idea, namely, that there is a *distinctively political normativity*. Is there any such thing? If there is, how do we understand it? What are the sources of a distinctively political normativity? We will spend a lot of time thinking through these questions. I find the literature on some of these points wanting, and a better discussion worth attempting. So, we can take things from the beginning.

5.3.2 Williams's "Realism and Moralism in Political Theory" is a core text for political realists. But I think you can find traces of its ideas in earlier works, such as "Politics and Moral Character," where, among other things, he seems to accept what is now called the *dirty hands thesis*, according to which (1) it is possible for a politician to face a dilemma between a moral obligation and a political obligation, and (2) there are at least some cases in which a politician in such a case should resolve the dilemma in favor of the political obligation. In other words, and to borrow an example from Walzer's paper from which we get the name *dirty hands* in the first place, it is not only possible for the politician to face a dilemma between, on the one hand, refusing to torture a rebel leader and risk the detonation of bombs planted throughout the city and, on the other, torturing the leader to get him to talk, but there are cases where the thing to do is, indeed, to torture him.²⁸⁴ In Williams' earlier paper, it seems to me that he explains the possibility of dirty hands cases by allowing, first, that there are *political reasons*, these being different from *moral reasons*, second, that the two can conflict, such that (say) one can have a

²⁸⁴ Michael Walzer, "Political Action: The Problem of Dirty Hands," *Philosophy and Public Affairs* 2, no. 2 (1973): 160–80.

political reason to X while have a moral reason to not-X, and third, that it is possible for the political reason to be stronger.²⁸⁵

It is important not to misunderstand the nature of the problem of dirty hands by mistaking the problem to be concerned with whether politics could in any sense embody moral norms and values or whether instead politics is some sort of Planet Fitness-esque “moral judgment free zone”, because if this were so, there would be no possibility of dirtying your hands in the first place. When Machiavelli, infamously and, in my view, correctly, writes that “it is necessary for a ruler who wishes to maintain his position to learn to be able not to be good, and to use that ability or not use it according to necessity,”²⁸⁶ he is not denying the possibility of using moral concepts within politics as though doing so would be a category mistake of some sort, since if that were the case, his advice to politicians would not be for them to learn how not to be *good*. The problem of dirty hands, and those like Machiavelli and Williams who accept that the political justified, indeed politically *obligatory*, action may nevertheless be immoral, does not stand in opposition to moral values: it presupposes them.²⁸⁷

I mention the case of “Politics and Moral Character” because it not only serves as a nice segue into political realism, as Williams develops it, by showing some of the ideas in something of an embryonic form, but also because it has political realism’s problems in embryonic form as well. Williams, as I mentioned above, seems to say that the problem of dirty hands arises due to a conflict between moral reasons, on the one hand, and political reasons on the other. But to

²⁸⁵ “In some cases the claims of the political reasons are proximate enough, and enough of the moral kind, to enable one to say that there is a moral justification for that particular political act, a justification which has outweigh the moral reasons against it. . . . Where the political reasons are of the less proximate kind, for instance defense, or pre-emptive, or concerned with securing an opportunity, we may speak, not of the moral claims of politics, but merely of the claims of politics against morality” (61-62).

²⁸⁶ Niccolò Machiavelli, *The Prince*, 2nd ed., ed. Quentin Skinner and Russell Price (New York: Cambridge University Press, 2019), 53.

²⁸⁷ Thanks to Mia Starke for discussion of the problem of dirty hands throughout the Fall 2024 semester.

substantiate the claim that there is, indeed, a conflict here, several pieces have to fall into place, the biggest of which has to do with the very idea of a *political reason* itself. Why think there is such a thing in the first place? I certainly cannot say that I am always conflicted because, on the one hand, I always have screaming-at-my-colleagues reasons while, on the other, always having moral (i.e., anti-screaming-at-my-colleagues) ones as well, or that I face a different kind of problem of dirty hands because I have cooking reasons while at the same time having anti-handwashing reasons. Something has to be said about why the inclusion of political reasons is not merely *ad hoc*. Further, if these political reasons are to be distinguished from moral reasons, we have to have something to say about the nature of the distinction between the two. In the context of political realism, this issue is the issue of understanding exactly what a distinctively political normativity even is. I will return to this, and in a way that places different sorts of conflicts at the forefront of the issue.

5.3.3 We can turn to Williams' later papers. As I mentioned above, Williams is particularly influential among recent political realists, and I also mentioned his distinction between what he calls *political moralism*, on the one hand, and *political realism* on the other. But we can now note that even in Williams, it is not entirely clear how to understand the political realist thesis. In the paper I mentioned above, "Realism and Moralism in Political Theory," he is very elusive, saying that he "shall try to contrast [political moralism] with an approach which gives a greater autonomy to distinctively political thought. This can be called, in relation to a certain tradition, political realism."²⁸⁸ "A greater autonomy," he says: what could this be? His account of political moralism – political theory as a form of applied ethics, in particular, a form of applied morality –

²⁸⁸ Bernard Williams, "Realism and Moralism in Political Theory," in *In the Beginning Was the Deed: Realism and Moralism in Political Argument*, ed. Geoffrey Hawthorn (Princeton: Princeton University Press, 2005), 3. Hereafter, I will cite this paper as "RM."

and his contrast of moralism with realism makes it clear that moralism is not to realism as ethical theory is to bioethics, business ethics, or something like that, such that we could say that the “greater autonomy” consists in something like the addition of certain rules to moral theory, rules which do not in general govern the interactions between mere strangers, the idea then being that these rules can provide the structure that allow us to theorize not merely about strangers but about the doctor and the patient, say, or between the manager and the employee. This would be an instance of structural political moralism, and it is true that the addition of rules can provide for the structure necessary to make sense of the ethics of particular relationships, but it is also true that structural political moralism is still moralism. Specifying the nature of distinctively political normativity will turn out to be rather difficult.

We will come back to that. First, though, we can get more details of Williams’ story out there.

I take Williams in “Realism and Moralism in Political Theory” to offer an account which is strangely Kantian, on at least one way of hearing the Kantian story. The Kantian, as we’ve seen above in one of my guises, will argue that participating in some sort of activity presupposes the acceptance, recognition, endorsement, or something like that, of the constitutive standards of that activity, and since the constitutive standards of the activity of action are the categorical imperative, it thus follows then whenever I do anything, I have to govern myself by the categorical imperative. The political realist, or at least the political realist à la Williams, says the following: participating in the activity of politics presupposes the acceptance, recognition, endorsement, or whatever of the constitutive normative standards of politics, and since these standards are provided, in a formal sense, by what Williams calls the *Basic Legitimation Demand* (BLD), it thus follows that insofar we participate in politics, we take the BLD to be normative, in

such a way that it governs what we do when we act in the political arena. We can turn to the details.

5.3.4 Politics begins when someone attempts to answer, as it were, what Williams calls the *first political question*: he writes that he identifies “...the ‘first’ political question in Hobbesian terms as the securing of order, protection, safety, trust, and the conditions of cooperation.”²⁸⁹

Answering the first political question is necessary but not sufficient for *legitimacy* “now and around here,” as he puts it. That is, while Hobbes may have thought that providing an answer to the first political question through the establishment of an absolutist monarchy, that answer is confined to his historical circumstances, circumstances in which absolutist monarchism does indeed *make sense*, in Williams’ words, as a possible answer to the question. But to us in modern, Western, liberal societies, this does not make sense. What *does* make sense – what we can *recognize* ourselves in – is instead liberalism. Liberalism does indeed demand an answer to the first political question, but it understands the question, as well as what an acceptable answer is, in a way different from that of Hobbes. This is explained by the historical circumstances, and in particular, by the fact that we can see the ways that *previous* answers to the first political question eventually became part of the problem that they had been introduced to solve.

Absolutist monarchism does not allow for the monarch to do quite literally anything they please, since they have to answer the first political question, but they need not respect something like the right to free speech in order to do so. Liberalism, by contrast, has a richer notion of rights and greater awareness of the ways in which solutions to the problems can themselves become problems.

²⁸⁹ RM 3.

States which are legitimate are those which meet the BLD, and those which do not are illegitimate. Since legitimacy is not merely a descriptive notion, but rather one that is evaluative and, depending on its use and by whom, is, in addition, normative, the BLD thus amounts to a principle with normative content. The BLD is met when a state's attempt to answer the first political question makes sense to those subject to the power of the state, and it is not met when it does not make sense. It is important not to mistake Williams here as saying that legitimacy involves something like consensus among the subjects that the state is legitimate. It does not say that: not because it could have but doesn't, but because it was never going to say that in the first place. At this level – that is, at the level of just talking about a state (or, for that matter, some other sort of organized political body with the power to use force and coercion), those subject to its power, and the notion of legitimacy – the theory is quite thin, and this, I think, is part of the point. In any event, it is the BLD that provides for the constitution of the political, the idea being that insofar as a state is sensitive to the need to provide *something* to those subject to its power, not merely in the form of an *explanation* of what it is doing but in the form of *justification* of its actions and uses of force, it is then playing the game of politics. When there is nothing in the way of justification, we do not have politics but something more like war.

The BLD, it seems to me, is where Williams thinks we find a distinctively political normativity which constitutes politics. He writes:

It may be asked whether the BLD is itself a moral principle. If it is, it does not represent a morality which is prior to politics. It is a claim that is inherent in there being such a thing as politics: in particular, because it is inherent in there being a first political question. The situation of one lot of people terrorizing another lot of people is not per se a political situation: it is, rather, the situation which the existence of the political is in the first place supposed to alleviate (replace).²⁹⁰

²⁹⁰ RM 5.

This strikes me as having the usual Kantian moves in an unusual way, especially considering Williams' hostility to Kant. The BLD is a principle which is evaluative and, depending when, where, and how it is used, can be normative, and so here we have this normative principle being used to identify politics and differentiate it from the non-political, in the way that the Kantian (of a sort, at any rate) may want to say that the Categorical Imperative, a normative principle, constitutes action and can be used to distinguish action from that which is not.

5.3.5 It is here that we can begin to get the feeling that there *might* be problems afoot. As I said above, there is indeed a sense in which the theory, as presented, is quite thin, since it allows both contemporary Norway and the medieval Papal States to have the same political virtue that is legitimacy. Despite this, though, there is nevertheless the sense in which it is rather thick. In particular, the notion of the political that Williams is deploying is, indeed, substantive and controversial. In their paper "Is There a Distinctively Political Normativity?," Jonathan Leader Maynard and Alex Worsnip note some of the *prima facie* unintuitive implications of this understanding of the political:

If it is constitutive of politics that it involves claims of authority, legitimating justifications, and an absence of brute coercion, then it would seem that 'political terror' and many (though not all) forms of 'political violence' are misnomers, that war is rarely if ever political, and that swaths of international politics – occurring between states which are sovereign equals and without form claims of authority over each other – are not correctly described as politics at all.²⁹¹

But they do note that Williams seems willing to accept certain implications which show that he is indeed aware that the concept of politics gives rise to such positions: for instance, he explicitly accepts that anarchism "is not a political position."²⁹²

²⁹¹ Jonathan Leader Maynard and Alex Worsnip, "Is There a Distinctively Political Normativity?," *Ethics* 128 (July 2018), 782.

²⁹² Bernard Williams, "From Freedom to Liberty: The Construction of a Political Value," in *In The Beginning Was the Deed: Realism and Moralism in Political Argument*, 85.

I am hesitant to say that these objections are the ones about which Williams needs to be worrying. We can read him as being concerned with the relationship between a coercive power, such as a state or the polis, and those under its power, with a particular view to the political virtue of legitimacy. Now I simply see no reason why the constitutive role of the BLD in state legitimacy has to play a role in *all* political relationships. The political realist story can have something to say about the state and its citizens, to the effect that the legitimacy of the state is bound up with its ability to satisfy the demand of the BLD, but I do not see why the telling of that story must at the same time be the telling of all possible stories. It is true that interstate relations presumably do not involve claims of authority over one another, but it is false that the BLD is wholly irrelevant here: as Williams notes in a footnote, it seems relevant to the question of recognizing a state.²⁹³ The BLD, in such a case, might be an enabling condition of international politics: such politics require the presence of legitimate states in the first place. I am inclined to say something similar in the case of political terror, though here, the devil is in the details, and a lot will depend on the sort of terror we are considering. Even so, it would seem to me that the *political* nature of political terror requires an explanation, and I find it plausible to think that there are cases in which the terror consists not merely in the violence perpetuated by the state, but by the state's thoroughgoing lies about what it is doing. There is terror in the state of nature, but we need civil society or something to that effect to get *political* terror.

In brief, then: in the way that the Categorical Imperative enables not only certain, new forms of success but new, distinctive forms of error which cannot be explained without a recourse to the Categorical Imperative, the BLD enables new forms of success as well as new forms of error. I propose, then, that these initial problems can be answered and left aside.

²⁹³ RM 10.

A different problem in this vicinity, however, strikes me as more pressing. The above problem has to do with the content of politics, and above, Maynard Leader and Worsnip attempt to argue against this understanding of politics by means of offering counterexamples. The problem I consider different, but nevertheless related, could be put as asking “why *this*?” That is, why is *this* the content of politics in the first place? It is here that we run into the issue of a distinctively political normativity. But we do not have to accept that we will identify a distinctively political normativity and differentiate it from other forms of normativity in terms of the content of the relevant principles. Of course, that is certainly one way we might do so, but it is just *one* way we might do so, and there are others. I will try to offer my own account in 5.5.

Leader Maynard and Worsnip are instructive here. They consider, and argue against, five ways of arguing for a distinctively political normativity in political realist literature: (1) the argument from the illegitimacy of enforcing (some) moral claims; (2) the need for politics to resolve disputes; (3) the argument from differences in metanormativity; (4) the argument from differences in normative content; (5) the argument from the relative ‘priority’ of politics and morality. I will not consider all these arguments, because I agree with Maynard Leader and Worsnip that some of these political realist arguments will not succeed. In 5.4, I will discuss the argument from moral disagreement, and in 5.5, the argument from the relative priority of politics, both of which I consider worthy of extended discussion. Before that, though, it is worth briefly considering a different realist argument, since it will bring into view Maynard Leader and Worsnip’s general form of response to each argument.

5.3.6 That one argument worth considering at the beginning is the argument from the illegitimacy of enforcing at least some moral norms. Leader Maynard and Worsnip say that the premise amounts to the claim that “some moral principle may be reasonable or true but

nevertheless illegitimate to enforce through politics – for example, when the principle is not (sufficiently) accepted by those subject to this power, or where there is deep disagreement about the principle,”²⁹⁴ from which political realists go on to conclude that “morality underdetermines the justifiability or legitimacy of political action. Thus, political legitimacy is a normative concept that is not (purely) moral in character.”²⁹⁵ Leader Maynard and Worsnip are, of course, right that moralists can perfectly well accept the premise, such that it is “not distinct to realism or arguments for a distinctively political normativity.”²⁹⁶ But their main objection is to the inference from the premise to the conclusion: “we do not need to be ‘reigning in’ the reach of morality when we conclude that the state cannot rightly force agents to abide by particular moral doctrines; rather, it can be moral demands that constrain the state not to do so.”²⁹⁷ That is, the concept of political legitimacy can still be a (purely) moral concept because we may have moral grounds for not enforcing a particular moral doctrine through legal-political institutions.

This is all well and good, and I do agree with Leader Maynard and Worsnip that it is indeed possible that the state is constrained not to coerce compliance with a particular moral doctrine on moral grounds. I have objections to their way of talking – if there are moral demands here, who is doing the demanding? – but I have these objections generally. But I think this objection of theirs brings out Leader Maynard and Worsnip’s first typical line of reply to political realist arguments: they rely on a permissive understanding of morality.

It is at this point that one may start to wonder whether everyone is talking about the same thing here. Leader Maynard and Worsnip have, I think, a permissive understanding of morality; does Williams? Not at all. He is certainly aware of the fact that morality has been given different

²⁹⁴ Leader Maynard and Worsnip, “Is There a Distinctively Political Normativity?”, 766.

²⁹⁵ Ibid.

²⁹⁶ Ibid., 767.

²⁹⁷ Ibid.

accounts in philosophy – it has been offered different interpretations, as he sometimes puts it, and these interpretations are indeed quite different, so much so that it is something of a small wonder that everyone is talking about the same thing, with the utilitarian having absolutely zero respect, theoretical or ethical, for a transparency condition on ethical knowledge, to take just one example, whereas the Kantian can plausibly be understood to identify morality with the transparency condition itself. His own account of morality in the final chapter of *Ethics and the Limits* agrees with Anscombe in “Modern Moral Philosophy” that the concept *moral obligation* is one that indeed is to be jettisoned if possible – which I have argued can indeed be jettisoned, namely by jettisoning ourselves. The concept of *morality* in Williams is a thick concept, whereas it is thinner in the case of Leader Maynard and Worsnip. This, I think, is *crucial* to the understanding of Williams’s political realism. That is, at the very least, I want to suggest that if we are to understand what a distinctively political normativity is, we have to understand what moral normativity is, and that itself is something of a moving target. Williams’s political philosophy cannot be considered in isolation from his ethical and moral philosophy, in part to understand the motivation, which I discussed above in 5.1 and 5.2, and in part, I suggest here, to understand the content.

But to return to the main line of thought, the thinness of the concept of the moral in Leader Maynard and Worsnip enables, I think, the second move they typically make, one I think is implicit in their objection to the first political realist argument: representing as much content of the political realist position as possible in normative terms, which then allows them to maintain that the content is not merely normative but moral. The move, that is, is to argue that political realists are making what Worsnip elsewhere calls *cryptonormative judgments*. As Worsnip puts it,

A cryptonormative judgment is a judgment an agent makes such that (i) the judgment's content is at least partially normative in character; (ii) given a presentation of the judgment that makes the particular normative content of the judgment fully explicit, the agent denies (or would deny) that she makes the judgment; (iii) the agent presents the judgment such that, if her description were accurate, the judgment would either (a) lack normative content entirely or (b) lack a particular kind of normative content which the judgment in fact has.²⁹⁸

Consider Worsnip's example of Rex. Rex, a secret agent, has just decided to torture a terror suspect in order to get information about the location of a ticking time bomb, and he makes a cryptonormative judgment when he says, in response to his partner's protests, "I don't give a damn about the morality of it. The most important thing is that we save the millions of innocent lives that are in danger right now."²⁹⁹ This is a cryptonormative judgment, according to Worsnip, because even though Rex "thinks of himself as unconcerned with the niceties of morality," he is nevertheless very concerned with morality implicitly, since

What Rex does not realize is that his own judgment – that saving the millions of innocent lives at risk is more important than refraining from torture – is in fact itself a moral one. The judgment concerns the relative moral priority of two considerations. So Rex misdescribes his own mental state. It is a moral judgment, even though he sincerely thinks that it isn't.³⁰⁰

Worsnip takes this phenomenon to be widespread, both outside philosophy and within it:

In many professions and in politics, value-disagreements are often stifled by appeals to 'facing facts' or 'facing reality' that encode cryptonormative assumptions about what the normative import of those facts or reality is. Newspaper op-ed columns frequently oppose 'moral' or 'ethical' considerations to the promotion of practically beneficial consequences without explanation. Many people think of rationality or what 'makes sense' as non-normative concepts...Moreover, philosophical debates themselves are not immune from cryptonormativity. The recent 'realist turn' in political philosophy often appeals to a new to eschew 'moralizing' political thought for a kind of 'pragmatism' that is, in my view, cryptonormative.³⁰¹

²⁹⁸ Alex Worsnip, "Cryptonormative Judgments," *European Journal of Philosophy* 25, no. 1 (2017), 5.

²⁹⁹ *Ibid.*, 3.

³⁰⁰ *Ibid.*, 7.

³⁰¹ *Ibid.*, 8.

Worsnip additionally seems to allow for the possibility of *cryptomoral* judgments, though does not develop this idea in any further detail.³⁰²

The idea, then, is that the political realist is not necessarily saying anything which *opposes* the role of morality in normative political theory or, indeed, in real politics itself, and even though they may take themselves to be offering non-moral judgments, and perhaps even wholly non-normative judgments entirely, we can identify the normative content in what they say, in the way we do so in the case of Rex, declare the judgment to be a cryptonormative one, and hold the political realist to be confused. As I mentioned above, this is all well and good in the case of the first argument I considered, namely, the argument from the illegitimacy of enforcing at least some moral claims. In 5.4 and 5.5, though, I will consider two arguments where I find this far from clear.

5.4: The Argument from Moral Disagreement

5.4.1 I want to now consider in greater detail some of Leader Maynard and Worsnip's arguments that strike me as more compelling in the next two sections. I'll argue against their objections and then suggest the constitutivist argument is best able to provide for a distinctively political normativity. We need to understand the sources of such normativity, and that will follow in 5.5. I think this will leave us with a strengthened form of liberal political realism, but I will argue against political realism in 5.7.

I am less interested in the idea that a distinctively political normativity can be distinguished from moral normativity by appeal to a metanormative difference between the two – Leader Maynard and Worsnip's third sort of political realist argument – nor am I interested in considering arguments that merely appeal to differences in normative content – their fourth sort

³⁰² Ibid., 6.

of argument. I see almost no hope for identifying a compelling metanormative difference, and while it is true that the political and the moral have substantive normative differences – lying and deceit are paradigmatic political virtues, but less so moral virtues – it is not clear to me that these differences will be sufficient to ground an entirely distinct form of normativity: after all, we shouldn't say that there is a distinctively military normativity because 'being a good killer' is a virtue in military contexts but a vice when you're a mild-mannered philosopher. This will leave us with two realist arguments: first, the argument from moral disagreement, and second, the argument from the relative priority of politics and morality. The former argument will bring out a difficulty with the very idea of cryptonormativity, as well as cryptonormative judgments, while the latter will bring out something about the nature of the political, namely, that it needs to make itself into everyone's only option. But first, though, the argument from moral disagreement.

5.4.2 The argument from moral disagreement seems to first draw a distinction between different sorts of moral disagreements, which we can perhaps call *shallow* and *deep disagreement*.³⁰³ As I am using these terms, a shallow disagreement concerns the application of a rule or principle to a new case, whereas a deep disagreement concerns the value, the point, the rationale, etc. of using such a principle or rule in the first place. This should not be misunderstood as saying that a shallow disagreement is a *trivial* or *unimportant* disagreement; some shallow disagreements may be quite important, such as determining whether your wife is indeed cheating on you, given the way she texts her friend and co-worker. That disagreement is a shallow one, in the terminology I've introduced here, but it is likely to be rather important and, indeed, emotionally charged. That disagreement is shallow because you and your wife do not have a particularly noteworthy disagreement about the *content* of your values and principles.

³⁰³ I discovered the literature on deep disagreement too late to be able to incorporate it into this dissertation. I hope to be able to incorporate this literature into future work.

Rather, the disagreement has to do with the way in which those values and principles are to be applied to this new case. A deep disagreement, by contrast, *does* involve a disagreement about the content of your values or principles, and particularly a disagreement about its *value*.

Now the thought at this point is that morality may offer dispute resolution mechanisms in the case of shallow, but not deep, disagreement. The reason is that in cases of deep disagreement, what is in question is the rationale or point for using a principle or value of some sort in the first place, and in turn any use of that principle or value will be suspect. Nevertheless, the dispute has to be settled, and so there needs to be something which does that, and the thought is that it is politics which does so. On this point, Leader Maynard and Worsnip quote Rossi and Sleat, who write that

The broadly Hobbesian thought is that if ethics could effectively regulate behaviour in political communities as it does amongst (say) friends and acquaintances, we would not require politics. We need politics in part precisely because of the ubiquity of moral disagreements about what we collectively should do, the ends to which political power should be put, and the moral principles and values that should underpin and regulate our shared political association. As such, politics cannot be a domain that is straightforwardly regulated by morality. From that follows either the loosely Machiavellian claim that politics has its own normativity (or ‘internal logic’), which floats free from personal morality and can be directly at odds with it, or the more complex yet less radical claim that politics cannot be exhausted by morality and that key political concepts such as legitimacy and authority need to be rethought in conditions of ineradicable moral and political disagreement.³⁰⁴

Elements of this passage strike me as either being the very nice, inoffensive, utterly empty sort of thing you have to say if you are going to get published at all, the scholarly equivalent of pleasantries with the in-laws, or, instead, amount to nothing other than a form of bad faith. The main culprit here is the idea that moral and political disagreement not only exists, which it obviously does, but is *ineradicable*. Rawls says something much like this, writing in “The Idea of an Overlapping Consensus” that pluralism is not only a fact, but that there are numerous other,

³⁰⁴ Enzo Rossi and Matt Sleat, “Realism in Normative Political Theory,” *Philosophy Compass* 9 no. 10 (2014), 691.

equally happy facts accompanying it as well, such as the “fact of pluralism’s permanence, given democratic institutions,” and “the fact that agreement on a single comprehensive doctrine presupposes the oppressive use of state power.”³⁰⁵ But it is surely possible to eradicate moral and political disagreement, for instance, by eradicating those with whom you disagree, and it is naïve to pretend that assassination or lesser forms of violence cannot solve political problems: after all, this is precisely why the problem of dirty hands is, indeed, a *problem*. A different suggestion for understanding this claim is that the notion of ineradicable disagreement is being used in something of a formal sense to say that the political is that space which is identified and differentiated from other spaces by the existence of ineradicable disagreement. But I see no reason to accept this either, on either way of construing the notion of disagreement given the distinction I mentioned above. In the so-called artworld there may be forms of shallow and deep disagreement, for instance. That said, while it is interesting that, here at least, the political realists share with their foil Rawls a lack of political imagination, it does not immediately further the line of thought under consideration, and to return to that line of thought, we can say that we see here one possible way of cashing out a distinctively political normativity: it is a normativity which is not moral, because it is the form of normativity to which we turn in the cases of deep disagreement within the moral.

There are some immediate issues here. If disagreements in morality require politics, what do disagreements in politics require? It certainly seems as though disagreements in politics can themselves be deep. What then? It had better be the case that there is not some sort of *further* politics – the Kingdom of God had better not be lying in wait – but fortunately, political realists all seem to be sufficiently disillusioned and accepting of the *Entzauberung der Welt* as to not fall

³⁰⁵ John Rawls, “The Idea of an Overlapping Consensus,” in *Collected Papers*, ed. Samuel Freeman (Cambridge, MA: Harvard University Press, 1999), 425.

for this sort of move. Leader Maynard and Worsnip, for their part, say that the realist can appeal to the thinness of political principles at this point: these principles, in being thinner than more substantive moral principles, will presumably offer less of a basis for rejecting them. I am unsure whether this will suffice, but I think it is neither here nor there at the end of the day, and I will return to this point later in 5.6.

5.4.3 The core of the issue here, however, in the case of the argument from moral disagreement, according to Leader Maynard and Worsnip, has to do with the idea that principles of any sort, whether moral or political, *resolve* a conflict or disagreement. They find in political realist writings a persistent “equivocation between the normative and de facto senses of ‘resolve’.”³⁰⁶ A principle provides for a *normative* resolution, according to Leader Maynard and Worsnip, “when it yields an answer as to which party or parties to the disagreement (if any) are right.”³⁰⁷ By contrast, a *de facto* resolution consists in “actual agreement that this answer is correct.”³⁰⁸ It is then open to the moralist to say that morality does indeed provide for resolution of disagreement, even in cases of deep disagreement, in the sense that it provides for *normative* guidance, while it may nevertheless be false that *de facto* resolution has been reached. Equivocation on these senses of the term *resolution* generates a confused, mistaken picture of moralism:

Moralists claim that their principles resolve disagreement in the normative, not the de facto, sense. Indeed, it is not totally clear what it would even mean to attribute the power to resolve disagreements in the de facto sense to abstract entities like ‘morality’ or ‘moral principles.’ Perhaps the idea would have to be that morality has a kind of truth-will-out force where, given enough debate, the moral truth always wins acceptance. We certainly agree that this Whiggish claim is very empirically dubious, and if there are some moralist political theorists that make such a claim, we disagree with them.³⁰⁹

³⁰⁶ Leader Maynard and Worsnip, 770.

³⁰⁷ Ibid.

³⁰⁸ Ibid.

³⁰⁹ Ibid.

How could a moral principle, or even morality itself, literally *make* you and me agree? It can't. After all, suppose you and I, despite our various disagreements, end up agreeing at the end of the day: what explains that agreement is not morality but *you, me*, and what *we* did, and perhaps – *perhaps* – one of the things we did was get clear on what morality demanded of us. But our de facto agreement might have resulted, not from attention to morality's normative principles, but from your use of a CIA Mind Control Ray Gun. Since these senses of resolution can come apart, Leader Maynard and Worsnip conclude they are distinct.

Further, this point can be offered in response “to the oft-repeated realist claim that moralists need an ‘error theory’ to explain why past peoples have not all believed in the particular moral theories that moralists subscribe to.”³¹⁰ Williams himself makes this sort of claim throughout his work, not only in political philosophy but in his ethical philosophy: in *Ethics and the Limits*, for instance, he writes that an ethical theory needs to, and yet cannot, “account generally for the tendency of people to have what, according to its principles, are wrong beliefs.”³¹¹ In the political case, the idea is that political moralists commit themselves to the claim that most of humanity has been mistaken about what good politics looks like, in some way or another – by not recognizing the truth of comprehensive liberalism, or by not recognizing the truth of political liberalism, or whatever –, and so it looks like we should explain why such large numbers of people would persist in an error. Leader Maynard and Worsnip respond by saying that:

This claim [that a theory of error is needed] assumes that if a moral doctrine provides normatively correct prescriptions for political processes, then we should predictively expect that people will actually believe in these prescriptions – or, at least, it should be our default assumption that they will do so, such that their not doing so would call out for special explanation. This returns us to the Whiggish assumption that the moral truth “will out,” which, again, is no commitment of the moralist view. Indeed, it is no necessary

³¹⁰ Ibid., 770-771.

³¹¹ ELP 152.

premise of arguments in any field of human knowledge that conclusions, even if “universally” correct, are universally obvious. Many basic empirical truths, after all, have not been accepted in other times and places – but few think that, without further argument, this undermines their status as truths.³¹²

As in the case of resolving a disagreement between you and me, we can talk about understanding – presumably resolution is off the table – a disagreement between, on the one hand, *us*, whoever it is that *we* are, and some indeterminate *them* on the other, where what stands between us and them is some sort of historical change. Perhaps we are Rawlsian liberals, and they are medieval Christians who believe the Catholic Church is the final authority in all affairs, or perhaps we are perfectionist liberals à la Mill and they are ancient Platonists: it does not matter. Now, we are not going to get a de facto resolution with them, because they are dead and gone. But we can talk about a normative resolution, and we can then say that we are in the right and they are in the wrong. If they are in the wrong, why did they persist in holding onto their mistaken views, acting in mistaken ways, and so on? Since the moralist is not committed to the claim that morality can *make* us and them agree, they are also not committed to the claim that it can, literally, *make* them think or do anything. After all, as Leader Maynard and Worsnip put it above, morality is an abstract object, and abstracta do not have causal powers. The moralist is not committed to saying that there is a noteworthy fact to be explained here in the first place, precisely because morality was not invoked to offer something like social explanation.

In brief, then: in talking about the resolution of disagreement, the political realist equivocates on the notion of *resolution*, and when we disentangle two senses of the term, namely, the *normative* and the *de facto* senses, we can see not only that moralism can indeed resolve – *normatively* resolve – cases of deep moral disagreement, but additionally, that there is a way to respond to the realist objection to moralism to the effect that it has no theory of error.

³¹² Ibid., 771.

Further, we can use this distinction to then say that the political realist is indeed making various normative, and perhaps even moral, judgments: these judgments offer recommendations about matters of interpersonal import, regardless of what those offering them say about the matter, and so these judgments are not so much normative as much as they are, as I discussed above, *cryptonormative*.

5.4.4 What should we make of this? I want to argue that this cannot be correct because the picture of knowledge of values is one that we should not accept. Since cryptonormative judgments, as articulated by Worsnip, crucially rely on a picture of our knowledge of value which I think we should reject, it will follow that we should then reject the claim, made by Leader Maynard and Worsnip, to the effect that political realists equivocate on different senses of the term *resolve*, as discussed above. I want to argue that it is not necessary that there is an equivocation here, though of course it is *possible* that some particular political realists do indeed make the equivocation under consideration at particular points in particular arguments. In turn, I believe we can then say that there is something to the idea that politics can offer dispute resolution mechanisms which are not distinctively moral, but rather, distinctively political.

We can focus on the idea of cryptonormativity to get started. It is telling that in both Worsnip's 2017 paper and Leader Maynard and Worsnip's 2018 paper, there is a reliance upon the idea that normative truths can go entirely unnoticed (in a way I will cash out soon), and that the arguments for this conclusion use analogies to knowledge of empirical truths. I quoted above the claim by Leader Maynard and Worsnip that "it is no necessary premise of arguments in any field of human knowledge that conclusions, even if 'universally' correct, are universally obvious. Many basic empirical truths, after all, have not been accepted in other times and places – but few think that, without further argument, this undermines their status as truths." Worsnip makes a

similar claim in the 2017 paper “Cryptonormative Judgments,” where he offers the following case in reply to an objection, the details of which need not concern us here:

Suppose that an expert biologist and I are both shown a much-enlarged image of a tuberculosis bacterium. Asking ‘what is that thing on the screen?’, we give different responses. ‘It is a tuberculosis bacterium,’ replies the biologist. ‘It is a long thin purple thing on a blue background,’ I reply...my failure to describe or classify the image on the screen *constitutes* a failure to understand the thing I’m seeing...³¹³

This case is then used in the following analogy:

In that case, the subject-matter of my failure of understanding is the thing on the screen, the image of a bacterium. In the case of cryptonormative judgment, the subject-matter of my failure of understanding is my own mental state. Just as the traceability of the former to my inability to describe and classify images of bacteria does not preclude it from being a failure to know about the image of the bacterium, so the traceability of the latter to my inability to describe and classify my mental states does not preclude it from being a failure to know about my own mental states.³¹⁴

Now there are two different issues brought out in these quotes: in the Leader Maynard and Worsnip piece, the issue is on the knowledge of the (correct) normative theory of morality, while in the other case, the issue is about self-knowledge. But it seems to me that these issues are related in this context, because the failure of Leader Maynard and Worsnip’s objection consists in misrepresenting the sort of knowledge we have of normative practical principles, which is best understood as a kind of self-knowledge, rather than the sort of knowledge suggested by the examples, which I want to say is too third-personal.

It is also telling that Worsnip’s cases in the “Cryptonormative Judgments” paper all involve, not mere disagreement, but something more like *rejection*, something which will become important later in the chapter, towards the end of 5.6. Rex the secret agent, who I discussed above, has a partner, who responds to Rex’s willingness to consider torture in the

³¹³ Worsnip, “Cryptonormative Judgments,” 16.

³¹⁴ Ibid.

following way: “Rex’s partner agent *protests*, ‘you shouldn’t do this – it’s morally wrong!’”³¹⁵ Roland the sexist headhunter prefers not to hire women, but makes his beliefs explicit when “*confronted* about this by a client...”³¹⁶. It is a little less clear in the final case of Christine, the modernizing politician, but perhaps we find something to what I have in mind when Worsnip says that “one of the things she particularly wants to *avoid* is what she calls the ‘ideological character’ of the party’s previous leadership.”³¹⁷ Rex and Roland’s interlocutors are not content to simply coexist at a distance, as it were, with a kind of ethical non-aggression treaty: rather, the point is to get Rex and Roland to change their minds. With Christine, it is again less clear, but here too, I find it plausible to think that she is committed not merely to letting the party’s factions coexist, but rather, that the other side needs to change their mind. I submit that each of these examples is met with *blame*, with an emphasis on what has been called blame’s *proleptic* function.³¹⁸ This point will become important later in this section and throughout the chapter.

What unifies these issues has to do with the notions of *descriptive* and *normative judgment*, along with the closely related notion of *normativity* itself. Worsnip accepts what sounds to me like a very standard picture of the distinction, writing in a recent paper that:

Very roughly, descriptive judgments are judgments about how the existing world *is*. Most descriptive judgments are empirical: they are to be settled through empirical observation and scientific methods. By contrast, normative judgments are judgments about how the world *ought* to be, what people ought to do (or believe, intend, hope for, etc.), or whether (aspects of) some existing or possible state of affairs is good or bad, valuable or disvaluable.³¹⁹

³¹⁵ Ibid., 3. My emphasis.

³¹⁶ Ibid. My emphasis.

³¹⁷ Ibid., 4. My emphasis.

³¹⁸ For more, see Bernard Williams, “Internal Reasons and the Obscurity of Blame,” in *Making Sense of Humanity*, and Benjamin Bagley, “Properly Proleptic Blame,” *Ethics* 127 (July 2017), 852-882.

³¹⁹ Alex Worsnip, “Covert Normative Judgments in Expert Testimony,” ms., 3.

The problem here has nothing to do with the use of the words “is” and “ought,” and it is obvious that normative judgments can be made using the word “is” and that descriptive judgments can be made using “ought”. The problem has to do with *the world*. I do not know what a world is exactly, but I am happy to draw a distinction between the world of *first nature* and the world of *second nature*, though I am not married to the terminology and offer it only as a point of focus. Indeed, what I really want at the end of the day is the notion of (something like) a *social world*. If the social world is indeed to be a *world*, then it has its principles.

The problem will come out when we think about the operation of a world’s principles. In the case of the world of first nature, it is well known that these principles can indeed operate in secret, by which I mean that they can operate without any presupposition of their being known. This is why Leader Maynard and Worsnip are entirely correct that “many basic empirical truths...have not been accepted in other times and places – but few think that, without further argument, this undermines their status as truths.”³²⁰ But the principles of the social world *cannot* operate in secret: the social world has no “secret springs and principles” to discover, and on this point I am in substantial agreement with Wiggins and Williams, who write that:

In science, theorists hope to find a few principles from which everything else will be deducible...But in the case of moral philosophy what defines the subject is a set of highly heterogeneous set of human concerns, many of them at odds with many others of them, many of them incommensurable with many others of them. In this case there is no reason to think that what is needed is a theory to discover *underlying order*. This is not a subject after all where very much is hidden. Or rather what is hidden is hidden in a psychological or interpretive sense. There is no question of a secret axiological ordering principle. There is no deeper level of reality comparable to the microscopic or submicroscopic explored by chemistry and physics which it is the moral philosopher’s duty to explore.³²¹

³²⁰ “Is There a Distinctively Political Normativity?”, 771.

³²¹ David Wiggins and Bernard Williams, “Aurel Thomas Kolnai (1900-1973)”, in Aurel Kolnai, *Ethics, Value and Reality* (New Brunswick, NJ: Transaction Publishers, 2008), xxxviii-xxxix. Their emphasis.

Wiggins and Williams are talking about moral philosophy, but the point is broader and can be made in terms of who or what it is that we *answer* to. A physical theory of some sort – physics, chemistry, geology, etc. – answers to the world of first nature, and so the scientist answers to the world of first nature, a point which is not undermined by the fact that the wider scientific community plays a role in determining what the scientist herself answers to, such as by providing standards or other conditions of adequacy upon the notion of an answer. This is not the case in ethical theory, which proceeds from and indeed presupposes a set of dispositions resulting from habituation and education, or better yet, something more like *enculturation*. In everyday social life, we do not answer to the world, not even that of second nature, but rather to *one another*, and indeed, to *ourselves*. The principles which enable the possibility of questioning one's actions, motives, reasons, etc., as well as those which enable the possibility of answering those questions, thus cannot be secret because we need to be able to refer to those principles in order to understand what we are doing in the first place. But these principles are also *normative* principles, since it is possible to violate them, and indeed, acting in accordance with them seems often to involve thoughts about whether what I am doing is, indeed, an instance of error.³²² So there cannot be cryptonormative principles.

It might be responded that there could be cryptonormative principles if we construe these principles along the lines of some sort of metanormative realism, such as some sort of metaphysically robust non-naturalism à la Enoch, something more deflationary or quietist, such as in Scanlon, or perhaps a naturalistic realism, like what we find in the so-called Cornell realism. But I have never understood how metanormative realism, of any sort, does not commit the same

³²² This idea that normative principles presuppose the possibility of error is far more complex than my brief remark here suggests. See Douglas Lavin, "Practical Reason and the Possibility of Error," *Ethics* 114, no. 3 (2004): 424–57; for a response, see Jeremy David Fix, "The Error Condition," *Canadian Journal of Philosophy* 50, no. 1 (2020): 34–48.

sort of error lying behind the idea of what Williams calls the “characterless moral self,” and which is discussed by Nietzsche in GM I.13, where he says that “popular morality” represents action as brought about by a real self with agent-causal powers through a form of double-counting, a picture that makes no sense but is indeed one of morality’s metaphysical presuppositions. In the case of realism, the idea would be that there is a similar form of double-counting, but one directed out at the world rather than inward at agent, generating a picture not of a second self, but a second thing known: if I am to recognize these realist reasons in the first place, then I have to have the knowledge that enables me to do so, and the realist double-counts by first positing my knowledge and then a real, response-independent thing known. Since I accept that the characterless moral self is indeed an error or, better yet, one of morality’s constitutive falsehoods, for the sorts of reasons Nietzsche and Williams discuss, I accept that the same sort of problem in the case of metanormative realism. The realist will almost certainly have replies, given what I called its “Hydra-like regenerative character” in 2.4.8 and 2.5.15, but at some point, you have to leave the view aside.

What does this mean for Leader Maynard and Worsnip? When they say that there is no basis for “the Whiggish assumption that the moral truth ‘will out,’” they are wrong, either due to their claim being false or, perhaps, due to presupposition failure.³²³ If what I have said is right, then the “moral truth” has always already outed itself – indeed, it could not be normative if it hadn’t. This in turn will press on the idea that political realists equivocate on the normative and de facto senses of the term *resolution*: while it is clearly true that for any single instance of disagreement resolution, we can draw such a distinction, it does not thereby follow that we can draw this distinction, in this way, at the level of political theory as such.

³²³ “Is There a Distinctively Political Normativity?,” 771.

5.4.5 What about the idea that political realism consists not so much in normative judgments as much as cryptonormative ones – normative judgments which are not recognized as such by political realists? Cryptonormativity itself may be a contradiction in terms, but the notion of a cryptonormative judgment is not. Further, if these judgments, made by the political realist, are cryptonormative, then they may also be cryptomoral, and this then opens the door to the possibility that they are actually just talking about moral normativity and don't realize it, rather than a distinctively political normativity.

Responding to this will involve filling in some of the details of the picture I sketched in the previous section. What I will try to suggest is that it is at least *possible* that the judgments identified as (crypto)normative by Leader Maynard and Worsnip in their 2018 piece, or by Worsnip in his 2017 piece, are *not normative at all*, but not because they are instead descriptive: rather, I will try to suggest that some of these judgments should be regarded as what I will call *practically definitional*, or *definitional practical claims*. Further, while these claims are neither descriptive or normative, it is nevertheless possible to respond to them by means of blame, using blame's *proleptic* function, something I mentioned above when discussing Worsnip's examples, in which it seems that one agent responds, or at least attempts to respond, to another agent (or group of agents) in a way which constitutes (something like) rejection.

I said in the last chapter that we should treat the arguments I offered in chapters 2 and 3 as the articulations of real dispositions. The point generalizes and will account for something that is currently open in the picture I sketched out above, namely, how to understand the nature of social principles, regardless of their content. They should be understood as embodied in the character of agents in the society under consideration. From this it does not therefore follow that these principles are embodied in the same way in all particular agents. Perhaps those who

embody these principles to a greater degree, or in a particularly distinctive way, are those who MacIntyre calls *characters* in *After Virtue*. There, he writes that, in the way that the use of stock characters in fiction provide for some of the structure of the narrative in which they are set,

So it is also with certain kinds of social role specific to certain particular cultures. They furnish recognizable characters and the ability to recognize them is socially crucial because a knowledge of the character provides an interpretation of the actions of those individuals who have assumed the character. It does so precisely because those individuals have used the very same knowledge to guide and structure their behavior.³²⁴

A *character*, in MacIntyre's sense here, is a person who has assumed the various dispositions of important, socially embodied, self-images of a culture. Victorian England, according to MacIntyre, had the "Public School Headmaster, the Explorer and the Engineer" as some of its characters, while Wilhelmine Germany had characters such as the "Prussian Officer, the Professor and the Social Democrat."³²⁵ In modern culture, characters include the "bureaucratic manager" and the "modern leisured rich person."³²⁶ Other such characters are possible: the character of the *humanities professor* is probably the sort of person Nietzsche refers to as the "man of letters" in GS 366, while a very recent character in the United States might be the *Trump supporter* or *MAGA*. Ultimately it is an empirical question, it seems to me, what a culture's characters are, though an empirical question guided by a sense of the culture's values.

MacIntyrean characters, as I mentioned above, provide for a kind of social structure, analogous to the way the use of stock characters provide for narrative structure within fiction. Additionally, "they [i.e., characters] are, so to speak, the moral representatives of their culture and they are so because of the way in which moral and metaphysical ideas and theories assume through them an embodied existence in the social world."³²⁷ In turn, "a *character* is an object of

³²⁴ Alasdair MacIntyre, *After Virtue*, 3rd ed. (Notre Dame, IN: University of Notre Dame Press, 2007), 27.

³²⁵ Ibid., 28.

³²⁶ Ibid.

³²⁷ Ibid.

regard by the members of the culture generally or by some significant segment of them. He furnishes them with a cultural and moral ideal...the *character* morally legitimates a mode of social existence.”³²⁸ The idea, I take it, is that a character lets people within the culture use words such as “I am morally legitimated in my decision to act in such-and-such a way because I am just being a good capitalist like Elon Musk,” and these words are at least the sort of thing other people in the culture will take seriously as a possible form of (ethical) justification. That Elon Musk did it provides you with a reason for thinking that what I am doing is acceptable, because – like it or not – he is the embodiment of contemporary American moral ideas. Since MacIntyre is talking about cultures in general, it would not surprise me if we find something similar in cases other than those in which the culture is that of a nation-state, such as the culture of a school or a workplace, but I do not think we need to explore this for present purposes.

I want to focus on one small remark made by MacIntyre in this context, since it will give me a good jumping-off point. MacIntyre writes that he has said “of *characters* in general that they are those social roles which provide a culture with its moral definitions; it is crucial to stress that I do not mean by this that the moral beliefs expressed by and embodied in the *characters* of a particular culture will secure universal assent within that culture.”³²⁹ The latter point seems to me to be clearly correct and uncontroversial. The interesting bit, though, is this different way of saying what a (MacIntyrean) character is: it is a social role which provides a culture with its moral definitions. *Provides* – how does a character *provide* moral definitions? After all, in saying that characters provide moral definitions, it sounds a bit like MacIntyre is saying that the existence of characters is prior to that of the moral definitions under discussion, and that it is the characters which are to be invoked in an explanation of the moral definitions, and in particular, I

³²⁸ Ibid., 29. His emphasis.

³²⁹ Ibid., 31. His emphasis.

think, the content thereof. But this would seem to say something different from what he says earlier in the chapter, some of which I quoted above, to the effect that characters are the embodiment of a culture's moral principles, which seems to suggest that the principles are prior to the characters. This problem, I think, is very easily solved: we should say that the (MacIntyrean) characters of a culture, and the moral principles, definitions, etc. of that culture stand in a relation of simultaneity. So-and-so's being a character at all, let alone a particular character, presupposes various moral definitions, principles, etc., and similarly, those definitions and principles presuppose some people who can, as it were, show what those definitions and principles *look like*.

5.4.6 Things get more interesting, it seems to me, when we change the point of view from which we are thinking about this character/principle business. Up to now, the point of view being taken is perhaps some sort of unclear, amorphous form of the third person: *we* are here on Planet Theory and using our telescopes to view *them* over on Planet Earth (even though Planet Theory is at the same time Planet Earth, because otherwise, we on Planet Theory wouldn't be able to identify the telescope under the description "telescope" in the first place...). But suppose instead that we locate ourselves on Planet Earth, in one of these cultures, and tell the story in a way that not only lets us use the first person, but makes it the starting point of the whole discussion. Suppose, then, that I am here in one of these societies (as is indeed the case), and I identify someone – maybe someone else, or maybe myself, in an extraordinarily uncharacteristic and hopefully brief moment of clear-mindedness – as one of these (MacIntyrean) characters. If I do so, then I do not merely know that this person is character – I know quite a bit more than that, and in particular, I know these various principles which enable me to make the identification in

the first place. This is the sense in which we should say that these social principles I have been discussing are embodied, a thought I offered above.

But these principles are not simples; they are composed of various concepts, a point which is obscured not only in the context of MacIntyre, but in the context of Leader Maynard and Worsnip's paper, as well as Worsnip's paper. The point is missed due to the explanatory priority of the notions of descriptive and normative judgment, which takes the unity of these acts of judgment or claiming that such-and-such, as well as that of their content, for granted. I want to say that if the relevant moral and social principles, by reference to which an agent is to be understood as making their claims, are to be embodied in those agents, then we should also embody the concepts which compose these claims. But what does this even mean? It means that we should deny that these concepts have any existence outside of the characters of those who hold the concepts and instead hold that knowledge of these concepts is a form of self-knowledge. In the case of the world of first nature, this does not present anything new or interesting: the laws of the world of first nature can operate without their being known. This means that, if we imagine three times t_1 , t_2 , and t_3 , and assume people who do not know the relevant laws at t_1 , due to their failure to possess the concepts needed to compose the laws in the first place, people at t_2 who have the relevant concepts but have not yet been able to formulate the laws correctly, and people at t_3 who not only have the necessary concepts but have been able to formulate the laws correctly, we can still say that what is common over these different times is *the world*. By contrast, this sort of story *cannot* be told in the case of the social world, since the principles of the social world are normative and normative principles cannot be secret, in line with the arguments above. We cannot, in other words, say that the same social world persists over these times. It might be thought that this presents costs which are too much to bear because t_1 , t_2 , and t_3

are arbitrarily identified times and so there is no reason why the temporal distance between the three times cannot be three milliseconds, which would then seem to imply that the social world has changed many, *many* times simply over the course of reading this sentence. But that does not follow: t_1 , t_2 , and t_3 are identified and differentiated by reference to the possession of certain concepts, along with principles composed from said concepts. At this level, it is conceptual change which is doing the work of distinguishing times from one another, and in line with the idea from above to the effect that these concepts should be taken to be embodied, we should then say that the conceptual change under discussion here is explained by the historical change of human dispositions. We will have to come back to the change of dispositions later.

So, we then say that not only are the principles of the social world embodied in the character of those agents who inhabit that world, but so are the concepts which compose those principles. And to return to a line I have offered several times throughout this entire dissertation, “all that itself needs to be understood.” With these sorts of principles and concepts, you cannot simply go in for a penny and let that be that: you cannot simply possess one of them in isolation from the others. If you’re in for a penny, you’re in for a pound: if you have one of these principles, you need to have the others in order to enable the possibility of using those principles and concepts the way others do: applying them, i.e., applying *this* concept or *this* principle, rather than some other one; drawing inferences; explaining them; and on and on.

5.4.7 Now it seems to me that *some* of the knowledge that a subject needs to have in order to use these principles and concepts must take the form, not of descriptive, nor normative, judgments, but rather, of *definitions*, playing the role of *hinges*. In *On Certainty*, Wittgenstein offers an analogy involving the idea of a door hinge in three sections – 341, 343, and 655 – though I provide sections 340-343 and leave aside 655, which focuses on mathematics:

340. We know, with the same certainty with which we believe *any* mathematical proposition, how the letters A and B are pronounced, what the colour of human blood is called, that other human beings have blood and call it “blood.”

341. That is to say, the *questions* that we raise and our *doubts* depend on the fact that some propositions are exempt from doubt, are as it were like hinges on which those turn.

342. That is to say, it belongs to the logic of our scientific investigations that certain things are *in deed* [sic] not doubted.

343. But it isn't that the situation is like this: We just *can't* investigate everything, and for that reason we are forced to rest content with assumption. If I want the door to turn, the hinges must stay put.³³⁰

There are certain ambiguities here, I think, which, at least in my own case, are multiplied by the fact that I am not a particularly good German reader. But I think those ambiguities are essential in order for Wittgenstein to say anything substantive here. Take 341, for instance, and consider the German, which reads “D.h., die *Fragen*, die wir stellen, und unsre Zweifel beruhen darauf, daß gewisse Sätze vom Zweifel ausgenommen sind, gleichsam die Angeln, in welchen jene sich bewegen.”³³¹ “Gewisse Sätze” is translated as “some propositions” above. But 342, which in the German reads “D.h., es gehört zur Logik unsrer wissenschaftlichen Untersuchungen, daß Gewisses *in der Tat* nicht angezweifelt wird,” uses “certain things” to translate the German “Gewisses,” and so it is not unreasonable to say that 341 should translate “gewisse Sätze” as “certain propositions.”

Now, what introduces the ambiguity is the term “certain.” When given an epistemic reading, “certain” is, at a first pass, something like the property that Descartes talks about in the *Meditations*, one related to doubt in the sense that whatever is indubitable is certain and whatever is dubitable is uncertain. So, if Wittgenstein is saying that there are certain propositions which I

³³⁰ Ludwig Wittgenstein, *On Certainty*, ed. Gertrude Elizabeth Margaret Anscombe and Georg Henrik von Wright, trans. Denis Paul and Gertrude Elizabeth Margaret Anscombe (New York: Harper & Row, 1969): 43e-44e.

³³¹ *Ibid.*, 44.

do not doubt, then he seems to be saying that there are indubitable propositions which I do not doubt. We could, of course, have a discussion about the nature of this indubitability – is it, indeed, epistemic or something more like a psychological indubitability? does it have any normative content? and so on – but it nevertheless feels like what he is saying is trivial: that there are propositions that I don't doubt, and that these undoubted propositions are not propositions I doubt.

The reason there is an ambiguity here is because “certain” can be given a second, different reading: in the German, as I understand it (as well as in English), “certain” can mean something more like “without further specification.” Sometimes, no further specification is forthcoming because there is no *need* for any further specification: everyone knows who or what is being discussed. (This can be used for sarcasm, such as when I say, “a certain President Trump has recently tweeted about new tariffs,” but not all uses need be sarcastic.) But other times, no further specification is forthcoming because no further specification is *possible*. This is the way the term is used when you report a theft by saying something like “a certain man in a ski mask stole my purse.” You don't know who he was – he was wearing a ski mask, after all – and you don't have anything more informative to say about him: you've said all that there is to say.

Now it seems to me that on this second reading, Wittgenstein's remarks above are more substantive. His thought would not be – would not *simply* be, would not *just* be – that there are particular, undoubted propositions – propositions which, at the same time, I just so happen not to doubt – lying behind my various epistemic activities as a condition of their possibility. Rather, the idea would be that there are some propositions, *which admit of no further specification*, lying behind my various epistemic activities as a condition of their possibility.

5.4.8 When we return to the context of practical philosophy, with such considerations in view, it will then be clear why this business about specification about makes some difference: namely, because it has been argued, for instance by David Wiggins and Aurel Kolnai, that specification itself constitutes one of the activities of practical reasoning, in this case, one sort of deliberation. Wiggins, for instance, writes that:

The practical question [in cases of technical deliberation] is only what means or measures will work or work best or most easily to those [given] ends. But the standard problem in a nontechnical deliberation is quite different. In the nontechnical case I shall characteristically have an extremely vague description of something I want – a good life, a satisfying profession, an interesting holiday, an amusing evening – and the problem is not to see what will be causally efficacious in bringing this about but to see what really *qualifies* as an adequate and practically realizable specification of what would satisfy this want. Deliberation is still *zetēsis*, a search, but it is not primarily a search for means. It is a search for the *best specification*. Till the specification is available there is no room for means.³³²

Kolnai uses similar language, writing that “there is a tendency to mistake for a mere matter of means-finding the *specification* or closer determination of an end, project, or intention once conceived.”³³³ I myself am perfectly happy to allow for such a form of reasoning or thought, if for no other reason than because good ol’ Kant himself accepts such a form of thought, this being one of the forms of thought which enables the possibility of he calls *higher and lower concepts*, writing that “through continued logical abstraction higher and higher concepts arise, just as through continued logical determination, on the other hand, lower and lower concepts arise.”³³⁴

³³² David Wiggins, “Deliberation and Practical Reason,” in *Essays on Aristotle’s Ethics*, ed. Amelie Oksenberg Rorty (Berkeley and Los Angeles, California: University of California Press, 1980), 228. Williams cites this paper in both “Internal and External Reasons” and “Internal Reasons and the Obscurity of Blame,” and in the latter paper, explicitly accepts the point about specification, writing that “there is a question of the kinds of thinking that may be involved in [a sound deliberative route]. The first thing to be said is negative: it does not merely involve perceiving means to an end that has already been formulated. There are many other possibilities, such as finding a specific form for a project that has been adopted in unspecific terms” (MSH 38).

³³³ Aurel Kolnai, “Deliberation is of Ends,” in Kolnai, *Ethics, Value & Reality*, 52-53. For more on the specificationist alternative to instrumentalism about practical reasoning and deliberation, see Elijah Millgram, “Specificationism,” in *Reasoning: Studies of Human Inference and Its Foundations*, ed. Jonathan E. Adler and Lance J. Rips (New York: Cambridge University Press, 2008), 731-747.

³³⁴ Log 9:99.

Of course, there will then have to be a difference between (merely) logical determination or specification, on the one hand, and *practical specification* on the other, but I do not think I need to address this here.

In the case of hinge propositions or other forms of hinge commitment, the thought would then be that these propositions are not arrived at through deliberation's activity of specification, nor are they deliberated upon in some other way: they are, in some sense or another, accepted without doubt, indeed are *exempt* from doubt. And it is these sorts of propositions, commitments, or claims which I am calling *definitions*. In saying that they are not subject to further specification I am not saying that they are instead radically abstract, as empty as the Kantian "I", but rather, that no further specification is possible.

5.4.9 One more piece is needed. In OC 342, Wittgenstein seems to be talking about a special sort of doubt: he writes that, in the case of these investigations of his, "certain things are *in deed* not doubted,"³³⁵ which in the German reads "Gewisses *in der Tat* nicht angezweifelt wird."³³⁶ This might of course just be read as saying something like "certain things which aren't *actually* doubted," but I do not think this will get to the heart of the matter. Two quotes are relevant. First, there is OC 402 (I provide 401 for context):

401. I want to say: propositions of the form of empirical propositions, and not only propositions of logic, form the foundation of all operations with thoughts (with language). – This observation is not of the form "I know...". "I know..." states what *I* know, and that is not of logical interest.

402. In this remark the expression "propositions of the form of empirical propositions" is itself thoroughly bad; the statements in question are statements about material objects. And they do not serve as foundations in the same way as hypotheses which, if they turn out to be false, are replaced by others.

...und schrieb getrost
"Im Anfang war die Tat."³³⁷

³³⁵ Wittgenstein, *On Certainty*, 44e.

³³⁶ Ibid., 44.

³³⁷ Ibid., 51e.

There is a similar remark in the text published as “Cause and Effect: Intuitive Awareness,” a text which appears to have been assembled from some of Wittgenstein’s remarks on knowledge of cause and effect, with the remark being the following:

The origin and the primitive form of the language game is a reaction: only from this can more complicated forms develop.

Language – I want to say – is a refinement, ‘Im Anfang war die Tat’.

First there must be firm, hard stone for building, and the blocks are laid rough-hewn one on another. *Afterwards* it’s certainly important that the stone can be trimmed, that it’s not *too* hard.³³⁸

“Im Anfang war die Tat” – “in the beginning was the deed.” What does this mean? It is from Goethe’s *Faust*, and in particular, from an early scene in Faust’s study, in which he attempts to translate the New Testament – the Gospel of John in particular – from the Greek to German, and in the course of which he rejects translations of the first line as “in the beginning was the word,” “in the beginning was the mind,” “in the beginning was the power,” and ultimately settles on a translation using “deed” (though it can also be translated as “act.”)

This idea that “in the beginning was the deed” is discussed by both Peter Winch and, relevant given my purposes here, Bernard Williams, who come to similar, but not identical, conclusions. Winch writes that “Goethe was drawing attention to the *creative* role of ‘the deed’, and in Wittgenstein this is expressed in the importance ascribed to certain primitive human actions and reactions for *concept-formation*.”³³⁹ It is not entirely clear to me how to read the term “primitive” here – does Winch have in mind something like “atomic” or something more like “instinctual?” I myself do not find his examples sufficient to settle the issue: for instance, he mentions that, in the context of ostensive definition, Wittgenstein “draws attention to the fact that

³³⁸ Ludwig Wittgenstein, “Cause and Effect: Intuitive Awareness,” trans. Peter Winch, *Philosophia* 6 nos. 3-4 (Sept-Dec 1976), 420.

³³⁹ Peter Winch, “*Im Anfang war die Tat*,” in *Perspectives on the Philosophy of Wittgenstein*, ed. Irving Block (Cambridge, MA: MIT Press, 1981), 176.

when I see someone point with his finger, I characteristically don't look *at* his finger, but *away* from it in what I call 'the direction in which he is pointing' – and I *have* this latter concept only by virtue of the fact that I *do* naturally, along with everyone else, react to this outstretched arm and finger in that way."³⁴⁰ Here, reactions – reaction-tokens or reaction-types? – are described as being performed "characteristically" and "naturally." "As opposed to what?," one wonders. Later, Winch puts the idea in the following way: "these [actions] don't *follow* a prior recognition of such properties, they belong to the formation and application of the concepts of the properties in question."³⁴¹ Here, the point is instead put in terms of *priority*, and can plausibly be put in the following way, using my favorite Kantian phrase: performance of certain actions is *the condition of the possibility* of the acquisition and use of certain concepts. But if we are going to identify those certain actions and differentiate them from others, we are going to have to help ourselves to some of these concepts which are supposed to be explained in terms of very actions, as Winch does when he attempts to characterize the relevant actions as those we perform characteristically or naturally. If the account is right, then it has to be able to say something about itself which, on its own terms, it cannot say.

I am inclined to think the better account of the Wittgensteinian point is found in Williams, luckily enough, given the context of the chapter. He explains the point in a purely negative way: "Goethe's line can indeed help us to understand this Wittgensteinian theme [offered in OC 402], by reminding us in particular that the 'primacy of practice' (in a familiar exegetical phrase) is not the primacy of descriptions of practice."³⁴² The point is *not* that descriptions are not primary because something prescriptive or evaluative is found at the primary

³⁴⁰ Ibid.

³⁴¹ Ibid.

³⁴² Bernard Williams, "In the Beginning was the Deed," in *In the Beginning was the Deed: Realism and Moralism in Political Argument*, 24.

level instead: after all, to put the point in terms of Goethe, if *im Anfang etwas Normatives, oder etwas Präskriptives, oder etwas Evaluatives, usw. war*, then it would seem that *im Anfang war das Wort* after all, which has been rejected. The issue is instead one having to do with the way in which our accounts of our practices relate to those practices themselves:

It is not that when we represent to ourselves our practices, we can see in that representation a ground of our beliefs. The relation between a practice and a set of beliefs cannot be anything like that of premises and conclusion, or indeed any other relation between two sets of propositions. There could not be a description of our practices which adequately represented the way in which belief was grounded in practice, if only because the understanding of that relation itself would have to be grounded in practice. It follows from this that the powers of reflection on this relation are limited; indeed, that we must rethink what it is for reflection to get anywhere at all.³⁴³

This is why Winch's account runs into problems: he attempts to give a broad description of the way in which some of our actions – namely, that they are naturally and characteristically performed – relate to our practices, and I said that such a characterization presupposes the conceptual scheme (of the practice) that he is attempting to characterize. There is no way of getting outside of my modern western liberal life and seeing some sort of connection between that modern western liberal life and my various beliefs, because that modern western liberal life has no existence outside of the dispositions – such as *belief*, which is indeed a disposition, but not *just* a disposition – of those who lead such a life, such as myself and, presumably, you – yes, *you*. Since there isn't any way to offer an adequate characterization of the relation under consideration, all we can do is take Wittgenstein's advice from proposition 7 of the *Tractatus*.

5.4.10 This bears on Wittgenstein's idea of doubting something "in (the) deed" in the following way. I suggested that Wittgenstein is not saying – or rather, not *just* saying, not *simply* saying – that certainties are not actually doubted. *Of course* they aren't doubted. The point is that the characterization of our relation to these certainties, that is, to these various hinge commitments,

³⁴³ Ibid.

is itself something about which we should be remaining silent because attempts to do so will amount to trying to think what cannot be thought. At best we can say that these hinge commitments are not doubted, but further, more substantive, positive characterization is off the table. If this is right, then the upshot is that I do not owe anyone a story about what our relationship to hinge commitments – in my case, what I’m calling definitional claims – looks like, at *this* level. I don’t owe it because it is not the sort of thing that can be provided in the first place, and for that reason, cannot be owed.

These definitional claims are claims which, first, are neither descriptive nor normative, second, are not the result of deliberation and specification, and third, are such that we cannot offer a substantive, positive characterization of the relationship between us and these claims.

An immediate worry: what allows me to say that these commitments, or some of them at least, take the form of definitions? Doesn’t this presuppose we can offer a substantive philosophical account of our relationship to these things, in virtue of which we can then go on to offer a conception of that to which we are so related? I do not think so. I want to motivate the inclusion of these sorts of judgments on the basis of two sorts of considerations. First, there needs to be space here for us to use the notion of *triviality* with respect to claims, and a notion of triviality that does not merely turn on attitudes towards the content of these claims. The triviality here needs to be something more like *logical* triviality. Claims which are definitional are, plausibly, to be understood as analytic, and these sorts of claims are trivial in the relevant sense. And while it is true that, say, you might learn something when someone tells you that a bachelor is an unmarried man, all this shows is that you didn’t really know what a bachelor was in the first place, rather than anything about the logical relationship of the subject and the predicate in the claim. The idea on this first line of thought, then, is that if we are going to be able to say that

certain claim are substantive and informative, we also need to be able to say something about claims which *fail* to be substantive and informative, and for this notion to have content there need to be some such claims. Related to this first consideration is the need to explain certain sorts of *vices* that we should expect to find in any actual social practice, and in particular, forms of vicious interaction in which, to take one example, each participant accuses the other of “playing games with words” or something to that effect, as well as certain sorts of interactions with terms in speech that are perhaps more ambiguous, such as in the case of rhetorical redescription. A (normative) theory of X is adequate only if it can explain not only forms of success in X, but distinctive sorts of failures or vices with respect to X or in X.

The second consideration builds on the first: there need to be not only logically trivial claims, but such claims with a particular content that allows us to distinguish particular social orders from one another. These claims will, naturally enough, be available to those within those social orders who use them to make the distinctions themselves, in both thought and action, given that the context here, in this chapter, is one of political philosophy. Such claims plausibly include in their content certain concepts, related to others analytically, and which enable the possibility of intelligent thought and action in a particular social order by providing for something like a grammar or vocabulary to those within the social order, in the way that certain provisions of, say, the rules of baseball do. Anyone with a certain sympathy to Rawlsian analogies to games should take seriously the fact that the rules of baseball,³⁴⁴ American

³⁴⁴ See “Definitions of Terms” in Office of the Commissioner of Baseball, *Official Baseball Rules*, 2023 edition, 146-157.

football,³⁴⁵ basketball,³⁴⁶ hockey,³⁴⁷ golf per both the R&A³⁴⁸ and the USGA,³⁴⁹ tennis,³⁵⁰ soccer/association football,³⁵¹ and cricket (in particular, men’s Test cricket, One Day International, and Twenty20 International, as well as women’s Test cricket, One Day International, and Twenty20 International)³⁵² all include definitions of terms. And these definitions are not idle or otherwise useless. For instance, it is certainly true that baseball, American football, basketball, golf, soccer, and cricket all use a ball, but they differ in what they understand “a ball” to be, which prevents you from using a baseball to play cricket: from the point of view of cricket, a baseball isn’t a ball at all, or better yet, it’s not the right sort of ball. And when someone protests and asks why you can’t use a baseball to play cricket – serious, international cricket, rather than an informal pick up game with friends – you might say something like “that’s just not the sort of ball you use to play cricket.” That is not entirely

³⁴⁵ See “Rule 3 – Definitions” in Roger Goodell, Commissioner, *2024 Official Playing Rules of the National Football League*, 3-10.

³⁴⁶ See “Rule No. 4 – Definitions” in *NBA Official Rules 2025-26*, 17-21.

³⁴⁷ See “Glossary of Terms” in National Hockey League, *National Hockey League Official Rules 2024-2025*, 212-213 for a few definitions. The rules of the NHL do not include a section titled “Definitions”, as in the case of baseball, American football, or basketball, but rather, definitions are included throughout the text. For instance, Rule 1.1 states that “National Hockey League games shall be played on an ice surface known as the ‘Rink’...” (1), while Rule 3.2 states that “Each rink must be provided with benches or seats to be known as the ‘PENALTY BENCH’” (5).

³⁴⁸ See “Definitions” in The R&A, *The Rules of Golf*, <https://www.randa.org/rog/definitions> (accessed March 13, 2025).

³⁴⁹ See “Definitions” in United States Golf Association, *The Rules of Golf*, <https://www.usga.org/rules/rules-and-clarifications/rules-and-clarifications.html#section=definitions> (accessed March 13, 2025).

³⁵⁰ International Tennis Federation, *ITF Rules of Tennis*, 2025 edition. The rules of tennis incorporate definitions in the way that the NHL’s rules do. For instance, in Rule 1 (The Court), the ITF writes that “the lines at the ends of the court are called baselines and the lines at the sides of the court are called sidelines” (2). In a similar vein, in Rule 5 (Score in a Game), the ITF provides the following on scoring:

No point – “Love”

First point – “15”

Second point – “30”

Third point – “40”

Fourth Point – “Game”

Except that if each player/team has won three points, the score is “Deuce.” After “Deuce,” the score is “Advantage” for the player/team who wins the next point (5).

³⁵¹ See “Glossary” in The International Football Association Board, *Laws of the Game 2024/2025*, 170-183.

³⁵² See International Cricket Council, *Playing Conditions*, <https://www.icc-cricket.com/about/cricket/rules-and-regulations/playing-conditions> (accessed March 13, 2025).

informative, but this is precisely what you should expect when you are dealing with something (merely) analytic in the context of the game. You can also say something like “that’s not how we play the game,” an equally true, trivial claim, though perhaps there is something to be learned from it regardless, since it responds to a “why?” question with a “how” answer.

5.4.11 Now given my arguments above, the conclusion of which is that rules cannot be secret, it follows that the rules of a game also cannot be secret. But some of the provisions of the rules are definitions.³⁵³ So the definitions of a game also cannot be secret. But definitions provide a condition of the possibility of more substantive forms of practical normativity, and in my case, the normativity of the ethical and the political. So, the conditions of the possibility of the more substantive forms of practical normativity I am interested in talking about also cannot be secret. So, the content of definitional claims is no secret to those within the relevant practice, nor is the vehicle of the content – human dispositions – a secret either.

From all this it seems to me that it follows that Leader Maynard and Worsnip are not straightforwardly licensed in objecting that political realism masks certain descriptive claims as normative ones. For instance, they write that:

...we believe that there are deeper reasons to worry about any effort to isolate political normativity from morality. Most importantly, such an effort can serve to insulate political decision-making or political theory from distinctively moral criticism – taking it out of the space of moral justification. Admittedly, defenders of a distinctively political normativity might claim that politics can still be evaluated by both moral and (distinctively) political principles. But it is highly unclear how such principles would interact, and while realists sometimes admit such a possibility, they typically seem to see the moral evaluation as being at best optional and at worst a kind of category mistake when applied to politics. The way realists typically claim that certain normative

³⁵³ A relevant objection here says something like “since these concepts figure into the rules, they themselves are normative after all.” There are difficult issues here about the normativity of meaning and content to be had here, but I do not think I have to take a stance on them. Worsnip cannot make his objection to political realism by saying that the realists are always making normative judgments because we should accept that meaning is normative. This is too broad; it cannot be the case that political realism is undermined by the fact that political realists appropriately use “plus” rather than “quus”. He has to be talking about some sort of interpersonal practical normativity. My claim is that within that interpersonal practical space, that is, the social world, there is space available to make claims which are neither descriptive of that social world, nor *practically* normative.

conclusions can be derived directly from definitions of ‘politics’, purported ‘political necessities’ or very general political needs for ‘order’ reinforces this concern. Such claims mask prior normative (and plausibly, we claim, moral) judgments that are built into those definitions of politics, assertions of what is politically necessary, or prioritization of particular forms of order.³⁵⁴

For any particular, allegedly descriptive claim, it is possible that it is a cryptonormative judgment, but it is false that each and every single claim can be held to be cryptonormative. Sometimes, things are as they seem to be, and so if something is offered up as a definition of politics, it may – *may* – be the case that what is being offered up is exactly what it looks like. When one of Worsnip’s examples, Roland the sexist headhunter, says that “the rough-and-tumble of the financial world is no place for a woman,” he may indeed not be making a value judgment, as he says he isn’t: he might just be saying what it is for a human being to *be* a woman. In the particular social world in which he finds himself, the relevant definitions have to be inscribed on the character of those within the social world, and those people come out with it when prompted in these sorts of ways.³⁵⁵ And when they are pressed and sputter, unsure what to say, that is because they don’t have anything further to say. These definitions, as I said above in 5.4.7, function as hinges, and in the practical case, this amounted to saying that they aren’t the sort of thing about which you deliberate, so it should not be surprising that Roland’s reasoning seems to fall flat to us. In any event, there is no reason to think that hinge commitments, propositions, or what have you cannot have a content which is not only available for ethical or moral assessment, but fails upon having been so assessed, without thereby inhibiting their function *as hinges*. From the point of view of the excellences of doors, it makes no difference

³⁵⁴ Leader Maynard and Worsnip, “Is there a Distinctively Political Normativity?”, 786.

³⁵⁵ This claim is hideous, of course – a point I will come back to below, since that reaction itself needs to be accounted for and understood – but there is no reason to think that the account I have offered is, for *that* reason, false. In fact, it may even be something of a mistake to say that the *claim* is hideous: if anything here is hideous, given the story on offer, it’s *you and me*.

whether the door hinge is made from stainless steel or from the bronze that you melted down after stealing the family heirloom candlesticks from your elderly neighbor with onset Alzheimer's: both enable that door to swing just fine.

5.4.12 What does all of this mean for the initial realist idea we started out with above in 5.4.2-5.4.3, to the effect that the political offers a space for dispute resolution when our disputes are about the content of morality itself, rather than a dispute that presupposes a shared understanding of morality? As I discussed in 5.4.3, Leader Maynard and Worsnip offered the objection that realists equivocate on the term *resolution*, and in particular, between a *de facto* sense of the term and a *normative* sense of the term. I argued in 5.4.4 that a strong distinction between these senses of resolution presupposes the possibility of cryptonormativity, but that cryptonormativity is a contradiction. Further, Leader Maynard and Worsnip, as well as Worsnip himself, appeal to the notion of cryptonormativity to argue that realists offer cryptonormative judgments: judgments which are normative, despite their outward appearance as descriptive. Against this, beginning in 5.4.5, I argued for the necessity of including definitional judgments or claims alongside descriptive and normative judgments, with such claims being necessary in the case of the social world because definitions provide a precondition of making sense of various descriptive and normative judgments, and that these definitions have to be housed in human character and dispositions.

From all of this it follows that Leader Maynard and Worsnip's objection to one political realist line of thought, according to which a distinctively political normativity offers dispute resolution mechanisms not available within morality or ethics, does not go through, and in turn the realist can maintain that there is a distinctively political normativity on this basis. A natural question at this point is something like "how does it do so?" There are a variety of ways in which

it may, in part because there are a variety of ways in which a dispute can be resolved in general, and in part because different social orders may offer different resolutions. But I want to discuss one way in which a dispute can be resolved, since it will introduce something of a theme that I hope to develop through this chapter, and which I will explicitly appeal to in my discussion of cruelty in 5.7.

5.4.13 I want to discuss disputes involving what I've called definitional claims, in part to introduce the theme I mentioned above, and in part to help alleviate the worry that the inclusion of such judgments is *ad hoc*. This will lead into a discussion of a point, raised by Leader Maynard and Worsnip, which I have not yet addressed and which, plausibly, remains a live objection, namely, that the principles of a distinctively political normativity are no less subject to dispute than (distinctively) moral or ethical principles. At the end of the day, I want to say that the principles of a distinctively political normativity *are* indeed subject to such disputes, and while some might be mitigated through positive law, it remains the case that these principles are also subject to dispute. But in my view, this is an appropriate conclusion: politics has no backstop, as it were, and it is thus *very* important for a community to keep its house in order when it comes to its politics. Further, I believe this is an appropriate conclusion because it can explain not only the possibility of dirty hands cases – appealed to early in the chapter – but why, in at least *some* such cases, the dilemma should be resolved by performing the immoral or unethical action which will achieve some important political good.

Leader Maynard and Worsnip, in a quote I offered above, say that political realists view politics as a space in which moral criticism is, at best, optional, and at worst, a kind of category mistake. I see no reason to think the political realist, simply insofar as they are writing a philosophy paper, has to take a stance on this sort of issue, but even if moral evaluation of the

political is a category mistake, it does not thereby follow that there is no reason to do it. “Illusion is itself part of reality,” as Williams remarks in *Shame and Necessity*, and it is certainly true that illusions are part of political reality, in a way which is consistent and cross-cultural. Thucydides offers various stories about cities and individuals consulting oracles before embarking on certain courses of action, and while you and I don’t have oracles, we do have evangelical ministers. And in the way that the use of these fictions can *clearly* be politically wise, so too could it be politically wise to make use of moral evaluation, even if it were a category mistake at the end of the day.

One sort of attitude I am interested in discussing here, one which seems to involve moral evaluation, is *blame*.³⁵⁶ For my purposes I do not need to offer anything like a comprehensive, unitary account of blame, one that adequately captures a sufficiently large number of cases in which we would intuitively say that X blames Y and, for those not so captured, offers a story to explain either why those cases do not in fact feature blame or one which appeals to something normative about the way in which we *should* blame. I can accept something pluralistic, and I find myself very sympathetic to some remarks of Benjamin Bagley – who I will discuss in greater detail below – who writes that “...blame is heterogenous. It comes in many species, with different characteristic presuppositions and aims; any theory of blame insensitive to this point would miss much of what makes the subject interesting.”³⁵⁷ In accepting something pluralistic (and perhaps deflationary, a characterization to which I am not hostile), I can remain agnostic on certain issues within contemporary discussions of blame, for instance on the role of *anger* or the

³⁵⁶ In what follows “blame” should not be understood in a purely causal sense, which is the way “blame” is used when we say things like “the leaking faucet is to blame for the dripping sound.” Rather, “blame” should be understood in an ethical sense (using “ethical” very widely). I don’t want to say that “blame” should be understood as “interpersonal blame” for the simple reason that I can blame myself.

³⁵⁷ Benjamin Bagley, “Properly Proleptic Blame,” *Ethics* 127 (July 2017), 854.

reactive attitudes more broadly. Scanlon, for instance, offers an account of blame according to which “to blame a person for an action...is to take that action to indicate something about the person that impairs one’s relationship with him or her, and to understand that relationship in a way that reflects this impairment.”³⁵⁸ Notice there is no mention of anger here. But his account is criticized by both Susan Wolf and R. Jay Wallace in somewhat related ways. Wolf argues that the impairment of a relationship is neither sufficient nor necessary for blame: not sufficient because we can judge one to be blameworthy without thereby blaming them,³⁵⁹ and not necessary because the ability to angrily blame another may, rather than establishing an *impaired* relationship, instead may presuppose an unimpaired one.³⁶⁰ In a similar vein, one focusing on the role of emotions, Wallace argues that the adjustment of attitudes central to Scanlon’s account of blame can be done “...in a way that is perfectly dispassionate, and that therefore lack the emotional tone that seems essential to blame,” and on the basis of which he concludes that “attitudinal adjustments of this dispassionate kind do not have the quality of genuine moral

³⁵⁸ T.M. Scanlon, *Moral Dimensions: Permissibility, Meaning, Blame* (Cambridge, MA: Harvard University Press, 2008), 122-123. A little later, Scanlon puts the proposal in the following way:

...to claim that a person is *blameworthy* for an action is to claim that the action shows something about the agent’s attitudes towards others that impairs the relations that others can have with him or her. To *blame* a person is to judge him or her to be blameworthy and to take your relationship with him or her to be modified in a way that this judgment of impaired relations holds to be appropriate (128-9).

For my part, I take myself to be in substantial agreement with Wolf, discussed in what follows, that as a general account of blame, Scanlon’s account will not succeed. I am still happy to allow for the existence of Scanlonian blame, though, as a species of the wider genus “blame”.

³⁵⁹ Scanlon does seem to accept that judgments of blameworthiness suffice – depending on the relationship, I think – for blame on 130, where he writes that “insofar as one’s relations with a person are constituted by the reasons one takes oneself to have for treating him or her in a certain way, a judgment of blameworthiness, taken seriously, marks a change in that relationship and hence is a form of blame.”

³⁶⁰ Susan Wolf, “Blame, Italian Style,” in *Reasons and Recognition: Essays on the Philosophy of T.M. Scanlon*, ed. R. Jay Wallace, Rahul Kumar, and Samuel Freeman (New York: Oxford University Press, 2011), 332-347. On the former point (that impairment is not necessary), see 333-4, and on the latter, see 334-9. The core idea of the latter point is put by Wolf in the following way, using Strawson’s notion of the ‘objective attitude,’ discussed in the last chapter: “Getting angry and expressing it, and demanding a response, may bring people close together and make them closer, rather than pushing them away...getting angry, as opposed to withdrawing one’s trust, shows that one does not regard the person exclusively with the objective attitude” (339).

blame.”³⁶¹ Ultimately, according to Wallace, “insofar as Scanlon leaves open the possibility of responding to the impairment of relationships without reactive emotions [such as resentment], he seems to leave the blame out of blame.”³⁶²

As mentioned, I do not need to take a stance on the role of anger or the reactive attitudes more broadly in blame, and I am happy to allow for the possibility of both Scanlonian blame and Wolf’s “Italian-style,” angry blame, along with other varieties of blame as needed. What I *do* need, however, for my purposes here is something like Miranda Fricker’s *communicative blame*.³⁶³ I will return to this below. Strictly speaking, what I really need is an account of blame that allows for the possibility that blame can function as what Williams calls a *proleptic* mechanism. It does not matter if this is to be understood as a distinct *species* of the genus ‘blame,’ a distinct *function* of blame, or something else to that effect. I want to appeal to proleptic blame to explain how we can not only respond to definitional judgments made by another, but that we need proleptic blame in both the ethical and political to explain at least *some* changes in these judgments over time. The reason is that proleptic blame allows for a certain sort of *creativity*. But first, we need to understand what proleptic blame is.

5.4.14 The idea of proleptic blame is introduced by Williams in one of his later papers, “Internal Reasons and the Obscurity of Blame.” Williams, as is well-known, denies that there are any external reasons – reasons which do not presuppose some motive in the agent’s *A subjective motivational set* and which cannot be arrived at through what he calls a “sound deliberative route.” Yet it seems that “if there are no such things as external reasons for action, there is

³⁶¹ R. Jay Wallace, “Dispassionate Opprobrium: On Blame and the Reactive Sentiments,” in *Reasons and Recognition: Essays on the Philosophy of T.M. Scanlon*, 353.

³⁶² *Ibid.*, 355.

³⁶³ See Miranda Fricker, “What’s the Point of Blame? A Paradigm Based Explanation,” *Nous* 51, no. 1 (2016): 165-183.

something suspect about blame.”³⁶⁴ The reason, according to Williams, is that there is a sense in which blame functions as a kind of retrospective advice, that is, by “telling” an agent, as it were, what they *ought* to have done. But if it is going to be true that they ought to have done something, then it must have been true that they *could* have done it. (Consider again the case of advice: if, in response to your advice to me that I do such-and-such, I say “I can’t,” it no longer makes any sense for you to reply by saying “do such-and-such” *again*.) But there are cases where you can blame someone even though their S neither contains a motive to perform some action ϕ , nor is there a sound deliberative route to the appropriate motive. So, to make sense of these cases of blame, we then have to say that there actually are external reasons for action after all.³⁶⁵

Williams’s solution is to hold that blame can function as a *proleptic mechanism*. Suppose that you blame me for failing to perform some action, and assume that in this case, the problem is not that I deliberated incorrectly, but that I simply failed to have an appropriate motive in my subjective motivational set. Now *if* I have some motives in my S to “avoid the disapproval of other people”, to gain the respect of other people, and so on to that effect, then

In these circumstances, blame consists of, as it were, a proleptic invocation of a reason to do or not do a certain thing, which applies in virtue of a disposition to have the respect of other people. To blame someone in this way is, roughly, to tell him he had a reason to act otherwise, and in a direct sense this may not have been true. Yet in a way it has now become true, in virtue of his having a disposition to do things that people he respects

³⁶⁴ Bernard Williams, “Internal Reasons and the Obscurity of Blame,” in *Making Sense of Humanity*, 41.

³⁶⁵ Bagley puts the puzzle in the following way:

In short, the problem is to show how addressed blame can be justified without making the “blame part incidental. In order to bring the problem into better focus, I’ll begin by setting out a dilemma, which arises when we consider what I propose as addressed blame’s distinctive elements of emotional engagement and hostility in relation to its target’s attitudes. We can ask, is the offender what Bernard Williams called a “hard case,” such that their attitudes do not support a “sound deliberative route” to the considerations they are blamed for neglecting? Or did the offender have such a route and not take it, owing to ignorance, procedural irrationality, or a lack of self-governance? In the first case, I argue, addressed blame’s element of emotional engagement is inappropriate; in the second, its element of hostility is (853).

expects of him, and in virtue of the recognition, which it is hoped that the blame will bring to him, of what those people expect.³⁶⁶

What we need, I think, to make sense of this are notions of identification and assessment which allow for something distinctively *retrospective*. Suppose then that you blame in the sort of case under consideration. At the time I acted, I failed to have the appropriate motives in my S, but I have a broader motive to achieve the respect of other people. You then blame me – thereby communicating to me that I have failed to achieve your respect, or that have earned your disrespect, contempt, and so on – and in particular, you blame me in a way that communicates, on the basis of my aforementioned motive, that I actually did have a reason to act in such-and-such a way, *even though* that “in a direct sense this may not have been true.” But if your blame is effective, then it is your blame *itself* which will enable me to say *afterwards*, in an act of retrospective reassessment, that I had a reason but failed to act on it.

The picture, in effect, is one in which at least some reasons for action can be generated through processes of actual social construction, where the construction procedure deploys blame. The use of actual social construction appears elsewhere in Williams: it appears, for instance, in *Truth and Truthfulness*, where he argues that the possibility of my identifying my own mental states as either desires or beliefs presupposes an actual, social construction procedure.³⁶⁷ And

³⁶⁶ Williams, “Internal Reasons and the Obscurity of Blame, 41-2.

³⁶⁷ “...our declarations do need to be patterned in some ways rather than others if they are to count as declarations of *any* sort of belief or opinion. ... The assurance rests in the practice which socializes people into having such beliefs. If what I uninhibitedly declare at a given moment can be taken by myself or anyone else as a declaration of something which I believe, that is because there is a practice that firms up the expression of the immediate state into something that has a future. ... At a more basic level, we are all together in the social activity of mutually stabilizing our declarations and moods and impulses into becoming such things as beliefs and relatively steady attitudes. ... A state of affairs, an outcome, or a process may come before the agent’s mind, either on the way to being assessed, or, perhaps, merely as passing through, and since it comes through in the context of desire and deliberation, it will very probably carry with it an attitude; indeed, its coming through is likely to be explained by the attitude. If the attitude is favourable, such a content seems itself to be indistinguishable from a wish. If this is right, it seems that the wish can play a role both in the register of desire and in the register of belief. ... This does not represent, yet, any commitment of the agent, in the sense that I have used the term: it is not yet either a belief or a desire. *But it may be on the way to becoming either*. As a result of one kind of process, this picture may come to embody a belief of the agent’s about an outcome, for instance, that it is genuinely possible; as a result of another, it will come to express a

this socially constructive picture is one taken up by, for instance, Fricker, who builds it into her account of a paradigm-instance of blame which I mentioned at the end of the previous section, *communicative blame*, a distinctively second-personal activity and attitude, the point of which is “to inspire remorse in the wrongdoer, where remorse is understood as a pained moral perception of the wrong one has done,” and where this remorse “effects an increase alignment of the wrongdoer’s moral understanding with that of the blamer...”³⁶⁸ The proleptic element is found in the following way, according to Fricker:

What I am doing when I blame you communicatively in this way is *either* reminding you of a reason whose force you already recognized but failed to be appropriately swayed by; *or* alternatively (the proleptic possibility), in the event that you did not recognize the reason, I nonetheless treat you *as if* you did, where the negative attitude I therein direct at you may *bring* you to recognize the reason in some measure.³⁶⁹

Fricker explicitly notes that “when blame functions proleptically....it exhibits a *social constructive power* by which the object of any such communication has pressure exerted on her to move towards shared reasons.”³⁷⁰

5.4.15 As mentioned above, what I need is something like Fricker’s communicative blame, Williams’ account of proleptic blame, or something to that effect. What I want to suggest is definitional claims are not immune to criticism, as Leader Maynard and Worsnip suggest, and that proleptic or communicative blame can help show, not only how criticism of those claims can be effected, but that there are at least some cases in which the *appropriate* form of response to such judgments takes the form of proleptic blame.

desire that the outcome should occur” (192-197). Williams, admittedly, does not mention blame here, but I find it not altogether crazy to think that the social practice of attitude stabilization will have its own enforcement mechanisms, one of which could be blame.

³⁶⁸ Miranda Fricker, “What’s the Point of Blame? A Paradigm Based Explanation,” 167.

³⁶⁹ Ibid.

³⁷⁰ Ibid., 176.

I have said that the subjects of a particular social order need to embody in their characters various trivial, merely analytic claims. In turn, when someone just comes out with a claim like that of Roland the sexist headhunter, who says that “the rough-and-tumble of the financial world is no place for a woman,” they may be making neither a descriptive claim, nor a normative one, but instead offering up one of these mere definitions.³⁷¹ Now, “coming out with a claim” is itself an action, and as such, can be blamed. (Further, even if it weren’t an action, that would not thereby imply that we could not blame it anyway: I can blame someone for their character, for instance.) But can it be blamed proleptically? Based on everything I’ve said, it would seem like it cannot be, since in this case, our moral understandings are already aligned.

It seems to me, though, that proleptic blame can function here, at this level, provided that it is, in a certain sense, *creative* and, more importantly, *vicious*: there needs to be a violation of a rule, a misuse of a principle, or something to that effect since, at this level, we are aligned in what we think. It might be vicious, for instance, by being *hypocritical*: when I blame Roland the sexist headhunter for his sexist attitudes, I imply that I am not only well-placed to be offering up this blame in the first place, but that I am not subject to the sort of failure or mistake he has committed, and while it might be thought that the problem is that Roland actually *said* something, it seems clear that the real target of blame is *what he thinks*. He and I are the same in that regard, though I’m just quieter and more soft-spoken than he is, and as such, my blame of him is hypocritical. I can also blame him inappropriately by simply blaming him for something for which he is not blameworthy, or by blaming him without being able to really articulate my reasons for having done so. In any event, though, it does not seem to me that vicious forms of blame cannot, at the same time, operate proleptically: a failure of the proleptic mechanism to do

³⁷¹ Again, recall note 355: this is hideous, of course, but not for that reason false. The basic definitions of a particular, contingent social world can be pretty horrible.

what it does may indeed suffice for an instance of blame to be vicious, but it is unclear to me that it is also necessary. It is important to note that, in saying that the instance of blame here is vicious, I am saying it is vicious with respect to the principles on which those who hold these definitions are acting, and vicious on the condition that the social condition is one in which there is public knowledge of these definitions. That is a *very* strong, indeed *implausible*, assumption, to make of actual social orders: but then again, the goal of this dissertation has been to do philosophy, not to engage in armchair speculation about the social, and so if this assumption helps make the point, so much the better.

5.4.16 Vicious proleptic blame, then, at this level, is an important *first step* in the development of what we think. The core feature of blame that enables this possibility is blame's *pain*. After all, blame typically hurts.³⁷² It has been argued by Colin Klein,³⁷³ Richard Hall,³⁷⁴ and Manolo Martinez³⁷⁵ that pain has not only intentional content, but *imperative* content. Their pictures of the imperative theory of pain differ: Hall argues that pain has imperative content, while Klein argues for the stronger position that pain has *only* imperative content. For my purposes I do not need the strong position – I do not need to say that the content of pain is exhausted by imperative content, that is – and can instead say that pain has at least *some* imperative content. Further, an imperative theory of pain may be welcome here given (one of) my initial starting points, Korsgaard's *Sources of Normativity*, in which she offers some remarks on pain, ultimately characterizing "pain [as] the perception of a reason."³⁷⁶

³⁷² It is not necessary that it hurt – you can blame the dead – but it is plausible to think that a necessary condition of *communicative* blame, or *addressed* blame, is that it hurts.

³⁷³ Colin Klein, "An Imperative Theory of Pain," *The Journal of Philosophy* 104, no. 10 (Oct. 2007), 517-532.

³⁷⁴ Richard J. Hall, "If It Itches, Scratch!," *Australasian Journal of Philosophy* 86, no. 4 (Dec. 2008), 525-535.

³⁷⁵ Manolo Martinez, "Imperative Content and the Painfulness of Pain," *Phenomenology and the Cognitive Sciences* 10 (2011), 67-90.

³⁷⁶ SN 4.3.6.

Now, can we say more about the content of pain? If pain's content has an imperatival structure, what might some of these imperatives look like? Klein argues that these imperatives take the form of directives *not* to do something: when you have a pain in your ankle, say, you are directed *not* to put weight on it. It is unclear whether this will work for all pains, a point Klein himself admits in his 2007 paper when he says that there are pains which "...do not appear to have the tight connection to action that most pains have. Among these are the pains associated with headache, menstrual cramps, and disturbances of the deep viscera."³⁷⁷ But I find it unclear why, and indeed whether, this should be worrying for the imperatival theory.³⁷⁸ It's one thing for pain to have imperatival content, but it's something else for it to have imperatival content that we can articulate, given the concepts we already have, and something further yet for us to have before us the means necessary to fulfill the conditions of the imperative. Certain pains, I think, can have a content which includes concepts which can only be arrived at through contingently performed human activities. Suppose, for instance, that I drink coffee every morning – so much so, in fact, that I develop a dependency, such that I get a headache when I do not drink coffee in the morning. I might misunderstand my own pain and what it directs me to not to do until I learn that the issue isn't so much that I am forgoing coffee as much as that I am forgoing caffeine. This can, of course, happen in a single life, such as mine, but it can happen over time within a (changing) culture. Perhaps in the future, we will understand our pains more clearly.

In any event, we can return to the main line of thought. Does the painfulness of blame require that its content is *actually* transparent to the blamed party at the time at which they are

³⁷⁷ Colin Klein, "An Imperatival Theory of Pain," 530.

³⁷⁸ Certain headaches may have a tighter connection to action than Klein gives them credit for. I do not find it implausible to think, for instance, that the imperative associated with some headaches is the imperative not to keep working, or not to keep the conversation with this schmuck going, or not to remain hungry (i.e., to eat something). But Klein's worry can persist even once these points have been granted.

blamed? Initially it seems that it does, particularly if we have communicative or proleptic blame in mind, for the simple reason that communication in general seems to require actual uptake for it to take place at all. After all, we do not exactly find a paradigm of communication when we imagine two deaf people screaming at one another over the telephone. To put the point in terms of communicative blame, it seems that actual uptake is necessary because the relevant offending action, property, etc. needs to be identified to the blamed agent, by the blamer, in order for the blamed agent to feel remorse, guilt, etc. *about* that relevant offending action, property, or whatever. It is not enough, that is, for the blamed party to be made to merely *feel bad*. It's one thing to say "I'm sorry for whatever it is that I did," but it's something to say "I'm sorry for having done *that*," and successful blame should enable someone to offer the latter sort of apology; and since an apology is, in a broad sense, something *done*, this means that the painfulness of blame needs to have the right sort of imperatival content, and in particular a sufficiently fine-grained content, to enable someone (say) to apologize for *this*, rather than merely for *something*.

But notice that I have talked here about what blame *enables* me to do. Actual uptake, strictly speaking, is not straightforwardly necessary for communicative blame to be appropriate. You can blame me via an instance of communicative blame and perhaps I can only understand the communicative act after the fact.³⁷⁹ And this would seem to align with the remarks above about pain: I can have a certain pain without understanding it because I might fail to have the concepts for me to appreciate what the pain is *telling* me to do, and similarly, I might fail to

³⁷⁹ Suppose that you blame me for the way I treat you in 2005, and only in 2025 do I understand why you blamed me. My suggestion is that we say that your 2005 blame was potentially communicative, rather than actually communicative, and that this is good enough. Alternatively, we could say that the conversation in which this act of communication and its subsequent uptake takes place is a single, 20 year long conversation. In the latter case, actual uptake is necessary. For my purposes, I think each option would give me what I want.

appreciate a particular instance of blame because I lack the concepts, relevant beliefs, etc. to appreciate the communication in the first place. The situation, perhaps, is akin to one in which you write me a letter in your native language, which I do not speak, and in which you blame me for doing such-and-such. Your use of capitalization and exclamation marks suggests you're angry about *something*, but only when I get the letter translated do I realize that you were blaming me all along, and now I know what *not* to do when I see you again. Something like this can happen with blame which is spoken: perhaps, for instance, I only understand what I did after the fact, when someone explains to me what I did and why you blamed me for it. This can even occur with blame that takes the form of, say, a dirty look.

The real question, I think, that has to be handled at this point is something like the following: even granting these points about blame and pain, why is pain *necessary* here? Why does blame need to *hurt*? Why can't we communicate our reasons and come to align our moral understandings in affective silence? I think that these sorts of questions misunderstand pain in the way that classical utilitarianism misunderstands pleasure: the utilitarians seem to take pleasure to be something we can identify in isolation from the activities that occasion it. Indeed, they *must* say this if they are to hold that pleasure maximization is the standard of right and wrong, since otherwise, they would be begging the question. But I find this sort of hedonistic account of pleasure far too reductive to be worth considering, not only in ethical theory but in ethical *life*. In a similar vein, the person asking the above questions seems to think that we can distinguish pain as a psychological state from the activities which occasion, cause, constitute, etc. it, and then asks why this particular sort of activity is one which is accompanied by this psychological state. It is not clear that any such distinction is warranted, though, but at the very least, it needs to be supported in some way or another. Against what I have said, to the effect that

we should not draw a very sharp distinction between pain's affect and its content, intentional or not, you may appeal to certain cases of unusual pains which may seem to require such a distinction: in cases of phantom limb pain, for instance, it might be thought that we have pain without an imperative, while in cases of pain asymbolia, we might have imperatives without "pain," i.e., without the unpleasant affect typical of pain. Neither of these cases should present the imperativist with anything worrying: in the case of phantom limb pain, we might have what Klein (a strong imperativist) calls "hallucination by presupposition"³⁸⁰ in that this sort of pain does not *command* something false – imperatives have fulfillment conditions, not truth conditions – but that they *presuppose* something false, while in the case of pain asymbolia, we have instances of alienation from oneself. Both cases are consistent with imperativism because the imperativist does not have to say that these imperatives are such that we can always comply with them, nor that we are incapable of forming attitudes towards them, as well as, in turn, *failing* to form attitudes towards them.

What I want to bring out, which may be implicit in the discussion above, and which I want to make explicit and then use in what follows, is that there is a question here about what you can call the *unity* of pain. If pain is a (mere) psychological state exhausted by its qualitative properties, then pain does it *itself* admit of talk of better or worse: what is better or worse in the case of a particular pain is the way we find that particular pain. But I have said, first, that pain should not be identified in such a way analogous to the identification of pleasure, and second, that pain has imperatival content. I want to suggest that the unity of pain is *functional*. This then would let us say that there are pains which are better or worse *as pains*. (Phantom limb pain is worse *qua* pain, for instance.) Perhaps this is why Nietzsche writes at BGE 225 that:

³⁸⁰ See Colin Klein, "Imperatives, Phantom Pains, and Hallucination by Presupposition," *Philosophical Psychology* 25, no. 6 (2012): 917–28.

You want, if possible – and there is no “if possible” more insane than this – *to abolish suffering*; and we? – it seems as though *we* would prefer to have it even higher and worse than it ever was!...The discipline of suffering, of *great* suffering – do you not know that only *this* discipline so far has created all enhancements of humans?

More developed human beings have more developed capacities and can feel, as it were, *better* pains, since they feel pains with a more intricate, negatively imperatival content. And these negative imperatives provide the content needed for positive imperatives – typical rules –, which enable various forms of value by providing for success and failure conditions.

My suggestion, then, is that a more richly developed capacity for pain is a necessary condition of a richly developed capacity for *value*. Bringing this back to blame, the idea would be that, when you blame me in a case where I failed to have the appropriate motive in my subjective motivational set, your blame not only helps construct a particular motive, but helps develop a capacity I have. Without your blame, I cannot value *you* in as a fine-grained a way. But what will do crucial work in this process – which indeed is a *process*, something that takes place through time – are the activities of retrospective assessment and (re-)identification.

It is those capacities which makes it possible for communicative or proleptic blame, in the case of definitional claims, to be appropriate. But it is important to see just how *weak* this notion of *appropriateness* will turn out to be. In the case of these definitional claims, where we are talking about the logically trivial, social definitions of a culture, and where those definitions are to be understood as embodied in the character of those living in the culture, there is no reason to think any one particular modification to a definition involves anything like a growth in enlightenment, a movement towards the truth, in brief anything like a change that can be evaluated in terms of success or failure in a way that goes beyond an appeal to mere consistency or something like that. There is nothing in society or in history that can exhibit the teleology that allows us to talk about *growth* or *movement* except in very small, highly localized terms. Since

blame is being used as part of a model of actual social construction, and since one of the items being constructed is the concept of *appropriateness*, the picture then gives us almost nothing interesting, but this strikes me as correct.

5.4.17 What does all this mean, then, for the idea that politics offers a space for the resolution of disagreements which cannot be resolved using ethics? In particular, what does all this mean for a criticism of the political realist on this point which I have not yet addressed, namely, that the principles of a distinctively political normativity are no less subject to dispute than those of ethics? I believe what the political realist should say is that the principles of a distinctively political normativity are *not* less subject to dispute, and that while this dispute will look differently than it does in the case of ethical normativity, in a way I want to sketch out, since it will allow us to see one way in which these forms of normativity are different, this will not imply that these disputes are somehow less serious, more acceptable, or something like that, which I believe would be wildly optimistic. But I will try to suggest that this is an appropriate conclusion.

To get clear on all this, it will help to return to Williams's "Realism and Moralism in Political Theory," which include a few elusive remarks on disputes in politics, which I will try to briefly develop.

The crucial bit I want to focus on is found in a section titled "The Concept of the Political." He does not offer a definition of the political, saying that this "would certainly be fruitless," and instead wants to discuss "ways in which thinking 'politically' changes the emphasis as contrasted with what [he] has called [political moralism]." ³⁸¹ We get the crucial bit when he writes that:

³⁸¹ Bernard Williams, "Realism and Moralism in Political Theory," 12.

...we should not think that what we should do is simply to argue with those who disagree: treating them as *opponents* can, oddly enough, show more respect for them as political actors than treating them simply as arguers – whether as arguers who are simply mistaken, or as fellow seekers after truth. A very important reason for thinking in terms of the political is that a political decision – the conclusion of a political deliberation which brings all sorts of considerations, considerations of principle along with others, to one focus of decision – is that such a decision does not in itself announce that the other party was morally wrong or, indeed, wrong at all. What it immediately announces is that *they have lost*.³⁸²

I find this rather dense; some unpacking is necessary. I want to try to suggest that we can reconstruct an argument, using these materials along with some others, according to which one of the core errors of the political moralist is that they misunderstand the unity of the political body. The political body is such that we can ascribe various practical activities, predicates, etc. to it – we can say, of the political body, that it *deliberates* and *decides*, and *not* in name only. At the same time, however, the principles which constitute those activities, such as those of deliberation and decision, are *not* able to license judgments that parties to the activities of deliberation, decision, etc. are *right* or *wrong*: not only *morally* right or wrong, but right or wrong *at all*. Rather, while there are still judgments of success and failure which can be applied to political actions – judgments which are *not* merely judgments of whether the action was causally efficacious or something to that effect – they will have something of a different character.

How is the unity of the political body misunderstood? Here, I think, it is crucial to remember that for Williams, the term *morality* is a thick concept, a point I mentioned above. The political moralist is *not* merely the “political ethicist,” as it were, but rather, the political moralist accepts that system of ethical thought which Williams discusses in chapter 10 of *Ethics and the Limits*, for instance, or which Anscombe discusses in “Modern Moral Philosophy,” the system of ethical thought which uses the concept *moral obligation* in the way they both discuss, and

³⁸² Ibid., 13. Williams’s emphases.

applies that system of thought to something it regards as particular content, namely, the political. This is at least part of the misunderstanding: the moralist takes morality to be prior to the political, such that the political can indeed serve as particular content for moral thought, a thought I will return to below when I discuss the realist notion of the priority of the political. Here, though, I think the error consists in thinking not only that the political body needs to be unified through morality – a local, contingent form of ethical thought – but that it needs to be unified through something other than itself in the first place. The BLD, recall, is a normative principle inherent in politics as such: it constitutes the political body.

Yet it is not a normative principle which licenses judgments of rightness or wrongness. At this point, the BLD might be contrasted with the principles of morality – principles which *do* license judgments of rightness or wrongness – by saying that the BLD is a principle of instrumental rationality, where the end is legitimacy, and with the principle then directing political agents to pursue legitimacy. But I am skeptical that this move will pan out: note that Williams says that a political decision does not imply that some other party is wrong *at all*. It is possible that he is using a concept of *ethical* rightness and wrongness here, but it seems to me that we can use talk of “right” and “wrong” in much broader ways. If I am learning how to build IEDs from my ISIS superior, he can perfectly well criticize my bombmaking techniques by saying that I am wrong to connect the red wire to the timer in such-and-such a way. Instrumental wrongness is still a form of wrongness, and as such, is ruled out by Williams’s idea.

What, then, should we say? Why does the BLD license judgments that so-and-so lost, rather than the judgment that they were wrong (or right, for that matter)?

5.4.18 The answer begins, I think, in the idea that political relationships involve *opponents*, something not yet discussed. What Williams has in mind here *cannot*, I think, be Schmitt’s

infamous distinction between *friend* and *enemy* in *The Concept of the Political*, since opponents in Williams's sense are not necessarily, simply in virtue of being *opponents*, committed to vanquishing the other side, and further, do seem to have some sort of commitment to maintaining the conditions in virtue of which they can be said to be *opponents* in the first place. Further, opponents seem typically to have not only a disagreement of some sort with one another, but a practical disagreement. When you and I enter a running race, for instance, we are opponents because each of us wants to win the race and, at least *generally*, the relevant good – in this case, winning the race – cannot be shared.

At this point it might look like political relationships are ultimately instances of the sort of thing found between King Francis I and Emperor Charles V: each wants Milan, but not both can have Milan.³⁸³ But this would be too quick, at least in the sort of case under discussion. The conflict between Francis and Charles is, indeed, a conflict over a good which cannot be shared, but it is also a conflict over a good which is wholly external to those involved in the conflict: the conflict can in principle be eliminated by the elimination of Francis or Charles, or, for what it's worth, Milan itself, perhaps when God, in his exasperated Father guise, destroys the city and tells them "now, no one gets it." By contrast, in the sort of case under consideration, when you and I are having a dispute within the context of a political deliberation, while it is true that the disagreement will cease if either of us dies, it is *not* the case that God can appear and take away deliberation and decision to resolve the dispute. The dispute you and I have is not over a good external to us, one to be identified in wholly third-personal terms, but rather, you and I have a dispute about what *we* will do. Now if *we* decide to perform some action A, it certainly does not thereby follow that I have a reason to perform some action A, because there may be certain

³⁸³ KpV 5:28.

actions which can only be performed by the group, i.e., the political body itself, rather than by any particular individual. But it probably does give me a reason to do *something*. Similarly, it gives *you* a reason to do something. So, if I resolve the dispute my way, I can bring it about that *we* – and, thus, *you* – have a reason you did not previously have, and the publicity of the reason will license responses from others that are not straightforwardly justifiable if I were merely to give you a private reason.

Now Williams, for his part, takes it that the BLD does indeed provide for an ethics, and in particular, he writes that “the ethics that relates to this [conception of the political] is what Weber called *Verantwortungsethik*, the ethic of responsibility.”³⁸⁴ Weber discusses the ethic of responsibility in “The Profession and Vocation of Politics,” where he contrasts it with what he calls the “ethic of (principled) conviction” in the following way (get ready for some long quotes):

If evil consequences flow from an action done out of pure conviction, this type of person [i.e., one who holds an ethic of conviction] holds the world, not the doer, responsible, or the stupidity of others, or the will of God who made them thus. A man who subscribes to the ethic of responsibility, by contrast, will make allowances for precisely these everyday shortcomings in people. He has no right, as Fichte correctly observed, to presuppose goodness and perfection in human beings. He does not feel that he can shuffle off the consequences of his own actions, as far as he could foresee them, and place the burden on the shoulders of others.³⁸⁵

And each of these ethics, as I read Weber, stand in contrast with what sounds like a certain *misuse* of ethical notions in politics:

Where is what one might call the ethical home of politics?...Let us begin by freeing the problem of quite trivial falsification. In the first place, ethics can appear in a morally quite calamitous role...[For instance, the case of war,] instead of searching, like an old woman, for the ‘guilty party’ after the war (when it was in fact the structure of society that produced the war), anyone with a manly, unsentimental bearing would say to the enemy, ‘We lost the war – you won it. The matter is now settled. Now let us discuss what

³⁸⁴ Bernard Williams, “Realism and Moralism in Political Theory,” 12.

³⁸⁵ Max Weber, “The Profession and Vocation of Politics,” in Max Weber, *Political Writings*, ed. Peter Lassman and Ronald Speirs (New York: Cambridge University Press, 1994), 360.

conclusions are to be drawn in the light of the *substantive* interests involved and – this is the main thing – in the light of the responsibility for the *future* which the victor in particular must bear.’ Anything else lacks dignity and will have dire consequences. A nation will forgive damage to its interests, but not injury to its honour...Every new document which may emerge decades afterwards will stir up the undignified squabble, all the hatred and anger, once again, whereas the war ought at least to be buried *morally* when it comes to an end...Instead of dealing with what concerns the politician (the future and our responsibility for it), such an ‘ethical’ approach concerns itself with politically sterile (because unresolvable) questions of past guilt...What is more, in this process people lose sight of the inevitable falsification of the whole problem by very material interests – the interests of the victor in maximizing the gain (whether moral or material), and the hopes of the defeated that they will negotiate advantages by confessing their guilt. If anything is ‘*common*’ [i.e., base], it is this, and it is the consequence of using ‘ethics’ as a means of ‘being in the right.’³⁸⁶

Here, as in Williams, there is the idea that ethical notions should *not* be used with a view to “being in the right.” Where Williams says that we should treat those opposite us as *opponents*, this being a way of showing them respect, Weber seems to think that the use of ethical notions with a view to past guilt damages the honor of other party, and so plausibly can be understood as one sort of failure to show the other party respect.

The idea in Weber and Williams, as I am inclined to read them, is that we have, or at least *can* have, political reason to *suspend* moral judgment. Suppose A and B have a political conflict, and A resolves the conflict in A’s own favor. If A proceeds to make a moral judgment about the conduct of B, and, further, expresses that judgment to B, then it starts to look as though A is *blaming* B. After all, as we saw above in 5.4.14, one paradigm instance of blame is blame which is *communicated*. But if A is blaming B, then it looks like A is offering something like the sort of *retrospective advice* I discussed above when discussing proleptic blame in 5.4.14. Now proleptic blame, as we saw above, could only function by offering advice to another agent if we assumed some sort of element in the agent’s subjective motivational set involving the desire to avoid the hostility of those one respects or something like that. In the political context, however, this is

³⁸⁶ Ibid., 356-7.

precisely the sort of motive which *cannot* be presupposed. And the absence of such motives do make a difference. The absence of such a motive, for instance, explains why it is indeed coherent for the Athenians to respond to the Melian question “you would not tolerate our staying neutral, friends not enemies, but allies of neither side?”³⁸⁷ by answering “no, since your hostility does us less damage than your friendship: to our subjects, as clear proof of weakness as hatred is of strength.”^{388,389} The reason this motive cannot be presupposed has to do with our having a conflict regarding a scarce good, namely, something like a complex right to determine the content of the political intention to be realized through the act of political decision, as mentioned above.³⁹⁰ Since A and B have a conflict over a good which cannot be shared, there is no sense in which A can seriously offer anything like *advice* to B after the fact, and yet in airing the moral judgment about B’s conduct, A blames B. At best, A sends B a mixed message, but mixed messages of this sort are possible only in already friendly conditions, conditions which cannot be assumed here. So, what A *really* does, then, is nothing more than moralistic browbeating, a political form of passive aggression.³⁹¹

³⁸⁷ Thuc. 5.94, trans. Lattimore.

³⁸⁸ Thuc. 5.95, trans. Lattimore.

³⁸⁹ That is, the absence of a standing Athenian motive to secure the respect of the Melians implies that the Athenians can deliberate on the benefits and costs of their respect, their “hostility,” or, opposing both of these, their neutrality and corresponding indifference.

³⁹⁰ If I had to hazard a guess, the right here could be similar to a Hohfeldian analysis of the right to free speech, as articulated by Heidi Hurd and Michael Moore:

It is worth pausing to see how Hohfeld’s “atomic” analysis of claim rights and privileges combine into a “molecular” analysis of a commonly described right. Consider the “right to free speech,” which Hohfeld would analyze as a molecular relation consisting of two (plus) atomic relations, one a privilege to do the act of speaking and the other a claim right to non-interference with the speaking that it is one’s right to do (306).

The right in the case I consider above would involve, first, a permission to determine the content of the political intention, and second, a claim right to non-interference in determining the aforementioned content.

For more, see Heidi M. Hurd and Michael S. Moore, “The Hohfeldian Analysis of Rights,” *American Journal of Jurisprudence* 63, no. 2 (December 2018): 295-354.

³⁹¹ From the fact that there is a conflict over a (kind of) scarce good, it does not follow that this case should be given the same analysis as lifeboat cases, where there is also a conflict over a scarce good (space in the lifeboat). These are not conflicts over rights at all; they are conflicts over the condition(s) of holding and exercising rights.

How does this bear on the Weberian *ethic of responsibility*, mentioned above, and with it, Williams's distinctively political normativity? At a first pass, we can now say that it is a form of normativity which will not straightaway license forms of blame in response to the practical errors of some agent or party, because certain ethically important motives cannot be presupposed in the political, in particular the motive to achieve the respect of others. As in the case of the Athenians and the Melians, earning another's hatred (and thereby failing to earn their respect, at least in the sense of Darwall's appraisal respect) can be politically expedient.

5.4.19 There is a second element, not yet discussed, in Weber's remarks on the ethics of conviction and of responsibility, namely, on the nature of responsibility in the political itself. But Weber is a bit unclear about this. He himself puts the issue in terms of the *consequences* of one's actions in various places: for instance, in addition to the passage I quoted above, he writes that:

But there is a profound opposition between acting by the maxim of the ethic of conviction (putting it in religious terms: 'The Christian does what is right and places the outcome in God's hands'), and acting by the maxim of the ethic of responsibility, which means that one must answer for the (foreseeable) *consequences* of one's actions.³⁹²

Given that this is Weber, it is relatively clear that *responsibility* should not be given a metaphysically inflationary spin, such as by saying that (moral) responsibility can only be attributed on the presupposition of (for example) libertarian contra-causal *freedom*, since, after all, the admission of such freedom into our pictures of things is not reasonable in this good ol' *entzauberte Welt* of ours. But the talk of *consequences* is readily understood in terms of – you guessed it – *consequentialism*. The ethic of responsibility then looks like an ethic which first locates some indeterminate political value(s) or good(s) (or perhaps *disvalues* or *bads*, an idea I will return to later) in states of affairs, and then directs the politician to produce those states of affairs. Responsibility, in turn, consists in being accountable for the production of these states of

³⁹² Weber, "The Profession and Vocation of Politics," 359-60.

affairs, at least insofar as those consequences are “foreseeable,” a condition the addition of which I find puzzling and unclear – does this mean “actually foreseen?” “Is such that it is typically foreseen by similar agents in similar conditions?” “Is such that it *ought* to be foreseen?” And on and on – and will leave out for the sake of simplicity in what follows. This sort of picture of the ethic of responsibility, what we might call *political consequentialism*, is one that Walzer seems to find in Weber when discussing Weber’s own remarks on the problem of dirty hands in *The Profession and Vocation of Politics*. Walzer writes that, according to Machiavelli, “[the politician’s] political judgments are indeed consequentialist in character, but not his moral judgments,”³⁹³ a claim he does not retract when comparing Machiavelli to Weber, locating the difference between the two instead in their attention to what the politician might feel after having done wrong in pursuit of some political good. In any event, though, the ethic of responsibility turns out to be a form of consequentialism, and the ethic of conviction and that of responsibility then differ on responsibility (in the sense of accountability) because the former, a form of non-consequentialism, will not hold the politician to account for certain sorts of unintended consequences of their actions, while the latter, consequentialist ethic understands that, when it comes to producing states of affairs, even though what you cause need not be what you *meant* to cause, it is still something you have *caused* at the end of the day.

Now, it has been argued that this account of the ethic of responsibility cannot be right, though I do not think some of these arguments will ultimately help here. For instance, Sung Ho Kim first notes that Weber himself rejects utilitarianism, as his views do indeed require him to do.³⁹⁴ What Kim needs here, though, is a claim to the effect that political consequentialism just *is*

³⁹³ Walzer, “Political Action: The Problem of Dirty Hands,” 175.

³⁹⁴ “As is well known...Weber flatly rejects any utilitarian ethics. Weber’s ethics cannot accept utilitarian ethics on two grounds: first, utilitarian ethics presuppose a foundationalist system of human psychology to which the meaning of human action is reduced in the last instance; second, utilitarian foundationalism is based on a hedonistic account

utilitarianism, or if not that, then a claim that the political consequentialist requires utilitarianism to be correct for some reason or another. Kim himself says that “in Weber’s ethic of responsibility, then, we seem to have a clear case of what is called an ‘ethical consequentialism’ based on means-end rationality. In terms of consequentialism alone, that is, Weber’s ethical project becomes utterly indistinguishable from utilitarianism.”³⁹⁵ The idea seems to be that the ethic of responsibility would be indistinguishable from utilitarianism because both understand the value of action entirely in instrumental terms. But when you put the idea that way, it becomes clear that this proposal cannot be right, at least as it stands. Both utilitarianism and a form of egoistic consequentialism might understand some good entirely in instrumental terms, yet it is clear that utilitarianism and egoism are not the same thing, so much so that Sidgwick himself had to content himself with his so-called dualism of practical reason after being unable to assimilate egoism to utilitarianism in the way he could assimilate intuitionism thereto.

5.4.20 I think a better picture emerges when we consider a short passage in which Weber discusses the difference between the ethic of conviction – what he will call “absolutist ethics” here – and the ethic of responsibility on the issue of truthfulness, where he writes that:

The politician will take the view that the upshot of this [publication of a government’s secret internal documents after having lost a war] will not serve the cause of truth, but rather that truth will certainly be obscured by the misuse of the documents and by the passions they unleash. He will take the view that the only productive approach would be a systematic, comprehensive investigation, conducted by disinterested parties; any other way of proceeding could have consequences for the nation which could not be repaired in decades. ‘Consequences,’ however, are of no *concern* of absolutist ethics.³⁹⁶

At first glance this seems to retread the same sort of ground we have seen above, but upon a closer reading, I think that will turn out to be wrong. Weber writes that the politician is

of human psychology, or what he calls, rather disdainfully, ‘the balance of pleasure.’ In Sung Ho Kim, *Max Weber’s Politics of Civil Society* (New York: Cambridge University Press, 2004), 114.

³⁹⁵ Ibid.

³⁹⁶ Ibid., 359.

concerned with the consequences *for the nation*. Weber's ethic of responsibility is not consequentialism: it is not an ethic which locates value in states of affairs and then directs political actors to effect those states of affairs, because Weber's "consequences" are not *in their first instance* the effects of actions, though it is *obviously* true that they are also, in *some* sense or another, effects of action. Rather, what he has in mind, in the case of the publication of documents, is that the politician is concerned with the *implications* of such a course of action. *That* is how to understand this talk of "consequences." And the example I offered above, namely the exchange between the Athenians and the Melians on the subject of Melian friendship, is one in which we see those who are parties to a political deliberation think through what Weber calls the "consequences" – that is, the implications – of a particular course of action, which in this case concern Melian neutrality's implications for the attitudes which Athenian subjects will take towards their own city and officials. Crucially, the Athenian reply is not *just* a psychological prediction, i.e., the prediction that in a political condition, consisting in or otherwise involving Melian neutrality, will elicit certain psychological states from the Athenian subjects. Rather, the claim is that Athenian subjects will gain, as the envoys put it, "*clear proof*" of Athenian weakness, and whatever else *proof* is, it is something which will *justify* the attitudes it elicits. Further, if these attitudes consist in, or at least involve, something like the application of a concept to a subject in such a way as to constitute an evaluation of the subject – judging, of Athens, that it is *weak*, for instance – then the envoys are not simply worried about the *beliefs* that Athenian subjects will form, but rather, about the ways in which they will find it *appropriate* to *conceptualize* and (thereby) *evaluate* their own city and political leaders. The problem, then, with Melian neutrality is not simply that Athenian subjects will have certain beliefs, but rather,

that certain beliefs, as well as certain conceptualizations and evaluations, would be *apt* or *fitting*. The Athenians may gain certain reasons they would not otherwise have.

What about responsibility, then? The difference between the ethic of conviction and that of responsibility on this issue has to do with the *scope* of responsibility, where “responsibility” is understood in terms of something like *answerability* or *accountability*: that is, in ethical terms, understanding “ethical” in a *very* wide sense. In particular, the difference has to do with the *explanation* of action which is either defective in itself or defective insofar as it generates unwelcome implications. In the good case, the explanation of the implications of some action will simply appeal to the agent who so acted, and if we want to then explain why they so acted, we can point to their motivating reason(s), which are also explanatory. For instance, if the Athenians succeed in maintaining the stability of Athens by ensuring that the city’s subjects will find it appropriate to judge the city to be strong,³⁹⁷ then we can say that this was due to the actions of the envoys and the military, and we can then explain the actions of the envoys and the military by consulting their motives. The story has to be different in cases where we find something defective, though. (As a simplifying assumption, we can suppose that we have correct, though not *full*, information. That is, if B performs some action A against expectations, or in a vicious way, or something like that, assume that B cannot respond by pointing out faults in our expectations, in our uses of vice concepts, and so on.) Somewhere along the way, we would have to find that some causal connection does *not* obtain, or some motive was *not* to be found, or something is there which is *bad*, or something to that effect. What, then, explains the relevant error? How did *that* come to pass, rather than something else?

³⁹⁷ Leave aside issues having to do with Athenian overconfidence (such as in the Sicilian expedition) and other things of that nature.

Nietzsche is instructive here. GM II.23 is a discussion of the use of the concept “god,” though it seems to me that it is also a discussion of the topic under discussion, namely, the explanation of error. Nietzsche’s thought is that the explanation of practical error can not only vary with cultural-historical circumstances, but can vary in ways which are better or worse for the well-being of the human beings within those circumstances:

But even this disturbance in the head [, appealed to as an explanation of error,] was a problem – “yes, how is it even possible? Where could it have come from really, with minds such as *ours*, we human beings of noble descent, of fortune, of good breeding, of the best society, of nobility, of virtue?” – for centuries the noble Greek had asked himself such questions in the face of every incomprehensible atrocity and sacrilege with which one of his peers had sullied himself. “Certainly a *god* must have beguiled him,” he finally said, shaking his head...this way out is *typical* for Greeks...In this manner the gods back then served to some extent to justify humans even in bad things, they served as causes [Ursachen] of evil – in those days they did not take the punishment upon themselves, but, as is *nobler*, the guilt [Schuld]...³⁹⁸

Suppose you are Betty Draper and you come home from the grocery store to find out that your husband, the ad man Don Draper, packed up and left for somewhere, California maybe; and suppose that no explanation from Don is forthcoming: he just packed up and left. Betty can still wonder why Don just packed up and left, though realistically, she will be doing a lot more than that: she might be fearful, or surprised, or angry, or some mix of all these, or something else entirely. In such a case, when I don’t know why Don packed up and simply left either, I can’t say much of anything by way of explanation either – except I *can* say something like “God only knows why he did it.” There *is* an explanation, but it is hidden from us, but whatever that explanation ends up looking like, it will appeal to something about *him*. But this is not what the Greeks say, at least according to Nietzsche: they say that Don’s leaving is the fault of some god. More precisely, we need to first draw distinctions between being the *cause* of some error (where *cause* is understood widely), being *blameworthy* or *accountable* for the error, what Nietzsche

³⁹⁸ GM II.23, trans. Del Caro.

calls “guilt,” and, lastly, being (actually) *blamed* or *held to account* for the error, what Nietzsche calls “punishment.” Now, with those distinctions in place, we can then say that, for us liberal moderns, it is (morally) necessary for blamed party to be both the cause of the relevant error and to be blameworthy for it. Otherwise – if you blame someone for an error they did not cause, or one for which they are not blameworthy, say – your blame is, in some sense or another, unfair. Further, given the consequences of our disenchanted picture of things, it is not possible to pay for some sin you’ve committed using cosmic insurance, as it were. By contrast, for the Greeks, things are different: in particular, it *is* possible to purchase a cosmic insurance policy, one in which the gods *can* pay some error by serving as the cause and as the blameworthy party, but not as the party actually to be blamed – *ethically* blamed, that is. After all, you cannot yell at the gods in the way you can yell at your spouse or your kids. And this *is* ethically significant, after all, because, to return to the case of Don Draper, on the Greek picture, Don can be pitied or held contemptible in some way, but *yelling* at him may make little sense: after all, on this picture, a god beguiled him. But it *does* make a kind of sense on the liberal modern picture – at least if you don’t think about it too much.

5.4.21 Returning to Weber, then, the difference between the ethic of principled conviction and the ethic of responsibility is found in the idea that, for the ethic of conviction, responsibility for human beings in the political has a narrower scope because it is possible to delegate, to some third-party, the responsibility for an error of some sort, since the ethic of conviction allows for things other than human agents to serve as explanations of error: recall a bit from a quote I included above, where Weber writes that “if evil consequences flow from an action done out of pure conviction, this type of person holds the world, not the doer, responsible, or the stupidity of

others, or the will of God who made them thus.”³⁹⁹ This type of delegation is not as widely available in the ethic of responsibility.

What makes this sort of delegation possible? It’s here, I think, that we will get to the root of the difference between these two ethics. At first pass, and to put the issue in rather simplistic terms, we can say that the difference has to do with the way in which each ethic understands *where* it is. Less metaphorically, we can say that the difference lies in the fact that the ethic of conviction has a greater number of possible objects of ethical judgment – including, importantly, the world itself. I want to support this picture by drawing on what I admit is a rather small bit of text, namely, Weber’s claim that “the man who espouses an ethic of conviction cannot bear the ethical irrationality of the world. He is a cosmic-ethical ‘rationalist.’”⁴⁰⁰ Now at first pass, it sounds like Weber is saying that we have a standard of (ethical) rationality that we can deploy as we see fit on whatever we please, or at least enough as we please in order for us to assess whether or not *the world* is rational or not, and that the man of principled conviction judges the world to be ethically rational, while the man of the ethic of responsibility, presumably, does not. But it isn’t clear that this is the best way to read Weber. Elizabeth Frazer writes that “Weber, as far as I know, does not make any distinction between ‘irrational’ and we might better call ‘non-rational’... Weber uses the same term to characterize failures of rationality and the irrelevance of rationality.”⁴⁰¹ If this is right, then the man of the ethic of conviction may indeed still say that the world is rational, but the man of the ethic of responsibility is *not* simply saying that the world could have been rational, but as it just so happened to turn out, it isn’t. Rather, the man of the

³⁹⁹ Weber, “The Profession and Vocation of Politics,” 360.

⁴⁰⁰ *Ibid.*, 361.

⁴⁰¹ Elizabeth Frazer, “Max Weber on Ethics and Politics,” *Politics and Ethics Review* 2, no. 1 (2006), 34.

ethic of responsibility holds that the world is not *available* as a possible object of ethical judgment in the first place.

My own suggestion is that the difference here is whether an ethic understands itself to be disenchanted. In the case of the ethic of conviction, the practical world itself has not been disenchanted because the ethic *itself* is, as it were, at least part of the enchantment, by providing for a perspective which allows us to grasp the whole of the (practical) world at once, as well as a form of value which that world can realize. Since that ethic understands itself not to be a product of things found within the world over which it has authority, then it already admits the possibility of ethically relevant things which can stand outside the world and yet, at the same time, nevertheless play a kind of role within it. The ethic, that is, prepares the way for the gods because it understands itself to be in the same sort of space as they are.⁴⁰² Further, for the ethics to do its work, it has to find the world as already having a certain sort of structure, one that makes the world itself into the sort of thing which can be an object of ethical judgment, and similarly, within the world, it also finds what it needs for it to do its work. By contrast, the ethic of responsibility is a disenchanted ethic: not only are there no gods who can take responsibility for our errors, but the ethic cannot itself enchant the world either. Such an ethic understands itself to be a product of various things within the world. It offers a form of value, politico-ethical value in this case, given that the ethic of responsibility is a kind of political ethic, to human agents, but that form of value is one among others, though of course it's an important form of value.⁴⁰³ (One wonders: "is *importance* itself just one form of value among others?") What I

⁴⁰² Strictly speaking, I am inclined to say that the ethic of conviction and the gods stand in a relation of simultaneity, but I don't think that matters for present purposes here.

⁴⁰³ I think what I write here is similar to a remark Williams makes on the ethics of conviction and responsibility in a different paper, "Human Rights and Relativism" (found in Williams, *In the Beginning was the Deed*, op. cit.):

Max Weber in *Politik als Beruf* distinguished between an ethic of responsibility and an ethic of commitment, and it was his point that the former is still very much an ethic....Franklin D. Roosevelt famous said of Somoza, the ghastly dictator of Nicaragua, "He is a Son of a Bitch, but he is our Son of a

have tried to argue in this dissertation is that, for you and me, that ethic is *morality*, and when morality understands itself to be a product of various things in the world, those within the morality system gain moral reason to reject morality itself. This is not Weber's view, and to that extent, he is more optimistic than I am: he thinks, that is, that an ethic of responsibility, as sketched here, is not only available to us as an option – whatever that is supposed to mean at the end of the day – but that it does not systematically undermine itself.

In any event, though, and to return to the main line of thought, a disenchanted ethic sees itself as something like a human cultural product, and so, unlike the ethic of conviction, does not introduce the space needed for us to delegate responsibility, etc. to agents, etc. other than us, i.e., non-human agents. These non-human agents have powers and capacities which are different from those of human beings, this being part of what makes them non-human, and in turn, the delegation of ethical authority to agents with different powers and capacities allows for the possibility of, say, being *saved* in a way that no human being could save you. This is why the ethic of conviction enables the possibility of cosmic insurance – redemption through Christ, say – whereas the ethic of responsibility only offers you State Farm.

Now, to return to Williams, the ethic of conviction is to (what he calls) political moralism (PM) as the ethic of responsibility is to political realism. PM, like the ethic of conviction, finds the political and those in it as already having exactly what it needs for its own conceptualizations, prescriptions, etc. to be appropriate. In particular, it finds the political body as already having been unified and made civil. In that sense, it takes the unity of the political body for granted, to return to my initial thought in this section, and in so doing, misunderstands said unity, because the continuing self-unification of the political body is itself an achievement

Bitch.” This can, on some occasions, be the correct attitude...the main point is that the political does not simply exclude principle; it includes it, but many other things as well (72-3).

of those within the political body. PM finds us always already standing in ethical relationships with one another, such as by saying that “a stranger is a friend you haven’t met yet.” But being able to conceptualize another as a stranger is already an achievement, an essentially interpersonal one. There are strangers, that is, who are not yet even *strangers*.

5.4.22 Part of what does the work of the continued self-unification of the political body over time is the BLD. This is the sense in which Williams’s realism is strangely Kantian. Now as I mentioned above, the violations of the BLD will not necessarily license forms of blame that take the form of proleptic or communicative blame, because such blame only gains traction on the basis of a motive which cannot be presupposed in the political. This is also why the BLD is not simply a form of instrumental normativity. The normativity of the BLD thus seems not simply to be moral normativity, nor is it instrumental normativity. If the BLD is indeed normative, then it is something distinct from these. Further, on independent grounds it is preferable to accept the existence of a distinctively political normativity because the thinness of its principles begs fewer questions.

I believe that an implication of this picture sketched out here is that any theory of a distinctively political normativity will also, necessarily, be a partisan theory. This is because we do not agree about politics either, to come finally to that worry. I want to say that political realists of the Williams stripe should accept that there is little reason to think that the principles of a distinctively political normativity are less subject to dispute than ethical principles. I think this is the appropriate result, however, and I do not think that political realists should be worried on this point. Or at least, they should not be worried insofar as they are theorizing about the political.

We can begin on this issue by returning to Leader Maynard and Worsnip's piece, where they write, in response to political realist arguments that a distinctively political normativity is needed to resolve ethical disputes, that:

Suppose the principles governing the political domain are distinctively political, rather than moral. What reason is there to think that such distinctively political principles will not also be deeply contested? And if such distinctively political principles are themselves deeply contested, why are they any better suited than moral principles to resolving disagreements? In response, the realist might reply that the relevant political principles are in some way normatively thinner, and consequently less contentious, than moral principles...however, numerous moralists also make this move.⁴⁰⁴

On the line of thought I have been developing in this chapter, political realists appeal to a distinctively political normativity in order to account for the possibility of a certain sort of social space in which deep ethical disagreements can be resolved. Such a normativity will not necessarily license any and all familiar ethical attitudes: for instance, as I discussed above, such a normativity does not necessarily license blame, even when said normativity is itself violated. Now, against that background, we can then represent Leader Maynard and Worsnip's objection above as a dilemma for the political realist. Either distinctively political principles are subject to deep disagreement or they are not. If they are, then a regress threatens; if they are not, their immunity to deep disagreement seems *ad hoc*. As such, we should reject this argument from political realists, that is, the argument from the need to resolve ethical disagreements and disputes.

With what I have developed above, I think it is possible for the political realist to offer a response. The response I want to sketch out will hold that distinctively political principles are indeed subject to disagreement, but that, at *this* level, a regress does not threaten. Something will then need to be said to explain why these principles are immune to the worry about regress,

⁴⁰⁴ Leader Maynard and Worsnip, "Is There a Distinctively Political Normativity?," 769.

since, after all, the entire point of invoking a distinctively political normativity here was to offer something to resolve ethical disputes. In other words, if we do not need some sort of further backstop in the case of distinctively political principles, why can't we say that ethical disputes never needed the political backstop to begin with?

5.4.23 First, the regress worry. If ethical disagreement is resolved by the appeal to distinctively political principles, why aren't disagreements about such distinctively political principles themselves resolved by appeal to further principles? I am inclined to think that the political realist, and in particular, realists of Williams's stripe, can, here, make use of the distinction between normative and *de facto* senses of resolution – bearing in mind the arguments I offered above, to the effect that a very strong distinction should be rejected, since a strong use of the distinction allows for the possibility of cryptonormativity, which I have argued is incoherent. What I think the political realist will say is that *here*, leaving aside the normativity of logic, etc. and focusing on forms of normativity with some level of practical content, we may no longer find the possibility of normative resolution at all, and instead, all disagreement resolution is *de facto*. Indeed, I think Williams himself *has* to say this. The BLD governs the acceptability of answers to the first political question, as I discussed above, and the first political question is identified “in Hobbesian terms as the securing of order, protection, safety, trust, and the conditions of cooperation.”⁴⁰⁵ In the space *beyond* the political, we do not find further principles: rather, we find a vacuum of principle. This is a condition of disorder, exposure, danger, mistrust, and hostility. What would people – *human* people, that is – be like in such a condition? It is plausible to say that this is a life which is solitary, poor, nasty, brutish, and short.⁴⁰⁶ What does it take to get by in such a condition? It takes, first of all, *power*: in the way that the largest, most

⁴⁰⁵ Williams, “Realism and Moralism in Political Theory,” 3.

⁴⁰⁶ Hobbes, *Leviathan*, XIII.

ferocious bear can get what it needs to survive through its ferocity, the human being also needs ferocity. But unlike the bear, we talk. So second, for us humans in such a condition, the use of language should answer solely to the demands of private prudence: that is, the effective human being can say what needs to be said to get what they want. Or, to put the current point in Hobbesian language, “force and fraud are in war the two cardinal virtues.”⁴⁰⁷ Is life in such a condition a *human* life? I suppose it depends on what we mean by *human*. It is not a condition that makes sense to me exactly; I’m not sure I can recognize myself in it – but then again, maybe I just have a limited imagination.

In any event, though, for Williams, such a life cannot be a human life if, I think, we follow him in thinking that fully developed human nature is found in conditions of culture, since in the state of profound disorder under consideration, there is no culture: he will follow Hobbes, I think, who writes that

In such a condition [i.e., of war] there is no place for industry, because the fruit thereof is uncertain, and consequently, no culture of the earth, no navigation, nor use of the commodities that may be imported by sea, no commodious building, no instruments of moving and removing such things as require much force, no knowledge of the face of the earth, no account of time, no arts, no letters, no society, and which is worst of all, continual fear and danger of violent death...⁴⁰⁸

Nowadays “industry” can be used in a wide sense to refer to any sector of the economy, and in a narrower sense, it seems like it is used to refer to those sectors which primarily produce goods (rather than services), though it can also be used to refer to the activity of hard work, as well as the quality of those who habitually perform such work, though that use seems a little dated to my ear. Hobbes clearly is not using the term this way. His use is closer to the Latin *industria*: “diligent activity directed to some purpose, application, industry, etc.,” says the *Oxford Latin*

⁴⁰⁷ Ibid.

⁴⁰⁸ Ibid.

Dictionary. Hobbes is saying that in the state of war, it is impossible to *do* anything because one's own agency is not sufficient to achieve one's ends; rather, it is, at best, individually necessary and jointly sufficient with *luck*. But the luck has to be of a special sort: after all, Hobbes is not saying that there is a problem with the state of nature because you always have to bank on not getting hit by a bolt of lightning. The problem has to do with the fact that other people have the option of interfering with me and my plans, in the way that I too have the same sort of option. So when I act, I have to plan for me to have good luck, except luck is not the sort of thing that I can bank on – that's why it's *luck*. Insofar as I can act in the usual sort of way, then, rather than in the way sketched out in which I have to bank on having good luck, I have to already be inhabiting a condition in which people cannot arbitrarily interfere with one another's plans. In the case of Hobbes, the sovereign determines what this amounts to in accordance with natural reason, and *those* principles, i.e., of natural reason, are not subject to further dispute – they are *natural*. In the case of Williams, what does the work is what *makes sense* to us, and this is determined in part by historical circumstances, which are not themselves *principles*.

So, there is no regress; but there is no regress because what is found to lie beyond the relevant principle(s) is something which seems to be lying there, unchosen and unchooseable, and moreover, doing all the work. But perhaps Nagel is right when he says that “there is nothing regrettable about finding oneself, in the last analysis, left with something which one cannot choose to accept or reject. What one is left with is probably just oneself, a core without which there could be no choice belonging to the person at all.”⁴⁰⁹ In the case of Hobbes, what is left is natural reason; in the case of Williams, what is left is history. The idea, then, is that a regress is not generated because we instead find something like what Ferraro calls the *simple constitutivist*

⁴⁰⁹ Thomas Nagel, *The Possibility of Altruism* (Princeton, NJ: Princeton University Press, 1970), 23.

move – namely, “in engaging in an enterprise E as such (i.e. as the enterprise that it is), one must respect the constitutive standards of that enterprise E ... on pain of not engaging in E as the enterprise that it is”⁴¹⁰ – as well as an appeal to what Ferraro in earlier work, mentioned earlier in this dissertation, calls *inescapability*. I will not retread that old ground, which I discussed in the second chapter. Here, at least, the idea is that the enterprise is politics, what constitutes that enterprise is that BLD, and that you cannot escape from the enterprise of politics, and so cannot escape the BLD’s normativity, because you cannot opt out of history.

Why is this story not able to be told in the case of ethics? Clearly it can be told: some have even tried to tell it, such as me in my Chapter 2 guise. But this is another point at which it is important to recall that we are focusing on Williams’s political realism, and that for those of us living, to borrow a phrase of his, “now and around here,” that ethical system is *morality*, and that the term “morality” is a thick ethical concept. So, the question should instead be more like “why can *Williams* not tell this story in the case of ethics?” The answer to that is found, I take it, in *Ethics and the Limits*, and in particular, the chapter on Kant and the final chapter in which he argues against the normativity of morality. For what it’s worth, it is unclear to me whether his complaints ultimately pan out, but for present purposes, we can leave that aside. But more broadly, this sort of story cannot be told *simply* in thinking about ethics because it is false that, merely in being human, one is thereby committed to taking some *particular* body of ethical thought to be justified. Socrates and I are both human, but there is no possibility of my recognizing ancient Athenian ethical thought as normative, and likewise, there is no possibility of his recognizing morality as normative. A necessary condition of being human – i.e., non-defectively human – is living in a culture, and bound up with living in a culture is the possession

⁴¹⁰ Luca Ferraro, “The Simple Constitutivist Move,” 3.

of the culture's various ethical concepts and so on. But this is not the same thing as saying that a necessary condition of being human is the possession of some *particular* ethical concepts, the knowledge of *particular* ethical principles, and so on. People need to possess some thicker ethical concepts to get around their social world (the world which is, at the same time, constituted by those concepts), and when their conceptual resources are lacking, it is not uncommon for people to either engineer some of their concepts – recall the discussion of conceptual engineering in this chapter, as well as in chapter three – or to invent new ones entirely, something which seems to happen in some cases of generational slang, for instance.

Now, in modern, pluralist societies, we each have an ethics, but we do not all share an ethics: conflicts are possible, and we have to tolerate one another. Further, we each have a *particular* ethics, one that deploys particular concepts, particular principles, and so on, all of which have to have a rich enough content for normal human actions, relationships, and so on to be possible. So we all possess various thick concepts in order to act, form relationships, and so on, though we do not all hold all these concepts in the same spirit. The suggestion above was that in cases of conflict which arise between different ethical understandings and disagreements about, among other things, which ways of understanding ethics are genuinely normative, we can fall back on the normativity of politics in order to resolve the relevant dispute. Now in a modern, pluralistic society of the sort under consideration, one which is open to a variety of general comprehensive doctrines (to use some Rawlsian lingo), it is not reasonable to think that the pluralism stops with ethical beliefs, if for no other reason than because there can be ethical disputes about the scope of possible ethical judgment (for instance). That is, modern, pluralistic societies need to allow for the possibility of disputes not only *within* the political, but disputes, within the political, *about* the political itself. Indeed, such disputes are common in liberal

politics, because a political issue for such politics has to do with the public/private distinction, such as where (and indeed whether) we draw it.

5.4.24 So, it seems reasonable to conclude that liberal societies need to allow for the possibility of disputes about the structure and content of liberal politics itself. Now this liberal politics is constituted by the BLD in particular cultural and historical conditions, as discussed above. But the thinness of the BLD, noted not only by me but by Williams himself, means that agents within a particular political condition need to bring to the table various thicker concepts, much as in the distinctively ethical/moral case, for concrete forms of political action, political relationships, and so on to be possible. And here we have an opening for the possibility of disagreement about political principles, including the principles of a distinctively political normativity. Now, as I argued above, it need not be the case that these disagreements are normatively resolved by appeal to some further principle; rather, at this level, disagreement resolutions are all *de facto*. At the same time, however, it is not as though I can uncouple my mind from my various thicker ethical concepts, both when I engage with others in real politics, as well as when I theorize about politics. Bracketing one's various beliefs, etc. only goes so far. And this is why, as I put it above, any theory of a distinctively political normativity in a liberal society will also be a partisan theory: anyone developing the theory will draw on their stock on thicker ethical and political concepts to do so since need this stock of concepts, in order to avoid radical practical impoverishment, and liberalism, which will typically identify the person in relatively thin terms, will then construe the use of such concepts in normative terms – that is, as a recommendation. We saw this above, in fact, when discussing Worsnip's account of cryptonormative judgments. Of course, as I argued above, it is not the case that all claims using these concepts must have the character of a recommendation – some, I argued, take the form of definitions which structure the

social world. But the fact that there is a tension here doesn't strike me as showing that my own arguments and my broader account are problematic. Rather, if anything has problems, it is us.

5.4.25 So, to sum up: in this section, I have considered one account of a distinctively political normativity, according to which it is a form of normativity appealed to in order to resolve certain ethical disputes. Leader Maynard and Worsnip argue that political realists equivocate on different senses of "resolution" when they talk about the resolution of disagreement, namely, a normative sense and a *de facto* sense. I argued that the political realist starting place, one in which those uses are unified, is better than a starting place in which those senses are, at basis, distinct, because a strong, basic distinction between these two senses of resolution enables the possibility of an incoherent form of normativity, *cryptonormativity*. I also argued that realists are not necessarily always offering what Worsnip calls *cryptonormative judgments*, judgments which are normative despite the fact that the subject offering the judgment would hold it to be descriptive, because in some cases, what is being expressed is a mere definition. To try to show that my inclusion of such definitions is not merely *ad hoc*, I discussed their role in ethical thought. I also tried to sketch out one way in which a distinctively political normativity might differ from moral normativity by drawing on some remarks by Williams and Weber, and I argued that an important difference is that a distinctively political normativity will not necessarily license attitudes which are typically acceptable in ethical contexts, the main example being blame. Lastly, I argued that the possibility of dispute about the principles of a distinctively political normativity is an acceptable result, especially in liberal societies, and further, one that seems to imply that any theory of a distinctively political normativity is a partisan theory.

All in all, then, I believe that a political realist, or at least such a realist of Williams's stripe, *can* adequately reply to the objections under consideration, offered by Leader Maynard

and Worsnip. As such, political realist arguments for a distinctively political normativity which appeal to the need to resolve ethical disputes *may* indeed succeed.

So much, then, for these topics.

5.5: The Priority of the Political

5.5.1 There is a second argument for a distinctively political normativity, offered by Williams and critiqued by Leader Maynard and Worsnip, having to do with what Leader Maynard and Worsnip call the “relative ‘priority’ of politics and morality.”⁴¹¹ It is worth considering this argument because it will provide a natural opening for the following section and my own argument against Williams’s liberal political realism, though I will be briefer than in 5.4 because I think some of the arguments there can be applied here; I will point out those places in passing.

5.5.2 Geuss puts the thought to be considered in the following way: “ethics is usually dead politics: the hand of a victor in some past conflict reaching out to try to extend its grip to the present and the future.”⁴¹² According to Geuss, politics is *prior* to ethics. In particular, it is prior, first, in *time*, and this allows us then to say that it is prior, second, in the *order of explanation*. To understand why those in a particular culture have the ethical beliefs they have, look to their past political conflicts. Of course, none of this touches the question of justification, and indeed, this sort of explanation is one which may constitute a defeater of some sort of alleged justification, something which I discussed in chapter 3.

Williams makes some similar remarks on the priority of politics in “Realism and Moralism in Political Theory.” In discussing the BLD, he writes, to repeat a quote from above, that “it may be asked whether the BLD is itself a moral principle. If it is, it does not represent a

⁴¹¹ Leader Maynard and Worsnip, “Is There a Distinctively Political Normativity?”, 781.

⁴¹² Raymond Geuss, “Moralism and Realpolitik,” in *Politics and the Imagination* (Princeton, NJ: Princeton University Press, 2010), 42.

morality which is prior to politics. It is a claim that is inherent in there being such a thing as politics: in particular, because it is inherent in their being [a first] political question.”^{413,414} The first political question, recall, is identified

...in Hobbesian terms as the securing of order, protection, safety, trust, and the conditions of cooperation. It is ‘first’ because solving it is the condition of solving, indeed posing, any others. It is not (unhappily) first in the sense that once solved, it never has to be solved again. This is particularly important because, a solution to the first question being required *all the time*, it is affected by historical circumstances; it is not a matter of arriving at a solution to the first question at the level of state-of-nature theory and then going on to the rest of the agenda.⁴¹⁵

How is the BLD “inherent” in this question? The idea, as I understand it, is that if the first political question is indeed a *question*, then there has to be something which counts as an *answer*. States which can answer the question *may* be legitimate – answering the question may not only be necessary, but sufficient for legitimacy in certain conditions – but a state which cannot answer it is a state which is illegitimate.⁴¹⁶ Now, as a simplifying assumption, assume historical conditions in which answering the first political question is not only necessary for legitimacy but also sufficient. (Hobbes, according to Williams, seems to hold such a view.) With that assumption in place, what does the state – in this case, one overseen by the Hobbesian sovereign – need to do to be legitimate? The sovereign cannot *just* use force to secure order, protecting, safety, trust, and the conditions of cooperation. The reason is that the population under its rule needs to be able to see what it is doing as something *more* than mere force. After all, illegitimate states and non-state actors can use force. So the sovereign has to be able to offer something like a justifying explanation of what they are doing. States which can solve the first political question

⁴¹³ The original reads “...it is inherent in there being first a political question.” Given that the notion of “the first political question” is a technical notion for Williams, it seems to me that the original has an error, which I have corrected.

⁴¹⁴ Williams, “Realism and Moralism in Political Theory,” 5.

⁴¹⁵ Ibid., 3. Initially it might sound like Williams and Geuss, in the quote above, are at odds, but I do not think they are, though I have to leave this aside for present purposes.

⁴¹⁶ The institution might also be sufficiently disintegrated that makes it impossible to call it a state in the first place.

are those which can use force to secure the aforementioned conditions of peace while being able to offer a justifying explanation of themselves and their activities to those over whom they claim authority. It is the BLD which provides for the standard of what sorts of justifications are appropriate. The idea, then, is that the BLD is inherent in politics because it *constitutes* politics. For Geuss, as I mentioned above, politics is prior to ethics both in time and in explanation, whereas for Williams, by contrast, the (relative) priority of the BLD consists in its *not* being a principle which is external to politics, but rather, inherent in it.

This seems to be the way Leader Maynard and Worsnip read Williams. They write that “from the premise that minimal satisfaction of the BLD is inherent in the very definition of politics and political relationships, Williams concludes that the BLD is a demand from within politics itself and thus represents a distinctively political normativity, rather than a moral requirement that can be conceived of as ‘external’ or ‘prior’ to politics.”⁴¹⁷ They go on to offer two objections: first, that this account misrepresents the extension of the term “politics” and misunderstands the activity of politics, and second, that even if we accept this account of politics, it will still not necessarily follow that the BLD is normative. We can take each objection in turn, though I will consider the second objection in greater detail.

I have already briefly discussed the first objection earlier in the chapter. According to this objection, “Williams’s premise entails a very restrictive conception of politics.”⁴¹⁸ International politics, as I mentioned above, does not seem to involve the sort of politics Williams has in mind. Political terror, according to Leader Maynard and Worsnip, is, at best, a “misnomer,” and war “is rarely if ever political” – rather, it amounts to the abandonment of politics.⁴¹⁹ I also said above

⁴¹⁷ Leader Maynard and Worsnip, “Is there a Distinctively Political Normativity?”, 782.

⁴¹⁸ Ibid.

⁴¹⁹ Ibid.

that I do not think this objection is one that Williams needs to be worrying about. Their examples are ones in which we find a normative standard being flouted in some way, as in the case of political terror, or ones in which we have a relationship between states, as in the case of war or typical international relations, and as such, ones in which we need to explain what is it for the state to be legitimate in the first place. Leader Maynard and Worsnip do go on to say that Williams owes us an account of this understanding of politics and the political: as they put it, “it is clearly and crucially a normatively ‘thick’ conception of politics, as opposed to a thinner, more inclusive one [,which] raises the question of what grounds its normative content and...whether such grounding does not require moral foundations.”⁴²⁰ This objection strikes me as having more to it. It arises, in a way, in my own arguments in chapter 2: why think that what I have provided is an argument for *morality*, rather than for something else? What I can say that is that we can take morality for granted and then try to offer an argument for its authority, again on the assumption that morality provides for the ethical life you and I have, but this move seems less available in the case of Williams’s account of politics for the reasons mentioned. But I want to leave this aside and consider their second objection, which I find more interesting.

The second objection is that Williams commits a “subtle but fatal equivocation.”⁴²¹ Williams’s idea seems to be that politics “...does not stand in need of justification by a moral rationale that is ‘external’ to politics,” because “the BLD is built into the definition of politics.”⁴²² Leader Maynard and Worsnip put the objection this way:

What is built into the definition of politics, by the light of Williams’s premise, is that the BLD must be *satisfied*: a situation will not count as political unless the BLD is (minimally) met. But there is a clear distinction between whether a putative principle has been *satisfied* and whether it has been *justified*. A putative principle is *satisfied* when its normative demands are met, that is, when it is adhered to. By contrast, it is *justified* when

⁴²⁰ Ibid., 783.

⁴²¹ Ibid.

⁴²² Ibid.

it is shown to have normative force, that is, when it is shown why it ought to be adhered to.⁴²³

The worry, as I read it, is that Williams elides the distinction between complying with a demand, on the one hand, and the justification of the demand itself. Complying with the BLD satisfies it, but whether the BLD is justified is a further issue. This distinction between satisfaction and justification is then used to offer a further objection, one that amounts to something structurally similar to the shmagency objection, discussed at length in chapter 2, with Leader Maynard and Worsnip writing that

...to build satisfaction of a constraint like the BLD into our definition of politics is simply to push the normative question back from “Why, in a given situation, should we practice politics in one way rather than another?” to “Why, in a given situation, should we practice politics, rather than something else?”...once one’s concept of politics becomes relatively thick, it can no longer just be taken as given that one must engage in such politics rather than something else, independently of any prepolitical reasons to do so.⁴²⁴

I find this line of thought interesting. Let’s explore it further.

5.5.3 So, what exactly is the objection? I said that there is a structural similarity to the shmagency objection. The shmagency objection, recall, amounts to saying that constitutivist arguments which purport to justify the normativity of morality are circular: they presuppose the justification of the normativity they seek to support. If we use Rawlsian analogies to baseball or other games to explain the idea, we can say that the constitutivist assumes that one already has a reason to be playing baseball in the first place, but such reasons are exactly what the story is supposed to justify. As I argued in chapter 2, the shmagency objection to constitutivist accounts of the authority of moral reasons, which I take to be practical reasons which, among other things, presuppose a particular form of practical identity on the part of those who have the reason, what I

⁴²³ Ibid., 783-4, my emphases.

⁴²⁴ Ibid., 784.

called moral identity, is question-begging, does not account for the inescapability of agency, and relies on an account of justification in ethics which is, in my view, unnecessarily and unreasonably ambitious, since I believe it is ethically desirable that we preserve the capacity for some reflective distance from morality as a condition of thoughtfulness, but even if that is not granted, it is nevertheless the case that the account of justification is one that is not obviously true and needs to be argued for. The point can be put differently. Vinicius Carvalho suggests (in conversation, for what it's worth, though I found it a good suggestion) that the shmagency objection can be thought of as using a kind of open question argument: if that is correct, then my own claim is that it is not always true that an open question has to be a bad thing, or more technically put, an open question need not present a rebutting defeater of a given analysis. Perhaps an open question need not even offer an undercutting defeater. What defeat amounts to depends on what successful justification looks like, and perhaps in some cases, the stakes just aren't as high as they are often made out to be – indeed, understanding them to be very high makes the whole thing out to be more important than it really is.

We can see the structural similarity between the shmagency objection and Leader Maynard and Worsnip's objection by continuing to use the above-mentioned analogy to baseball or to some other game of your choice. In the case of Leader Maynard and Worsnip's objection, the game of baseball (or whatever) is analogous to the practice of politics, and the rules of the game of baseball are analogous to the BLD, and so the objection would then be that if one is already playing the game, one must have had a reason to do so, but the story on offer is being put forward to explain such reasons. It is, of course, true that if you are playing the game, you take the rules to be normative, though as I have emphasized, it is important to see just how *little* this comes to, and there is little reason to think that everyone is going to respond to this in the same

way. That said, *that* move does not give you a reason to be playing the game in the first place. The question thus becomes “why should we play the political game at all?” So, the argument offered by Williams is not sufficient to establish that the BLD is normative. It establishes at most that it, logically, must be met, but this does not establish it is (genuinely) normative, because it does not establish that the BLD is justified. A necessary condition of playing baseball might be that you get a bat by stealing one from your next-door neighbor, for instance, and if this were so, baseball would presuppose the satisfaction of conditions which are not genuinely normative, even if someone were to use the term “normative” to refer to that condition.

5.5.4 What should we make of this? Insofar as the objection under consideration can be compared to the shmagency objection, it will be subject to the same criticisms, some of which I mentioned above. Further, some of what I wrote against Leader Maynard and Worsnip in 5.4 can be used here as well. Normativity in general cannot be a secret, and so the normativity of the BLD cannot be a secret. This lets us then explain, in at least some cases, why certain actions count as *satisfying* the BLD in the first place: because those so acting do so from a consciousness of the BLD. This does not *necessarily* require they possess a justification of the BLD – though a lot hangs on picture of justification we have in mind here – but it also does not preclude it. And if they do not possess the justification of the BLD, this is also no problem, because this is consistent with the BLD’s being *justifiable*. Perhaps in some societies, the state and those over whom it claims authority simply go on as they go on, while in others, the structure of political legitimation is itself a contentious political and philosophical issue. I do not want to rehearse those criticisms in greater detail, not only because I can leave that as an exercise for the reader, but because I think it will be more interesting if we leave them aside. After all, you might think

that those criticisms are rather general and amount to problems for everyone – everyone using shmagency objections, for instance.

What happens, then, if we try to find problems which are *not* problems for everyone? Will the objection go through? I myself find it unclear whether there is a *philosophical* objection here, or any objection at all, in fact, and instead, just the expression of a species of the genus *Weltschmerz*, what we could perhaps call *Sozialweltzschmerz*. Leader Maynard and Worsnip hold that they have shown that Williams's arguments cannot establish that the BLD is the principle of a distinctively political normativity because he can, at most, establish that it must be satisfied, but not that it is (genuinely) normative. Against this, though, I want to suggest that the political realist hold that the notions of satisfaction and justification are to be understood as already unified in the line of thought under consideration, but that the unification of satisfaction and justification is *not* to be understood as a unification which is held due to anything philosophical. Rather, this unification is effected through politics. What Leader Maynard and Worsnip point to – that the principles constitutive of politics may not understood to be justified by someone participating in that politics – is a feature of politics that not only any theory thereof, but any *practice* thereof, must accommodate, namely, that it has to make itself into everyone's only option. The point is general and does not presuppose a liberal politics, though a liberal politics will run into conditions that other forms of politics do not have to deal with.

5.5.5 By way of introducing my argument I want to first make clear what I am *not* interested in saying. I do not want to try to argue, first, that it is possible for a political agent to have interests which are best served by violating the norms established through politics, such as the law, and then second, that insofar as we do *not* find agents who find it rational to flout the law in such a way, that we should then say that the achievement is a political one. This argument does, I think,

foreshadow the sort of thing I want to say, but as it stands, it seems to me this cannot be correct. If the idea is merely that the law and politics more broadly has to have a way to deal with Humean sensible knaves, then it is not clear why I would then need to argue for the stronger conclusion, according to which, as I put it above, politics “has to make itself into everyone’s only option.” Further, it cannot be the case that I appeal to a notion of pre-political interest in the sort of way I do above, because, as I suggested above, and to make the point using the notion of an interest, the alternative to an interest formed within a political context is not a pre- or non-political interest – the same sort of thing, just raised in a different social context – but rather, the alternative must be more like the *absence* of interest. It is, in part, a social achievement to identify one’s own mental states: not merely because so-called folk psychological language, like any language, needs itself to be public to have meaning, but because social sources of confirmation and rejection need to play a special role in this sort of case, where there is nothing like a publicly observable object for us to inspect and report upon. Williams, for his part, seems to say in *Truth and Truthfulness* that the social role in this case is constitutive: there is an actual construction procedure which generates reasons to ascribe to ourselves either beliefs or desires. In the case, though, where what we find is something sufficiently unstructured and unstable that we wonder whether there is a society here at all – that is, in the case of a state of nature, the possibility of which presents us with the first political question to which the state needs to have a legitimate solution, as I explained above – then there is not the stability needed for an actual social construction procedure to function. To appeal, then, to a pre-political interest is to misrepresent things from the start. Perhaps all we find are the various instincts of the human animal. But maybe even this could be too strong – perhaps what we should instead conclude is that within the state of nature, it is not possible to *articulate* one’s interests because there is not

the stability necessary for conceptions of the good to take hold – but for present purposes I do not think this will matter, and we can leave it aside.

In the Hobbesian state of nature or in a condition which presents or constitutes the first political question, perhaps it is unclear whether there are interests, for the reasons I mentioned above. But what has to be granted is that the state of nature is a condition in which there are, first, human beings, and second, that human beings have a *capacity* to form interests, from which it follows that in the state of nature, there is, at least, the capacity to form interests, even if we do not happen to find particular interests within it, as well as interests as a type of psychological state more broadly, for reasons already mentioned. (“Interests” is something of a placeholder: the point can be made in terms of desire, for instance.) Of course, if the above remarks are correct, then the capacity is denied some of the eliciting conditions it needs in order for it to be realized in activity: in particular, the capacity needs a stable social order in order for mechanisms of social confirmation and disconfirmation/rejection to function, per further remarks above, and so in a certain sense, the capacity to form interests, within the state of nature, is akin to a person’s capacity for inference while they are in a coma. Given that it does not seem generally to be true that you *choose* your interests, we can then also say that it has to be granted that, in the state of nature, there are human beings, and that human beings are creatures which are *susceptible* to the formation and development of interests, and where this formation and development is at most *effected* by choice but is otherwise not to be understood as a particular use of the capacity for choice.

Now, these are *rational* capacities. That is, they are capacities of reason, and they are governed by norms of rationality, and it seems to me plausible, in *this* case, to say that those capacities are constituted by those norms which are internal to their (i.e., the capacities’) own

functions. What is the relationship between such capacities and the creature which realizes them? I do not want to insist on a naturalistic reduction of reason itself at this point and hold that it *just* is, in its first instance, a natural capacity – a capacity of a particular organism, say, or a particular type of organism –, because such a reduction would be controversial, and moreover, given the sort of argument I am trying to develop, would then rest the argument – which, recall, is about politics generally, not merely modern politics – on very controversial ground. So assume that these capacities are not to be understood, in their first instance, as natural capacities. This is not to say they are *supernatural*, but merely to identify them as *non-natural*. Insofar as these capacities, then, are understood to be non-natural, there is, in turn, less space to say that a particular human being has these capacities to a *more fully realized extent* than some other human being, or that a particular human being’s rational capacities are *internally defective*, or something like that. But these capacities can be realized in activity which fails to achieve its end. Put differently, error is possible. On the line developed so far, how should we understand error? A nice Kantian answer is that “error is effected only through the unnoticed influence of sensibility on understanding, through which it happens that the subjective grounds of the judgment join with the objective ones, and make the latter deviate from their destination...”⁴²⁵ Something is needed to explain how the activities of reason can fail to deliver knowledge, and what Kant invokes is, in a broad sense, human psychology.

Now human psychology *does* admit of quite a bit of variation. You are not guilty of irrationality if you are someone who does not experience pleasure as much as others: the anhedonic person isn’t making faulty inferences, say, or holding a belief on the grounds of what is actually terrible evidence. Further, acceptance of the existence of psychological variation is

⁴²⁵ KrV A294/B350.

not something which seems altogether controversial, and for that matter, altogether interesting, at least at first pass. But what happens at, say, the second pass? We could say that human beings might psychologically differ in ways that directly bear on the activities of their various rational capacities, such as the capacity to form and act upon interests, because, while human psychology in *general* is what explains the susceptibility of human rational capacities to error, those errors can appear in a variety of particular ways because human psychology can take a variety of particular forms. To put it differently, we can differ in the extent to which our own psychologies *inhibit* the proper function of our own rational capacities. Similarly, we can differ in the extent to which our own psychology offers *favorable* conditions for the realization of our various capacities, either in relative or in absolute terms. Some human beings may, as it were *simply*, be *better* at acting, such as by being good at following rules, while others may be worse because their own psychology inhibits the proper functioning of their own rational capacities. In some cases, the inhibition seems to be causal: one's own psychology is constituted in such a way that it continually offers up influences which lead to error. In other cases, though, the connection of the psychological condition with one's own rational capacities seems much closer: perhaps this is what we find in cases of executive dysfunction, for instance, where we seem to be dealing with psychological disorders which are so intimately tied up with practical cognitive capacities that an account of executive dysfunction either must mention those capacities or else offer an account which, even if true, sounds like it's changing the question, like any reductive account does.

This is all well and good, but so what? Human psychological variation is not always interesting. But it seems important from the practical point of view. In particular, it seems clear that human psychology is interesting and important from the point of view of ethics. What about

from the point of view of politics? It seems to me that psychology is just as important here. To show this, we can proceed by cases.

We can begin with the state of nature, on the assumption that we leave for another day various complications stemming from some of the positions I have been discussing here, such as Williams's liberal political realism, which takes a state of nature to be a condition evacuated of politics, or Hobbes's absolutism, which, as I suggested above, takes the state of nature to be a condition which is contradictory as a human social nature, or better yet, as a human social world. Is human psychology relevant in such a condition? Clearly the answer is "yes." It is very relevant in Hobbes' state of nature, which he understands, correctly in my view, to be a *state of war*, for reasons I will not rehearse. As I mentioned above, he holds that the two virtues of such a condition are *force* and *fraud*. In the former case, it is plausible to think that the *reputation* of force is an important part of having the virtue of force, for instance, and thinking about your own reputation requires thinking about other people's psychologies, in the sense that you might reasonably think about how you would look from the point of view of someone who does not have access to your own inner monologue(s), your own motives, your own beliefs, and so on. In the latter case, namely that of the virtue of fraud, which I said consists in the use of speech and language more broadly in such a way as to achieve one's narrow self-interest, it is also plausible to say that the psychologies of others are relevant, because achieving what is in your narrow self-interest requires you to produce speech which will have the effect you want it to have, and where those effects can, plausibly, be understood to make use of the target's psychology. To persuade someone to adopt some end, for instance, you need to know what they already care about, as well as the way in which they typically deliberate. So at least in the Hobbesian state of nature, it seems like, from the point of view of any particular human agent

within the state of nature, the psychology of any other human being is such that it is at least *possible* for it to be politically relevant. (Their psychology would become actually relevant, or such that it *ought* to be taken to be relevant, upon further specification of the agent's ends, which need not imply an irreducible pluralism of some sort, since this specification is at the same time, consistent with the idea that all human agents in such a condition share ends in some sense or another, for instance by showing that any particular human agent has an interest in his own good, narrowly construed.) I think that a similar result will follow when we consider other conceptions of the pre-political – in the case of Locke, for example, we could say that even if Lockean consent is understood to be a kind of *rational* power, it is still a power to which each of us bears a psychological relation – but I will not belabor the point unnecessarily and instead trust that each reader, here as elsewhere in this dissertation, “will add his own egg.”⁴²⁶

What about within a civil condition? Here, there are two cases to be considered: first, one with an illiberal or non-liberal politics, and second, one with a liberal politics. There are several difficulties here: your conception of a civil condition informs your conception of the state of nature, for instance. Those difficulties grow when we focus on what happens within that civil condition. Williams seems to regard liberalism as something of a historical accident, for instance, a point I discussed above, whereas Charles Larmore argues for a form of political moralism, *political liberalism*, and understands liberalism to be something like a *response* to the illiberal or non-liberal politics of the past.⁴²⁷ I am skeptical we are going to find Some One Thing which can do the work of distinguishing, with neither remainder nor controversy, all forms of illiberal or non-liberal politics, on the one hand, from liberal politics on the other. But the argument can be

⁴²⁶ Bernard Williams, “Reply to Simon Blackburn,” *Philosophical Books* 27, no. 4 (1986), 203.

⁴²⁷ See Charles Larmore, “Political Liberalism: Its Motivations and Goals,” in *Oxford Studies in Political Philosophy* 1, ed. David Sobel, Peter Vallentyne, and Steven Wall (2015), esp. 63-68.

made regardless. In the case of Athens, a non-liberal society, coercion through punishment takes on a somewhat different significance than in modern liberal societies, according to Myles Burnyeat, who argues that political structures can inform the emotional structures of those who live within said structures.⁴²⁸ The ancients take it to be clear that anger is (something like) the felt *desire for revenge*, but given that the ancients do not have a particularly strong distinction between the public and the private, it is just as plausible to say that anger is, rather than the desire for *revenge*, the (felt) desire for *punishment*. And when you are an Athenian, the susceptibility of others (and yourself, for that matter) to anger then becomes *very* politically relevant. Athenian hot-headedness, for instance, is what explains why the Athenians “[decided] on a savage and extreme resolution to destroy a whole city [i.e., Mytilene] rather than the guilty ones,” with Thucydides writing that, in the aftermath of the Mytilenian revolt,

...in a rage they voted to put to death not only the men [responsible for the revolt] but also all Mytilenean adult males and to enslave the children and women, condemning the revolt both on general grounds and because they had acted without being subjects like the others, and it contributed most heavily to their rage that the Peloponnesian ships had dared to venture into Ionia to support them; it looked as though they had not revolted without long deliberation.⁴²⁹

And the day after, he writes, “they experienced immediate remorse and reconsideration”. This sort of pattern is, of course, clearly relatable: this is what you do when you get hung up on some slight (real or imagined), furiously send a stupid email or text message, and only after having acted on your anger do you see that doing so was not, or at least not obviously, the way to handle the situation, forcing you to deliberate again upon the subject. Clearly it matters, politically, whether others or yourself are hot-headed in this sort of way. In brief, then, the idea is that ancient revenge/punishment is a politically relevant act; anger is the felt desire for such an act; so

⁴²⁸ Myles Burnyeat, “Anger and Revenge.”

⁴²⁹ Thuc. 3.36, trans. Lattimore.

anger is a politically relevant emotion; but anger is also a psychological state; so anger is a politically relevant psychological state. This is, of course, just one example, but at the same time, I think it shows that the thesis under consideration here is not entirely unreasonable.

So far, then, I've argued that human psychology is relevant both in the state of nature and in a civil condition with illiberal/non-liberal politics. The same sort of argument holds for at least some cases of anger in a liberal society, because even if Burnyeat is right that our politics offers us a form of anger – non-retributive anger – that the ancients did not really have available, it does not follow that *all* instances of anger are non-retributive. Some *clearly* are retributive, and in such cases, the above argument holds.

5.5.6 What, though, does any of this have to do with Leader Maynard and Worsnip's objection? Their objection, recall, is that even if political realists have shown that the BLD offers a distinctively political normativity, it does not follow that they have *justified* this form of normativity. All they have shown is that the BLD must be *satisfied* – one must play by its rules – but not that it is *justified* – that it has “normative force,” as they put it in the material I quoted above. “The normative question,” they write, is pushed “...back from ‘Why, in a given situation, should we practice politics in one way or another?’ to ‘Why, in a given situation, should we practice politics, rather than something else?’”⁴³⁰ In turn, “it can no longer just be taken as given that one must engage in such politics rather than something else, independently of any prepolitical reasons to do so.”⁴³¹

As in the case of their other objection I have considered and rejected in this chapter, here too I want to argue that this objection relies on assumptions which we should reject. If the objection under consideration is analogous to the shmagency objection to constitutivism about

⁴³⁰ Leader Maynard and Worsnip, “Is There a Distinctively Political Normativity?,” 784.

⁴³¹ Ibid.

reasons for action, then perhaps that debate presents us with some possible avenues of response. Ultimately, then, I want to defend something *somewhat* analogous to Ferrero's response to the shmagency objection to the effect that agency is *inescapable*. In particular, I want to defend the idea, as I put it above, that any political system has to make itself into everyone's only option.

First, though, we should return to the objection under consideration. Here too, it is significant that Leader Maynard and Worsnip put their objection, first, in terms of what some amorphous, indeterminate "we" should do, and later, in terms of some unspecified "one." It is never specified who or what "we" are. It is not even clear whether it is being used as a first-personal pronoun. It strikes me as totally obvious, for instance, that when the department head says, "we should do X," they are politely saying "*you* should do X." Similarly, it is entirely unclear who or what "one" is. If I had to make a bet, I would say that I suspect this sort of "we" is one that everyone is always already a member of: it is the community of all human beings, or maybe all agents, or maybe or discursive reasoners, or something else to that effect. At the same time, though, it can't *just* be the community of, say, all discursive reasoners, because the relevant "we" needs to be able to appreciate the terms of the debate being had in the first place. Not the *words*, that is – rather, "we" needs to be able to appreciate the *concepts*. So Leader Maynard and Worsnip then have to hold that the terms of the debate are not such that we acquire them empirically, because that introduces contingency in the acquisition of those concepts, and in turn, the worry that "we" not only doesn't have the extension they think it has, but that they end up speaking on the behalf of others. Do all discursive reasoners have the concept *politics* a priori? Further, do they have the *same* concept *politics* that we (i.e., us modern liberals) have? God's angels are discursive reasoners, but they do not have the concept *politics*. There are no group decisions for God's angels: those decisions have already been made. Leader Maynard and

Worsnip cannot identify who “we” are except in the thinnest terms, and yet their own objection does commit them to thinking that the extension of the term “we” is actually much smaller than they think it is.

A response to the above objection I have offered is that I am simply misconstruing Leader Maynard and Worsnip here. “We” means “any particular I”, and since any particular “I” can reason in the way they have laid out, “we” can. But the issue is that it is simply false that any particular “I” can reason in the way they have laid out, and not simply because I might make a mistake. For me, the question simply never falls back in the first place; that is, I do not see myself as having any alternative to politics. And here too, it is telling that Leader Maynard and Worsnip pick out an alternative to politics by using “some”: they say the question about how to conduct ourselves in politics is pushed back to the question “why practice politics rather than something else?” But if there is to be a real contrast made here, there has to be some already existing, particular activity, it then being referred to with the existentially quantified “something”. Further, if there is some particular activity here, then there is an agent who performs it. But it is simply false that, for any particular agent, the agent *has* an already existing, particular activity which can serve as an alternative to politics. There is no real sense in which I can revolt against America’s government, for instance, and while revolt is indeed a human possibility, it is false that any human possibility is also a possibility for *me*.

I do not think what I have said so far is an idle complaint on my part. There are a lot of things you might want to do when you talk ethics or politics, as well as ethical or political philosophy, but one is to offer an explanation. Now it has been argued by Kenneth Walden that explanation in general is “not a two-place relation between a theory and a fact, but a three-place

relation between a theory, a fact, and a contrast space.”⁴³² In turn, *ethical* explanation is a three-place relation between a theory, a fact, and a contrast space. What is a “contrast space”? This is easily seen by considering an example. Suppose I ask you “why did you play tennis on Sunday morning?” Absent further context, there is a sense in which it is unclear to you how you should answer, and so you might ask me “well, as opposed to what?” What you need is a contrast space: you need to know what an appropriate answer is *not*. If I answer “instead of playing on Monday,” you know to give one sort of answer; if I say “instead of going to church,” you know that a different sort of answer is what I’m looking for.

The application of this line of thought to the objections of Leader Maynard and Worsnip is clear. They need an alternative to politics – they need something with which a contrast to politics can be established. Yet they want to make an objection which is not simply local – an objection addressed to all and only English speakers with a PhD in philosophy writing in *Ethics* in 2017, say. They want to offer an objection which can be appreciated by everyone. So the objection cannot presuppose any local, thick content. At the same time, they need something to stand in contrast with politics, and evacuating the philosophical space of more local, thicker content means they can only identify an alternative as “something else.” But then the issue is, again, whether there *is* an alternative. I do not see myself as having any such alternative – there is no “something else” which I can do instead of politics. Further, it isn’t the case that all of these other things are identical to one another: we know this because the early moderns offer differing conceptions of the state of nature. Without providing a conception of the state of nature the term “state of nature” is empty, and there is in turn nothing with which you can contrast the political. So to put the point I want to make against Leader Maynard and Worsnip in rather oblique terms,

⁴³² Kenneth Walden, “The Relativity of Ethical Explanation,” in *Oxford Studies in Normative Ethics* 6, ed. Mark Timmons (New York: Oxford University Press, 2016), 191.

I would say that their objection cannot explain itself to you; it both needs and cannot provide the resources it needs to make itself convincing.

Suppose, then, that we leave aside the pretensions of a “we” that is all agents, all discursive reasoners, or whatever, and instead talk about something more local – what then? First, we should then say that the political realist is addressing particular modern, Western people: in their academic work, the political realist is addressing other philosophers, political scientists, and students, but there is no reason why the political realist cannot also be addressing other people who just so happen not to be in the room, as it were. That is, the political realist has a conception of what sort of person is able to be addressed, and it is at *that* person that they speak. Now, these people being addressed have the same rational capacities, and indeed that is what explains why they are persons. But they have varied psychologies, and more broadly differ in what they can do. They differ in a way which is very chic: in *power*. Do *some* of these human beings have an alternative to politics? It seems to me that this is an *open question*, or, put differently, that the answer is “possibly, yes.” Some might have an alternative and *know* they have one, in which case they have a *determinate* alternative: they *know*, that is, that they can join the Red Army and revolt, rather than knowing that they have “something other than this,” or they *know* that they don’t have to play by the rules because they can just write a check. Such people have a motive, desire, belief, etc. *from which* they can deliberate. Others might have an *indeterminate* alternative. In these cases, people have alternatives which can be *reached* through deliberation. In some cases this might take the form of specificationist reasoning of the sort I discussed above, but in others, the picture may look different. Suppose, though, that you are addressing a person with a determinate alternative. What do you say to such a person to get them to play the political game? This too, I take it, is an *open question*. We’ll return to this below in a

little more detail, but suffice to say, whatever you say to such a person cannot, given everything under consideration, take the form of a *pre-political reason*.

5.5.7 So far, then, the idea is that when we think about the different sorts of people the political realist might be interested in addressing, there is nothing in what they say that can preclude the possibility of a person having an alternative to politics, whether determinately or not, and for the person with an alternative to politics, it then seems like they need some sort of consideration which speaks *against* this alternative. The idea, in other words, is that the distinction Leader Maynard and Worsnip draw between satisfaction and justification – or at least a distinction *like* it – will only get off the ground if the unity of these notions in political realist arguments can be contrasted with an alternative, a necessary feature of which is the presence of an activity in which these concepts can be pulled *apart*. But there are, or at the very least there *could* be, human beings for whom there are alternatives to (liberal) politics. Now, is this a problem for the political realist? It seems to me that, strictly speaking, we should say “it depends,” which, as Wittgenstein notes, is a rejection of the question.⁴³³ If there is a problem, it is a problem for the political realist in a particular respect. So, is the problem here a *philosophical* problem, one that shows that the story on offer cannot do what the realist wants it to do? I myself find it clear that the answer to this is “No.” Amoralists might – *might* – be a problem for morality, along with certain accounts thereof, because the moral law is supposed to be one that doesn’t need enforcement from anything beyond the self, but this is not the case with positive law in a political body, nor in politics more broadly, where someone can be coerced if they do not obey. The possibility of an *apolitical* human being simply shows that coercion itself has limits, and in turn, if a human being were to find themselves immune to coercion in some way, there is now a

⁴³³ PI 47.

question about how to *open* them up to coercion again. To put the point in terms of an example, if Gregor Samsa woke from a night of fitful dreams to find himself transformed into the Cloverfield monster, we would not have a problem of our reasons no longer being sufficient for the work they need to do. The problem is that coercion *itself* – not *descriptions* of coercion, nor *descriptions* of what coercion is to effect – has found a rather challenging target. But the fact that our abilities to coerce run into a difficult target does *not* mean that what we say to one another has to be found insufficient by those of us still talking. Suppose, then, that Gregor Samsa is transformed into something more powerful, yet still human – an American trillionaire, say. In this case, we can still talk to him. Do we need to appeal to a *pre-political reason* he has, a reason prior to the political and one which gives him a reason to participate in politics? On Williams’s liberal realism, the answer will have to be “No,” as I mentioned above. What we *could* do, in some cases, is regard this sort of person as something like a criminal, but at a deeper level. Perhaps with such a person, the only thing to do is to point out that life in politics has offered him goods to which he owes *everything*, and then “he is now reminded of *what these goods are worth*.”⁴³⁴ This person is reminded of the value of those goods by being forced to recall what it is like *not* to have them. They are reminded, that is, of what it is to which those goods are opposed – to which they stand in contrast.

I want to say, then, that the type of problem that presents itself *here* is a *political* problem, not a philosophical one. It is a political problem because such a person, in having an alternative to politics, is also able to undermine politics as a whole practice. The problem, further, is not a problem for specifically liberal politics; rather, it is a problem for politics as such. Any political structure which applies to a set of human beings has to reckon with the fact

⁴³⁴ GM II.9.

that human beings have different natural abilities, and that this enables the possibility of a human being which is sufficiently capable as to be able to stand outside of the political. In being able to stand outside of the political, it is not *simply* as though we relate to them as though we are in the state of nature. Rather, such a person is *parasitic* on the political.

How, then, is this to be solved? Perhaps we can use what Korsgaard identifies as “one of the best rules of philosophical methodology: that a clear statement of the problem is also a statement of the solution.”⁴³⁵ Leader Maynard and Worsnip seem to be suggesting that there is a problem here in need of a solution, or better yet, a question in need of an answer, where that answer takes the form of a reason. I have suggested that no such reason is forthcoming in the sort of case that generates the problem. But Korsgaard’s rule can still be applied, albeit in a different direction. If the problem is that it is a human possibility for a person to fail to find it compelling to participate in politics because they have available to them real alternatives thereto, which provides the sort of contrast needed for explanation but which at the same time seems to undermine justification, then the solution is to ensure people *don’t* have such alternatives. To put it differently, if the problem here really is that there is an open question, then one possible solution is to offer an answer, but I have suggested that this is not going to pan out. But there is still a way to deal with the question, namely, *by preventing people from asking it*. To do this is to make politics into someone’s only option, as I put it above – and of course, when Φ is your only option, *it isn’t an option at all*, and it is not *chosen* at all, and certainly not chosen for a *reason*. All I’m left with at this point is *what I know about myself*, and while other human beings may have alternatives, such that the possibility of a human being with alternatives to politics is not inconsistent, it *is* inconsistent, in my own case, with the way in which I understand myself.

⁴³⁵ SN 2.1.1.

Further, there is no reason to assume that I will also find the way I understand myself to be *agreeable* to me. So the fact that I understand myself in such-and-such a way does not imply that I also take this to be a *happy* truth, one which is conducive to, or a constituent of, my well-being.

In any event, and to return to the main line of discussion, the elimination of the questioning is done, as I mentioned above, by making politics into someone's only option. This is effected in a variety of ways because there are a variety of ways in which one could have the ability to form alternatives to politics, and so I see hope for an insightful, general account to be given here, though some examples can still be offered. The clearest cases in which someone has an alternative to politics are those in which they have sufficiently powerful means to rival those of the state to which they are subject. In some cases this involves private possession of means by which coercion is effected, such as arms, and in others, what is possessed is not arms but the means by which arms could be acquired, such as money. In these cases, the state needs to maintain its monopoly on legitimate, overwhelming coercion by preventing those under its authority from acquiring anything that could challenge such a monopoly. Private citizens, that is, need to be kept in a state of comparative *powerlessness*.

But to return to the main line of thought, buying enormous quantities of arms to establish a private army, say, is something which is done *for reasons*, by a creature which, unsurprisingly, has a capacity to act for reasons, to deliberate thereupon, and so on, which presents another aspect to the issue of making politics into someone's only option, namely, a *psychological aspect*, a thought that aligns with my remarks above. Here too, there is no general, substantive theory to be offered, though as above, some examples can be offered. The legal maxim *ignorantia juris non excusat* – “ignorance of the law is no excuse” – strikes me as best interpreted as saying that ignorance of the law cannot function as an excusing condition because ignorance of the law

is *not possible*: the law has always already been *addressed* to the legal subject, and in other cases, the law is such as to *constitute* the legal subject herself. This is all well and good if we are simply talking about things at the conceptual level, but for the maxim to function in cases with *particular* legal subjects, more then needs to be said, because we then have to account for successful address. For the state to address the subject, the subject must be addressable, and for her to be such that she can be addressed, she needs to possess the relevant concepts contained within the relevant laws in the first place, and with the possession of any one of these concepts, she needs to have knowledge of the conditions of their appropriate use, along with knowledge of their relationships with *other* concepts, and so too those other concepts. All of this is rational, and it is also realized in a being with a psychology, and so the psychology of the subject is politically relevant for the maxim mentioned above to function. But the authority of the state requires that it is the state itself which determines the conditions of successful address, from which it follows that it is also the state which determines the conditions of adequate addressability. The state must see to it that those of whom it claims authority have some basic level of enculturation.

5.5.8 In general, it seems that the state must see to it that those over whom it claims authority *need* precisely what it is offering. In the first case I mentioned above, for instance, the people need the state *precisely* because they are powerless relative to it, and thus also powerless relative to *other* states. In this case, the people need the state's protection. A similar line of thought can be developed in the second case.

At that point, then, the question "how are we to go about politics?" can never be pushed back to the question "why engage in politics at all?" in the first place, and in turn, we cannot then draw the hard distinction that Leader Maynard and Worsnip need in order to motivate their

objection, according to which the political realist equivocates on *satisfaction* and *justification*. This distinction presupposes the possibility of standing outside the political and assessing it, and judging of it that it is constituted by principles which are *really* normative by reference to some further standard. It *is* a human possibility to stand outside of the political, one that is a political problem rather than a philosophical one, and is repeatedly seen to in order to ensure it does not arise. In turn, the political realist argument to the effect that the BLD does not represent a form of moral normativity because it does not represent a form of normativity which is prior to politics at all, since it is instead constitutive of politics, *may* have something to it.

So much for these topics.

5.6: The Sources of Distinctively Political Normativity

5.6.1 Even if it is true that the BLD does not represent a morality or an ethics which is prior to politics, it would still seem to be good if we could say more about it. Perhaps we must already understand it to be normative insofar as we engage in politics, and we do indeed engage in politics. So perhaps, then, we do not need to look around for something like a new *reason* or *justification*. But it would be good if we could say a little more by way of *explanation*. Leader Maynard and Worsnip's question, "why engage in politics at all?" can still be asked with a view to explanation, rather than justification. We can, that is, try to determine the *sources of distinctively political normativity*.

This is particularly important because there is little agreement in the literature on the nature of this normativity. Eva Erman and Niklas Möller, for instance, in a *Philosophy Compass* article on the topic, write that a distinctively political normativity, if not an instance of moral normativity or a form of normativity otherwise parasitic on the moral, is understood to be either a form of instrumental normativity, epistemic normativity, or identified by means of what they

call the “conceptual approach”, which attempts to show that a distinctively political normativity is inherent in the concept of politics as such.⁴³⁶ The moral view is out; are any of the others in? The epistemic approach, the focus of what is called *radical realism*, takes distinctively political normativity to consist in ideology critique, with this being at least *a*, and perhaps even *the*, task of political theory. I am unsure what to make of this proposal. I take distinctively political normativity to be a sort of *practical* normativity, and it seems to me that ideology critique is not sufficiently practical for to count as such a normativity, and so I will simply pass by this approach. What about the instrumental approach? Erman and Möller think this is an approach which can succeed, albeit with costs which are sufficiently high that no one is, in fact, willing to pay them. I am more skeptical than they are. The idea seems to be that we identify certain goods, such as those mentioned by Williams in his statement of the first political question – order, protection, trust, security, conditions of cooperation – as *ends*, and then saying that because some action is a means to those ends, we thus have reason to perform the action, and in particular, a *political* reason. As mentioned above, I am skeptical this will pan out. A lot of work is being done by the identification of these goods as of a certain type. By itself, this would be too weak, because goods could plausibly be of several types. Trust is a political good, but it is also a moral good, a social good, an interpersonal good, on and on. So the idea has to be that we can identify certain goods as being *essentially* of a certain type. Does this help? It seems like there is a working assumption here to the effect that possession of reasons to perform an action which would achieve some good(s) of type X implies that there are type X reasons and a type X normativity. This *could* be right if, rather than talking about “reasons” and “normativity,” we were instead talking about something like an Aristotelian *technē*: it seems to me to be neither

⁴³⁶ Eva Erman and Niklas Möller, “Distinctively Political Normativity in Political Theory,” *Philosophy Compass* 17 no. 6 (2022).

inappropriate nor weird to say that having a reason to produce a baked good implies that the agent with the reason has (or is on the way to having) craft knowledge about baking, and that having a reason to construct a house in such-and-such a way – good enough or otherwise, to recall some remarks I offered in chapter 2 – implies that the agent has knowledge of carpentry. But it seems to me that the alleged “attraction” in using the terms “normativity” and “reason” here is that they do not already commit those using them to substantive, controversial doctrines with regard to, say, the ontology and epistemology of this normativity. (I am skeptical any of this could pan out.) But insofar as we want to use those terms, it *does*, to my ear, sound very odd to say that there is a baking normativity, a carpentry normativity, and so on. There is, additionally, a second objection you could make to the instrumental approach. The instrumental approach requires the identification of certain goods as being, not only *essentially* political goods, but ends, which are then said to stand in contrast with moral ends. This picture of things gives rise to what Korsgaard calls a *substantive* account of morality in *Self-Constitution*. A substantive conception may indeed be correct, but it *does* rule out a *formal* conception, according to which morality is identified not in terms of its content, but in terms of terms of *something* like a rational process of dealing with goods of whatever sort.⁴³⁷ In turn, this rules out the Kantian account of morality, and while the Kantian account should indeed be ruled out, it should *not* be ruled out in this sort of cheap, terminological way. The instrumental account, in other words, only gets going if you presuppose the Kantian account is false – and it may indeed be false, but that has to be earned.

I want to try to offer a non-instrumental, non-moral, practical account of a distinctively political normativity. Or, rather, I want to at least gesture in the direction of such an account. The

⁴³⁷ See *Self-Constitution*, ch. 3.

issue hangs on whether we can find the *sources* of such a normativity. There will be problems if we say that such a normativity has, as its source, something like a *need* of the reflective human animal to act for reasons in certain historical conditions,⁴³⁸ since this grounds the (pseudo-) normativity of morality, or in something like the desire for certain political goods as ends, this then generating the instrumental account of a distinctively political normativity which I criticized above. But further, the account should not, I think, try to identify the source of a distinctively political normativity in terms of any need *at all*, or *any* desire, or anything like an *attitude* more broadly. Above I discussed the way that a political community makes itself into everyone's only option, and I said that one such way is to keep particular human agents in a state of comparative powerlessness with respect to itself. A distinctively political normativity cannot have its origin in certain ends or in certain attitudes towards ends; rather, I take the result above to suggest that such a normativity is occasioned not so much by ends as much as it is by, to put the thought rather clumsily at a first pass, *anti-ends*. In the end I will suggest that this normativity derives its authority from the susceptibility to what I will call *primary bads*. The liberalism of fear, as I mentioned at the outset of the chapter, begins not with an account of some good to be pursued or respected – human flourishing, rights, etc. – but rather with an account of the bad, and I take my suggested account to build upon this aspect of the liberalism of fear.

5.6.2 Political realism owes a great deal to Williams, but Williams seems to think he owes a great deal to Judith Shklar, and I think her views will turn out to be worth considering here. I take her paper “The Liberalism of Fear” to be something of a programmatic piece, offering a broad conception of the liberalism of fear by comparing it, in broad strokes, with other conceptions of liberalism. Why focus on her, when this chapter has primarily focused on

⁴³⁸ SN 3.4.7.

Williams' liberal realism? Williams comments favorably on Shklar at several points in his political writings, and my suggestion will be that, in unpacking Shklar's paper, we will simultaneously unpack several sets of materials we can draw on to offer an account of a distinctively political normativity as Williams appeals to it.

The liberalism of fear stands opposed to understandings of liberalism which "offer a *summum bonum* toward which all political agents should strive."⁴³⁹ I myself read this remark, along with others in the paper, as having a certain amount of sarcastic embellishment, and that her *actual* idea here is that the liberalism of fear is opposed to understandings of liberalism which are not only comprehensive, but include among their controversial comprehensive doctrines an account of the *good*, of *well-being*, or something to that effect. Shklar herself does seem to be using the distinction between *political* and *comprehensive liberalism* in the paper: indeed, in the very first paragraph, she writes that "...we might begin by insisting that liberalism refers to a political doctrine, not a philosophy of life such as has traditionally been provided by various forms of revealed religion and other comprehensive *Weltanschauungen*."⁴⁴⁰ We can take each point of opposition in turn.

So, first – the liberalism of fear is opposed to comprehensive understandings of liberalism. Shklar's examples include what she calls the "liberalism of natural rights, which looks to the constant fulfillment of an ideal pre-established normative order, be it nature's or God's, whose principles have to be realized in the lives of individual citizens through public guarantees."⁴⁴¹ Again, I think we find here some sarcastic embellishment, and that the actual idea is something like the picture offered when we discussed Williams's account of political

⁴³⁹ Judith Shklar, "The Liberalism of Fear," in *Political Thought and Political Thinkers*, ed. Stanley Hoffmann (Chicago: The University of Chicago Press, 1998), 10.

⁴⁴⁰ *Ibid.*, 3.

⁴⁴¹ *Ibid.*, 8.

moralism: there are reasons, obligations, duties, etc., with a certain liberal content, which are then to be realized through socio-political mechanisms. This, in at least some cases, will align with Nussbaum's account of comprehensive liberalism: on her view, these are "liberalism that base political principles on some comprehensive doctrine about human life that covers not only the political domain but also the domain of human conduct generally."⁴⁴² Her use of the term "comprehensive" seems to align with that of Rawls, who writes that he thinks

...of a moral conception as general when it applies to a wide range of subjects of appraisal (in the limit of all subjects universally), and as comprehensive when it includes conceptions of what is of value in human life, ideals of personal virtue and character, and the like, that are to inform much of our conduct (in the limit of our life as a whole).⁴⁴³

Such doctrines are, moreover, controversial, despite – or perhaps because of – their ultimately liberal content and implication, because they are the objects of reasonable disagreement. The idea is not simply that we just so happen to disagree, that is, that our disagreement is widespread but ultimately purely contingent. If this were the case, then in principle, we could resolve the disagreement permanently, and in our favor, simply by wiping out the other side. But the issue is not as easy as that. According to Charles Larmore at least, "reasonable people, by their very exercise of reason, tend to disagree about these matters."⁴⁴⁴ The thought isn't that reason *itself* provides the entire explanation of the tendency to reasonably disagree, as though inference is an activity which by its very nature generates new thoughts which do not necessarily *logically* follow from their premises. Rather, what explains the tendency to disagree is *human finitude*, with Larmore writing that

⁴⁴² Martha Nussbaum, "Perfectionist Liberalism and Political Liberalism," *Philosophy and Public Affairs* 39, no. 1 (2011), 5.

⁴⁴³ John Rawls, "The Idea of an Overlapping Consensus," in *Collected Papers*, ed. Samuel Freeman (Cambridge, MA: Harvard University Press, 1999), 424.

⁴⁴⁴ Charles Larmore, "Political Liberalism: Its Motivations and Goals," *Oxford Studies in Political Philosophy* 1, ed. David Sobel, Peter Vallentyne, and Steven Wall (New York: Oxford University Press, 2015), 64.

...reasonable disagreement can be seen as likely and as likely to endure when the subject of discussion, in whatever domain, is of sufficient complexity and difficulty. When the key concepts involved can be variously interpreted in plausible but conflicting ways and when the crucial sorts of considerations that bear on the subject can be differently weighted, again in plausible but conflicting ways, people can well come to contrary conclusions if their starting points, that is, the background of existing beliefs, standards, and interests that appear to them pertinent, are significantly different.⁴⁴⁵

Such finitude cannot be escaped by wiping out the other side, and in turn, reasonable disagreement cannot be so easily dismissed or otherwise dealt with.

This is all well and good, but what exactly *is* the disagreement? The liberalism of fear, unlike the liberalism of natural rights and the not-as-of-yet-discussed liberalism of personal development, is “entirely nonutopian.”⁴⁴⁶ Shklar also characterizes the liberalism of fear in a different, interesting way, which I think will prove important, writing that “in that respect [i.e., its nonutopianism] it may well be what Emerson called a party of memory rather than a party of hope.”⁴⁴⁷ The notion of utopianism here is not, I think, a technical one: that is, I think the concept she is using here is the everyday, ethical concept, one which is also a thick concept, and so the objection to these other styles of liberalism will encompass different things. With that said, I am inclined to see the issue in terms of liberalism’s attitudes towards itself. If the liberalism of fear is indeed *entirely* nonutopian, then it is also nonutopian not only with regard to questions about compliance with the theory’s normative content, but with regard to questions about whether that normative content will remain so down the line. That is, the liberalism of fear is nonutopian with regard to its own starting points, namely, liberalism itself. Liberalism understood in an entirely nonutopian way sees itself as a particular item within the social world, one which arises due to contingent historical factors. (Recall my discussion of Weber.) But those contingent historical

⁴⁴⁵ Ibid., 69.

⁴⁴⁶ Shklar, “The Liberalism of Fear,” 8.

⁴⁴⁷ Ibid.

factors are not so contingent as to be entirely arbitrary. My own suggestion is that those factors are decidedly not *ethically* or *politically* arbitrary: they crucially involve instances of what the theory itself, as well as liberalism itself, regards as instances of non-compliance with itself. The language of “non-compliance” suggests another way to put the thought, namely, that Shklar wants to offer an account of liberalism in which the non-ideal theory – that is, the theory of partial compliance – is decidedly prior to the ideal theory, the theory of full compliance.⁴⁴⁸ Shklar will then need a way to identify things at the non-ideal level in a way which is *not* parasitic on a prior ideal theory. She does, I think, attempt to do this, namely, by focusing on *cruelty*. We will return to this.

5.6.3 In any event, then, we’ve seen one way in which you can spin comprehensive liberalism, namely, in terms of what Shklar calls the liberalism of natural rights, and we’ve also seen a way to understand the disagreement between the liberalism of fear and these other liberalisms. But there is another way of spinning the comprehensive story, what Shklar calls the “liberalism of personal development,” according to which “freedom...is necessary for personal as well as social progress. We cannot make the best of our potentialities unless we are free to do so...nor can we benefit from education unless our minds are free to accept and reject what we are told and to read and hear the greatest variety of opposing opinions.”⁴⁴⁹ This is still a form of comprehensive liberalism, but a particular form thereof, what is more commonly known as *perfectionism* or *perfectionist liberalism*.⁴⁵⁰ This is how Nussbaum sees the relationship between

⁴⁴⁸ See TJ §2, §25, §39. For more on the ideal/non-ideal theory distinction, see Laura Valentini, “Ideal vs. Non-ideal Theory: A Conceptual Map,” *Philosophy Compass* 7, no. 9 (2012), 654-664. The main ways in which the distinction is used is in terms of full and partial compliance, as I do here, but also in terms of what Valentini calls “utopian vs. (more or less) realistic theory” and “end-state vs transitional theory.” The distinction *cannot* be understood in terms of “idealized vs. non-idealized theories,” if for no other reason than because *any* theory necessarily involves at least *some* “idealization,” i.e., generalization, because it uses concepts.

⁴⁴⁹ Shklar, “The Liberalism of Fear,” 8-9.

⁴⁵⁰ In this chapter I am drawing a relatively close connection between perfectionist accounts of the good/good lives/well-being/whatever, on the one hand, and perfectionism in politics on the other. This is controversial.

perfectionist liberalism and comprehensive liberalism, writing that “as I define perfectionist liberalism, following Larmore, it is a species of a genus of liberal views that might be called ‘comprehensive liberalisms’...”.⁴⁵¹ There are comprehensive forms of liberalism which are not perfectionist, such as Dworkin’s, with Nussbaum writing that “its ideal of state neutrality, though explicitly defended as a comprehensive and not a political form of liberalism, deliberately refrains from advocating any specific doctrine of the good life.”⁴⁵² Another example is found in the work of Japa Pallikkathayil, who sketches an account of Kant’s political philosophy as a form of non-perfectionist comprehensive liberalism in her paper “Neither Perfectionism nor Political Liberalism.”⁴⁵³ By contrast, perfectionist liberalism denies this aforementioned “ideal of state neutrality.”^{454,455} This is explicit in Mill: he writes that a person

Contemporary discussions about perfectionism in politics seem to focus entirely on state neutrality, so much so that a perfectionist might simply be defined as “someone who rejects state neutrality about advocacy of certain conceptions of the good.” Steven Wall, for instance, writes the following:

Many contemporary writers on politics hold that the state cannot legitimately promote the good – at least when the good that is to be promoted is subject to reasonable disagreement. Perfectionist political theories reject this claim. According to these theories, the fact that some proposed political arrangement that aims to promote the good is subject to disagreement, reasonable or otherwise, may provide a reason not to establish the arrangement in this or that circumstance, but it does not show that doing so in principle illegitimate (99).

Discussions about perfectionism about the good/good lives/well-being/etc. focus on the development of distinctively human capacities (though even this gets sidelined at points, instead focusing on the idea of objectivity, i.e., of the independence from particular attitudes), but the above-quoted passage could be written by a Vulcan or a Klingon as much as it could be written by a human.

So, why am I drawing the connection closely here? I think it is reasonable to think that state neutrality only becomes a real issue if the good being considered for advocacy is the *human* good (or if the good lives being advocated are *human* lives, or whatever). Second, I think that the liberal tradition features people, such as Mill, who seem to be perfectionists on both scores, and this suggests to my mind that driving a hard wedge between the two is ultimately a mistake.

For Wall’s piece, see Steven Wall, “Perfectionism in Politics: A Defense,” in *Contemporary Debates in Political Philosophy*, ed. Thomas Christiano and John Christman (Malden, MA: Wiley-Blackwell, 2009), 99-117.

⁴⁵¹ Nussbaum, “Perfectionist Liberalism and Political Liberalism,” 5.

⁴⁵² Ibid.

⁴⁵³ For more, see Japa Pallikkathayil, “Neither Perfectionism nor Political Liberalism,” *Philosophy & Public Affairs* 44, no. 3 (2016): 171–96. This reading of Kant’s legal-political philosophy is not universally shared: in particular, there is a strand of contemporary thought according to which he is most plausibly read as a republican à la Skinner and Pettit. For present purposes, I can leave these debates aside.

⁴⁵⁴ For more, see Steven Wall, “Perfectionism in Moral and Political Philosophy”, *The Stanford Encyclopedia of Philosophy* (Fall 2021 Edition), Edward N. Zalta (ed.), URL = <https://plato.stanford.edu/archives/fall2021/entries/perfectionism-moral/>.

⁴⁵⁵ My own impression of the literature on perfectionism is that there are different views on what the essence of perfectionism even is. Wall, I have said, seems to put the issue in terms of state neutrality. But Pallikkathayil, in

cannot rightfully be compelled to do or forbear because it will be better for him to do so, because it will make him happier, because, in the opinions of others, to do so would be wise or even right. These are good reasons for remonstrating with him, or reasoning with him, or persuading him or entreating him, but not for compelling him or visiting him with any evil in case he do otherwise.⁴⁵⁶

So for instance, if you reject the Millian idea that we should people a wide latitude in their private lives in order to give them space to conduct “experiments in living,” and further that “it is only the cultivation of individuality which produces, or can produce, well-developed human beings,”⁴⁵⁷ the state *cannot* use force, nor the threat thereof, to *make* you develop yourself. But the state *can* reason with you, persuade you, entreat you, and so on – that is, the state need not be neutral with respect to your own general comprehensive doctrine.

This is perfectionist liberalism, or, as I mentioned above, and to return to discussing Shklar, what she calls the “liberalism of personal development.” This sort of liberalism, she writes, is “equally given to hope” as the liberalism of natural rights, and insofar as this is another form of comprehensive liberalism, it will be subject to the same sort of disagreement that I sketched out above. But in addition, I think, there will be a second disagreement that focuses specifically on the perfectionist’s abandonment of a principle of state neutrality. Shkar’s own understanding of the liberalism of fear focuses heavily on the activities of the state itself through governments. Early in the paper, for instance, she writes that her liberalism “is a political notion, because the fear and favor that have always inhibited freedom are overwhelmingly generated by governments...,”⁴⁵⁸ a theme that echoes through the rest of the paper. The worry, in other words,

“Neither Perfectionism nor Political Liberalism,” writes that “perfectionists attempt to justify political institutions and laws via claims about how such institutions and laws enable people to live good lives” (171-2). And I think, as will become clear, this is also a prominent idea in perfectionist accounts of liberalism. For present purposes, I am content to say that perfectionism is best understood as a family of political views, these views then bearing to one another relationships of family resemblance.

⁴⁵⁶ J.S. Mill, *On Liberty*, ed. Elizabeth Rapaport (Indianapolis, IN: Hackett Publishing Company, 1978), 9.

⁴⁵⁷ Ibid., 61.

⁴⁵⁸ Shklar, “The Liberalism of Fear,” 3.

seems to be that because the state is not simply another person, but an institution which must keep those under its authority in a state of relative powerlessness with respect to itself, there is a special danger of abuse of power once state neutrality is abandoned.⁴⁵⁹

Now it does not seem to me to be generally true that a risk of vicious error is itself a vicious error, but in this case, the matter is different due to the necessary inequality of power, along with the social perceptions of power. The greater worry, perhaps, is simply that Shklar is not sufficiently imaginative when it comes to interactions between the state and its citizens (and other persons as well). Yael Tamir writes that

It is still the case that many Israelis (or more precisely, many Israeli-Jews) find the presence of state agents, especially soldiers and policemen, reassuring. When walking into a movie theatre, a mall or an airport, I feel protected rather than intimidated when a member of the security forces checks my car, asks for identification, inquiries where I came from, searches the content of my carry-on bags, and asks about my relationship to the person who has just given me a package. Never have I felt threatened by such procedures or intimidated because my privacy was invaded. After all, I have no doubt that the state is performing this search on my behalf. The state is on my side, it is my protector. I share these experiences with the reader because I think they can teach a general lesson: the fear of the state is not as intuitive and universal as some liberals assume; it is context-related and contingent as any other fear.⁴⁶⁰

Shklar's own suspicions of the state and its government, especially in their current form in her paper, strike me as very American (though she was not herself an American, but rather, an immigrant from Latvia). But other experiences of the state are possible, and with it, other ways of understanding *alternatives* or *contrasts* to the state in general, as well as the liberal state in

⁴⁵⁹ Compare with Nussbaum, "Perfectionist Liberalism and Political Liberalism," where she writes that a government build on the principles of Razian perfectionist liberalism "offends against the equality of citizens" by committing what she calls "expressive subordination:" "subordination that consists in being publicly ranked beneath others" (35). This is because

the institutions that pervasively govern your life are built on a view that in all conscience you cannot endorse [in which case] you are, in effect, in a position of second-class citizenship. Even if you are tolerated...government will state, every day, that a different view, incompatible with yours, is the correct view, and that yours is wrong. Moreover, as Raz explicitly said in discussion of his paper [at Chicago's Law and Philosophy Workshop in 2008], government will be licensed to convert you to the correct view (Ibid.).

⁴⁶⁰ Yael Tamir, "The Land of the Fearful and the Free," *Constellations* 3, no. 3 (1997), 299-300.

particular, are possible. Western European states are liberal democracies, and they can perhaps be contrasted with certain Central and Eastern European states, along with the United States, which are experiencing a democratic backsliding; but they can also be contrasted with states in which the backslide is complete, such as Russia, and *also* with states which have not, as it were, moved ahead enough for them to backslide in the first place. Tamir's own thought is that in some cases, the liberal state is not to be contrasted with the backsliding liberal state, nor with the illiberal state, but with the *absence* of a state. Depending on the contrast, the resulting story may look different. We will return to this below.

5.6.4 Now what grounds the normativity of these views? Or, better yet, what grounds the normative character of distinctively normative liberal content within these views? There is no general answer to this question, in part because the notions of comprehensive and perfectionist liberalism, which I have been using here in my discussion, are themselves moving targets. As Gaus puts the thought, "...rather than conceiving of comprehensive liberalisms as all relying on a fully comprehensive doctrine, it is better to conceive of them in terms of a spectrum of theories, from those that rely on something like a fully comprehensive view to those that rely on, say, only a general theory of the right."⁴⁶¹ So these theories can include different content, and indeed, there might be quite a bit of variation in what that content ends up looking like. For instance, there are liberal views which either explicitly include or at least presuppose a theory of the self – indeed, this is what enabled the possibility of the liberal/communitarian debate of the 80s and 90s.⁴⁶² But perhaps the liberal idea can be spun in such a way that a theory of the self is neither here nor there: David Enoch, for instance, in recent work appears to be developing a form

⁴⁶¹ Gerald Gaus, "The Diversity of Political Liberalisms," *Handbook of Political Theory*, ed. Gerald Gaus and Chandran Kukathas (London: Sage Publications, 2004), 100.

⁴⁶² *Ibid.*, 102.

of comprehensive liberalism, what he calls *shameless liberalism* and contrasts with *lukewarm liberalism*, where shameless liberalism unabashedly advocates for distinctive, albeit rather vague, liberal values, with questions about the self either not being relevant or, if relevant, are relevant down the line.⁴⁶³ My question is not on what grounds these elements of liberal thought, but rather, what grounds distinctively practical content, and as I mentioned, there is no general answer, and more would need to be said about the extent to which a theory is comprehensive, as well as its particular content.

But to offer something a bit more concrete, we can consider Mill's liberalism, which I said above is an instance of perfectionist liberalism. His idea, it seems, is that there is a distinctive human *function*, and the human *good* consists in functioning well.⁴⁶⁴ What is this function? We get a hint when Mill writes:

It is not by wearing down into uniformity all that is individual in themselves, but by cultivating it and calling it forth, within the limits imposed by the rights and interests of others, that human beings become a noble and beautiful object of contemplation; and as the works partake the character of those who do them, by the same process human life also becomes rich, diversified, and animating, furnishing more abundant aliment to high thoughts and elevating feelings, and strengthening the tie which binds every individual to the race, by making the race infinitely better worth belonging to.⁴⁶⁵

⁴⁶³ David Enoch, "Shameless Liberalism: A Vision," unpublished manuscript, 2025.

⁴⁶⁴ This does not sound like the Mill you teach in your Intro to Ethics course. The reason is that the Mill you teach in your Intro to Ethics course is not Mill. Mill is doing something very different from Bentham and Sidgwick. About Bentham, for instance, he cannot be more clear:

Now, the great fault I have to find with Mr. Bentham as a moral philosopher, and the source of the chief part of the temporary mischief which, in that character, along with a vastly greater amount of permanent good, he must be allowed to have produced, is this: that he has practically, to a very great extent, confounded the principle of utility with the principle of specific consequences, and has habitually made up his estimate of the approbation or blame due to a particular kind of action, from a calculation solely of the consequences to which that very action, if practised generally, would itself lead...It is not considered (at least not habitually considered) whether the act or habit in question, though not in itself necessarily pernicious, may not form part of a *character* essentially pernicious, or at least essentially deficient in some quality eminently conducive to the "greatest happiness." (JS Mill, "Remarks on Bentham's Philosophy," in *The Classical Utilitarians: Bentham and Mill*, ed. John Troyer (Indianapolis, IN: Hackett, 2003), 258-259.)

⁴⁶⁵ Mill, *On Liberty*, 60.

Human beings become perfected through the expression of their *individuality*. The most succinct statement of the thought comes later, with Mill writing:

Having said that Individuality is the same thing with development, and that it is only the cultivation of individuality which produces, or can produce, well-developed human beings, I might here close the argument; for what more or better can be said of any condition of human affairs than that it brings human beings themselves nearer to the best thing they can be?⁴⁶⁶

So, the idea, then, is that the human function is what Mill calls “individuality,” though I think it is better put by saying that the human function is to *individualize oneself*. In turn, the human good consists in individualizing oneself well. This sort of approach is what is found in perfectionist accounts of well-being, or of good human lives, and so on: we differentiate human beings from other beings by the identification of certain, distinctively human capacities, abilities, powers, or whatever else, and then argue that using these capacities *well* is the human good (or well-being, or whatever).⁴⁶⁷ Here, Mill seems to think that what is distinctively human is self-individualization. The function of the human being in general, that is, of the human being as such, is to be someone in particular, and doing this *well* is the human good. The issue is that we cannot know *a priori* what sorts of lives are valuable and which are defective. As such,

As it is useful that while mankind are imperfect there should be different opinions, so is it that there should be different experiments of living; that free scope should be given to varieties of character, short of injury to others; and that the worth of different modes of life should be proved practically, when anyone thinks fit to try them. It is desirable, in short, that in things which do not primarily concern others individuality should assert itself.⁴⁶⁸

Here, it sounds like he is saying that liberty, in the sense of absence of constraint, is to be justified on instrumental grounds, but I think a better way of putting the idea is in terms of everyone’s favorite Kantian phrase by saying that liberty is a *condition of the possibility* of

⁴⁶⁶ Ibid., 61.

⁴⁶⁷ For more, see Thomas Hurka, *Perfectionism* (New York: Oxford University Press, 1993).

⁴⁶⁸ Mill, *On Liberty*, 54.

experiments of living. To be someone in particular, I need to be able to *do* particular things, even when they deviate from the customs of the society in which I find myself, and for me to act as I want, I need to be free to do so: that is, I need the absence of constraint just mentioned. The realization of the human good requires liberalism.

As I mentioned, this is a sketch of Mill's liberalism. What grounds its normative content? It would seem like, first, there needs to be an instrumental or transcendental principle to account to account for the normativity in the claim that the "realization of the human good requires liberalism," since presumably, this notion of requirement has normative necessity, rather than something like natural necessity. I do not want to dwell on this. But I do want to dwell on second feature, namely, the teleological account of the human being. This is already controversial, in more than one direction: it is controversial that there is such an account available, but even assuming the availability of such an account, it is then controversial that the account implies liberalism. After all, Aristotle accepts such an account of the human being, but he is no liberal. "But he is an ancient," you protest, "and there is little reason to insist that perfectionism, whether Aristotelian or otherwise, in different socio-economic conditions must lead to a politics which not only accepts, but outright endorses, slavery, or more broadly, some other decidedly non-liberal institution." But it is telling that someone who is one of us moderns and who, according to Thomas Hurka, is a perfectionist, namely Nietzsche,⁴⁶⁹ not only accepts a decidedly inegalitarian,⁴⁷⁰ illiberal politics, but further, *does* accept slavery, or at least seems to accept

⁴⁶⁹ Thomas Hurka, "Nietzsche: Perfectionist," in *Nietzsche and Morality*, ed. Brian Leiter and Neil Sinhababu (Oxford: Clarendon Press, 2007), 9-31, esp. sect. 2 (16-22), where Hurka argues that since Nietzsche's "...view is the opposite of John Rawls's famous maximin principles, it can be called a 'maximax' view. Whereas Rawls wants society to maximize the well-being of its worst-off individuals, Nietzsche wants it to concentrate on the best, since only their perfection has value...he seems to find no value whatever in the achievements of lesser humans, so once the best have developed as far as they can it is a matter of indifference what other individuals do" (18). But see the next note.

⁴⁷⁰ Hurka's thought on this point is that whereas Rawls (famously) accepts maximin, Nietzsche accepts a distributive principle we could call *maximax*. (See Hurka, *Perfectionism*, 75-79, and "Nietzsche: Perfectionist," 18-22.) In my

something like it when he writes in BGE 257 that “every enhancement so far in the type ‘human being’ was the work of an aristocratic society – and it will be this way again and again: a society that believes in a long ladder of rank order and value-difference between one person and another and in some sense requires slavery.” In BGE 258, he continues in a similar vein, writing that “what is essential in a good and healthy aristocracy is that it does *not* feel itself to be a function (be it of the monarchy or the polity), but its *meaning* and highest justification – that it therefore accepts in good conscience the sacrifice of countless people who *for its sake* have to be oppressed and reduced to incomplete human beings, to slaves and instruments.”⁴⁷¹ Realizing and perfecting the human good, if you’re reasoning about things the way he does, rather than requiring a liberal society, *precludes* one. The difference between Mill and Nietzsche (and Aristotle, for that matter) isn’t so much something formal, but rather, it lies in what each

view, if all goods were perfectionist goods, then it would be rational to choose maximax within the Rawlsian original position behind the veil of ignorance. The reason is that primary goods are goods, and primary goods would no longer be able to be specified as what I want, whatever else I want: that cannot identify the primary goods on a perfectionist conception because the perfectionist denies that the value of such goods is to be explained by reference to pro-attitudes such as desires. So, in the original position behind the veil of ignorance, I would still reason about principles of justice without any assumptions about my particular conception of the good, nor on the basis of any assumptions about my particular ability to realize the good. I would reason in something of the following way: “if I were Beethoven, then I should have access to as many goods as possible since I would be uniquely able to realize perfectionist goods, and if I were someone else, I should have access to relatively fewer goods, even though I would say ‘I wish I had more’ in any social condition I would find myself, since I wouldn’t be able to realize such goods. So, primary goods should mainly go to people like Beethoven, and those who are not themselves able to realize such goods should have access only to just enough primary goods to enable people like Beethoven to realize the good.”

⁴⁷¹ These two passages are discussed by Andrew Huddleston in his “‘Consecration to Culture’: Nietzsche on Slavery and Human Dignity,” *Journal of the History of Philosophy* 52, no. 1 (Jan 2014), 135-160. Hurka, in my note above, thinks that it is “a matter of indifference” what lesser humans do, but Huddleston instead argues that such human beings should act in service of culture, because it is *this* that is in their interest – their *actual* interest. This sounds odd to us because, when it comes to slavery, we tend to think

...that whatever benefits it may bring to an elite, whatever cultural achievements it may make possible, slavery is not in the interest of the slaves themselves.. But it is not...Nietzsche’s own way of looking at things. Far from thinking it is contrary to the interests of “the masses” that they be subjugated, Nietzsche argues that ironically it is *in being* “reduced and lowered to incomplete human beings, to slaves, to instruments” (BGE 258) that most people...can come to live what Nietzsche regards as the most flourishing life for them (135-6).

It is not a matter of indifference what the lesser human beings do, because they can still act in *service* to culture, even if they cannot create great cultural products themselves: as Huddleston puts it later, “...it is the better *Nietzschean* life – provided one cannot be a great Nietzschean composer or philosopher – to be a slave building the pyramids, a medieval serf laboring on Chartres cathedral, or a peon sweeping Beethoven’s floor than to be a comfortable, “free” person in the culturally decadent modern West” (141).

understands which properties, etc. are to be cultivated. Aristotle thinks we are distinguished from other creatures by the fact that we are rational – so the human function lies in the use of reason, and the human good lies in using reasons well, while Mill thinks that we can each be someone in particular, and so the human good is to do well at being a particular person, and with Nietzsche thinking apparently that the human good is the good of anything else, namely, the cultivation of power, i.e., of abilities. (Perhaps this is the sense in which he is an anti-humanist thinker.) The difficulty in these perfectionist accounts, then, seems to lie in the identification of what is distinctively human. (Even putting the issue in terms of what is “distinctively human” already suggests some wrong answers: autism is distinctive of humanity, but it does not follow that the best human life is also the autistic life.) Certain ways of understanding what is distinctive of us will indeed lead to a liberal politics, but then the question is whether that feature, capacity, power, ability, etc. is indeed distinctive in the first place.⁴⁷²

But further, notice that all of this is, indeed, *controversial*. There is reasonable disagreement to be had here. This is the sense in which comprehensive liberalism (in this case, a perfectionist liberalism) seeks to ground liberalism on a general comprehensive doctrine, and how different sorts of disagreement would result.

5.6.5 What about Shklar’s liberalism of fear? What is this sort of political normativity grounded on? I think the picture that will emerge will rely crucially on an idea to which I appealed in my own arguments in 3.5.5, namely, the idea that *reasons do not expire*, to borrow from the title of a paper by Berislav Marušić.⁴⁷³ Agnes Callard uses a similar thought in her

⁴⁷² I take the line of thought in this paragraph to agree with the substance, but not the framing, of Isaiah Berlin in “Two Concepts of Liberty,” where he writes that “Mill confuses two distinct notions. One is that all coercion is...bad as such, while non-interference...is good as such...The other is that men should seek to discover the truth, or to develop a certain type of character of which Mill approved...both these are liberal views, but they are not identical...If his two goals proved incompatible, Mill would be faced with a cruel dilemma...” (200). It does not seem to me that Mill confuses anything; his problem, that is, is not one of insufficient clear-mindedness.

⁴⁷³ “Do Reasons Expire? An Essay on Grief,” Berislav Marušić, *Philosophers’ Imprint* 18, no. 25 (2018), 1-21.

piece, “The Reason to Be Angry Forever.”⁴⁷⁴ In Callard’s paper, the idea is that “if you have a reason to be angry with me, you will have a reason to be angry with me forever,” because you have a reason to be angry with me at t_1 because I wronged you, and if it’s true that I wronged you at t_1 , then it’s also true that I wronged you at $t_2, t_3, \dots t_n$.⁴⁷⁵ The idea in my chapter was that there is a pressure within a naturalistically construed ethical system to locate error with respect to the endorsement of the system as such in the same history as the one in which the system is indeed endorsed, at which point we then have to have something to say about how these two things are related to one another. If we see past error as a necessary historical antecedent, presupposed in the endorsement of morality, we then have to accept that once we endorse morality, we also gain reasons to *reject* morality because it presupposes what it regards, on its own terms, as error. Perhaps Zarathustra can accept – *love*, even – all the blood and torture underlying morality, but neither you nor me are Zarathustra.

Leaving that aside, we should circle back to this idea that reasons do not expire and try to understand what to make of it. I want to suggest that the picture that emerges will have something of the following shape: whether or not reasons expire has to do, at least in part, with whether the fittingness conditions of a given attitude are sensitive to tense and modality, and since fear’s fit or appropriateness is not *necessarily* rendered inappropriate or unfit due to a change in tense and modality, it follows that reasons generated by fear are not necessarily rendered unfit due to a change in tense of their content. This then creates the space necessary for the normativity of Shklar’s liberalism, which is based not only on what is happening now – with the use of force by state authorities to coerce some private citizen in order to advance the private

⁴⁷⁴ Agnes Callard, “The Reason to Be Angry Forever,” in *The Moral Psychology of Anger*, ed. Myisha Cherry and Owen Flanagan (Lanham, MD: Rowman and Littlefield, 2018), 123-137.

⁴⁷⁵ *Ibid.*, 123.

interest of those effecting the coercion, say – what happened *then*. Fear can be appropriately prompted by knowledge of our own history.

First, then, are the conditions of fittingness or appropriateness of an attitude sensitive to the tense of the content of the attitude? The answer here, clearly, is that it depends. Not every attitude even has a content which admits of talk about its tense, for instance: when I say I'm afraid of snakes, the content of my fear is *snakes*, and when a snake appears in front of me while I'm out hiking, my fear is of *that snake*. The content of my fear, that is, need not be propositional.⁴⁷⁶ To be sure, it is conceptual – it involves the application of concepts, such as the concept *snake*. But my fear need not have a truth-evaluable content, and in turn, the content may not admit of tense. That said, there are also cases where it seems clear that it does have such a propositional content. If I am afraid that my wife is cheating on me with the neighbor, it seems like the content of my fear is truth evaluable. In *some* cases, it is plausible to construe my fear of

⁴⁷⁶ Thus I disagree with Robert Gordon in his "Fear," where he holds that "all fearing is 'propositional,' that all fears are fears that something is (or was, or will be) the case" (560). (In Robert M. Gordon, "Fear," *Philosophical Review* 89, no. 4 (October 1980), 560-578.) He needs to offer an explanation of what is going on when someone reports that they are afraid of snakes (say), rather than reporting a fear that P, and this he provides, writing that "many of the expressions used to specify what a person fears or is afraid of are essentially nothing more than abbreviated sentences" (561). Again, I am happy to say that there are some clear cases of elision, but I am not persuaded that *all* cases of the fear of S are elisions of the fear that S is P. It is not clear to me if he does accept a kind of principles that for all fears of S, these are elisions of the fear that S is P, but if he does, I am inclined to think it is false: in the case of a fear of heights, I find it very odd to say that this is an elision of the "fear that heights will harm me" or something to that effect. The most reasonable way to reconstrue this fear is to say that it is the fear that I will fall from a high location, but this violates the above-mentioned principle. A similar move, to accommodate fears to perform some activity ("I'm afraid to go skiing"), is made in Wayne Davis, "The Varieties of Fear," *Philosophical Studies* 51 (1987), 287-310, where he writes that if we "let VP stand for any verb phrase; then in general: 'S is afraid to VP' is a reduction of 'S is afraid that if he does VP then something undesirable will result'" (288). It is not clear to me how to read the quantification of this principle: Davis says it holds "in general." In any event, I don't think this principle is any good either. The idea seems to be that a fear of some activity, denoted by VP, elicits bad effects. But it is false that the fear of all activities has to appeal to the consequences of their performance. The fear of the activity might simply involve nothing more than the fear of performing it *poorly*. (Thus the perpetual fear that some academics have of *writing* – not that I can relate.) The insistence upon this principle will also generate distortions in certain cases: perhaps in my inauthenticity, bad faith, etc., I find myself afraid to live my life, but the activity of living is not going to generate consequences which exist wholly independently from the activity itself, and certainly not consequences to be understood in causal terms.

The broader moral of the story I want to suggest, based on the remarks above, is that it is hopeless to try to articulate and defend conditions on attitudes by appeal to *linguistic* categories. There are important distinctions, to which attitudes are sensitive, *within* these categories.

that snake as the fear that *there is a snake*, in which case my fear has a propositional content, but in other cases, that may be a stretch. To determine whether the content is propositional or not, we can imagine what could be said to someone to show their fear is inappropriate or unreasonable. For instance, if I am afraid of that snake, you can tell me “but that isn’t a snake!,” thereby presenting me with the negation of the content of my fear. Similarly, in the case where I am worried about my wife and my neighbor, my fear is shown to be inappropriate when you present me with a reason to believe that the content of my fear is false, such as by saying something like “but they’re not sleeping together because they’re just friends,” which I accept in all my naiveté. These cases, then, can be contrasted with my fear of *snakes*, the very first case. When I simply fear snakes, there simply might not be anything to say to me except to ask me why. Depending on what I say, you might find that my report that I am afraid of snakes is an elision and that what I am afraid of is being bitten by a snake, say. But in other cases, there is no further elaboration on the content of my fear – I don’t say something like “I hear snake venom is super dangerous” when you ask me why I’m afraid of snakes – and instead, just an explanation. Further, this explanation need not be one which shows my fear to be appropriate, since the sort of explanation here might instead be causal. I might be afraid of snakes because I was bitten by one when I was a child, say, and even though I know that was a one-off thing, I might nevertheless still, simply, be afraid of snakes. I do fear snakes in this sort of case, but it seems like what I am probably reporting is less an occurrent emotion and more like a certain psychological disposition I have.

To return to the main line of thought, attitudes need not have a content which admits of being tensed. But let’s restrict our attention to those cases in which the attitude has a propositional content, which would seem to be at least necessary for tense. How does the tense of an attitude’s content bear on the fittingness of the attitude itself? The above examples seem to

suggest it can be important because an attitude can be unfitting or otherwise inappropriate if the content is false: if I am afraid that there is a snake, then my fear is inappropriate when it is false that there is a snake. And here is where tense might come into play, because perhaps it is *was* true that there *was* a snake, but, *now* at least, there *is* no snake. This is due to the fact that fear seems to involve the representation of something as a threat, and something restricted to the past cannot constitute a threat. (“What if someone says they will dig up dirt on me? Can’t I be afraid of that?” The object of your fear is their digging-up of your past, not of your past itself. Your past could be an object of regret or something like that instead.) With other attitudes, though, tense may be less important: for instance, indignation at injustice may not be so sensitive to tense, for reasons similar to those I sketched out above.

Nor is it necessarily false that a change in the modality of a content is sufficient to render an attitude unfit. A snake slithers towards me and I feel fear; is my attitude inappropriate when the snake slithers away? Not necessarily, because what I might be afraid of now is not that there *was* a snake, but rather, I am afraid that, in my vicinity, there *could* be a snake. At least in the case of fear, it seems clear that the content of fear need not be understood to be actual from the point of view of the subject of the emotion for it to be appropriate because it does indeed seem clear that a lot of fear has a *possibility* as its content.

Now, to make explicate something which up to this point has only been implicit, my suggestion is that we include, within the propositional content of an attitude (assuming it is indeed propositional in the first place, which it need not be, per my discussion above), operators for tense and modality. That is, we should treat tense and modality as part of the content of an attitude itself. The reason is that we need a way to explain how the same emotion can generate different reasons for action, keeping fixed the names, descriptions, predicates, etc. which appear

in the content of the attitude, as well as keeping fixed the psychology of the emoting subject. Suppose I am afraid because a snake slithers out onto the path in front of me: at first I act, or better yet, I react, through instinct and jump back, but acting through instinct need not stand in opposition to acting for a reason, but rather, can presuppose it, because if, for whatever reason, I failed to jump back from the snake due to a failure of instinct, you could offer me some (relatively light, I think) blame, which as we discussed above, can take the form of retrospective advice, i.e., the retrospective presentation of a reason. But after the snake slithers away, I remain afraid because I am worried that there might be a snake still around. That is, I am *still* afraid – my emotion has not changed. What *has* changed is my representation of the way things are by now being afraid, not that there is a snake, but that there *might* be a snake. But despite the fact that my emotion has not changed, I nevertheless have different reasons to act. At first, it is reasonable to jump back from the snake, but it is not reasonable to jump back when you worry that there might be a snake because I no longer know where the snake is, and in turn, I don't know whether my action will prevent further danger or, rather, promote it. But from the fact that it is not reasonable to jump back, it does not follow that it is reasonable for me just to do whatever I want, free of any care in the world. After all, it is clear that I can still do things to protect myself from the snake, such as by paying very close attention to my surroundings. In other words, then, I am continuously in fear – this is not the sort of change I can only undergo under conditions of massive self-deception or something, but rather, I can perfectly well understand myself and what I am feeling. But despite the fact that I am continuously in fear, I have reason to act in different ways at different points in my state of fear. My own suggestion is that this requires an explanation, and this is explained by appeal to changes in the tense and modality of the propositional content of my fear. Further, throughout this entire episode, my fear

seems to be entirely appropriate or fitting. So, changes in the modality or tense of a content need not, by themselves, undercut or rebut the appropriateness of a given attitude (bearing in mind that it depends on the particular attitude we are discussing).

5.6.6 So far, then, I have tried to argue that certain attitudes can persist despite changes in their content, and indeed, that we should welcome this result because it can explain how similar attitudes can give rise to different reasons for action. But what does this have to do with the liberalism of fear? The idea will be that others in the past had reason to be liberals due to their fear of various then-occurring instances and patterns of *cruelty*, and we have the same reasons they did, even though our fears generating these reasons have a different content.

My way into this will focus on an aspect of Shklar's conception of liberalism which I have not yet (explicitly, at least) discussed, namely, the idea that liberalism is a *political doctrine*. I said above that Shklar contrasts the liberalism of fear, on the one hand, with comprehensive liberalisms on the other, what she calls the "liberalism of natural rights" and the "liberalism of personal development." But that does not, by itself, explain the sense in which the liberalism of fear is political. And Shklar's remarks on this, I think, are not entirely helpful: she writes, for instance, that

...liberalism refers to a political doctrine, not a philosophy of life such as has traditionally been provided by various forms of revealed religion and other comprehensive *Weltanschauungen*...It is a political notion, because the fear and favor that have always inhibited freedom are overwhelmingly generated by governments, both formal and informal. ⁴⁷⁷

This does not sound like what Rawls has in mind when he uses the distinction between the comprehensive and the political. But Rawls is also primarily interested in discussing comprehensive and political conceptions of *justice*, while Shklar is talking about liberalism.

⁴⁷⁷ Shklar, "The Liberalism of Fear," 3.

Shklar does later in her paper say that “liberalism must restrict itself to politics and to proposals to restrain potential abusers of power in order to lift the burden of fear and favor...,”⁴⁷⁸ and this remark is, in a way, more helpful, though it also has an unfortunate circularity to it. But putting these two remarks together, I am inclined to think that the idea is that the liberalism of fear focuses heavily on the actions of governments because governments are where politics happens. In turn, governments should restrict themselves, and be restricted by those who act within them, as well as those who are subject to their authority, to dealing with things in a way that is open to everyone, or at least as many as possible, by not presupposing any particular general comprehensive doctrine. This, then, is the sense in which the liberalism of fear might be a form of political liberalism: it does not seek to ground liberalism on a particular general comprehensive doctrine, much as in Rawlsian political liberalism, and by grounding liberalism in such a way, liberalism in turn lacks the resources to get outside of itself and its home in the political.

What, then, provides the grounding for such a liberalism? If it is respect, then the resulting picture will simply collapse into that of Rawls and Larmore. As it happens, though, this is not what Shklar wants to say. Instead, she offers a picture which is, in a way, analogous to the picture of things offered by Berlin in “Two Concepts of Liberty.” Berlin famously contrasts *negative freedom* and *positive freedom*, with negative freedom being something like the liberty of English liberalism, namely, the absence of external constraint, and positive freedom being something more like the capacity for self-determination, a notion of freedom he understands to be found in continental political philosophy. Berlin goes on to argue, the details of which need not concern us, that a politics of positive freedom also tends towards an illiberal politics. But

⁴⁷⁸ Ibid., 13.

even if a politics of positive freedom has been shown to be unjustifiable and illiberal, it does not thereby follow that a politics of negative freedom – that is, a liberal politics – is justified; both forms of politics could be bunk, for instance. So, Berlin needs to offer an argument, not only that a politics of positive freedom is unjustifiable and illiberal, but an argument that a politics of negative freedom *is*, in fact, justifiable. His appeals to *value pluralism*, in the final section of the paper, is what is supposed to do that work.⁴⁷⁹ But it is not entirely clear how, and I think there might be a few different lines of thought in the paper, though we can focus on one for the sake of example, with Berlin writing that

If, as I believe, the ends of men are many, and not all of them are in principle compatible with each other, then the possibility of conflict – and of tragedy – can never wholly be eliminated from human life, either personal or social. The necessity of choosing between absolute claims is then an inescapable characteristic of the human condition. This gives its value to freedom as Acton conceived of it – as an end in itself, and not as a temporary need, arising out of our confused notions and irrational and disordered lives, a predicament which a panacea could one day put right.⁴⁸⁰

I'm inclined to think of the argument in the following terms. If a liberal politics is to be justifiable, we have to show why there is reason not to constrain others. If there is to be a *reason* not to constrain others, then presumably constraint of others must, in some sense or another, be possible, since otherwise, the reason would be entirely idle. Now, having a reason *not* to constrain others when you have the ability to do so sounds like a reason for *toleration*. Further, if there is to be a general presumption in favor of toleration, we need to find a reason, a value, or something to that effect which can plausibly be thought to be at work in all instances of toleration. For instance, we should not say that toleration is justified because it promotes

⁴⁷⁹ Value pluralism is prominent in the thought of another perfectionist liberal, Joseph Raz. But whereas Berlin seems to think that liberalism *follows* from value pluralism, Raz instead begins with autonomy and argues that “a commitment to autonomy entails a commitment to moral pluralism” (Joseph Raz, “Autonomy, Toleration, and the Harm Principle,” in *Justifying Toleration: Conceptual and Historical Perspectives*, ed. Susan Mendus (New York: Cambridge University Press, 1988), 157.)

⁴⁸⁰ Isaiah Berlin, “Two Concepts of Liberty,” in Berlin, *The Proper Study of Mankind*, ed. Henry Hardy and Roger Hausheer (New York: Farrar, Straus and Giroux, 1998), 239-240.

religious diversity – or diversity at all – because we can perfectly well tolerate persons who share a religion with us. Now, what sort of value could do the sort of work needed to account for the presumption in favor of toleration? That value is *choice*. Suppose it were not. If it were not, then we might instead think that the value we seek is the value associated with a general comprehensive doctrine. But general comprehensive doctrines, the sources of “absolute claims,” are not only plural, but incommensurable. They are plural because there are a variety of forms of ethical life and associated worldviews which are valuable, and they are incommensurable because, in holding one, you cannot hold others: you can be a committed mother while being a committed employee, but you cannot be a committed Nietzschean and a committed Christian at the same time without self-deception. The incommensurability, in other words, is not the incompatibility of values *between* persons, but rather, *within* persons. Since these different lifestyles and evaluative worldviews are all valuable, we cannot say that we can justify toleration of any particular one on the basis of the content of its evaluations, say, because those evaluations are just as valuable as those made by others who do not share the lifestyle and worldview. Instead, we should tolerate these lifestyles because they all reflect the value of *choice*, as I mentioned above. Choice must be work in all these cases because there are no values or principles prior to those of the values, or general comprehensive doctrines, under consideration which could imply that certain values are more important than others. A person must still have a general comprehensive doctrine; so, they have to make a kind of choice in favor of one and against others, a choice which is not wholly, rationally determined by the content of the deliberation before which one chooses. But how does liberalism enter the picture? The idea, I think, would be that, in identifying a value to be protected by a presumption of non-interference via toleration, we have identified a *reason* to be liberals.

It is not clear that this works. I accept George Crowder's thought that, at the end of the day, it is not sufficient *just* to say that values are plural and incommensurable. The claim that values are plural and incommensurable says nothing about the *content* of those values, and in particular, nothing about whether those values have anything like recognizably liberal content.⁴⁸¹ Berlin's appeal to choice is certainly fallacious: nothing in the notion of value in general, nor in the notion of ultimate value or the notion of a general comprehensive doctrine (a notion I use above when it seems illuminating and convenient to do so), requires that value can be held, or that valuing can be done, only through choice, and it is hard to know why this act is to be understood as one of choice in the first place, rather than as a kind of psychological coin-flipping, since it would seem I have nothing in terms of which I can understand what I am doing as choice in the first place. On these bases it is possible to construct counterexamples to the basic claim that value pluralism entails, in some sense or another, liberal non-interference: a society can accept pluralism while maintaining a caste system, and indeed they could think that the caste system is uniquely able to realize these plural, incommensurable values.

5.6.7 But I said above that Shklar is onto something which is, in a way, analogous to Berlin's account. I have not said how. Let's turn to this.

Berlin's account, as I read it, presupposes a substantive understanding of political normativity. I mentioned above Korsgaard's distinction between formal and substantive conceptions of morality, and my use here draws on that usage above. Berlin's account is substantive in the sense that it seeks to not only identify and differentiate but justify the principle of liberal toleration by appeal to the content of liberal toleration: we are to have a presumption in favor of toleration and liberal non-interference because toleration secures the good of choice.

⁴⁸¹ As Crowder puts it, "pluralists emphasize that hard choices among equally ultimate ends are inescapable but the plurality of values implies nothing about the *content* of those hard choices" (299).

Since his liberalism is also a form of perfectionist liberalism, the normativity it offers is, at the end of the day, an instance or application of moral normativity, from which it follows that he holds a substantive conception of moral normativity. My suggestion is that Shklar's account of the normativity of the liberalism of fear will be substantive. Further, like Berlin, it will understand the content of this normative in terms which are, in a broad sense, evaluative: that is, in terms of what has to do with value. But unlike Berlin, it will *not* represent the content of this normativity in terms that we could instead say is *narrowly* evaluative: content, that is, having to do with the valuable. Berlin (and Raz, for that matter) talk about *goods*; Shklar, by contrast, talks about *bads*. I said above that Shklar distinguishes the liberalism of fear, on the one hand, from other forms of liberalism, what she calls the "liberalism of natural rights" and the "liberalism of personal development," on the grounds that these other forms of liberalism are comprehensive, while her liberalism of fear is political. The second ground of distinction is that these other forms of liberalism feature an account of value, in one way or another. By contrast, the liberalism of fear includes an account of the *disvaluable*. Combined with the idea above, namely that the liberalism of fear requires the non-expiration of certain reasons for action, we will get then a picture of the normativity of liberalism according to which we have reason to be liberals because liberal non-interference does not so much secure freedom to pursue the good as much as it secures, through a rejection of the *bad*, freedom from *disvalue*. We need to think more about these bads or disvalues.

For Shklar, the question "which bads or disvalues are we to reject?" has a relatively simple answer, at least at first pass: we are to reject *cruelty*. This is what secures the second ground of distinction I mentioned above. The liberalism of fear, she writes, "does not...offer a *summum bonum* toward which all political agents should strive, but it certainly does begin with a

summum malum, which all of us know and would avoid if only we could. That evil is cruelty and the fear it inspires, and the very fear of fear itself.”⁴⁸² Shklar continues with the natural follow-up question, her answer, and some elaboration:

What is meant by cruelty here? It is the deliberate infliction of physical, and secondarily emotional, pain upon a weaker person or group by stronger ones in order to achieve some end, tangible or intangible, of the latter. It is not sadism, though sadistic individuals may flock to occupy positions of power that permit them to indulge their urges. But public cruelty is not an occasional personal inclination. It is made possible by differences in public power, and it is almost always built into the system of coercion upon which all governments have to rely to fulfill their essential functions...the liberalism of fear does not dream of an end of public, coercive government. The fear it does want to prevent is that which is created by arbitrary, unexpected, unnecessary, and unlicensed acts of force and by habitual and pervasive acts of cruelty and torture performed by military, paramilitary, and police agents in any regime.⁴⁸³

I find parts of this passage odd. But some of the oddity stems from a different way of speaking and writing, and, at least at those points, we can translate what Shklar is saying from Political-Science-ish to Philosophy-ish. Where Shklar talks about the military, paramilitary, and police agents, for instance, we can simply talk about the *state*, and if need be, we can specify that we are talking about the state in its executive functions. What, then, is the problem to which the liberalism of fear is the solution? To bring this into view, we have to think about what the state itself is supposed to be doing – that is, what problem it is that the state is to solve. *That* problem is still presumably cruelty, but it is not the organized, orderly cruelty of the sort we see in unjust and, indeed, illegitimate states. Rather, the state solves the sort of cruelty found in the state of nature. At this level, we can accept the absolute monarchism of fear, as it were – we can be Hobbesians. With that in view, we can then say that the problem to be solved by the liberalism of fear is, in a well-worn phrase used by Williams, that the solution has become part of the problem. With the absolute monarchism of fear we in effect have a kind of *second state of nature*, one in

⁴⁸² Shklar, “The Liberalism of Fear,” 11.

⁴⁸³ Ibid.

which the cruelty of the first state of nature has indeed been eliminated, and in doing so, has empowered the state to exercise dramatic cruelty. But cruelty is still the *summum malum* – it is still to be rejected, whether perpetuated by other human animals in the state of nature or by the state itself in its activities of preventing the aforementioned cruelties.

5.6.8 It is persistently unclear to me why Shklar identifies the *summum malum* – that is, the bad or disvalue to be rejected – as cruelty in the first place. It is true that speaking about the *summum malum* avoids certain issues which affect Berlin's liberalism: Shklar's account is consistent with both what we might call disvalue monism and pluralism, for instance, nor does she attempt to argue that liberalism is justifiable on the basis of a formal theory of the valuable. But importantly, the invocation of cruelty does allow us now to talk about the normativity of the liberalism of fear and, in particular, what it is grounded on. Cruelty is a problem because of what it does to us – we have a susceptibility to it. It is also politically important because that susceptibility can be acted upon not only by other private individuals, but by the state, though this realization, i.e., the realize that the state can itself cause the sorts of problems that it was supposed to solve, is also a historically contingent realization. But even though it's historically contingent, it's still *our* realization. So cruelty and the possibility of its infliction are the problem to which liberalism is the solution, which arises as a response to the problem of cruelty, given our aforementioned realization, a solution which is conscious of itself as needing to offer a *solution* to the problem, rather than something else.

You can say this. But it does not address the fact that it is unclear why Shklar's take on the liberalism of fear understands the *summum malum* to be cruelty. The point for now, though, is that even though it is unclear why Shklar focuses on cruelty, there is no need to. The liberalism of fear is itself something of a moving target, and while she has a particular account of the bads

or disvalues to be rejected, not everyone follows her in this regard. What will be shared is a certain picture of human susceptibilities. According to Shklar, those susceptibilities are at the very least a part of what makes cruelty into a problem in the first place. But again, not everyone agrees that the problem to which these susceptibilities give rise is best understood conceptualized as cruelty. For David Enoch, the problem to be addressed through politics is *suffering*, rather than cruelty. Why suffering? “The reason, in a nutshell,” he writes, “is that in politics the stakes in terms of suffering are typically unbelievably high, and that when they are, such considerations tend to outweigh all others.”⁴⁸⁴ Even in cases where it seems like politics achieves a good, Enoch thinks the achievement is better understood in terms of a reduction of suffering. It is true, for instance, that the alleviation of poverty and hunger benefits the autonomy of those who were previously poor and hungry, but it seems more plausible, on his view, to say that the value of the policy lies in the prevention of these bads. It also seems like suffering is, in some sense or another, more fundamental than, or prior to, cruelty, because the badness of cruelty calls for an explanation and, on Enoch’s view, it is suffering which does that work.⁴⁸⁵ But the shift from cruelty to suffering does not leave the normative content of the liberalism of fear entirely untouched: in Shklar’s hands, the liberalism of fear focuses almost entirely on the activities of the police, the military, and in general those empowered to execute state policies because, as Enoch puts it, “with very few qualifications, the weaker those in power, the smaller the risk of cruelty.”⁴⁸⁶ Further, holding that the relevant bad is cruelty has a further consequence, namely, that the normative content of the liberalism of fear is primarily directed towards agents. But if we say that suffering is more fundamental than cruelty, then we are committed to thinking that “the

⁴⁸⁴ David Enoch, “Politics and Suffering,” *Analytic Philosophy* 66 no. 1 (2025), 5.

⁴⁸⁵ “Cruelty ultimately matters because of its effects on the lives of real people, because of the suffering it gives rise to. This is *why* it is so important to avoid cruelty” (Ibid., 11).

⁴⁸⁶ Ibid., 14.

reason why it is important for agents not to act cruelly has to do with the effects of such cruelty on those on cruelty's receiving end, on 'patients' – in terms of suffering, and perhaps in other terms as well."⁴⁸⁷ But we have to figure out what causes suffering empirically.⁴⁸⁸ But we can do this, and having done so, liberalism will then be justified not on the grounds that the rights to be secured are intrinsically important, but because they reduce suffering:

Freedom of expression, participatory rights, people's autonomy, and so on – all of these are important politically, in this picture, not because they are sufficiently important to outweigh the horrible suffering that is often on the line when doing politics – they are not. Rather, all of these are constraints imposed on imperfect politicians and authorities, precisely because we understand that over the long run restricting politics along these lines will have better results, *in terms of suffering*, than taking chances with unrestricted politics (and politicians).⁴⁸⁹

Restrictions on freedom of expression, for instance, cause more suffering than they prevent, by reducing our ability to give voice to, among other things, instances of suffering, as well as by creating conditions for abuse by state officials. As such, we should provide for a right to the freedom of expression.

5.6.9 Now, I do think this picture of things has something to it, and I also think it has some problems, some of which might be rather serious, but I will not go into this in greater detail here.⁴⁹⁰ But what I can do is now answer a question that you might have had through this entire

⁴⁸⁷ Ibid., 11.

⁴⁸⁸ See, for instance, 14, where Enoch writes the following on the issue of the "size" of the state: "Whether a smaller or a bigger government has better consequences in terms of suffering is not something that can be determined a priori – the question is to a large extent empirical, and there is no reason to think that the answer will hold across all sets of possible political circumstances."

⁴⁸⁹ Ibid., 16.

⁴⁹⁰ Leave aside Enoch's optimistic presumptions about the empirical data in his argument that liberalism is justified on the grounds that it reduces suffering. I think there is a real worry here, and in accounts of negative politics more broadly, that a conception of the good really must be in the background at the end of the day. Enoch thinks not: he writes that "Everything I say in this paper is restricted both to the political context...and to serious suffering....nothing here commits me, then, to a general conception of the good..." (9). At a merely logical level, you might agree with Selim Berker in his paper "Is There Anti-Fittingness?" that the good and the bad are polar opposites, such that "badness is anti-goodness." But it doesn't matter what sort of opposites the good and the bad are: the point is that they are opposites, and, at least to use the case of polar opposition, an account of the bad implies an account of the anti-good, which in turn implies an account of the good. (Michael Walzer makes this sort of point in his brief piece "On Negative Politics.")

section of the chapter, namely, why I am talking about Shklar in the first place when it is Williams who I am criticizing at the end of the day. Shklar and, I think, Enoch, offer a picture of a form of liberalism which is grounded on disvalues which are more determinate than of Williams. For Shklar, liberalism is the solution to a particular problem, namely, the problem that the state itself, which is supposed to solve the problem of cruelty, can itself perpetuate said problem, while for Enoch, liberalism is the solution to the problem of suffering. For Williams, by contrast, the problem is “the securing of order, protection, safety, trust, and the conditions of cooperation.”⁴⁹¹ I do not think Williams is best read as saying “we need to secure five particular goods,” nor, for that matter, as saying “we need to secure freedom from five particular bads.” The reason is that he goes on to write that solving these problems constitute the first political question “because solving it [i.e., the question] is the condition of solving, indeed posing, any others.”⁴⁹² It seems clear to me that there could be disvalues or bads in this sense which Williams has not included in his list, in part because someone might reasonably carve up the practical in different ways, in part because you can certainly dig up some (dis)values which play a similar sort of role, but primarily because an important feature within political life is the generation of new concepts which allow us to understand new, interesting problems that crop up through history. So, it seems to me that he is best read as saying something to the effect of “the first political question consists in the securing of *things like* order, protection, safety, trust, and the conditions of cooperation.”

Does the distinctively political normativity of Shklar’s liberalism have the sort of character I sought to show above? The answer is yes. The badness of cruelty is certainly morally significant, but you do not need to be a member of the morality system to judge cruelty to be

⁴⁹¹ RM 3.

⁴⁹² Ibid.

bad: the animals are mere patients and so, at best, merely passive members, but they think that cruelty is bad, though clearly not under that description since they do not think under descriptions at all. You also do not need to be a member of the morality system to find fearful objects to be bad, or to find fear to be a bad state of mind to be in. The command to reduce cruelty need not be understood in purely instrumental terms either. It is simply not true that deliberation consists in calculative reasoning about means to ends: rather, deliberation involves, among other things, the attempt to simultaneously both confer and discover the most appropriate conceptualization (or what Williams, following Nietzsche perhaps, might call an “interpretation”) for our ends, our means to those ends, and the ethico-political virtues and vices of our entire, proposed reason for action. The normativity of liberalism, then, is tied up with the necessity of not only deliberating upon our various, sometimes-shared ends and the means thereto, but upon the broader issue of whether this entire way of looking at things is itself something which could be judged, even if wrong, then at least tolerably so. The conception of the bad varies among Shklar, Enoch, and Williams, and in turn, we get different policy prescriptions.

What do these views have in common? The point so far is the liberalism of fear is itself something of a moving target and is perhaps best understood as an instance of what you might call a politics of *rejection*, or perhaps just *negative politics*. Williams has the broadest understanding, I think, of negative politics from among those we have considered. But the breadth of the account has its disadvantages, namely, it becomes unclear how to talk about it. We should address this.

5.6.10 With Shklar, it is very clear what politics is to address because she identifies the disvalue with a thick concept: cruelty. But Williams, I have tried to suggest, has a broader understanding

of the disvalues to be rejected through politics, and in particular, I think we should refrain from using a thick concept of any sort. But then there is a question of how to talk about this at all. It certainly does not seem true that all bads are politically significant. What else can we say?

We should take a cue from Rawls and introduce two notions: first, that of the *primary bads*, and second, that of a *thin theory* (or *conception*) of the bad. It does not follow, upon introducing these notions, that the real project of political philosophy at this point is to go on, in a Rawlsian way, to think about the distribution of ills in the original position behind the veil of ignorance, because doing so would require us to accept the bad as being there long enough to be distributed in the first place. The bad is not to be accepted; rather, in line with the idea of negative politics I mentioned above, it is to be rejected. Allowing them to be entertained from behind the veil of ignorance is already a step too far. The primary bads are to be dealt with differently. To see this, we need to provide a sketch of both of these notions. I begin with the former, i.e., that of primary bads, and then turn to the latter. To do so, we can first think about the Rawlsian notion of the primary goods.

Rawls offers different accounts of primary goods. A characteristic early account is offered in TJ at §15, where he writes that

...primary goods...are things which it is supposed a rational man wants whatever else he wants. Regardless of what an individual's rational plans are in detail, it is assumed that there are various things which he would prefer more of rather than less. With more of these goods men can generally be assured of greater success in carrying out their intentions and in advancing their ends, whatever these ends may be.⁴⁹³

Rawls also distinguishes *social* and *natural* primary goods: as examples of social primary goods, he offers "rights, liberties, and opportunities, and income and wealth," while for natural primary goods, he provides "health and vigor, intelligence and imagination."⁴⁹⁴ What distinguishes the

⁴⁹³ TJ 79.

⁴⁹⁴ TJ §11, 54.

social and natural primary goods is that, in the case of the natural goods, “although their possession is influenced by the basic structure [of society], they are not so directly under its control.”⁴⁹⁵ The idea in the early account seems to be that primary goods are those goods which are desired both actually and counterfactually, where in these counterfactual conditions I hold a different “full theory of the good,” which will stand in contrast to a thin theory of the good. So in the actual world, for instance, I am an atheist and I want political liberty so I can live my life the way I want to see it lived, and if I consider the counterfactual case in which I am an ardent Catholic, I can still reasonably say that I would want political liberty for myself, so I would be able to live my life the way I would want to see it lived. In the former case, “living my life the way I want to see it lived” involves holding values which tend to give rise to angrily sneering at the Mormon missionary kids as I walk along Green Street on Sunday morning, while in the latter, I suppose I would be going to Mass every week. So, what I want changes, but what does *not* change is what I want, whatever else I want, since in each case I want to be free to do what I want. But the picture of primary goods changes over time. In “Social Unity and Primary Goods,” Rawls drops the counterfactual analysis and instead writes that “primary goods are certain features of institutions or of the situation of citizens in relation to them.”⁴⁹⁶ There is nothing counterfactual here, and for that matter, nor is there anything about what people want, where *wanting* is a psychological state: he writes that in thinking about primary goods, “we are not required to examine citizens’ psychological attitudes or their comparative levels of well-being...”⁴⁹⁷

⁴⁹⁵ Ibid.

⁴⁹⁶ Rawls, “Social Unity and Primary Goods,” in *Collected Papers*, 363.

⁴⁹⁷ Ibid., 364.

But regardless of what we end up saying about the primary good in terms of identifying their content and their overall point, and differentiating them from the bads and from one another, there is a further question, namely, why these things are valuable in the first place. I find it clear that Rawls is not saying something like “based on empirical observation, primary goods are those which people tend to want in general.” The reason is that Rawls is saying something normative: in the case of the earlier account in TJ, for instance, if I just so happen not to desire a particular (social) primary good – I want to spend my life in chains in an English prison, say – then, given the presumption that these goods are desired by rational persons, we have reason to think that I am irrational. A theory of the good is needed to explain why it is rational to desire these goods in the first place, and in such a way as to license judgments which amount to a kind of censure when I fail to have the relevant desires or have desires which are incompatible with holding these aforementioned desires. But the theory of the good needs to be a *thin* theory, rather than a *full* theory, to use the language of TJ; or, to put it in terms of later Rawlsian lingo, the conception of the good needs to be *thin* and should not be based on or otherwise presume substantive content from a particular general comprehensive doctrine. And it is not enough that there is a conception of the good, whether thin or not: there also needs to be a conception of the agent who holds it, a point offered by “Social Unity and Primary Goods,” with Rawls answering the question “but on what basis do the primary goods come to be accepted?” by saying that “the answer is given by the conception of the person which is fundamental to justice as fairness, together with the practical nature of primary goods.”⁴⁹⁸

So what is the moral of the story? It is that talk of the primary goods requires an account both of their goodness, in this case one given by a thin conception of the good, and their

⁴⁹⁸ Ibid., 364-365.

primacy, which seems to be given by the account of the person. In turn, talk about the primary bads will require an account, first, of their badness, and second, of their primacy.

Given the nature of the topic under consideration in this chapter, the sort of bad I am talking about clearly cannot be the *morally* bad. It cannot be a bad which presupposes any sort of social institution, since it is supposed to ground such institutions. Further, given the fact that we are talking now only about negative politics but negative liberalism, the sort of bad should not presuppose a thick conception of the bad, because this would in turn require a grounding of the conception in broader general comprehensive doctrine, either within the content thereof or in the weaker sense of an entailment. For instance, at *this* level we should not say that the bad to be avoided is cruelty: accounting for the badness of cruelty will require a thick conception of the bad, one which explains why it is a vice at all, let alone the worst one, and this will then require a larger, more controversial account of the place of cruelty in the grand scheme of things. Cruelty is, of course, a bad, but it is open whether it is a primary bad. Does suffering, à la Enoch, do any better? That is, should we say that the primary bads just consist in suffering? I do not think so. The badness of suffering is far more controversial than Enoch cares to admit, and not simply because everyone's favorite immoralist goes out of his way to praise it in BGE 225. Perfectionist accounts of well-being, good lives, etc., of the sort I mentioned above, seem to have a certain amount of difficulty accounting for the badness of pain. In this regard, perfectionism is unlike hedonism: Shelly Kagan writes that

To be sure, the absence of pleasure is bad. But it is bad merely in the sense that it is the lack of something (pleasure) that would be good...hedonism goes beyond this. It posts the existence of something (pain) that is bad in a more robust sense. Just as pleasure is an intrinsic good, robustly good in its own right (and not to be confused with the "mere" absence of bad), pain is an intrinsic bad, robustly bad in its own right (and not to be confused with the "mere" absence of good).⁴⁹⁹

⁴⁹⁹ Shelly Kagan, "An Introduction to Ill-Being," *Oxford Studies in Normative Ethics* 4 (2014), 262.

The badness of suffering is easily accounted for if you accept some sort of hedonism about well-being, but hedonism is, at best, controversial. Perfectionism is just as controversial.

5.6.11 What, then, should we say about the primary bads? My suggestion is that we identify the relevant bad in formal terms, rather than in the more substantive terms appealed to by Shklar and Enoch. (What about Williams? Recall my reading above: I said that I read him as saying that the first political question requires the securing of *things like* order, protection, safety, trust, and the conditions of cooperation, i.e., the freedom from *things like* disorder, exposure, mistrust, and so on. My view is that he accepts a formal account.) So here, I support something akin to Rawls's initial, counterfactual analysis of the primary goods, one which would hold that the primary bads are what we *reject* whatever else we reject. A further strength of this approach is that we can now be pluralists with respect to the content of the primary bads, which allows for the possibility of a variety of reasonable conceptions of the bad, something that any form of negative (political) liberalism should be willing to accept. We can then in turn generate something like a list of the sort Rawls produces when he discusses the primary goods, which will draw upon the thin conception of the human person, the second sort of feature to be articulated. Now, recall that Rawls has a distinction between the natural and social primary goods; similarly, we can draw a distinction between the natural and social primary bads. The natural primary bads will be the bads to which the human being is susceptible in any social context, and hence those bads which are not dependent on features of the social context for their constitution. For instance, even though the concepts we use to identify illnesses and disorders may not be shared across social contexts, that there are (or at least could be) such illnesses and disorders, *however* it is that they are ultimately understood, is something we should expect in any human social context. Since we would want to reject these, whatever else we reject, these constitute primary bads, and given that

they are natural bads from the preceding remarks, it follows that they are natural primary bads. The social primary bads, by contrast, will depend in crucial ways on some sort of interpersonal construction or constitution. (Unlike the social primary bads, I would be subject to the natural primary bads even if I were alone on a desert island.) A certain sort of disempowerment, for instance, such as shunning, is a social primary bad, since an explanation thereof needs to appeal to the activities of other people.

Now, I will not go on to provide a list of social primary bads. But I suspect that many of them will be bads not so much of patiency – recall Enoch’s appeal to suffering – but bads of agency. And this is as we should expect, because human beings are essentially agents and only incidentally patients, given our finitude. This is the second reason to reject Enoch’s account: suffering of the sort he has in mind is important and, indeed, a bad, but politics does not and cannot get going in a community of creatures which are *just* patients, because these creatures could not deliberate, and in turn, could not deliberate with one another. So the circumstances of politics require creatures which are, at the very least, agents. But if they are agents, they are susceptible to the performance of certain activities which amount to a misuse of their agency, and one such misuse is thought to be cruelty, a misuse which is politically relevant given that cruelty is, in general, a vice which arises in an interpersonal context.

The counterfactual, or better yet, the formal analysis of the primary bads, as I mentioned above, has the strength of allowing for different sorts of bad or otherwise disvaluable content to enter the picture: suffering sometimes is all that matters, while others, what matters is cruelty, and so on. Now, regardless of the particular disvaluable content, there will need to be some sort of an explanation with regard to why the particular disvalue is, indeed, *bad* in the first place. Given the context of discussion, these explanations cannot make reference to morality in the first

instance – morality is out the window – nor can they make reference to anything political or, more broadly, interpersonal, since this is what the account is supposed to explain. The only possibility I see is to appeal to human susceptibilities. Now, crucially, the formal analysis of the primary bads allows for the fact that these susceptibilities can indeed change, that is, that what you'd reject, whatever else you reject, is itself a moving target. And this is as it should be, since I argued above that any state needs to keep those over whom it claims authority in a state of comparative powerlessness with respect to itself. As a state grows in power, it need not insist that those under its authority remain, in absolute terms, in the same level of powerlessness, a level of powerlessness which is greater in comparative terms.

Now in one sense, the relevant human susceptibilities are the same in both cases. But what is not the same is what you would reject, whatever else you would reject. A susceptibility seems to be a potentiality, and a potentiality requires something other than itself to bring it into activity (leaving aside certain special cases involving capacities such as reason). So the susceptibilities to the primary bads, themselves identified in formal terms, are also brought into activity by things which can also only be identified in formal terms. If this is so, then the infliction of a primary bad upon an agent need not itself involve an agent to effect the infliction, and in turn, merely being subject to a primary bad is not, by itself, sufficient to license certain distinctively ethical attitudes, such as blame of the sort discussed earlier. Further, even when the primary bad *is* inflicted by an agent, it *still* does not follow that any of the aforementioned distinctively ethical attitudes, such as blame, are licensed. This follows from the claim above, namely that the cause of the primary bad is being identified only in formal terms, because the thinness of the description does not allow us to say, even when the bad is caused by an agent, that the agent has the appropriate motives in her subjective motivational set for blame, directed at

her, to be appropriate, in line with my discussion earlier in the chapter. (Leave aside cases in which the patient suffering a primary bad is the same as the agent causing it.) But despite the fact that various, familiar attitudes are not straightaway licensed by the (mere) imposition of a primary bad upon a particular patient, it does not thereby follow that we cannot evaluate the imposition in various ways, and when the imposition is effected by an agent and the agent evaluates her *own* imposition, either prospectively in deliberation or retrospectively, it becomes plausible to think that the agent must be guided in her evaluation by something like a principle. Since this principle cannot be a moral principle, it must then be a principle of a distinctively political normativity. This distinctively political normativity is indeed one that is occasioned by a susceptibility to the primary bads, as I put it above, and it seems to emerge as a practical normativity – it is the principle which guides certain deliberations – while being non-moral, per its source in the primary bads and the human susceptibilities thereto. Further, it does not seem to me that this can be a form of instrumental normativity. Whatever else such a normativity involves, it involves at least something like a coherence of means and ends. But in a way, bringing to bear talk of means and ends is already too fast. The primary bads need not befall you for an end. This is clear in the case of the natural primary bads, such as natural disasters, but also in the case of the social primary bads as well. When I am a victim of senseless violence, the problem isn't that the means do not advance the end, nor that there is no end, nor anything like that – the issue arises because this is something I reject, whatever else I reject, and without a reason *not* to reject this violence, I just go ahead and do so. What is it that provides for the standards of what counts as a reason not to reject something inflicted upon you? A distinctively political normativity. Such normativity requires that the state be able to offer a reason, one which is *actually* acceptable, to those over whom it claims authority, which explains why what it does,

does *not* constitute a primary bad, where the primary bads stand in contrast to what turn out to be political reasons. And this sounds like Williams's basic legitimation demand.

Moreover, cruelty can be understood with this notion of the primary bads on the table. We could say that cruelty involves the intentional infliction of a primary bad upon Y by X to achieve an end of X. The idea in talking about the "intentional infliction" is to resist the possibility of appealing to a principle such as the Doctrine of Double Effect to try to hold that we should analyze these sorts of cases as those in which the infliction of the bad is foreseen but unintended. This account of cruelty need not be understood as exhaustive: it can be cruel to inflict a bad which is not primary. But I want to leave this aside and focus on the infliction of the primary bads. The liberalism of fear, then, seeks to reduce cruelty in the sense of reducing human activities which involve the infliction of the primary bads, not only in the case of private citizens inflicting such bads on one another, but in the case of the state inflicting them upon citizens as well.

5.6.12 To summarize, then: in this section, I have tried to offer an account of the sources of a distinctively political normativity. The idea in doing so is that even though earlier in the chapter, I argued that certain objections to the political realist thesis, offered by Worsnip and Leader Maynard, do not go through, this is not exactly illuminating because replying to their objections does not seem to further clarify, in an interesting way, the nature of a distinctively political normativity. I have tried to offer such clarification here. I have tried to suggest that, at least in the case of political realists such as Williams and perhaps Shklar, there is an analogy to be made to earlier liberals, such as Berlin: Berlin seems to think that liberalism somehow follows from the truth of value pluralism, and similarly, Shklar and Williams, on my view, can be understood as holding that liberalism is based upon an account of *disvalues*, or bads. For Shklar, the bad is

cruelty, while for Enoch, it is suffering. My suggestion is that we can introduce the notion of the *primary bads*, or those disvalues we would reject, whatever else we reject, and then say that a distinctively political normativity is occasioned by the possibility of the infliction of the primary bads on those in the political community.

So much for these topics.

5.7: Cruelty: A Defense

5.7.1 I have argued against certain objections to political realist's invocation of a distinctively political normativity on the grounds, to put it very briefly, that certain objections beg the question: they assume that a distinctively political normativity can be cryptonormative, which is incoherent, and assume a question-begging picture of the justification of political principles. I have also tried to sketch out a more plausible picture of a distinctively political normativity: on my view, such normativity can indeed be non-moral, yet practical, since it is grounded in the disvalues of the primary bads and their rejection, while not merely being an instance of the normativity of instrumental rationality, because a distinctively political normativity requires not a coherence of means and ends, but something more like actual acceptance of the performance of the action under an appropriate description, and so those acting ought to deliberate about what will be accepted in the process of actual social construction. For these reasons, philosophy will have almost nothing at all to say about such a normativity.

I want to argue that liberal political realism, of the sort offered by Williams, will still not succeed. I want to defend the primary bads by defending their infliction. Or, to put it in terms of what I mentioned briefly above, I want to defend cruelty. The overall argument of the chapter, then, will be complete: a liberal politics cannot be given a moral foundation for reasons given in the earlier chapters, and it cannot be given the most minimal and skeptical foundation of the sort

found in the liberalism of fear because what it opposes is, in a certain sense, not to be opposed at all. The argument will focus on one particular instance of a primary bad, pain. In part this is due to my discussion of pain earlier in the chapter, but primarily due to a desire to have a clear case to consider. The argument will also resemble that offered in chapter 3, though I think it will draw a stronger conclusion because, in a certain sense, I do not have quite as many materials to work with here.

5.7.2 So far, then, I've tried to offer a practical, non-moral, non-instrumental picture of a distinctively political normativity, one which tries to make good on the political realist idea to the greatest extent possible. There is still a question you might have, though: one having to do with the notion of primary bads I introduced above. I said that the primary bads are those things we would reject, whatever else we reject. Why talk about rejection at all here? Why not say that the primary bads are what I do not want, whatever else I do not want? The question does not go away if we remove the ambiguity, introduced by the unclear scope of the negation, by drawing a distinction between a failure to want, on the one hand, and a want *not* to have something befall us, whatever else you want *not* to happen to us, since the question now can be restated in terms of what we want *not* to befall us. So in brief, then: why rejection? Why not simply talk about desire?

The issue that comes out in talking about the failure of a desire will be instructive. If we said that the primary bads are what we fail to want, whatever else we fail to want, then we get unintuitive results. I can fail to want something because it has simply never occurred to me to think about whether I want it or not – to consider a concrete example, perhaps a cool, hip new form of social media would fall into this category, an example that will necessarily have to remain somewhat elusive on the terms of what I want to discuss – but it is implausible that this

cool, hip new form of social media is bad for me, *simply* because I fail to want it. After all, I could learn about it and come to want it, presumably after judging it to be a good. So, failing to want something is not sufficient for something's being a bad. It's also not necessary, for that matter, though we can spare ourselves the discussion of that point and instead move on to the real issue, namely, that the proposal under consideration represents bads as privations of goods, that is, as the absence of desired objects. And while it is true that bads are *sometimes* privations, it does not seem right to say that all bads have this privative quality. After all, recall the remarks from Shelly Kagan above: bads seem not just to be lacks of the good, but things which seem to contribute *something* in a more robust sense. Bads do not merely indicate some sort of lack with respect to well-being, but a positive (or perhaps it would be better to say "negative") contribution to *ill-being*. So, saying that the bad consists in a failure of desire to obtain does not capture what Kagan calls the *robustness* of bads. Pain's badness doesn't seem to consist *just* in the absence of something – the absence of pleasure, say – but in something more than that. There will be a similar problem, I think, even when we try to say that a bad is accounted for in terms of the desire that something *not* befall us. The reason is that, when construed in such a way, bads consist in my failing to get what I want. It sounds, that is, like another case in which the bad turns out to be a privation of the good, and if that is a problem in the above case, then it is also a problem here.

How, then, can we account for this "robustness" of bads, and with it, the robustness of the primary bads? I suppose that in *some* sense, hedonism is an option: after all, Kagan notes that it "contains a theory of *ill-being*," a merit because "[he takes] it to be relatively uncontroversial that any adequate theory of well-being must also contain a theory of ill-being."⁵⁰⁰ Hedonism is,

⁵⁰⁰ Shelly Kagan, "An Introduction to Ill-Being," 262. His emphasis.

however, implausible, and moreover it is deeply unsatisfying in the context of my own discussion here because appealing to it effectively amounts to a refusal to answer the question under consideration. It seems just as unhelpful to opt for something analogous to an objective list theory: if a particular bad appears on the list, then that's all well and good, but something needs to be said to explain why it's on the list in the first place. In the case of well-being or the good more broadly, perfectionism can capture the same sort of objectivity of the objective list theory while attempting to offer an explanation for the question above, i.e., the question why a particular good appears on the list, namely by offering an account in terms of the development of distinctively human capacities. But insofar as we are talking about standard, run-of-the-mill perfectionism, bads won't appear on the list by definition, so we then have to be talking about something analogous to such perfectionism, something which instead focuses not on distinctively human capacities but rather distinctively human – what? Distinctively human *incapacities*? This doesn't seem right.

So far, then, I have tried to show that we need to say something to account for the robustness of bads, and with it, the robustness of the primary bads. I want to take up a suggestion from Shelly Kagan, namely, that we posit a capacity for *aversion*, one to be understood in a way analogous to that of the capacity for desire. The thought, then, is that we can appeal to such a capacity to explain the robustness of the bads, and with it, the robustness of the primary bads. Why does this do any explanatory work at all? I will not offer a fuller story, but whatever else this capacity is, it is something psychological. The idea, then, is that adequate account of the robustness of bads, and with it, the robustness of the primary bads, requires an appeal to psychology, and, in this case in particular, to *human* psychology. Given the discussion of the previous section of the chapter, this should be a welcome result: there, the idea was to try to offer

a non-moral liberalism, and my suggestion was that we do so by grounding it on the basis of disvalues to which any ethical or political system has to pay some sort of attention, and thus disvalues which do not presuppose any such systems in particular, and in turn, only presuppose something about the human being as such. So, at the very least, this capacity of aversion is at least consistent with my discussion up to this point, and moreover, can explain the robustness of bads. A fuller discussion is a topic for future work. For present, it is enough to say that we need to posit this psychological capacity as a condition of the possibility of robust bads or disvalues.

Nothing hangs on identifying this capacity with the name “aversion.” I find it more helpful to refer to it as one of *rejection*.

5.7.3 So far, then, my suggestion is that we posit rejection as a distinct psychological capacity in order to explain the robustness of bads or disvalues. The robustness of the bads is explained by reference to those who are subject to them, in this case human beings, in order to account for the fact that bads are not merely privations of the good. In the case of my example case, then, pain, we would ground its badness not in a desire *not* to be pained, but in an *aversion* to, or in a *rejection* of, pain. Why might I reject pain? Pain, on the imperatival account discussed above, at the very least has *some* imperatival content, though as we saw, certain figures such as Colin Klein hold that pain is exhausted by its imperatival content, a view which is neither here nor there for my purposes. In saying that pain presents me with an imperative not to ϕ , though, there is no commitment to maintaining that this imperative is at the same time a *reason* to ϕ , since the imperative may not be such that failure to obey it is irrational, as in the case of phantom limb pain. At the same time, though, when I act I need to do so for a reason. Pains present me with imperatives which are not, simply in virtue of their being pains, straightforwardly practically intelligible to me, and to that extent, represent failures of an aspiration to certain sorts of

thoroughgoing practical transparency. Pain need not be the perception of a reason, but instead, the perception of an imperative. This seems to open up space for the possibility that my own pains can *disempower* me: by presenting me with imperatives *not* to perform such-and-such an activity, an imperative that would only offer a reason if it included a representation of the end to be achieved, which is exactly the sort of thing the imperative of pain does not present, and which helps explain its failure of intelligibility, but perhaps only in part. In any event, though, insofar as I want to cultivate, in principle, abilities in order to enable the possibility of new ends, pain seems to represent something to be overcome. This might be why I reject them.

Now it seems to me that there are already grounds to begin to argue against the sort of political realism I have discussed above. Whatever else a capacity is, it is a potentiality, and to ascribe a potentiality to something requires we have a prior notion of that potentiality's realization or activity. So making sense of bads, and in turn, primary bads, on the suggestion under consideration so far presupposes the human psychological capacity of disvaluing them or rejecting them, and *that* presupposes the activity of disvaluing or rejecting them. Now, we can further draw a distinction between particular bads, or token instances of bads, and types of bads. Rejecting all token instances of a particular type leaves the type without any content and amounts to extinguishing a particular type of bad. But then, given the nature of the relationship between the bad and human psychology, it looks like there is a second, simultaneous loss, namely, the loss of a human psychological capacity. The capacity for rejection would, in effect, amount to a kind of vestigial organ in human psychology. Any form of negative politics, including forms of negative liberalism of the sort I've discussed in this chapter, is thus committed to an inhibition of human psychological functioning.

The above argument I offer is somewhat strange. The strange character, it seems to me, arises from the very idea of a capacity for rejection. A capacity has a formal object or end towards which it is related in some way, and this allows us to understand not only the function of the capacity, but its *proper* function – its *good* functioning. A capacity for rejection, of the sort under discussion, has the bads as its formal object, and insofar as it rejects particular bads, the capacity functions *well*. (“Aren’t these things then *goods*?” Perhaps this is the point at which we need to follow Nietzsche in his questioning of “the grounding faith of metaphysicians [,] *the faith in the opposition of values*.”⁵⁰¹) Yet if the capacity does what it does too effectively, it brings about its own irrelevance by eliminating the possibility of content for its formal object. Such a capacity has a character similar to a *parasite*, and in this case, we have an instance of a capacity which is similar to what elsewhere⁵⁰² I call a *parasite unto itself*. The strangeness of such a capacity, and with it, the argument above might lead you to ask why we can’t instead say that rejection is something more like an *ability* or a *power*. But to call rejection an ability or a power will then mean that it cannot do the work we needed it to do in introducing it in the first place, namely, to ground the robustness of bads, because it is then no longer clear why rejection is *properly* directed towards bads in the first place. Hence my suggestion that it is a capacity.

5.7.4 What about cruelty? Cruelty can be understood as an act, one of (intentionally) inflicting a bad upon a creature. This is a more substantive, and hence a more controversial, account of cruelty than it initially appears, I think, since it seems like discussions of cruelty alternate between identifying cruelty as the *act* of inflicting a bad upon a creature, on the one hand, with something like the (resulting) feeling of *pleasure* on the other. Hobbes, for instance, has this account in the back of his mind in *Leviathan* when he writes that “*Contempt*, or little sense, of

⁵⁰¹ BGE 2.

⁵⁰² In my unpublished paper “Williams contra Nietzsche in ‘The Human Prejudice.’”

the calamity of others is that which men call CRUELTY, proceeding from security of their own fortune. For, that any man should take pleasure in other men's great harms without other end of his own I do not conceive it possible."⁵⁰³ According to Hobbes, there is clearly a distinctive attitude or response we take towards other who suffer, but that response *surely* cannot be one of pleasure, since "*pleasure...or delight*, is the appearance, or sense, of good; and *molestation or displeasure*, the appearance, or sense, of evil,"⁵⁰⁴ and there is no good, i.e., no end which could ground the response of pleasure in every case of this attitude or response, and so the attitude or response is instead understood by Hobbes to be an instance of *contempt*: "those things which we neither desire nor hate we are said to *contemn*, CONTEMPT being nothing else but an immobility or contumacy of the heart in resisting the action of certain things, and proceeding from that the heart is already moved otherwise, by other more potent objects, or from want of experience of them."⁵⁰⁵ Hobbes has to sanitize his account of cruelty, as a result of which he holds that cruelty consists in not being moved by the misfortune of others, in view of his moral psychology, and I think he is probably appropriately critiqued by Anscombe, who writes in *Intention* that "Hobbes believed, perhaps wrongly, that there could be no such thing as pleasure in mere cruelty, simply in another's suffering; but he was not *so* wrong as we are likely to think. He was wrong in suggesting that cruelty had to have an end, but it does have to have a point,"⁵⁰⁶ where that point is established upon providing an appropriate explanation as to why someone would take pleasure in such a thing.

So, one way of looking at cruelty is in the way Hobbes looks at it, namely, as a kind of response or attitude we take towards the suffering of another: generally, this is understood to be

⁵⁰³ Hobbes, *Leviathan*, ch. VI.

⁵⁰⁴ Ibid.

⁵⁰⁵ Ibid.

⁵⁰⁶ G.E.M Anscombe, *Intention*, 73.

pleasure, but Hobbes himself ends up elsewhere due to his other commitments. Anscombe seems to accept that cruelty is indeed pleasure in another's suffering, where that cruelty is made intelligible, i.e., shown to have a point, when accompanied with the appropriate sort of explanation. A different way of looking at cruelty, though, and the sort of account I want to maintain here, is held by Shklar: indeed, I quoted it above. She writes, recall, that cruelty "is the deliberate infliction of physical, and secondarily emotional, pain upon a weaker person or group by stronger ones in order to achieve some end, tangible or intangible, of the latter."⁵⁰⁷ A similar, albeit not identical, account is used by Victor Nell, who writes that "Cruelty (from the Latin *crudelem*, "morally rough") is the deliberate infliction of physical or psychological pain on a living creature; its most repugnant and puzzling feature is the frequently evident delight of the perpetrators."⁵⁰⁸ Unlike Shklar, Nell doesn't include mention of the infliction of pain for the sake of some end, something I think he needs to do without in order to offer the sort of neurobiological account he is looking to build up. We do not, and indeed, *should* not, follow him in this here, given the sort of project in which we are here engaged, and instead we can assume something like Shklar's account, which includes references to ends.

Now, we have seen two sorts of accounts of cruelty, one which we could perhaps call the *attitudinal* or *response-based account*, whereas the other could perhaps be called the *practical account*. I want to say we accept a practical account of cruelty, in line with my suggestion above, and I want to back this up by an appeal to intuitions regarding what sorts of responses could properly be counted as cruel. As a simplifying assumption, let's say that cruelty consists in the pleasure in another's suffering (despite Hobbes's protestations to the contrary). The difficulty

⁵⁰⁷ Shklar, "The Liberalism of Fear," 11.

⁵⁰⁸ Victor Nell, "Cruelty's Rewards: The Gratifications of Perpetrators and Spectators," *Behavioral and Brain Sciences* 29 (2006), 211-224.

with this sort of account and, I think, with attitudinal accounts generally, is articulating the right way to say that cruelty is the pleasure *in* another's suffering, because not all instances of pleasure in another's suffering count as cruel. You can imagine, for instance, an Islanders fan taking pleasure in watching someone on his team punch out a player on the Rangers. I do not find it intuitive to say, of the fan, that he is cruel. The pleasure the fan takes in the suffering of the Rangers player may be all sorts of things, but "cruel" is not one of them. It does not seem to me that, in this case, there is the appropriate connection between the response (in this case, one of pleasure) and the suffering. Suppose we instead imagine a case in which I am the cause of the suffering. Will this do better? In my view, not quite. Suppose a gust of wind blows a child off the sidewalk and into the path of my car, killing her in a particularly brutal way. It would be hideous and evil if I took pleasure in this ("how lucky!"), but I find it unintuitive to say of me that I am cruel. True, I am the cause of this suffering and death – I did it – but I did not cause the suffering and death through the formation of a relevant intention on my part. But if the identification of the response as cruel requires the formation of a relevant intention on the part of the agent who so responds, it starts looking like the identification of the response as cruel presupposes the practical account of cruelty. Hence, we should accept the practical account of cruelty, according to which cruelty can be understood as an act of intentionally inflicting a bad upon a creature for the sake of some point on the part of the agent inflicting the bad, with other uses of the term "cruelty" understood in reference to this sort of account.

Having argued for an account of cruelty which understands it in terms of the infliction of a bad, we can move ahead. In the case of my paradigm instance of a bad, pain, cruelty consists in the infliction of pain upon a creature. What follows from this? Doing so involves imposing an *imperative* upon a creature, and typically the creature is not able to fulfill it. This disempowers

the creature. Insofar as the creature seeks to cultivate abilities, cruelty necessarily frustrates it. If this picture is right, then you could see why negative liberalism, of the sort developed by Williams and Shklar, might be particularly interested in cruelty, understood in this way. True, I am talking about pain here to focus some intuitions, but the account holds that cruelty is found in the intentional infliction of a *bad* upon a creature, not merely about pain, and whatever else the primary bads are, they are *bads*. So, the infliction of a primary bad upon a creature by another would constitute cruelty.

5.7.5 How could the liberal realist understand state responses to cruelty? We can first consider responses to the natural primary bads and then elaborate upon those. The first political question consists in securing the conditions of something like *freedom* or *relief from* the primary bads, thereby securing a condition of the possibility of various goods, though it may not secure the goods themselves, because the relevant goods may not be mere privations of the primary bads. Now, an example of a natural primary bad is a disaster, caused not by a person but by nature, such as an earthquake or a flood. If citizens are subjected to a natural primary bad, and if the state is legitimate only insofar as it can secure freedom from the primary bads, then citizens appear to have a claim, against the state, for its aid. Providing relief from the primary bads thus can take the form of providing disaster relief, and the failure to provide such relief undermines the legitimacy of a state. (It is telling that even ancient political communities provided disaster relief.⁵⁰⁹) In this sort of case, the state would need to provide a reason why it does *not* provide relief – that is, it needs to *explain itself* to its citizens.

Things work similarly in the case of the social primary bads. Take, say, theft. Not all instances of theft are equally important because not all goods are equally valuable, and while it is

⁵⁰⁹ See Bill Kte'pi, "History of Disaster Relief, Ancient World," in *Encyclopedia of Disaster Relief*, edited by K. Bradley Penuel and Matt Statler (Thousand Oaks, CA: SAGE Publications, Inc., 2011), 275-278.

true that, in a purely formal sense, you commit theft when you take a toothpick from my house after I tell you in no uncertain terms that my toothpicks are *mine* (assuming the loss of a toothpick can constitute a primary bad in the first place, a point which is not obvious), it is also true that such an instance of theft is too trivial and stupid to take seriously. This is the theft of something which would fall below *de minimis* thresholds and is unworthy of action by the state. Assume, then, the theft of a good which is worth taking seriously, such that the loss of the good constitutes a primary bad, and then assume, further, that the good is taken by another person, rather than (say) being destroyed by a natural disaster as in the case above. In such a case, the state can maintain legitimacy only insofar as it can offer relief. Some of this relief may take the form of offering the victim the opportunity to sue for damages or, alternatively, penalizing the offender and extracting damages from them to compensate the victim. In this case, however, since we are dealing with a social primary bad, the state also needs to provide a distinctively social form of relief for the victim. This can be provided by *punishment*. The loss of the good, recall, constitutes a primary bad, and it is plausibly to say that this sort of loss can (in a certain respect) disempower the victim of the theft. This disempowerment consists not only in the loss of an ability, but in the *reputation* of having lost an ability. After all, if “reputation of power is power, because it draweth with it the adherence of those that need protection,”⁵¹⁰ then it is plausible to think that the reputation of a *lack* of power is itself a lack of power, and the reputation of *disempowerment* is itself a disempowerment, for the same sorts of reasons that the reputation of power attracts those who need those with power, except in these cases, the reputation of a lack of power or of disempowerment attract those who are looking for the (relatively or absolutely) *powerless*. A bad reputation makes you into a *target*. So, the state needs

⁵¹⁰ Hobbes, *Leviathan*, ch. X.

to offer relief from this sort of primary bad. The difficulty is that the state cannot simply announce that “so-and-so is an equal citizen” because this presupposes that they were not, and in turn, the state promulgates their poor reputation. So the state must address their inequality and provide relief through a course of action which carries the *implication* – recall the discussion of Weber – that the citizen is, in fact, empowered in the way anyone else is. One way of doing this is through the state’s pursuit of criminal charges against the offender. This carries the implication that the citizen carries the reputation of disempowerment *contingently*, rather than necessarily.

It is important to note that the state itself can perpetuate social primary bads. That is, the state can act in such a way as to inflict a bad upon someone which they reject, whatever else they reject. Williams himself has a favorite example found in the relation (or perhaps more accurately, the lack thereof) between the Spartan city and the helots, writing that “the citizens of ancient Sparta regarded the Helots openly as enemies, and in at least one period, the Spartan official, on taking office, renewed a declaration of war against them. The frequent Helot ‘revolts’ were thus simply attempts to fight back.”⁵¹¹ This case is interesting because Williams takes it as one in which the state simply owns up to the fact that the Helots do not accept the legitimacy of the Spartan city and responds, not with an attempt to offer a justifying explanation, but with the abandonment of any such attempt in favor of war. The state here makes no attempt to provide relief from the relevant, social, primary bads, of which it is the source. Additionally, with the appropriate details, this (absence of a) relation could also be held to be one in which the Spartan state inflicts *cruelty* upon the Helot population, since it is a case in which an agent – here, the agent is the city, since cruelty need not be restricted to natural persons – intentionally inflicts

⁵¹¹ RM 5. See also *Shame and Necessity* 106 and n. 7, p. 201; “From Freedom to Liberty: The Construction of a Political Value,” in *In the Beginning was the Deed*, 95 n.21; “Toleration, a Political or Moral Question?”, in *In the Beginning was the Deed*, 135.

upon another (or here, many others) a primary bad with a view to achieving some end, such as control of the Helot population.

Cruelty need not just take the form of, say, physical violence, however. A joke can be cruel, for instance. Can a joke inflict (or even constitute) a primary bad? Yes. It is easy to think otherwise, in part because of the examples above, and in part because the language of “primary bads” can be heard as saying something like “basic bads” or “fundamental bads,” and *those* phrases can be glossed as meaning something like “the bads of the *body*.” But that would be a mistake. Think again of the primary goods: what we want, whatever else we want. True, bodily integrity is something I want, whatever else I want, as is income and wealth, which can be understood as means to some bodily end, and since I want the latter whatever else I want, it can then sound like I do so in the case of the former as well. But recall that Rawls takes one of the primary goods, indeed a central primary good, to be self-respect, and in turn, the social bases of self-respect are primary goods as well. All of this requires interpersonal respect. How might a joke really turn out to be cruel? It can be an expression of interpersonal disrespect, and disrespect is something we would, plausibly, reject, whatever else we reject. Insults, similarly, could constitute either an expression of cruelty or cruelty itself for the same sort of reason, along with attacks on one’s character more broadly. From this it follows that the state needs to have laws regarding (what we call) libel and slander.

5.7.6 So far, then, we’ve talked about how physical acts of force could constitute or otherwise express cruelty, as well as how certain forms of speech could do so as well. This also allows us to distinguish cruelty and the pain (or, more broadly, the primary bad) it inflicts, on the one hand, from the pain of blame on the other. Recall the discussion of blame and its proleptic function above: there, I talked about the way in which an appropriate motive on the part of the blamed

party can render blame appropriate (or fit, or apt, or justified, or whatever), even in those cases in which failed to have a reason to perform the action they are blamed for having failed to perform, namely through the possession of a motive to gain the respect of, among others, the blamer. (Or, alternatively, to fail to earn the *disrespect* of the blamer.) We can now also see how inappropriate blame might fail to provide you with a reason – it might fail, that is, to provide you with a consideration that only in retrospect you can see you had the whole time, and a consideration, importantly, which makes intelligible the action it requires of you. Despite this, inappropriate blame doesn't merely present itself to you as mere noise which bounces off your eardrums. Perhaps it doesn't give you a reason, but it *could* still give you something to do, and not merely in the sense that you now are to break off typical ethical relations with the blamer and fight it out instead (verbally, one hopes). Rather, in at least *some* cases, you gain a *mere* imperative, or perhaps at the limit something which is like an *illusion* of an imperative, a knockoff imperative as it were. The imperative is a mere imperative because it does not make clear to you the actions (or activities) it requires of you: the rationale behind its fulfillment conditions are something of a mystery to you. There are limits on the extent to which you can successfully act on such imperatives: after all, by hypothesis such action will be, at the end of the day, unintelligible to you. But not all forms of unintelligibility are equally troubling: some are quite troubling, but others are pretty easily handled through the creation and use of a thought-terminating cliché. And in some cases, what is at first understood as an unintelligible cruelty turns out, down the line, not to be an instance of proleptic blame – perhaps you do not gain any motive to respect the person who inflicted the cruelty upon you, a necessary condition of appropriate proleptic blame, as we have seen above – but to be something which is nevertheless intelligible after all. Cruelty, that is, can be, as it were, *educational*.

We need to unpack this idea.

5.7.7 In what way, then, can cruelty be educational? We can begin by drawing a distinction between education in a *theoretical* sense and in a *practical* sense. The distinction I have in mind here is more or less like the distinction I used when I discussed the way to distinguish the principles of first and second nature in section 5.4: the principles of first nature can operate in isolation from their being known – their being *actually* known, that is, since they must be such that they are at least knowable *in potentia* – while the principles of second nature can operate only through their being known. In the case of education, the idea would be that education in a theoretical sense involves education as to what already is there anyway, while in the practical sense, there is an education more in the sense of what is *to be* there ultimately.

I am not interested in discussing the idea that cruelty is educational in a theoretical sense.⁵¹² It is true that it is, or at least, that it can be: suffering cruelty (i.e., actually) can remind you of something that was there the whole time anyway, namely, that suffering cruelty was always possible, and if it was possible for me to suffer it, it was possible for you too. The order, protection, safety, trust, and conditions of cooperation which Williams mentions at the beginning of “Realism and Moralism in Political Theory” are, indeed, real goods, goods which are constituted through the elimination of the primary bads via the provision of an answer to the first political question. They are still, however, very *fragile* goods. Even in conditions of significant order, protection, safety, and trust, you can still punch me in the face. The aforementioned goods are always already living on borrowed time, and that, I think, *does* tell you something about the

⁵¹² Compare with David Enoch, “Giving Practical Reasons,” *Philosophers’ Imprint* 11 no. 4 (March 2011), 3–4 on what he calls the “purely epistemic” form of reason-giving. In this sort of reason-giving, “the role of the giving here has nothing to do with the reason’s existence, and everything to do with my knowing that it is there, appreciating it, and acting for it.” As Enoch notes, a barometer could give a reason in the purely epistemic sense by enabling you to appreciate the reason you had anyway, namely to carry an umbrella when you go out.

character of liberalism: it is a *very* significant achievement to *keep* a society liberal.

Contemporary liberal complacency is, in a sense, doubly wrong: it involves a misunderstanding of what liberals *have done*, and a misunderstanding of what liberals *are to do*. But the important thing to note is that none of these reminders are such that *only* cruelty can deliver them, because there are natural primary bads in addition to the social ones.

In any event, the above remark to the effect that I am not interested in education in the theoretical sense would then seem to imply I am interested in education in the practical sense, and so I want to try to say that cruelty can, indeed, be *practically educational*.

What does it mean for cruelty to be practically educational? It is helpful, at this point, to return to the discussion of blame's proleptic function above in the later parts of section 5.4.

Recall the context, which was the puzzle for the internal reasons theorist and one that arises in the context of my earlier discussion of practical definitions: if there are only internal reasons for action, there seems to be something suspicious about what Williams calls "addressed blame" for some action or omission, because the blamed party either has a motive for their action or omission or they don't; if they do, blame is unwarranted, because they acted, from their own point of view, rationally; if they don't, blame is also unwarranted, because we blame them on the basis of a motive they not only failed to have but *couldn't* have, per the internal reasons thesis; as such, blame is unwarranted. Against this, Williams holds that blame can be warranted (or apt, or fitting, or whatever) in these cases if the blamed party has a motive in their subjective motivational set (i.e., their S) to the effect that they want to earn the respect of the blamer (or to avoid their disrespect, or whatever), since at that point, the act of blame itself constitutes a motive in the blamed party's S to perform or avoid the relevant action for which they are being

blamed, with the particular instance of blame being construed, as we saw, as a form of “retrospective advice.”

Proleptic blame is practically educational in my sense. Why? First, it is, indeed, practical: the point of such blame isn’t merely to enable an agent to notice something about one of their motives to which they had not yet drawn their attention but, rather, to *give* them a motive, or if not that, then a further practical precisification or specification of an already-existing motive. Doing so requires that the activity of giving advice also be one in which motives can be given, and while it is true that not every instance of advice-giving involves giving a reason or a motive – Joshua Habgood-Coote, for instance, holds that advising is best understood as co-deliberation⁵¹³ – it is false that none of them do, which then allows the practicality requirement to remain standing. Second, though, proleptic blame is, recall, blame *addressed* to the blamed party. Not only will the blamed party gain a new motive and, in turn, a new reason, but they will know they have so gained. That is, they do not just gain a reason – they gain knowledge of the reason they have so gained. (After all, it is consistent with the internal reasons thesis that you may have a reason but fail to know you have that reason – as long as you can arrive at that reason by the so-called “sound deliberative route,” it is still a reason for you to act in some way or another.) It sounds, then, like what the blamed party has gained is a distinct form of self-knowledge, something like *practical knowledge*. Through being blamed, the blamed party complies with the most famous of the Delphic maxims: *know thyself*.⁵¹⁴

⁵¹³ Joshua Habgood-Coote, “Thinking Together: Advising as Collaborative Deliberation,” *Philosophers’ Imprint* 24, no. 1 (2024).

⁵¹⁴ Note that what I have suggested here is that proleptic blame is sufficient for the cultivation of self-knowledge, not that it is necessary.

Blame's proleptic function, then, constitutes a process for the cultivation of practical knowledge.⁵¹⁵ Further, there are at least *some* forms of practical knowledge which can *only* be arrived at through the process of proleptic blame. Why? We understand our motives and our reasons in terms of a wider contrast class. Some motives and reasons are sufficiently important that they can only stand in contrast, not to the possession of other reasons, but rather, in contrast to the primary bads, such as *pain*. And pain, recall, presents the subject with an imperative, namely, the imperative *not* to act in such-and-such a way. That pain will crucially involve a reference to the relevant motive, reason, virtue, or whatever. As such, the agent has a motive to perform A on the basis of some reason R in their S, and if they should fail to perform A for some reason or another, they will know what they did is wrong, and they will *feel it*. But to feel it, they first need to be *made* to feel it, since the agent has their reasons not by nature but by convention, and in turn, they also have responses to failures to act in accordance with their reasons not by nature, but by convention. This is why it is important to punish children when they hit their parents, siblings, pets, or whoever or whatever else, to consider just one example: they need to see their reasons to get along with others only in contrast to pain or another primary bad, where that pain is felt precisely in response to hitting others. As I put something like this thought in section 5.4, certain reasons and motives have to be made into their only option.

What seems to be found in these sorts of cases is a distinctively *interpersonal* deployment of the capacity for rejection. At some level, the possibility of this use of rejection should not be at all surprising: after all, if cruelty involves the infliction of a primary bad on some agent A by another agent B, then we need to explain why that cruelty is, indeed, *cruelty* by reference to,

⁵¹⁵ If blame were only educational in the theoretical sense, i.e., if blame only had a (theoretical) epistemic function, you could then raise the question of whether blame is reliable. In the present case, though, it does not seem to me that that question will arise in any straightforward way, and as such can simply be dismissed.

among other things, what A rejects (whatever else they reject). Not every omission, nor every failure to display a particular ethical virtue, is equally troubling because in some cases, all we find is a mere privation of action, or a mere lack of a virtue, or whatever. And as we saw above, not all lacks are equally troubling because not all lacks amount to, or are otherwise, as it were, filled, by a robust bad, i.e., a primary bad. To accommodate the fact that certain ethical dispositions (or failures of disposition), or certain omissions, etc. do not constitute mere privations of value, but rather constitute distinctive disvalues, we need to allow for rejection to be directed at things like the dispositions of agents. This will, in turn, allow us to accommodate a distinctively sort of *hostile* blame, the hostility being captured by the thought that the act or disposition for which the blamed party is being blamed is the object of the blamer's rejection. The blamer, in other words, takes the blamed party to have acted in such a way, or to exhibit a disposition, as to constitute a primary bad.

5.7.8 Cruelty, I want to suggest, can function similarly: that is, it can function in the sort of way I have called *practically educational*, and further, there are certain motives and reasons which can *only* be cultivated through cruelty. But the crucial point against the liberalism of fear is the following: there will be a distinct need within the liberalism of fear, *and it is a need that only cruelty can fill*. I will approach this topic by starting with the latter thought.

5.7.9 The liberalism of fear, like any sort of liberalism, needs to provide for enforcement mechanisms. The reasons for this are clear: according to the political realist, states are legitimate only if they can answer the first political question, and answering the first political question requires coercion. The liberal accepts either additional constraints on what constitutes an appropriate answer or has a different understanding of what *an answer* consists in: both of these come to the same thing for present purposes, and so the difference does not matter here. Liberals,

then, support coercion, hence the thought that the liberalism of fear needs to provide for enforcement mechanisms.

These enforcement mechanisms *cannot*, however, operate on the model of proleptic blame. The reason for this is simple: blame's proleptic function as sketched out and discussed above can operate only if the blamed party has an appropriate motive in their S to the effect that they wish to earn the respect (or avoid the disrespect, etc.) of the blamer. But we *cannot* assume any such motive on the part of those who violate state laws. The liberalism of fear is not Rawlsian political liberalism: there is no assumption to the effect that we are talking about *reasonable* citizens, i.e., citizens who, in accepting that their fellow citizens are free and equal persons, *respect* one another. It is, of course, politically expedient to educate citizens in such a way that they will respect both one another and state authority, but saying this, in the present context, simply amounts to an admission of my point. It is also not possible to respond, I think, by saying that, in the way the political moralist – think Rawls, though Larmore is even more explicit on this point⁵¹⁶ – draws a distinction between ideal and non-ideal theory, and then holds that the present discussion is a part of non-ideal theory, since the (actual) use of coercion presupposes that citizens have gone wrong, in some way or another, with respect to state laws and principles, so too can the political realist draw a distinction between ideal and non-ideal theory and consign the present issue to non-ideal theory. There does need to be a principled reason for saying the distinction cannot arise in political realism – after all, it does not sound altogether crazy to say that, in the way that one can construct a theory of full compliance and of partial compliance in the case of PM, one could also construct a theory of full and of partial

⁵¹⁶ Larmore writes that “respect for persons...forms, then, the underlying moral basis of the liberal principle that the fundamental rules of political association are legitimate only if they can be the object of reasonable agreement among those whom they are to bind.” See Charles Larmore, “Political Liberalism: Its Motivations and Goals,” 79.

compliance with a distinctively political normativity. Further, it does not seem altogether satisfying to lean on the idea I sketched in the later parts of 5.4 to the effect that any theory of a distinctively political normativity will also be a partisan theory and hold that the suggestion we can draw such a distinction is a partisan political move, since this seems very *ad hoc*. But the real reason this will not go anywhere, I think, is because we have already, in effect, made the idealization, and the objection asks for a *further* idealization. Where has the idealization been offered? *This entire chapter*. Since it is consistent with the picture of a liberal, distinctively political normativity, provisionally sketched out in this chapter, that citizens can fail to have various motives while remaining citizens of a state, it follows that citizens could fail to have a motive for respecting one's fellow citizens in a liberal state. This should be addressed not philosophically, but politically, with one way of addressing the issue taking the form of civic education, per the suggestion earlier in the paragraph.

So, the liberal needs coercion, and so the liberal of fear needs coercion. Further, this coercion needs to be effective regardless of the motives in the subjective motivational set of the target of coercion, and so it cannot presume any of them. So the mechanisms of coercion cannot appeal to some prior, already given motive, as in the case of blame's proleptic function. Still, to effectively coerce and to issue the appropriate threats of coercion, there need to be bads which can be inflicted upon targets of coercion. The thinness we need in any account will be found in a thin theory of the bad, which specifies that the relevant bads are the primary bads: the bads we reject, whatever else we reject. But to intentionally inflict the primary bads upon another is cruelty. So, the liberal political realist both opposes cruelty in their opposition to the primary bads, *and yet needs cruelty in order to coerce*. And this is a contradiction.

5.7.10 As such, it does not seem to me that Williams's liberal political realism is successful. It is a form of negative politics, in that it understands a distinctively political normativity to be occasioned by a susceptibility to what I have called the primary bads – the bads that we reject, whatever else we reject. But the liberal political realist also needs coercion, and since this coercion can be understood as a form of interpersonal rejection, it follows that the liberal political realist needs to commit themselves to the intentional infliction of the primary bads upon those who break state laws and principles. But this is just more cruelty, since cruelty is the intentional infliction of a primary bad. A politics of anti-cruelty itself needs cruelty to enforce its own dictates.

5.8: Conclusion

5.8.1 This chapter and its discussion of liberal political realism is perhaps something of a let-down, akin to watching a movie that invokes a *deus ex machina*, or ends with a character saying that “it was all a dream,” or something to that effect. But sometimes, it really is just a dream. In fact, even in philosophy, it is sometimes a dream. Parfit ends *Reasons and Persons* needing some indeterminate Theory X, yet unable to provide it. Despite that, *Reasons and Persons* does not seem like a waste of time, though, for either the reader or for the author.

5.8.2 Can we say something similar about this chapter, and indeed, the entire project of which this chapter is a part? This chapter ends in failure: it considers and rejects a form of liberalism which could survive the rejection of morality on the grounds of its internal incoherence. Since this is the most minimal form of liberalism available and, moreover, the only plausible form of liberalism which could indeed survive a rejection of morality, since it does not presuppose the normativity of morality, nor does it help itself to (dis)evaluative concepts which only gain currency through the norms of morality, we seem to have to conclude that liberalism is

incoherent. And the chapter draws this conclusion after a considerable amount of time has been spent on the examination of that aforementioned form of liberalism.

Still, though, could it be the case that the chapter represents something other than a (total) waste of time? “Philosophy is not a body of doctrine, but an activity,” Wittgenstein writes.⁵¹⁷ The chapter and the larger project is not only a failure, but a waste, insofar as it is read as the attempt to offer a body of doctrine. But insofar as it is read as a *prompt* to philosophical activity, or as a *record* of such activity, it is less wasteful.

⁵¹⁷ TLP 4.112.

Chapter 6: Concluding Remarks

6.1: Opening a Gap

6.1.1 In the first chapter, I wrote that I would at some point return to discussing how to read the dissertation. This is that point.

I have tried to argue that a broadly naturalistic Kantianism incorporates the person as a kind of self-undermining, self-rejecting subject. Morality, if it is our way of being animals, is very much unlike *health*; no form of health requires the creature to kill itself, but I have argued that this is so on the sort of picture I have developed here.

This sort of argument can be read in several ways. It can be given a straight reading, as meaning what it says; on that view, it might be read as offering a novel argument for a certain sort of human extinction, one based not primarily on notions of the good, i.e., on evaluative notions, like that of Benatar, but on a different set of concepts. It can alternatively be read as a *reductio*, and in particular as a *reductio* against that kind of Kantianism which attempts to dispense with the allegedly heavy-handed metaphysics of transcendental idealism and replace that metaphysics with something like the set of practical ideas given to us by history. It can perhaps also be read as a *reductio* not so much in content as much as in *method*, namely, against something like the traditional philosophical project of retreating into yourself, as Descartes explicitly says he does in the first *Meditation*, and in favor of a picture of things in which philosophical reflection itself requires something like a “steadying of the mind” discussed by Williams in *Truth and Truthfulness*. In a weaker version of this view, reflection requires social checks through proleptic blame due to “the unnoticed influence of sensibility on understanding.”⁵¹⁸ A stronger version would instead say that philosophical reflection itself, the

⁵¹⁸ A294/B350.

understanding itself, is necessarily diseased; it is constituted not by laws but by something more like the illusions of laws. Other readings of the dissertation are possible, I suspect. I myself am not sure how it is best read. I think a crucial issue, one that I do not understand, is *naturalism*. Naturalism is, in some sense, an Enlightenment ideal, and in that guise, naturalism is more complicated than any account thereof which makes it out to be the idea of a crude reductionism of the language of some given theory to the theory of fundamental physics. In particular, I think it is critical to understand, first, what naturalism is, but moreover, whether the most plausible understanding of naturalism provides us with a picture of the world, ourselves, and one another that is amenable to our ethical aspirations. It is not clear to me that naturalized Kantianism is amenable to our ethical aspirations. But Kantianism is just one interpretation of morality.

In short, I read the main arguments of this dissertation, along with some of the lesser arguments made along the way, as generating more questions than answers.

6.1.2 Perhaps this is just to say, then, that the dissertation results in ἀπορία – aporia. One of the definitions of ἀπορία in the LSJ states that the term means “in Dialectic, *question for discussion, difficulty, puzzle,*” a welcome result for this dissertation. Another welcome result: ἀπορία, when said “of persons, [can mean] *difficulty of dealing with or getting at,*” as well as “*being at a loss, embarrassment, perplexity, distress, discomfort.*”

Bibliography

- Alsup, Clayton James Monck. "Alienation, Agency, and Identity." PhD dissertation, University of Illinois Urbana-Champaign, 2021.
- Altham, J. E. J. "Reflection and Confidence." In *World, Mind, and Ethics: Essays on the Ethical Philosophy of Bernard Williams*, edited by J. E. J. Altham and Ross Harrison. Cambridge University Press, 1995. <https://doi.org/10.1017/CBO9780511621086.009>.
- Anscombe, G. E. M. *Intention*. 2nd ed. Harvard University Press, 2000.
- Armour-Garb, Bradley. "Deflationism (About Theories of Truth)." *Philosophy Compass* 7, no. 4 (2012): 267–77. <https://doi.org/10.1111/j.1747-9991.2011.00464.x>.
- Bagley, Benjamin. "Properly Proleptic Blame." *Ethics* 127, no. 4 (2017): 852–82. <https://doi.org/10.1086/691626>.
- Basu, Rima. "Risky Inquiry: Developing an Ethics for Philosophical Practice." *Hypatia* 38, no. 2 (2023): 275–93. <https://doi.org/10.1017/hyp.2023.39>.
- Benacerraf, Paul. "Mathematical Truth." *The Journal of Philosophy* 70, no. 19 (1973): 661–79. <https://doi.org/10.2307/2025075>.
- Ben-Moshe, Nir. "A Defense of Modest Ideal Observer Theory: The Case of Adam Smith's Impartial Spectator." *Ethical Theory and Moral Practice* 24, no. 2 (2021): 489–510. <https://doi.org/10.1007/s10677-021-10187-3>.
- Ben-Moshe, Nir. "An Adam Smithian Account of Moral Reasons." *European Journal of Philosophy* 28, no. 4 (2020): 1073–87. <https://doi.org/10.1111/ejop.12495>.
- Ben-Moshe, Nir. "Comprehensive or Political Liberalism? The Impartial Spectator and the Justification of Political Principles." *Utilitas* 33, no. 3 (2021): 253–69. <https://doi.org/10.1017/S0953820820000394>.
- Berker, Selim. "Is There Anti-Fittingness?" *Ergo an Open Access Journal of Philosophy* 11, no. 0 (2024). <https://doi.org/10.3998/ergo.6916>.
- Berlin, Isaiah. "Two Concepts of Liberty." In *Liberty: Incorporating Four Essays on Liberty*, edited by Henry Hardy. Oxford university press, 2002.
- Berlin, Isaiah. "Two Concepts of Liberty." In *The Proper Study of Mankind: An Anthology of Essays*, First Farrar, Straus and Giroux paperback edition, edited by Henry Hardy, Roger Hausheer, and Noel Gilroy Annan. Farrar, Straus and Giroux, 2000.
- Bevir, Mark. "What Is Genealogy?" *Journal of the Philosophy of History* 2, no. 3 (2008): 263–75.
- Blackburn, Simon. "Lonely in Littlemore: Confidence in Ethics and the Limits of Philosophy."

- In *Ethics Beyond the Limits: New Essays on Bernard Williams' Ethics and the Limits of Philosophy*, edited by Sophie Grace Chappell and Marcel van Ackeren. Routledge, 2018.
- Blanchard, Joshua. "Moral Realism and Philosophical Angst." In *Oxford Studies in Metaethics Volume 15*, edited by Russ Shafer-Landau. Oxford University Press, 2020.
- Brandom, Robert. "Facts, Norms, and Normative Facts: A Reply to Habermas." *European Journal of Philosophy* 8, no. 3 (2000): 356–74. <https://doi.org/10.1111/1468-0378.00115>.
- Burnyeat, Myles, ed. "Anger and Revenge." In *Explorations in Ancient and Modern Philosophy*, vol. 3. Cambridge University Press, 2022. Cambridge Core. <https://doi.org/10.1017/9781009047982.018>.
- Callard, Agnes. *Aspiration: The Agency of Becoming*. Oxford University Press, 2018.
- Callard, Agnes. "The Reason to Be Angry Forever." *The Moral Psychology of Anger* (London), 2017, 123–37.
- Cappelen, Herman. "Conceptual Engineering: The Master Argument." In *Conceptual Engineering and Conceptual Ethics*, 1st ed., edited by Alexis Burgess, Herman Cappelen, and David Plunkett. Oxford University Press Oxford, 2020. <https://doi.org/10.1093/oso/9780198801856.003.0007>.
- Chappell, Sophie Grace. *Epiphanies: An Ethics of Experience*. Oxford University Press, 2022.
- Cholbi, Michael J. "Egoism and the Publicity of Reason: A Reply to Korsgaard." *Social Theory and Practice* 25, no. 3 (1999): 491–517.
- Cottingham, John. "The Good Life and the 'Radical Contingency of the Ethical.'" In *Reading Bernard Williams*, edited by Daniel Callcut. Routledge, 2008.
- Crowder, George. "Pluralism and Liberalism." *Political Studies* 42, no. 2 (1994): 293–305. <https://doi.org/10.1111/j.1467-9248.1994.tb01913.x>.
- Cutter, Brian and Philosophy Documentation Center. "From Moral Realism to Axiarchism: A Metaphysical Response to the Debunking Challenge." *Midwest Studies in Philosophy* 47 (2023): 73–101. <https://doi.org/10.5840/msp2023102741>.
- Dancy, Jonathan. *Ethics without Principles*. Clarendon Press, 2004.
- Davis, Wayne A. "The Varieties of Fear." *Philosophical Studies* 51, no. 3 (1987): 287–310. <https://doi.org/10.1007/BF00354040>.
- DeRose, Keith. "Contextualism and Knowledge Attributions." *Philosophy and Phenomenological Research* 52, no. 4 (1992): 913–29.
- DeRose, Keith. "Solving the Skeptical Problem." *The Philosophical Review* 104, no. 1 (1995): 1–52.

- Earp, Brian D., Olga A. Wudarczyk, Anders Sandberg, and Julian Savulescu. "If I Could Just Stop Loving You: Anti-Love Biotechnology and the Ethics of a Chemical Breakup." *The American Journal of Bioethics* 13, no. 11 (2013): 3–17. <https://doi.org/10.1080/15265161.2013.839752>.
- Ellis, Addison. "The Self-Conscious Form of Rational Faith." In *Kant's Project of Enlightenment: Proceedings of the 14th International Kant Congress/Kants Projekt Der Aufklärung: Kongressakten Des 14. Internationalen Kant-Kongresses*, edited by Christoph Horn, Margit Ruffing, and Rainer Schäfer. De Gruyter, forthcoming.
- Engstrom, Stephen. "The Transcendental Deduction and Skepticism." *Journal of the History of Philosophy* 32, no. 3 (1994): 359–380.
- Enoch, David. "Agency, Shmagency: Why Normativity Won't Come From What Is Constitutive of Action." *Philosophical Review* 115, no. 2 (2006): 169–98.
- Enoch, David. "Giving Practical Reasons." *The Philosopher's Imprint* 11, no. 4 (2011): 1–22.
- Enoch, David. "Hypothetical Consent and the Value(s) of Autonomy." *Ethics* 128, no. 1 (2017): 6–36.
- Enoch, David. "Politics and Suffering." *Analytic Philosophy* 66, no. 1 (2025): 1–21. <https://doi.org/10.1111/phib.12318>.
- Enoch, David. "Shmagency Revisited." In *New Waves in Metaethics*, edited by Michael Brady. Palgrave-Macmillan, 2011.
- Enoch, David. *Taking Morality Seriously: A Defense of Robust Realism*. Oxford University Press, 2011.
- Enoch, David. "Wouldn't It Be Nice If P , Therefore, P (for a Moral P)." *Utilitas* 21, no. 2 (2009): 222–24.
- Erlenbusch-Anderson, Verena, and Amy Nigh. "Genealogy." In *Oxford Research Encyclopedia of Literature*, edited by Deidre Shauna Lynch. Oxford University Press, n.d. <https://doi.org/10.1093/acrefore/9780190201098.013.978>.
- Erman, Eva, and Niklas Möller. "Distinctively Political Normativity in Political Theory." *Philosophy Compass* 17, no. 6 (2022): e12835. <https://doi.org/10.1111/phc3.12835>.
- Ferrero, Luca. "Constitutivism and the Inescapability of Agency." *Oxford Studies in Metaethics* 4 (2009): 303–33.
- Ferrero, Luca. "The Simple Constitutivist Move." *Philosophical Explorations* 22, no. 2 (2019): 146–62.
- Firth, Roderick. "Ethical Absolutism and the Ideal Observer." *Philosophy and Phenomenological Research* 12, no. 3 (1952): 317. <https://doi.org/10.2307/2103988>.

- Fix, Jeremy David. "The Error Condition." *Canadian Journal of Philosophy* 50, no. 1 (2020): 34–48. <https://doi.org/10.1017/can.2019.14>.
- Frankfurt, Harry G. "Freedom of the Will and the Concept of a Person." *Journal of Philosophy* 68, no. 1 (1971): 5–20.
- Frazer, Elizabeth. "Max Weber on Ethics and Politics." *Politics and Ethics Review* 2, no. 1 (2006): 19–37.
- Fricker, Miranda. "Confidence and Irony." *Morality, Reflection, and Ideology*, 2000, 87–112.
- Fricker, Miranda. "What's the Point of Blame? A Paradigm Based Explanation." *Noûs* 50, no. 1 (2016): 165–83. <https://doi.org/10.1111/nous.12067>.
- Gaus, Gerald F. "The Diversity of Comprehensive Liberalisms." In *Handbook of Political Theory*, by Gerald Gaus and Chandran Kukathas. SAGE Publications Ltd, 2004. <https://doi.org/10.4135/9781848608139.n8>.
- Gert, Joshua. "Korsgaard's Private-Reasons Argument*." *Philosophy and Phenomenological Research* 64, no. 2 (2002): 303–24. <https://doi.org/10.1111/j.1933-1592.2002.tb00003.x>.
- Gettier, Edmund L. "Is Justified True Belief Knowledge?" *Analysis* 23, no. 6 (1963): 121–23.
- Geuss, Raymond. "Genealogy as Critique." In *Outside Ethics*. Princeton University Press, 2005.
- Geuss, Raymond. "Goals, Origins, Disciplines." In *A World without Why*. Princeton University Press, 2014.
- Geuss, Raymond. "Moralism and Realpolitik." In *Politics and the Imagination*. Princeton University Press, 2010.
- Geuss, Raymond. *Public Goods, Private Goods*. Princeton University Press, 2001.
- Geuss, Raymond. "Virtue and the Good Life." In *Outside Ethics*. Princeton University Press, 2005.
- Goodell, Roger. *Official Playing Rules of the National Football League*. no. 2024 (2024).
- Gordon, Robert M. "Fear." *The Philosophical Review* 89, no. 4 (1980): 560–78.
- Griffiths, A. Phillips. "Ultimate Moral Principles: Their Justification." *The Encyclopedia of Philosophy* 8 (1967): 177–82.
- Habgood-Coote, Joshua. "Thinking Together: Advising as Collaborative Deliberation." *Philosophers' Imprint* 24, no. 1 (2024): 1–19. <https://doi.org/10.3998/phimp.3047>.
- Hall, Richard J. "If It Itches, Scratch!" *Australasian Journal of Philosophy* 86, no. 4 (2008): 525–35. <https://doi.org/10.1080/00048400802346813>.

- Hanson, Norwood Russell. *The Genetic Fallacy Revisited*. n.d.
- Hanson, Norwood Russell. "The Irrelevance of History of Science to Philosophy of Science to Philosophy of Science." *The Journal of Philosophy*, 1962, 574–86.
- Haslanger, Sally. "Gender and Race: (What) Are They? (What) Do We Want Them to Be?" *Noûs* 34, no. 1 (2000): 31–55.
- Haslanger, Sally. "I — Sally Haslanger : What Good Are Our Intuitions?" *Aristotelian Society Supplementary Volume* 80, no. 1 (2006): 89–118. <https://doi.org/10.1111/j.1467-8349.2006.00139.x>.
- Hieronymi, Pamela. "The Force and Fairness of Blame." *Philosophical Perspectives* 18, no. 1 (2004): 115–48. <https://doi.org/10.1111/j.1520-8583.2004.00023.x>.
- Hill, Judith M. "Pornography and Degradation." *Hypatia* 2, no. 2 (1987): 39–54.
- Hobbes, Thomas. *Leviathan: With Selected Variants from the Latin Edition of 1668*. Edited by E. M. Curley. Hackett Pub. Co, 1994.
- Huddleston, Andrew. "'Consecration to Culture' : Nietzsche on Slavery and Human Dignity." *Journal of the History of Philosophy* 52, no. 1 (2014): 135–60. <https://doi.org/10.1353/hph.2014.0020>.
- Huemer, Michael. *Ethical Intuitionism*. Springer, 2007.
- Huemer, Michael. *Skepticism and the Veil of Perception*. Studies in Epistemology and Cognitive Theory. Rowman & Littlefield, 2001.
- Hume, David. *A Treatise of Human Nature*. 2nd ed. Edited by P. H. Nidditch and L. A. Selby-Bigge. Oxford University Press, 1978.
- Hurd, Heidi M., and Michael S. Moore. "The Hohfeldian Analysis of Rights." *The American Journal of Jurisprudence* 63, no. 2 (2018): 295–354.
- Hurka, Thomas. "Nietzsche : Perfectionist." In *Nietzsche and Morality*, edited by Brian Leiter and Neil Sinhababu. Oxford University Press, 2007.
- Hurka, Thomas. *Perfectionism*. Oxford Univ. Press, 1993.
- Hursthouse, Rosalind. "Arational Actions." *The Journal of Philosophy* 88, no. 2 (1991): 57–68.
- Hussain, Nadeem J. Z., and Nishi Shah. "Metaethics and Its Discontents: A Case Study of Korsgaard." In *Moral Constructivism: For and Against*, edited by Carla Bagnoli. Cambridge University Press, n.d.
- Hussain, Nadeem J. Z., and Nishi Shah. "Misunderstanding Metaethics: Korsgaard's Rejection of Realism." In *Oxford Studies in Metaethics: Volume 1*, edited by Russ Shafer-Landau. Clarendon Press, 2006.

- ICC. "Playing Conditions | About ICC Cricket." ICC. Accessed March 17, 2026.
<https://www.icc-cricket.com/about/cricket/rules-and-regulations/playing-conditions>.
- Jardine, Nicholas. "Science, Ethics, and Objectivity." In *World, Mind, and Ethics: Essays on the Ethical Philosophy of Bernard Williams*, edited by J. E. J. Altham and Ross Harrison. Cambridge University Press, 1995. <https://doi.org/10.1017/CBO9780511621086.004>.
- Jenkins, Mark P. *Bernard Williams*. Philosophy Now. Routledge, Taylor & Francis Group, 2014.
<https://doi.org/10.4324/9781315710488>.
- Kagan, Shelly. "An Introduction to Ill-Being." In *Oxford Studies in Normative Ethics, Volume 4*, edited by Mark Timmons. Oxford University Press, 2014.
- Kahane, Guy. "The Value Question in Metaphysics." *Philosophy and Phenomenological Research* 85, no. 1 (2012): 27–55. <https://doi.org/10.1111/j.1933-1592.2012.00589.x>.
- Kant, Immanuel. "Critique of Practical Reason." In *Practical Philosophy*, edited and translated by Mary J. Gregor. The Cambridge Edition of the Works of Immanuel Kant. Cambridge University Press, 1996.
- Kant, Immanuel. *Critique of Pure Reason*. Edited and translated by Paul Guyer and Allen W. Wood. Cambridge University Press, 1998.
- Kant, Immanuel. "Groundwork of the Metaphysics of Morals." In *Practical Philosophy*, edited and translated by Mary J. Gregor. The Cambridge Edition of the Works of Immanuel Kant. Cambridge University Press, 1996.
- Kant, Immanuel. *Lectures on Ethics*. Edited by Peter Heath and J. B. Schneewind. Translated by Peter Heath. The Cambridge Edition of the Works of Immanuel Kant. Cambridge University Press, 1997.
- Kant, Immanuel. "The Metaphysics of Morals." In *Practical Philosophy*, edited and translated by Mary J. Gregor. The Cambridge Edition of the Works of Immanuel Kant. Cambridge University Press, 1996.
- Kant, Immanuel, and J. Michael Young. *Lectures on Logic*. The Cambridge Edition of the Works of Immanuel Kant. Cambridge University Press, 2012.
<https://doi.org/10.1017/CBO9780511810039>.
- Kekes, John. "Cruelty and Liberalism." *Ethics* 106, no. 4 (1996): 834–44.
<https://doi.org/10.1086/233675>.
- Killoren, David. "Robust Moral Realism: An Excellent Religion." *International Journal for Philosophy of Religion* 79, no. 3 (2016): 223–37. <https://doi.org/10.1007/s11153-015-9509-2>.
- Kim, Sŭng-ho. *Max Weber's Politics of Civil Society*. Cambridge University Press, 2004.

- Kitsik, Eve. "Epistemic Paternalism via Conceptual Engineering." *Journal of the American Philosophical Association* 9, no. 4 (2023): 616–35. <https://doi.org/10.1017/apa.2022.22>.
- Klein, Colin. "An Imperative Theory of Pain." *The Journal of Philosophy* 104, no. 10 (2007): 517–32.
- Klein, Colin. "Imperatives, Phantom Pains, and Hallucination by Presupposition." *Philosophical Psychology* 25, no. 6 (2012): 917–28. <https://doi.org/10.1080/09515089.2011.625121>.
- Klement, Kevin C. *When Is Genetic Reasoning Not Fallacious?* n.d.
- Kolnai, Aurel. "Deliberation Is of Ends." In *Ethics, Value, and Reality*, by Bernard Williams and David Wiggins. Transaction Publishers, 2008.
- Kolnai, Aurel, Bernard Williams, and David Wiggins. *Ethics, Value, and Reality*. Library of Conservative Thought, v. 1. Transaction Publishers, 2008.
- Koopman, Colin. "Problematization." In *The Cambridge Foucault Lexicon*, edited by Leonard Lawlor and John Nale. Cambridge University Press, 2014.
- Korman, Daniel Z. "Debunking Arguments." *Philosophy Compass* 14, no. 12 (2019): e12638. <https://doi.org/10.1111/phc3.12638>.
- Korman, Daniel Z., and Dustin Locke. "An Explanationist Account of Genealogical Defeat." *Philosophy and Phenomenological Research* 106, no. 1 (2023): 176–95. <https://doi.org/10.1111/phpr.12848>.
- Korsgaard, Christine M. *Fellow Creatures: Our Obligations to the Other Animals*. Oxford University Press, 2018.
- Korsgaard, Christine M. *Self-Constitution: Agency, Identity, and Integrity*. Oxford University Press, 2009.
- Korsgaard, Christine M. *The Sources of Normativity*. Cambridge University Press, 1996.
- Korsgaard, Christine M. "Valuing Our Humanity." In *Respect*, by Christine M. Korsgaard. Oxford University Press, 2021. <https://doi.org/10.1093/oso/9780198824930.003.0009>.
- Kte'pi, Bill. "History of Disaster Relief, Ancient World." In *Encyclopedia of Disaster Relief*, by Matt Statler and K. Bradley Penuel. SAGE Publications, Inc., 2011. <https://doi.org/10.4135/9781412994064.n108>.
- Larmore, Charles. "Political Liberalism: Its Motivations and Goals." In *Oxford Studies in Political Philosophy Volume 1*, First edition, edited by David Sobel, Peter Vallentyne, and Steven Wall. Oxford University Press, 2015.
- Lassman, Peter, and Ronald Speirs, eds. "The Profession and Vocation of Politics." In *Weber: Political Writings*, by Max Weber. Cambridge University Press, 1994.

- Lavin, Douglas. "Practical Reason and the Possibility of Error." *Ethics* 114, no. 3 (2004): 424–57.
- Leader Maynard, Jonathan, and Alex Worsnip. "Is There a Distinctively Political Normativity?" *Ethics* 128, no. 4 (2018): 756–87. <https://doi.org/10.1086/697449>.
- Leiter, Brian. "Nietzsche and the Morality Critics." *Ethics* 107, no. 2 (1997): 250–85.
- Leiter, Brian and Philosophy Documentation Center. "On the Relevance of Etiology to Justification (with Reference to Marx and Nietzsche)." *Midwest Studies in Philosophy* 47 (2023): 157–69. <https://doi.org/10.5840/msp202311244>.
- Locke, John, and Peter Laslett. *Two Treatises of Government*. Student ed. Cambridge Texts in the History of Political Thought. Cambridge University Press, 1988.
- Łukomska, Agata. "Confidence: On the Possibility of Ethical Knowledge." In *Morality and Agency*, 1st ed., edited by Andras Sziget and Matthew Talbert. Oxford University Press New York, 2022. <https://doi.org/10.1093/oso/9780197626566.003.0006>.
- Machiavelli, Niccolò, Russell Price, and Quentin Skinner. *The Prince*. 2nd ed. Cambridge university press, 2019.
- MacIntyre, Alasdair. *After Virtue*. 3rd ed. University of Notre Dame Press, 2007.
- MacIntyre, Alasdair C. *Three Rival Versions of Moral Enquiry: Encyclopaedia, Genealogy, and Tradition ; Being Gifford Lectures Delivered in the University of Edinburgh in 1988*. Repr. Univ. of Notre Dame Press, 2006.
- Mackie, J. L. *Ethics: Inventing Right and Wrong*. Penguin UK, 1990.
- Martínez, Manolo. "Imperative Content and the Painfulness of Pain." *Phenomenology and the Cognitive Sciences* 10, no. 1 (2011): 67–90. <https://doi.org/10.1007/s11097-010-9172-0>.
- Marušić, Berislav. "Do Reasons Expire?: An Essay on Grief." *Philosophers' Imprint* 18, no. 25 (n.d.): 1–21.
- Milgram, Elijah. "Specificationism." In *Reasoning: Studies of Human Inference and Its Foundations*, edited by Jonathan Eric Adler and Lance J. Rips. Cambridge University Press, 2008.
- Mill, John Stuart. *On Liberty*. Edited by Elizabeth Rapaport. Hackett Pub. Co, 1978.
- Mill, John Stuart. "Remarks on Bentham's Philosophy." In *The Classical Utilitarians: Bentham and Mill*, edited by John Troyer. Hackett Pub. Co, 2003.
- Mills, Charles W. (Charles Wade). "'Ideal Theory' as Ideology." *Hypatia* 20, no. 3 (2005): 165–84. <https://doi.org/10.1353/hyp.2005.0107>.
- Mogensen, Andreas L. "Contingency Anxiety and the Epistemology of Disagreement." *Pacific*

- Philosophical Quarterly* 97, no. 4 (2016): 590–611. <https://doi.org/10.1111/papq.12099>.
- Moore, A. W., ed. “Moral Responsibility and Political Freedom.” In *Philosophy as a Humanistic Discipline*, by Bernard Williams. Princeton University Press, 2006.
- Moretti, Luca. “Phenomenal Conservatism.” *Analysis* 75, no. 2 (2015): 296–309.
- Nagel, Thomas. “Personal Rights and Public Space.” *Philosophy & Public Affairs* 24, no. 2 (1995): 83–107.
- Nagel, Thomas. *The Possibility of Altruism*. Princeton University Press, 1970.
- Nell, Victor. “Cruelty’s Rewards: The Gratifications of Perpetrators and Spectators.” *Behavioral and Brain Sciences* 29, no. 3 (2006): 211–24. Cambridge Core. <https://doi.org/10.1017/S0140525X06009058>.
- Nietzsche, Friedrich. *Nietzsche: The Gay Science: With a Prelude in German Rhymes and an Appendix of Songs*. Edited by Bernard Williams. Translated by Josefine Nauckhoff and Adrian Del Caro. Cambridge Texts in the History of Philosophy. Cambridge University Press, 2001. Cambridge Core. <https://doi.org/10.1017/CBO9780511812088>.
- Nimtz, Christian. “Engineering Concepts by Engineering Social Norms: Solving the Implementation Challenge.” *Inquiry* 67, no. 6 (2024): 1716–43. <https://doi.org/10.1080/0020174X.2021.1956368>.
- Nussbaum, Martha C. “Perfectionist Liberalism and Political Liberalism.” *Philosophy & Public Affairs* 39, no. 1 (2011): 3–45. <https://doi.org/10.1111/j.1088-4963.2011.01200.x>.
- Office of the Commissioner of Baseball. *Official Baseball Rules 2023 Edition*. no. 2023 (n.d.).
- Pallikkathayil, Japa. “Neither Perfectionism nor Political Liberalism.” *Philosophy & Public Affairs* 44, no. 3 (2016): 171–96. <https://doi.org/10.1111/papa.12077>.
- Preston-Roedder, Ryan. “A Better World.” *Philosophical Studies* 168, no. 3 (2014): 629–44. <https://doi.org/10.1007/s11098-013-0154-2>.
- Pritchard, Duncan. “On Meta-Epistemology.” *The Harvard Review of Philosophy* 18, no. 1 (2012): 91–108.
- Rawls, John. *A Theory of Justice*. Revised. Harvard University Press, 1971.
- Rawls, John. *Political Liberalism*. Expanded ed. Columbia University Press, 2005.
- Rawls, John. “Social Unity and Primary Goods.” In *Collected Papers*, edited by Samuel Richard Freeman. Harvard University Press, 1999.
- Rawls, John. “The Idea of an Overlapping Consensus.” In *Collected Papers*. Edited by Samuel Richard Freeman. Harvard University Press, 1999.

- Raz, Joseph. "Autonomy, Toleration, and the Harm Principle." In *Justifying Toleration: Conceptual and Historical Perspectives*, edited by Susan Mendus. Cambridge University Press, 1988. Cambridge Core. <https://doi.org/10.1017/CBO9780511735295.009>.
- Rossi, Enzo, and Matt Sleat. "Realism in Normative Political Theory." *Philosophy Compass* 9, no. 10 (2014): 689–701. <https://doi.org/10.1111/phc3.12148>.
- Samuel, Jack. "Alienation and the Metaphysics of Normativity: On the Quality of Our Relations with the World." *Journal of Ethics and Social Philosophy* 26, no. 1 (2023).
- Samuel, Jack. "An Individual Reality, Separate from Oneself: Alienation and Sociality in Moral Theory." *Inquiry* 67, no. 6 (2024): 1531–51. <https://doi.org/10.1080/0020174X.2021.1948445>.
- Scanlon, T. M. *Moral Dimensions: Permissibility, Meaning, Blame*. Belknap Press of Harvard University Press, 2008.
- Scharp, Kevin. "Philosophy as the Study of Defective Concepts." In *Conceptual Engineering and Conceptual Ethics*, 1st ed., edited by Alexis Burgess, Herman Cappelen, and David Plunkett. Oxford University Press Oxford, 2020. <https://doi.org/10.1093/oso/9780198801856.003.0019>.
- Shklar, Judith N. "The Liberalism of Fear." In *Political Thought and Political Thinkers*, edited by Stanley Hoffmann and George Kateb. Univ. of Chicago Press, 1998.
- Smyth, Nicholas. "Purity and Practical Reason: On Pragmatic Genealogy." *Ergo an Open Access Journal of Philosophy* 10, no. 0 (2023). <https://doi.org/10.3998/ergo.4667>.
- Sosa, Ernest. "How to Defeat Opposition to Moore." *Noûs* 33, no. s13 (1999): 141–53. <https://doi.org/10.1111/0029-4624.33.s13.7>.
- Srinivasan, Amia. "Genealogy, Epistemology and Worldmaking." *Proceedings of the Aristotelian Society* 119, no. 2 (2019): 127–56. <https://doi.org/10.1093/arisoc/aoz009>.
- Srinivasan, Amia. "Radical Externalism." *The Philosophical Review* 129, no. 3 (2020): 395–431. <https://doi.org/10.1215/00318108-8311261>.
- Srinivasan, Amia. "The Archimedean Urge." *Philosophical Perspectives* 29, no. 1 (2015): 325–62. <https://doi.org/10.1111/phpe.12068>.
- Street, Sharon. "A Darwinian Dilemma for Realist Theories of Value." *Philosophical Studies* 127, no. 1 (2006): 109–66.
- Sussman, David. "Morality, Self-Constitution, and the Limits of Integrity." In *Why Be Moral?*, edited by Beatrix Himmelmann and Robert Loudon. De Gruyter, 2015. <https://doi.org/10.1515/9783110366396-009>.
- Sussman, David, Tamar Schapiro, Kyla Ebels-Duggan, and Sharon Street. "The Horizons of

- Humanity.” *Normativity and Agency: Themes from the Philosophy of Christine M. Korsgaard*, 2022, 1–20.
- Tamir, Yael. “The Land of the Fearful and the Free.” *Constellations* 3, no. 3 (1997): 296–314. <https://doi.org/10.1111/j.1467-8675.1997.tb00061.x>.
- Tenenbaum, Sergio. “Formalism and Constitutivism in Kantian Practical Philosophy.” *Philosophical Explorations* 22, no. 2 (2019): 163–76. <https://doi.org/10.1080/13869795.2019.1599053>.
- The R&A. “The Rules of Golf - Definitions.” R&A. Accessed March 17, 2026. <https://www.randa.org/en/rog/definitions>.
- Thucydides. *The Peloponnesian War*. Translated by Steven Lattimore. Hackett Pub. Co, 1998.
- Tosi, Justin, and Brandon Warmke. *Grandstanding: The Use and Abuse of Moral Talk*. Oxford University Press, 2020.
- USGA. “Rules and Clarifications.” USGA. Accessed March 17, 2026. <https://www.usga.org/rules/rules-and-clarifications/rules-and-clarifications.html#section=definitions>.
- Valentini, Laura. “Ideal vs. Non-ideal Theory: A Conceptual Map.” *Philosophy Compass* 7, no. 9 (2012): 654–64. <https://doi.org/10.1111/j.1747-9991.2012.00500.x>.
- Walden, Kenneth. “The Relativity of Ethical Explanation.” In *Oxford Studies in Normative Ethics, Volume 6*, edited by Mark Timmons. Oxford University Press, 2016. <https://doi.org/10.1093/acprof:oso/9780198790587.003.0010>.
- Wall, Steven. “Perfectionism in Moral and Political Philosophy.” In *The Stanford Encyclopedia of Philosophy*, Fall 2021, edited by Edward N. Zalta. Metaphysics Research Lab, Stanford University, 2021. <https://plato.stanford.edu/archives/fall2021/entries/perfectionism-moral/>.
- Wall, Steven. “Perfectionism in Politics: A Defense.” In *Contemporary Debates in Political Philosophy*, 1st ed., edited by Thomas Christiano and John Christman. Wiley, 2009. <https://doi.org/10.1002/9781444310399.ch6>.
- Wallace, R. Jay. “Dispassionate Opprobrium: On Blame and the Reactive Sentiments.” In *Reasons and Recognition: Essays on the Philosophy of T. M. Scanlon*, edited by R. Jay Wallace, Rahul Kumar, and Samuel Richard Freeman. Oxford University Press, 2011.
- Walzer, Michael. “On Negative Politics.” *Liberalism Without Illusions: Essays on Liberal Theory and the Political Vision of Judith N. Shklar*, 1996, 17–24.
- Walzer, Michael. “Political Action: The Problem of Dirty Hands.” *Philosophy and Public Affairs* 2, no. 2 (1973): 160–80.

- Watt, A. J. "Transcendental Arguments and Moral Principles." *The Philosophical Quarterly* 25, no. 98 (1975): 40. <https://doi.org/10.2307/2217951>.
- White, Roger. "You Just Believe That Because...." *Philosophical Perspectives* 24, no. 1 (2010): 573–615. <https://doi.org/10.1111/j.1520-8583.2010.00204.x>.
- Wiggins, David. "Deliberation and Practical Reason." In *Essays on Aristotle's Ethics*, edited by Amélie Oksenberg Rorty. University of California Press, 1980.
- Williams, Bernard. *Ethics and the Limits of Philosophy*. Harvard University Press, 1985.
- Williams, Bernard. "From Freedom to Liberty: The Construction of a Political Value." In *In the Beginning Was the Deed: Realism and Moralism in Political Argument*, edited by Geoffrey Hawthorn. Princeton University Press, 2008.
- Williams, Bernard. "Human Rights and Relativism." In *In the Beginning Was the Deed: Realism and Moralism in Political Argument*, edited by Geoffrey Hawthorn. Princeton University Press, 2008.
- Williams, Bernard. "In the Beginning Was the Deed." In *In the Beginning Was the Deed: Realism and Moralism in Political Argument*, edited by Geoffrey Hawthorn. Princeton University Press, 2008.
- Williams, Bernard. "Internal and External Reasons." In *Moral Luck: Philosophical Papers 1973–1980*. Cambridge University Press, 1981.
- Williams, Bernard. "Internal Reasons and the Obscurity of Blame." In *Making Sense of Humanity: And Other Philosophical Papers 1982–1993*, 1st ed. Cambridge University Press, 1995. <https://www.cambridge.org/core/product/identifier/9780511621246/type/book>.
- Williams, Bernard, ed. "Nietzsche's Minimalist Moral Psychology." In *Making Sense of Humanity: And Other Philosophical Papers 1982–1993*. Cambridge University Press, 1995. <https://doi.org/10.1017/CBO9780511621246.007>.
- Williams, Bernard. "Persons, Character, and Morality." In *Moral Luck*. Cambridge University Press, 1981.
- Williams, Bernard. "Realism and Moralism in Political Theory." In *In the Beginning Was the Deed: Realism and Moralism in Political Argument*, edited by Geoffrey Hawthorn. Princeton University Press, 2008.
- Williams, Bernard. "Reply to Simon Blackburn." *Philosophical Books* 27, no. 4 (1986): 203–8. <https://doi.org/10.1111/j.1468-0149.1986.tb01197.x>.
- Williams, Bernard. *Shame and Necessity, Second Edition*. 2nd ed. Sather Classical Lectures, v. 57. University of California Press, 2008.

- Williams, Bernard. *Truth & Truthfulness: An Essay in Genealogy*. Princeton University Press, 2002.
- Winch, Peter. "Im Anfang War Die Tat." In *Perspectives on the Philosophy of Wittgenstein*, edited by Irving Block. MIT Press, 1983.
- Wittgenstein, L. "Cause and Effect: Intuitive Awareness." *Philosophia* 6, nos. 3–4 (1976): 409–25. <https://doi.org/10.1007/BF02379281>.
- Wittgenstein, Ludwig. *On Certainty*. Edited by Gertrude Elizabeth Margaret Anscombe and Georg Henrik von Wright. Translated by Denis Paul and Gertrude Elizabeth Margaret Anscombe. Harper & Row, 1969.
- Wittgenstein, Ludwig. *Philosophical Investigations*. Revised 4th. Edited by P. M. S. Hacker and Joachim Schulte. Translated by G. E. M. Anscombe, P. M. S. Hacker, and Joachim Schulte. Wiley-Blackwell, 2009.
- Wolf, Susan. "Blame, Italian Style." In *Reasons and Recognition: Essays on the Philosophy of T. M. Scanlon*, edited by R. Jay Wallace, Rahul Kumar, and Samuel Richard Freeman. Oxford University Press, 2011.
- Worsnip, Alex. "Cryptonormative Judgments." *European Journal of Philosophy* 25, no. 1 (2017): 3–24. <https://doi.org/10.1111/ejop.12208>.